

RESOLUTION NO. 2020-85

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF HUNTINGTON BEACH TO
ACCEPT AND APPROVE THE DEVELOPMENT IMPACT FEE REPORT FOR FISCAL
YEAR ENDING JUNE 30, 2020 AND TO MAKE THE FINDINGS AS REQUIRED BY
GOVERNMENT CODE SECTION 66006(b) AND 66001(d)

WHEREAS, City has received and expended reportable development impact fees as authorized by Government Code Section 66000, *et. seq.*; and the Huntington Beach Municipal Code; and

In accordance with Government Code Section 66006(a), the City has established and maintained separate funds for each development impact fee in a manner to avoid any commingling of the fees with other revenues and funds for the City, except for temporary investments, and has expended those fees solely for the purpose for which the fees were collected; and

Pursuant to Government Code Section 66006(b)(1), the City is required to prepare and make available to the public within one hundred eighty (180) days after the last day of each fiscal year, information describing the type of fee in each account or fund, the amount of the fee, the beginning and ending balance of the account or fund, the amount of the fees collected and interest earned, and details regarding the use of the fees; and

Pursuant to Government Code Section 66001(d)(1), the City is required, for the fifth fiscal year following the first deposit into the account or fund, and every five years thereafter, to make specified findings with respect to that portion of the account or fund that remains unexpended, whether committed or uncommitted; and

Pursuant to Government Code Section 66001(d)(2), the fifth year findings must be made in connection with the public information required by Government Code Section 66006(b); and

Pursuant to Government Code Section 66006(b)(2), the City must review the information made available to the public pursuant to Section 66006 at a regularly scheduled public meeting occurring not less than 15 days after the information is made public; and

Pursuant to Government Code Section 66001(e), except as otherwise provided by law, when sufficient funds have been collected, as determined pursuant to Government Code Section 66006(b)(1)(F), to complete financing on an incomplete public improvement identified in Government Code section 66001(a)(2), and the public improvements remain incomplete, the City must identify an appropriate date by which the construction of the public improvements will be commenced, or must refund to the then current record owner or owners of the lots or units of the development project or projects on a prorated basis, the unexpended portion of the fee, and any interest accrued thereon; and

The Development Impact Fee Report for Fiscal Year End June 30, 2020 (the "DIF Report") attached hereto as Exhibit "A", provides the information required by Government Code

Section 66006(b) to be made available to the public on an annual basis for the following development impact fees:

- A Law Enforcement Facilities Development Impact Fee as approved by Ordinance No. 3942, passed on July 2, 2012 and codified in Chapter 17.75 of the Huntington Beach Municipal Code, to fund the costs of providing police services attributable to new residential and nonresidential construction
- A Fire Facilities Development Impact Fee as approved by Ordinance No. 3943 Development Impact Fees for Fire Facilities, passed on July 2, 2012 and codified in Chapter 17.74 of the Huntington Beach Municipal Code, to fund the costs of providing additional fire suppression/medic facilities, vehicles and specialty equipment attributable to new residential and nonresidential construction
- A Fair Share Traffic Impact Mitigation Fee as approved by Ordinance No. 3944, passed on July 2, 2012 and codified in Chapter 17.65 of the Huntington Beach Municipal Code, to ensure that the adopted Level of Service standards for arterial roadways and signalized intersections are maintained when new development is constructed within the City limits and that new developments pay their fair share toward short- and long-term transportation improvements
- A Library Development Impact Fee as approved by Ordinance No. 3945, passed on July 2, 2012 and codified in Chapter 17.67 of the Huntington Beach Municipal Code, to fund the costs of expansion of the amount of library space and the number of collection items attributable to new residential construction
- A Parkland Acquisition and Park Facilities Development Impact Fee, as approved by Ordinance No. 3946, passed on July 2, 2012 and codified in Chapter 17.76 of the Huntington Beach Municipal Code, to fund the costs of providing the acquisition, relocation and expansion of parkland and park facilities development attributable to new residential and nonresidential construction
- A Sanitary Sewer Facilities Fee, pursuant to Chapter 14.36 of the Huntington Beach Municipal Code, to fund sewer capacity enhancements to accommodate new development requiring service from the City sewer system
- A Drainage Facilities Fee, pursuant to Section 14.48.050 of the Huntington Beach Municipal Code, restricted to use for drainage system enhancements

The DIF Report was made available to the public on November 30, 2020, more than 15 days prior to the regularly scheduled meeting held on December 21, 2020, of the City Council of the City of Huntington Beach; and

The City first collected and deposited fees in Fiscal Year 2012-13; and

The City Council now wishes to accept the DIF Report and to make requisite findings relating to unexpended funds for the five-year period ending with Fiscal Year June 30, 2020.

NOW, THEREFORE, BE IT HEREBY RESOLVED by the City Council of the City of Huntington Beach, the following:

1. The foregoing recitals and determinations are true and correct.
2. The City has timely made available to the public the requisite information and proposed findings concerning the development impact fees received, deposited, invested and expended by the City.
3. The City Council at its regularly scheduled public meeting of December 21, 2020, has publicly reviewed the following information as contained in the DIF Report and finds that it complies with Government Code Section 66006(b), establishing the requirements for annual reporting on development impact fees:
 - a. A brief description of the type of fee in the account or fund;
 - b. The amount of the fee;
 - c. The beginning and ending balance of the account or fund;
 - d. The amount of the fees collected and interest earned;
 - e. An identification of each public improvement on which fees were expended and the amount of expenditures on each improvement including the total percentage of the cost of the public improvement that was funded with fees;
 - f. An identification of an approximate date by which the construction of the public improvement will commence if the local agency determines that sufficient funds have been collected to complete financing on an incomplete public improvement;
 - g. A description of each interfund transfer or loan made from the account or fund, including the public improvement on which the transferred or loaned fees will be expended, and, in the case of an interfund loan, the date on which the loan will be repaid and the rate of interest that the account or fund will receive on the loan; and
 - h. The amount of any refunds made due to sufficient funds being collected to complete financing on incomplete public improvements, and the amount of reallocation of funds made due to administrative costs of refunding unexpended revenues exceeding the amount to be refunded.
4. The City Council finds that the DIF Report contains the following requisite information to support making the findings relating to unexpended funds, pursuant to Government Code Section 66001(d) as of the end of Fiscal Year 2019-20:
 - a. Identify the purpose to which the fee is to be put;
 - b. Demonstrate a reasonable relationship between the fee and the purpose for which it is charged;
 - c. Identify all sources and amounts of funding anticipated to complete financing in incomplete improvements; and

- d. Designate the approximate dates on which the anticipated funding is expected to be deposited into the appropriate account or fund.
5. The City Council finds that all fees, payments, and expenditures have been collected, deposited, invested and expended in compliance with all applicable provisions of Government Code Section 66000, *et. seq.*
6. The City Council finds that no refunds or allocations of fees are required pursuant to Government Code Section 66001(e).
7. The City Council finds that the City is in compliance with the annual reporting requirements of Government Code Section 66006(b)(1) for Fiscal Year 2019-20.
8. The City Council finds that the City is in compliance with Government Code Section 66001(d) relative to making required fifth year findings for the period beginning in Fiscal Year 2015-16 and ending Fiscal Year 2019-20.

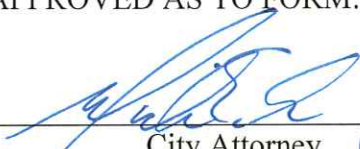
PASSED AND ADOPTED by the City Council of the City of Huntington Beach at a regular meeting thereof held on the _____ day of _____, 2020.

Mayor

REVIEWED AND APPROVED:

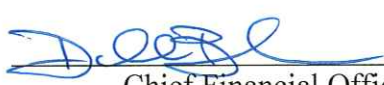
City Manager

APPROVED AS TO FORM:



City Attorney *MMV*

INITIATED AND APPROVED:



Chief Financial Officer

EXHIBIT A
DEVELOPMENT IMPACT FEE REPORT

Development Impact Fee Report Fiscal Year End June 30, 2020



City of Huntington Beach
2000 Main St.
Huntington Beach, CA.

City of Huntington Beach Development Impact Fee Report Fiscal Year Ended June 30, 2020



**Submitted by
Dahle Bulosan, Chief Financial Officer**

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Lyn Semeta
Mayor



Kim Carr
Mayor Pro Tem



Jill Hardy
Council Member



Barbara Delgleize
Council Member



Patrick Brenden
Council Member



Mike Posey
Council Member



Erik Peterson
Council Member

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Elected Officials

City Attorney Michael Gates
City Clerk Robin Estanislau
City Treasurer Alisa Backstrom

City Manager's Office

City Manager Oliver Chi
Assistant City Manager Travis Hopkins

Department Directors

Administrative Services Travis Hopkins
Community Development Ursula Luna-Reynosa
Community & Library Services Chris Slama
Finance Dahle Bulosan
Fire Scott Haberle
Police Julian Harvey, Interim
Public Works Sean Crumby

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CITY OF HUNTINGTON BEACH

2000 Main Street, Huntington Beach, CA 92648

FINANCE DEPARTMENT

December 21, 2020

Dear Mayor and Members of the City Council:

The City Council approved the establishment of Development Impact Fees through the enactment of Government Code Sections 66001 through 66009. Four ordinances have been adopted establishing development impact fees for Parkland Acquisition and Park Facilities, Police Facilities, Fire Facilities, and Library. The law requires any local agency that imposes development impact fees to prepare an annual report providing specific information about those fees. Additionally, three Public Works facilities improvement fees – Planned Local Drainage, Sanitary Sewer Facilities, and Fair Share Traffic Impact Mitigation Program – collected for development projects are also included in the annual compliance report requirement.

In accordance with the provisions of the California Government Code Section 66006 (b) and 66001 (d), as amended by Assembly Bill (A) 518 and Senate Bill (SB) 1693, I hereby submit the Development Impact Fee (DIF) Report for the City of Huntington Beach, California for the fiscal year (FY) ended June 30, 2020.

DIFs are charged by local governmental agencies in connection with approval of development projects. The purpose of these fees is to defray all or a portion of the cost of public facilities related to the development project. The legal requirements for enactment of a DIF program are set forth in Government Code 66000-66025 (the "mitigation Fee Act"), the bulk of which was adopted as 1987's AB 1600 and thus commonly referred to as "AB 1600 requirements".

DIFs are collected at the time a building permit is issued for mitigating the impacts caused by new development on the City's infrastructure. Fees are used to finance the acquisition, construction and improvement of public facilities needed because of this new development. A separate fund has been established to account for the impact of new development on each of the following types of public facilities.

State law requires the City prepare and make available to the public the DIF Report within 180 days after the last day of each fiscal year. The City Council must review the annual report at a regular scheduled public meeting not less than fifteen days after the information is made available to the public. This report was filed with the City Clerk's office and available for public review on November 30, 2020.

Sincerely,

Dahle Bulosan
Chief Financial Officer

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Legal Requirements for Development Impact Fee Reporting

California Government Code Section 66006 (b)

California Government Code Section 66006 (b) defines the specific reporting requirements for local agencies that impose AB 1600 DIFs on new development. Annually, for each separate fund established for the collection and expenditure of DIFs, the local agency shall, within 180 days of the close of the fiscal year, make available to the public the information shown below for the most recent fiscal year.

- a) A brief description of the type of fee in the account or fund.
- b) The amount of the fee.
- c) The beginning and ending balance of the account or fund.
- d) The amount of the fees collected and interest earned.
- e) An identification of each public improvement on which fees were expended and the amount of the expenditures on each improvement, including the total percentage of the cost of the public improvement that was funded with fees.
- f) An identification of an approximate date by which the construction of the public improvement will commence if the local agency determines that sufficient funds have been collected to complete financing on an incomplete public improvement, as identified in paragraph (2) of subdivision (a) of Section 66001, and the public improvement remains incomplete.
- g) A description of each interfund transfer or loan made from the account or fund, including the public improvement on which the transferred or loaned fees will be expended, and, in the case of an interfund loan, the date on which the loan will be repaid, and the rate of interest that the account or fund will receive on the loan.
- h) The amount of refunds made pursuant to subdivision (e) of Section 66001 and any allocations pursuant to subdivision (f) of Section 66001.

California Government Code Section 66001 (d)

For all funds established for the collection and expenditure of DIFs, California Government Code Section 66001 (d) has additional requirements. For the fifth fiscal year following the first deposit into the fund and every five years thereafter, the local agency shall make all of the following findings with respect to that portion of the fund remaining unexpended, whether committed or uncommitted:

- a) Identify the purpose to which the fee is to be put.
- b) Demonstrate a reasonable relationship between the fee and purpose for which it is charged.
- c) Identify all sources and amounts of funding anticipated to complete financing in incomplete improvements identified in paragraph (2) of subdivision (a).
- d) Designate the approximate dates on which the funding referred to in subparagraph (c) is expected to be deposited into the appropriate account or fund.

California Government Code Section 66002

The State of California Government Code Section 66002 states that:

- a) Any local agency, which levies a fee subject to Section 66001, may adopt a capital improvement plan, which shall indicate the approximate location, size, time of availability, and estimates of cost for all facilities or improvements to be financed with the fees.



California Government Code Section 66002 (Continued)

- b) The capital improvement plan shall be adopted by, and shall be annually updated by, a resolution of the governing body of the local agency adopted at a noticed public hearing. Notice of the hearing shall be given pursuant to Section 65090. In addition, mailed notice shall be given to any city or county, which may be significantly affected by the capital improvement plan. This notice shall be given no later than the date the local agency notices the public hearing pursuant to Section 65090. The information in the notice shall be not less than the information contained in the notice of public hearing and shall be given by first-class mail or personal delivery.
- c) "Facility" or "improvement," as used in this section, means any of the following:
 - 1) Public buildings, including schools and related facilities; provided that school facilities shall not be included if Senate Bill 97 of the 1987–88 Regular Session is enacted and becomes effective on or before January 1, 1988.
 - 2) Facilities for the storage, treatment, and distribution of nonagricultural water.
 - 3) Facilities for the collection, treatment, reclamation, and disposal of sewage.
 - 4) Facilities for the collection and disposal of storm waters and for flood control purposes.
 - 5) Facilities for the generation of electricity and the distribution of gas and electricity.
 - 6) Transportation and transit facilities, including but not limited to streets and supporting improvements, roads, overpasses, bridges, harbors, ports, airports, and related facilities.
 - 7) Parks and recreation facilities.
 - 8) Any other capital project identified in the capital facilities plan adopted pursuant to Section 66002.



Description of Development Impact Fees

Police Facilities Development Impact Fees

Background: On June 18, 2012, the City Council approved the introduction of Ordinance No. 3942, which amended the Huntington Beach Municipal Code (HBMC) by adding Chapter 17.75 relating to Law Enforcement Facilities Impact Fees. The second reading of the Ordinance was approved on July 2, 2012.

Fee Description: Per HBMC 17.75.090, the funds collected from the Police Facilities Development Impact Fee shall be used to fund the costs of providing police services attributable to new residential and nonresidential construction and shall include:

- 1) The costs of providing the acquisition, construction, furnishing of new buildings;
- 2) Purchase of new specialty equipment and vehicles
- 3) Development of a Master Plan to identify capital facilities;
- 4) The cost of financing, projects identified in the City's General Plan, the Master Facilities Plan included in the Nexus Report, the City's Capital Improvement Plan, or City Council approved development projects

Parkland Acquisition and Park Facilities Development Impact Fees

Background: On June 18, 2012, the City Council approved the introduction of Ordinance No. 3946, which amended the Huntington Beach Municipal Code (HBMC) by adding Chapter 17.76 relating to Parkland Acquisition and Park Facilities Development Impact Fees. The second reading of the Ordinance was approved on July 2, 2012.

Fee Description: Per HBMC 17.76.090, the funds collected from Parkland Acquisition and Park Facilities Development Impact Fee shall be used to fund the "costs of providing the acquisition, relocation and expansion of parkland and park facilities development, attributable to new residential and nonresidential construction." Therefore, the expenses included in this report represent all costs associated with the planning, design, and construction stages of an eligible project, including staffing and professional design consultant costs.

Specifically, the fees may be used as summarized below.

- 1) The acquisition of additional property for the expansion of parkland and community facilities development;
- 2) The construction of new parks and park facilities and community use facilities;
- 3) The funding of a master plan to identify capital facilities to serve new parkland and park facilities and community use facilities development;
- 4) The cost of financing, projects identified in the City's General Plan, the Master Facilities Plan included in the Nexus Report, the City's Capital Improvement Plan, the adopted annual City of Huntington Beach budget, or City Council approved park acquisition and development projects.



Parkland Acquisition and Park Facilities Development Impact Fees (Continued)

Since the City's CIP generally includes projects and upgrades to existing facilities of \$50,000 or more, all eligible park improvements may not meet the minimum qualifications required to be included in the City's CIP. However, projects and improvement less than the \$50,000 threshold are still eligible park expenses as long as they are included in the documents referenced in item 4 above of the City's adopted annual budget. Examples of these types of expenditures include the City's annual park license fees with Southern California Edison. Since these expenses are included in the City's budget, they are eligible and included in this report.

Library Development Impact Fees

Background: On June 18, 2012, the City Council approved the introduction of Ordinance No. 3945, which amended the Huntington Beach Municipal Code (HBMC) by adding Chapter 17.67 relating to Library Development Impact Fees. The second reading of the Ordinance was approved on July 2, 2012.

Fee Description: Per HBMC 17.67.065, the funds collected from the Library Development Impact Fees shall be used to fund the costs of expansion of the amount of library space and the number of collection items attributed to the new residential construction and shall include:

- 1) The acquisition of additional property for Library construction;
- 2) The construction of new facilities for Library services;
- 3) The furnishing of new buildings or facilities for Library services;
- 4) The purchase of Library collections to expand collections;
- 5) The funding of master plan to identify capital facilities;
- 6) To serve new users and patrons;
- 7) The cost of financing, projects identified in the City's General Plan, the Master Facilities Plan included in the Nexus Report, the City's Capital Improvement Plan, or City Council approved development projects.

Fire Facilities Development Impact Fees

Background: On June 18, 2012, the City Council approved the introduction of Ordinance No. 3942, which amended the Huntington Beach Municipal Code (HBMC) by adding Chapter 17.74 relating to Fire Facilities Development Impact Fees. The second reading of the Ordinance was approved on July 2, 2012.

Fee Description: Per HBMC 17.74.090, the funds collected from the Fire Facilities Development Impact Fees shall be used to fund the costs of providing additional Fire suppression/medic facilities, vehicles and specialty equipment attributable to new residential and nonresidential construction and shall include:

- 1) The acquisition of additional property for Fire Department facilities;
- 2) The construction of new facilities for Fire Department services;
- 3) The furnishing of new buildings or facilities for Fire Department services;
- 4) The purchase of new specialty equipment and vehicles for Fire Department services;
- 5) The funding of a Master Plan to identify capital facilities to serve new Fire Department development;



Fire Facilities Development Impact Fees (Continued)

- 6) The cost of financing projects identified in the City's General Plan, the Master Facilities Plan included in the Nexus Report, the City's Capital Improvement Plan, or City Council approved development projects.

Fair Share Traffic Impact Mitigation Fee Program

Fee Description: The Fair Share Traffic Impact Mitigation Fee Program (Traffic Impact Fee) is intended to implement the goals and objectives of the General Plan by providing revenue to ensure that the adopted Level of Service standards for arterial roadways and signalized intersections are maintained when new development is constructed within the City limits and that these developments pay their fair share towards short and long term transportation improvements.

In accordance with Section 17.65.130 of the Huntington Beach Municipal Code (HBMC), the Public Works Department is required to prepare an annual report of the status of the Traffic Impact Fee for the City Council. The process also provides an opportunity for the Public Works Commission to review revenues and expenditures under the program.

Uses of Traffic Impact Fee funds are restricted to roadway capacity projects or other projects that affect the performance of the street system to offset the impacts of traffic generated by new development. Often, these types of projects are quite expensive and can involve right-of-way acquisition and property impacts. Staff has been developing projects to address some key roadway capacity areas in the City that are also larger scale projects. With expenditures that can be millions of dollars, staff has recommended that the Traffic Impact Fee fund accumulate a significant balance in order to make pursuit of those projects financially possible in the future. However, it is important to develop a program for fund expenditure to ensure the timely use of funds that are collected under this program.

Sanitary Sewer Facilities Fund

Fee Description: The Sanitary Sewer Facilities Fund (Sewer Fund) is a development fee that is restricted to use for sewer capacity enhancements. The fee is unrelated to the monthly Sewer Service Charge used for operations and maintenance of the existing sewer system. In accordance with Section 14.36.070 (d) of the Huntington Beach Municipal Code (HBMC), the Public Works Department is required to prepare an annual report of the status of the Sewer Fund for the City Council. The process also provides an opportunity for the Public Works Commission to review revenues and expenditures under the program.

The Sewer Fund is intended to implement the goals and objectives of the current Sewer Master Plan. Funds collected and deposited to the fund may be expended solely for the construction or reimbursement for construction of sanitary sewer facilities.



Planned Local Drainage Facilities Fund

Fee Description: The Planned Local Drainage Facilities Fund (Drainage Fund) is a development fee that is restricted to use for drainage system enhancement. In accordance with Section 14.48.050 (d) of the Huntington Beach Municipal Code (HBMC), the Public Works Department is required to prepare an annual report of the status of the Drainage Fund for the City Council. The process also provides an opportunity for the Public Works Commission to review revenues and expenditures under the program.

The Drainage Fund is intended to implement the goals and objectives of the current Drainage Master Plan. Funds collected and deposited to the fund may be expended solely for the construction or reimbursement for construction of drainage facilities.



Master Fee Schedule

Development Impact Fees

(per Resolution 2012-23 and amended on 12/17/18 to include ADU DIF)

Land Use	Law Enforcement Facilities	Fire Suppression Facilities	Circulation Systems (Streets, Signals, Bridges)	Public Library Facilities	Parkland/ Open Space & Facilities (No Tract Map)
Detached Dwelling Units (per Unit)	\$ 362.05	\$ 844.11	\$ 2,385.00	\$ 1,179.72	\$ 16,554.73
Attached Dwelling Units (per Unit)	\$ 746.48	\$ 349.85	\$ 1,597.00	\$ 866.48	\$ 12,732.84
Accessory Dwelling Units (per Unit)	\$ 183.50	\$ 86.00	*	\$ 213.00	\$ 3,130.00
Mobile Home Dwelling Units (per Unit)	\$ 337.64	\$ 1,449.23	\$ 1,248.00	\$ 708.85	\$ 10,222.88
Hotel/Motel Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.041/SF	\$0.234/SF
Resort Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.041/SF	\$0.234/SF
Commercial/Office Uses (per sq. ft.)	\$ 0.953	\$ 0.301	\$ 4.175	No Fee	\$ 0.897
Industrial/Manufacturing Uses (per sq. ft.)	\$ 0.406	\$ 0.0275	\$ 1.716	No Fee	\$ 0.730

Notes: * See Schedule Rates of Traffic Impact Fees, amended 12/17/2018 to include Accessory Dwelling



Master Fee Schedule

Schedule of Rates for Traffic Impact Fees

(per Resolution 2012-23 and amended on 12/17/18 to include ADU DIF)

Land Use	Adjusted Trip Ends	Average Distance	Trip-end to Trip	Additional Trip Miles	Cost per Trip Mile	Cost per 1000 sq. ft. dwelling unit or other unit
RESIDENTIAL LAND USES (per Unit)						
Detached Dwelling Unit	8.76	7.9	0.5	34.6	\$ 64.34	\$ 2,226.16 /Unit
Apartment	6.15	7.9	0.5	24.3	\$ 64.34	\$ 1,563.46 /Unit
Condominium/ Townhouse	5.36	7.9	0.5	21.2	\$ 64.34	\$ 1,364.01 /Unit
Accessory Dwelling						\$ 341.00 /Unit
Mobile Home Dwelling	4.57	7.9	0.5	18.1	\$ 64.34	\$ 1,164.55 /Unit
RESORT/TOURIST (per Unit or Entry Door)						
Hotel	6.29	7.6	0.5	23.9	\$ 64.34	\$ 1,537.73 /Room
All Suites Hotel	3.77	7.6	0.5	14.3	\$ 64.34	\$ 920.06 /Room
Motel	4.34	7.6	0.5	16.5	\$ 64.34	\$ 1,061.61 /Room
INDUSTRIAL (per 1,000 SF)						
General Light Industrial	6.17	9.0	0.5	27.8	\$ 64.34	\$ 1,788.65 /1,000 sf
Heavy Industrial	5.97	9.0	0.5	26.9	\$ 64.34	\$ 1,730.75 /1,000 sf
Manufacturing	2.73	9.0	0.5	12.3	\$ 64.34	\$ 791.38 /1,000 sf
Warehousing	4.39	9.0	0.5	19.8	\$ 64.34	\$ 1,273.93 /1,000 sf
COMMERCIAL (per 1,000 SF)						
Office Park	7.42	8.8	0.5	32.6	\$ 64.34	\$ 2,097.48 /1,000 sf
Research Park	5.01	8.8	0.5	22.0	\$ 64.34	\$ 1,415.48 /1,000 sf
Business Park	9.34	8.8	0.5	41.1	\$ 64.34	\$ 2,644.37 /1,000 sf
Bldg. Materials/Lumber Store	29.35	4.3	0.5	63.1	\$ 64.34	\$ 4,059.85 /1,000 sf
Garden Center	23.45	4.3	0.5	50.4	\$ 64.34	\$ 3,242.74 /1,000 sf
Movie Theater	2.47	4.3	0.5	5.3	\$ 64.34	\$ 341.00 /1,000 sf
Church	5.92	4.3	0.5	12.7	\$ 64.34	\$ 817.12 /1,000 sf
Medical-Dental Office	22.21	8.8	0.5	97.7	\$ 64.34	\$ 6,286.02 /1,000 sf
General Office Building	7.16	8.8	0.5	31.5	\$ 64.34	\$ 2,026.71 /1,000 sf
Shopping Center	30.2	4.3	0.5	64.9	\$ 64.34	\$ 4,175.67 /1,000 sf
Hospital	11.42	4.3	0.5	24.6	\$ 64.34	\$ 1,582.76 /1,000 sf
Discount Center	62.93	4.3	0.5	135.3	\$ 64.34	\$ 8,705.20 /1,000 sf
High-Turnover Restaurant	8.9	4.3	0.5	19.1	\$ 64.34	\$ 1,228.89 /1,000 sf
Convenience Market	43.57	4.3	0.5	93.7	\$ 64.34	\$ 6,028.66 /1,000 sf
Office Park	13.97	4.3	0.5	30.0	\$ 64.34	\$ 1,930.20 /1,000 sf
OTHER (as noted)						
Cemetery	3.07	4.3	0.5	6.6	\$ 64.34	\$ 424.64 /Acre
Service Station/Market (avg)	107.69	4.3	0.5	231.5	\$ 64.34	\$ 14,894.71 /Fuel Position
Service Station w/Car Wash	99.35	4.3	0.5	213.6	\$ 64.34	\$ 13,743.02 /Fuel Position



**Statement of Revenues, Expenditures and Changes in Fund Balance
For the Fiscal Year Ended June 30, 2020*
Development Impact Fees**

Description	Parkland Acquisition & Park Facilities	Police Facilities	Fire Facilities	Library Facilities	Sewer Facilities Fund	Drainage Facilities Fund	Traffic Impact Fees
REVENUES							
Fees	385,395	178,437	98,953	128,248	405,790	703,122	564,172
Interest	383,539	49,575	27,274	36,229	188,404	74,100	83,723
Other Revenue					12,310		
Total Revenues	768,934	228,012	126,227	164,477	606,504	777,222	647,895
EXPENDITURES							
Expenditures	2,949,744			156,639	85,394		2,157,222
Total Expenditures	2,949,744			156,639	85,394		2,157,222
Rev Over/(Under) Exp	(2,180,810)	228,012	126,227	7,838	521,110	777,222	(1,509,328)
Beginning Fund Balance	15,306,778	1,530,077	803,089	1,222,150	6,563,060	1,741,401	4,248,742
Ending Fund Balance	13,125,968	1,758,089	929,316	1,229,988	7,084,170	2,518,623	2,739,414

* Note: Unaudited actual

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Parkland Acquisition and Park Facilities Development Impact Fees

The Parkland Acquisition and Park Facilities Development Impact Fee program is intended to implement the goals, objectives and policies of the City of Huntington Beach General Plans by ensuring that the City's acquisition, relocation and expansion of parkland and community facilities development are maintained when new development is constructed within the City limits (HBMC 17.76.020 (B)).

Fiscal Status

This report presents the fund information based on the City's preliminary audit for Fiscal Year 2019/20. The balance for the fund at the beginning of the fiscal year was \$15,306,778. During FY 2019/20, the Parkland Acquisition and Park Facilities Development Impact Fee Fund recognized \$385,395 in impact fees paid, as well as \$383,539 in interest and market adjustment for a total of \$768,934.

Expenditures from the fund totaled \$2,949,744 for a wide range of projects, including the construction of new Murdy Park sports fields and bocce ball courts (\$1,558,688), Marina Park Community Center improvements (\$794,860) as well as other various park and playground ADA equipment improvements. The fund balance at the end of the fiscal year was \$13,125,968.

For the Fiscal Year Ended June 30, 2020 Last Five Fiscal Years

Description	FY 14/15	FY 15/16	FY 16/17	FY 17/18^	FY 18/19	FY 19/20*
REVENUES						
Fees	887,995	537,612	3,150,305	7,941,094	4,026,144	385,395
Interest	36,152	21,807	14,479	(29,654)	495,707	383,539
Other Revenue				50		
Total Revenues	924,147	559,419	3,164,784	7,911,489	4,521,851	768,934
EXPENDITURES						
Expenditures	543,172	627,281	901,073	758,321	1,533,146	2,949,744
Total Expenditures	543,172	627,281	901,073	758,321	1,533,146	2,949,744
Rev Over/(Under) Exp	390,638	(67,712)	2,263,711	7,153,168	2,988,705	(2,180,810)
Beginning Fund Balance	2,578,268	2,968,906	2,901,194	5,164,905	12,318,073	15,306,778
Ending Fund Balance	2,968,906	2,901,194	5,164,905	12,318,073	15,306,778	13,125,968

Note: ^Reflects a 9-month fiscal period. An increase in revenue was due to the following development.

FY 14/15: Pacific City, Pasea Hotel, and New Senior Center.

FY 15/16: Pacific City, Waterfront Hilton Expansion, and New Beach Boulevard Medical Building.

FY 16/17 and 17/18: Pacific City and Monogram final building.

* Unaudited actual



Parkland Acquisition and Park Facilities Development Impact Fees (Continued)

Planned Park Projects, Studies, and Expenditures

The FY 2020/21 Capital Improvement Program (CIP) includes funding for the following new projects: playground improvements at Circle View and Bushard Parks (\$370,000), Bluff Top Park Improvements (\$1,300,000), Central Library Fountain Restoration (\$560,000), Central Park West Picnic Area Repurposing & Playground Improvements (\$774,000), Harbour View Clubhouse Rehabilitation & Reconfiguration design (\$50,000), LeBard Park Improvements (\$550,000), the first year of funding for the Rodgers Seniors' Center Site Redevelopment (\$925,000), Schroeder Park Improvements (\$300,000), as well as a Parks and Recreation Master Plan Five-Year update (\$93,000). The combined total of these planned projects is \$4,922,000. It is anticipated that these projects will either be completed or encumbered by June 30, 2020.

Interior improvements for Edison Community Center are also scheduled to be completed in FY 2020/21 using carry-over funding from FY 2021/22.

Future Project and Fund Balance

Per HBMC 17.76.090 (A)(5), use of Parkland Acquisition and Park Facilities Development Impact Fee Funds are restricted to projects identified in the City of Huntington Beach General Plan, the Master Facilities Plan included in the Nexus Report, City of Huntington Beach Capital Improvement Plan, adopted annual City of Huntington Beach budget, or City Council approved park acquisition and development projects. Often, these types of projects require multiple years to plan and construct due to changing City priorities, community involvement, and the entitlement process. With expenditures totaling millions of dollars, staff recommends that the Parkland Acquisition and Park Facilities Development Impact Fee Fund accumulate a significant balance in order to make pursuit of those projects financially possible in the future. However, it is important to develop a program for fund expenditure to ensure the timely use of funds that are collected under this program. Staff also uses Parkland Acquisition and Park Facilities Development Impact Fee funds as a "matching fund" when pursuing park enhancement projects for grant funding opportunities as available.

Looking forward, other potential uses include Edison Park Reconfiguration Improvements (estimated at \$3 million) over a two-year period with an anticipated completion date of June 2023, Bluff Top Park Improvements (estimated at \$1.150 million) with an anticipated completion date of June 2022, the second year of the two-year Rodgers Seniors' Center Site Redevelopment (estimated at \$875,000) with an anticipated completion date of mid-FY 2021/22, Harbour View Clubhouse Improvements (estimated at \$650,000) with an anticipated completion date of June 2022, as well as reconfiguration of the Central Park Disc Golf Course (estimated at \$100,000). Additionally it is anticipated that the design for the Marina Park Reconfiguration project will begin in FY 2021/22 (estimated at \$100,000), with construction to be completed in FY 2022/23 (estimated at \$1 million). Finally, continued playground ADA equipment improvements as listed on the City Council approved Park Playground & Equipment Replacement Priority List are also planned on an on-going basis through FY 2024-25 totaling \$1,080,000.

**Parkland Acquisition and Park Facilities Development Impact Fees (Continued)****Summary of Revenue and Expenditures
Parkland Acquisition & Park Facilities Development Impact Fee Fund***

Beginning Balance 7/1/2019	\$15,306,778
Revenue	
Developer Fees (Residential)	314,014
Developer Fees (Commercial)	64,975
Others, Interest, & Adjustments	389,945
Total Revenue	\$768,934
Expenditures	
Various Park Improvements/Monument Signs	(5,400)
Park Leases	(9,775)
Eader Playground Improvements	(318,121)
Murdy Park Sports Fields	(1,558,688)
Edison Park Playground	(1,358)
Central Park Group Picnic Area Improvements	(40,720)
Marina Park Community Center Improvements	(794,860)
Lake Park Reconfiguration	(30,000)
Huntington Central Park Trail Improvements	(4,200)
Personnel and Professional Services	(186,622)
Total Expenditures	\$(2,494,744)
Beginning Balance 7/1/2020	\$13,125,968

*Figures are rounded to the nearest dollar

Conformance with Program Goals and Objectives

The Park Development Impact Fee Program is intended to implement the goals, objectives and policies of the City of Huntington Beach General Plan, as stated in the Municipal Code Chapter 17.76. Completion of the planned projects is in conformance with the goals and objectives of the Park Development Impact Fee program.

The Parkland Acquisition and Park Facilities Development Impact Fee Fund reports funds being held past the fifth year and first deposit. These funds are intended for the projects identified in the DIF Project Identification section of this annual compliance report.

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Police Facilities Development Impact Fee
For the Fiscal Year Ended June 30, 2020
Last Five Fiscal Years

Description	FY 14/15	FY 15/16	FY 16/17	FY 17/18^	FY 18/19	FY 19/20*
REVENUES						
Fees	110,689	137,073	253,771	461,454	278,513	178,437
Interest	3,652	3,475	2,333	(1,198)	48,848	49,575
Other Revenue						
Total Revenues	114,341	140,548	256,104	460,256	327,361	228,012
EXPENDITURES						
Expenditures						
Total Expenditures						
Rev Over/(Under) Exp	114,341	140,548	256,104	460,256	327,361	228,012
Beginning Fund Balance	231,467	345,808	486,356	742,460	1,202,716	1,530,077
Ending Fund Balance	345,808	486,356	742,460	1,202,716	1,530,077	1,758,089

Note: ^Reflects a 9-month fiscal period.

*Unaudited actual

The Police Facilities Development Impact Fees of \$178,437 and a \$49,575 interest/bank adjustment were posted in FY 2019/20. There were no expenditures during the Fiscal Year 2019/20 to the Police Facilities Development Impact Facilities funds.

The Police Facilities Development Impact Fee Fund reports funds being held past the fifth year and first deposit. These funds are intended for the projects identified in the DIF Project Identification section of this annual compliance report.

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Fire Facilities Development Impact Fees
For the Fiscal Year Ended June 30, 2020
Last Five Fiscal Years

Description	FY 14/15	FY 15/16	FY 16/17	FY 17/18^	FY 18/19	FY 19/20*
REVENUES						
Fees	116,622	67,705	104,346	225,915	156,211	98,953
Interest	2,056	2,100	1,314	(552)	25,418	27,274
Other Revenue						
Total Revenues	118,678	69,805	105,660	225,363	181,629	126,227
EXPENDITURES						
Expenditures						
Total Expenditures						
Rev Over/(Under) Exp	118,678	69,805	105,660	225,363	181,629	126,227
Beginning Fund Balance	101,954	220,632	290,437	396,097	621,460	803,089
Ending Fund Balance	220,632	290,437	396,097	621,460	803,089	929,316

Note: ^Reflects a 9-month fiscal period.

*Unaudited actual

The Fire Facilities Development Impact Fees of \$98,953 and a \$27,274 interest/bank adjustment were posted in FY 2019/20. There were no expenditures during the Fiscal Year 2019/20 to the Fire Facilities Development Impact Facilities funds.

No Fire Facilities Development Impact Fees were loaned during this reporting period. No refunds were made due to protests during this reporting period.

The Fire Facilities Development Impact Fee Fund reports funds being held past the fifth year and first deposit. These funds are intended for the projects identified in the DIF Project Identification section of this annual compliance report.

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Library Development Impact Fee
For the Fiscal Year Ended June 30, 2020
Last Five Fiscal Years

Description	FY 14/15	FY 15/16	FY 16/17	FY 17/18^	FY 18/19	FY 19/20*
REVENUES						
Fees	233,382	64,147	208,080	532,513	313,292	128,248
Interest	3,943	2,827	1,651	(1,842)	40,351	36,229
Other Revenue						
Total Revenues	237,325	66,974	209,731	530,671	353,643	164,477
EXPENDITURES						
Expenditures	92,824	92,672	53,806	50,313	125,856	156,639
Total Expenditures	92,824	92,672	53,806	50,313	125,856	156,639
Rev Over/(Under) Exp	144,501	(25,698)	155,925	480,358	227,787	7,838
Beginning Fund Balance	239,277	383,778	358,080	514,005	994,363	1,222,150
Ending Fund Balance	383,778	358,080	514,005	994,363	1,222,150	1,229,988

Note: ^Reflects a 9-month fiscal period.

*Unaudited actual

The Library Development Impact Fees of \$128,248 and a \$36,229 interest/bank adjustment were posted in FY 2019/20. The expenditure incurred in FY 2019/20 of \$156,639 include library collection such as books and media items (DVDs, books on CD and music CDs).

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Planned Local Drainage Facilities Fund
For the Fiscal Year Ended June 30, 2020
Last Five Fiscal Years

Description	FY 14/15	FY 15/16	FY 16/17	FY 17/18^	FY 18/19	FY 19/20*
REVENUES						
Fees	487,431	615,331	58,004	72,646	429,294	703,122
Interest	7,346	10,424	5,648	4,055	53,429	74,100
Other Revenue					(386)	
Total Revenues	494,777	625,755	63,652	76,701	482,337	777,222
EXPENDITURES						
Expenditures			63,795	236,119		
Total Expenditures			63,795	236,119		
Rev Over/(Under) Exp	494,777	625,755	(143)	(159,418)	482,337	777,222
Beginning Fund Balance	298,093	792,870	1,418,625	1,418,482	1,259,064	1,741,401
Ending Fund Balance	792,870	1,418,625	1,418,482	1,259,064	1,741,401	2,518,623

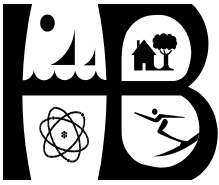
Note: ^Reflects a 9-month fiscal period.

*Unaudited actual

Please see Request for Action Item submitted to Public Works Commission on December 16, 2020.

The Planned Local Drainage Facilities Fund reports funds being held past the fifth year and first deposit. These funds are intended for the projects identified in the DIF Project Identification section of this annual compliance report.

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**CITY OF HUNTINGTON BEACH
PUBLIC WORKS COMMISSION
REQUEST FOR ACTION**

SUBMITTED TO: Chairperson and Members of the Commission

SUBMITTED BY: Sean Crumby, PE, Director of Public Works

DATE: December 16, 2020

SUBJECT: Planned Local Drainage Facilities Fund Annual Compliance Report for Fiscal Year 2019/20

Statement of Issue: In accordance with Section 14.48 of the Huntington Beach Municipal Code (HBMC), the Public Works Department is required to prepare an annual report of the status of the Planned Local Drainage Facility Fund (Drainage Fund) for the City Council. The process provides an opportunity for the Public Works Commission to review revenues and expenditures under the program.

Funding Source: No funding is required for this action.

Recommended Action: Motion to recommend to the City Council the approval of the Planned Local Drainage Facility Fund Compliance Report for Fiscal Year 2019/20.

Alternative Action(s): Recommend revisions to the reports.

Analysis:

The Planned Local Drainage Facilities Fund (Drainage Fund) is a development fee that is restricted to use for drainage system enhancements. Section 14.48.050 (d) requires the City Council to review the status of compliance with this Chapter, including the revenues collected and the funds expended. The following information conforms to the requirements of the HBMC regarding revenues and expenditures of the Drainage Fund. Although the reporting requirement became effective with the adoption of the revised ordinance in September 2006, the Drainage Fund has existed since 1975. The following information covers Fiscal Year (FY) 2019/20.

Fiscal Status:

The Drainage Fund advanced \$250,000 to the Redevelopment Agency for improvements in 1987. With interest accrual of \$667,611, the debt amount is

currently \$917,611. As a result, the Fund maintained a negative balance over a period of ten years until FY 12/13, when the fund ended with a positive balance. In FY 2018/19, the Drainage Fund ended the year with a balance of \$2,518,623.

On June, 29, 2011, the State of California enacted AB1X26, which dissolves redevelopment agencies and designates Successor Agencies to “wind-down” activities of the former redevelopment agencies under supervision of newly created Oversight Boards. On January, 31, 2012, the City's Redevelopment Agency presented an initial draft Recognized Obligation Payment Schedule (ROPS) to the Successor Agency. In this case, the City has elected to become the Successor Agency. The debt noted above is included in the list of obligations; however, no payments are scheduled to the Drainage Fund within the presented time frame.

Revenues:

Revenue for FY 2019/20 from development was \$703,122 and interest and market adjustments to the fund were \$74,100 for total revenue of \$777,222.

Expenditures:

No expenditures were budgeted or spent in FY 2019/20.

Conformance with Program Goals and Objectives:

The Drainage Fund is intended to implement the goals and objectives of the current Drainage Master Plan. Funds collected and deposited to the fund may be expended solely for the construction or reimbursement for construction of drainage facilities. The Fund is in compliance with these requirements.

**Summary of Revenue and Expenditures
Local Drainage Facilities Fund***

Beginning Balance 7/1/2019	\$1,741,401
Revenue	
Developer Fees	703,122
Interest and Adjustments	74,100
Total Revenue	\$777,222
Expenditures	
Drainage Master Plan	(0)
Total Expenditures	\$ (0)
Beginning Balance 7/1/2020	\$2,518,623

*Figures are rounded to the nearest dollar

Rate Structure Fiscal Year 2019/20

The Drainage Fee for FY 2019/20 was \$14,888 per acre.

Attachments: None.



Sanitary Sewer Facilities Fund
For the Fiscal Year Ended June 30, 2020
Last Five Fiscal Years

Description	FY 14/15	FY 15/16	FY 16/17	FY 17/18^	FY 18/19	FY 19/20*
REVENUES						
Fees	1,305,717	2,041,554	38,582	180,456	215,496	405,790
Interest	67,438	59,838	31,458	17,063	257,329	188,404
Other Revenue	238,535		12,310	45,058	(2,214)	12,310
Total Revenues	1,611,690	2,101,392	82,350	242,577	470,611	606,504
EXPENDITURES						
Expenditures	78,300	92,110	159,127	341,264	1,898,104	85,394
Total Expenditures	78,300	92,110	159,127	341,264	1,898,104	85,394
Rev Over/(Under) Exp	1,533,390	2,009,282	(76,777)	(98,687)	(1,427,493)	521,110
Beginning Fund Balance	4,623,345	6,156,735	8,166,017	8,089,240	7,990,553	6,563,060
Ending Fund Balance	6,156,735	8,166,017	8,089,240	7,990,553	6,563,060	7,084,170

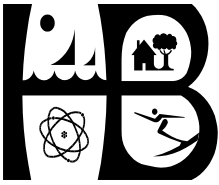
Note: ^Reflects a 9-month fiscal period.

*Unaudited actual

Please see Request for Action Item submitted to Public Works Commission on December 16, 2020.

The Sanitary Sewer Facilities Fund reports funds being held past the fifth year and first deposit. These funds are intended for the projects identified in the DIF Project Identification section of this annual compliance report.

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**CITY OF HUNTINGTON BEACH
PUBLIC WORKS COMMISSION
REQUEST FOR ACTION**

SUBMITTED TO: Chairperson and Members of the Commission

SUBMITTED BY: Sean Crumby, PE, Director of Public Works

DATE: December 16, 2020

SUBJECT: Sanitary Sewer Facilities Fund Annual Compliance Report
Fiscal Year 2019/20

Statement of Issue: In accordance with Section 14.36 of the Huntington Beach Municipal Code (HBMC), the Public Works Department is required to prepare an annual report of the status of the Sanitary Sewer Facilities Fund (Sanitary Sewer Fund) for the City Council. The process provides an opportunity for the Public Works Commission to review revenues and expenditures under the program.

Funding Source: No funding is required for this action.

Recommended Action: Motion to recommend to the City Council the approval of the Annual Sanitary Sewer Facilities Fund Compliance Report for Fiscal Year 2019/20.

Alternative Action(s): Recommend revisions to the reports.

Analysis:

The Sanitary Sewer Fund is comprised of development fees that are charged when an increase in sewage flow occurs due to development of property. The use of those fees are restricted to increasing the capacity of the sewer system to accommodate the flow from that development. The fee is unrelated to the monthly Sewer Service Charge used for operations and maintenance of the existing sewer system.

Section 14.36.070 (d) requires the City Council to review the status of compliance with this Chapter, including the revenues collected and the funds expended. The following information conforms to the requirements of the HBMC regarding revenues and expenditures of the Sanitary Sewer Fund. Although this requirement became effective with the adoption of the revised ordinance in July 2003, the

Sewer Facilities Fund has existed since 1988. The following information covers Fiscal Year (FY) 2019/20.

Fiscal Status:

The Sanitary Sewer Facilities Fund advanced \$131,000 to the Redevelopment Agency for improvements in 1987. With interest accrual, the debt amount for the fiscal year end was \$484,576.

On June, 29, 2011, the State of California enacted AB1X26, which dissolves redevelopment agencies and designates Successor Agencies to “wind-down” activities of the former redevelopment agencies under supervision of newly created Oversight Boards. On January, 31, 2012, the City's Redevelopment Agency presented an initial draft Recognized Obligation Payment Schedule (ROPS) to the Successor Agency. In this case, the City has elected to become the Successor Agency. The debt noted above is included in the list of obligations; however, no payments are scheduled to the Sanitary Sewer Facilities Fund within the presented time frame.

Revenues:

Total revenue for FY 2019/20 was \$606,504. Residential and commercial developer fees contributed \$405,790. The fund was credited \$188,404 in interest and adjustments. In addition, the City received \$12,310 from the Sunset Beach Sanitary District representing the agency's share for the construction of Lift Station D.

Expenditures:

Expenditures for the fund in FY 2019/20 totaled \$82,923 in final construction management charges for the Edgewater Lift Station project and \$2,471 in design cost for the McFadden Lift Station, for a total of \$85,394.

Conformance with Program Goals and Objectives:

The Sanitary Sewer Facilities Fund is intended to implement the goals and objectives of the current Sewer Master Plan. Funds collected and deposited to the fund may be expended solely for the construction or reimbursement for construction of sanitary sewer facilities. The Fund is in compliance with these requirements.

**Summary of Revenue and Expenditures
Sanitary Sewer Facilities Fund***

Beginning Balance 7/1/2019	\$6,563,060
Revenue	
Developer Fees (Residential)	274,619
Developer Fees (Commercial)	131,171
Interest and Adjustments	188,404
Sunset Beach SD	12,310
Total Revenue	\$606,504
Expenditures	
McFadden Lift Station	(2,471)
Edgewater Lift Station	(82,923)
Total Expenditures	\$(85,394)
Beginning Balance 7/1/2020	\$7,084,170

*Figures are rounded to the nearest dollar

Rate Structure Fiscal Year 2019/20

CITY SEWER CONNECTION FEES		Effective July 1, 2019
Single Family Dwelling Unit		\$2,380
Multiple Family Dwelling Unit		\$1,946
Non-Residential (based on water meter size relationship to Equivalent Dwelling Unit, EDU)		
Meter Size & Type	EDU's	Charge
3/4"	1	\$2,704
1"	2	\$5,409
1 1/2"	3	\$8,114
2"	5	\$13,526
3"	11	\$29,756
4" Compound	17	\$45,985
4" Domestic & Turbine	33	\$89,266
6" Compound	33	\$89,266
6" Domestic & Turbine	67	\$181,234
8" Domestic	117	\$316,483
10" Domestic	183	\$492,181

Attachments: None.

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Fair Share Traffic Impact Mitigation Fee Program
For the Fiscal Year Ended June 30, 2020
Last Five Fiscal Years

Description	FY 14/15	FY 15/16	FY 16/17	FY 17/18^	FY 18/19	FY 19/20*
REVENUES						
Fees	1,097,012	84,900	436,630	713,993	588,763	564,172
Interest	43,311	28,726	15,788	6,049	150,937	83,723
Other Revenue		925	362,078	70	(1,088)	
Total Revenues	1,140,323	114,551	814,496	720,112	738,612	647,895
EXPENDITURES						
Expenditures	163,821	563,921	610,801	90,191	914,922	2,157,222
Total Expenditures	163,821	563,921	610,801	90,191	914,922	2,157,222
Rev Over/(Under) Exp	976,502	(449,370)	203,695	629,921	(176,310)	(1,509,328)
Beginning Fund Balance	3,064,304	4,040,806	3,591,436	3,795,131	4,425,052	4,248,742
Ending Fund Balance	4,040,806	3,591,436	3,795,131	4,425,052	4,248,742	2,739,414

Note: ^Reflects a 9-month fiscal period.

*Unaudited actual

Please see Request for Action Item submitted to Public Works Commission on December 16, 2020.

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**CITY OF HUNTINGTON BEACH
PUBLIC WORKS COMMISSION
REQUEST FOR ACTION**

SUBMITTED TO: Chairperson and Members of the Commission

SUBMITTED BY: Sean Crumby, PE, Director of Public Works

DATE: December 16, 2020

SUBJECT: Traffic Impact Fee Fund Annual Compliance Report for Fiscal Year 2019/20

Statement of Issue: In accordance with Section 17.65.130 of the Huntington Beach Municipal Code (HBMC), the Public Works Department is required to prepare an annual report of the status of the Fair Share Traffic Impact Fee Program for the City Council. The process provides an opportunity for the Public Works Commission to review revenues and expenditures under the program.

Funding Source: No funding is required for this action.

Recommended Action: Motion to recommend to the City Council the approval of the Traffic Impact Fee Fund Annual Compliance Report for Fiscal Year 2019/20.

Alternative Action(s): Recommend revisions to the reports.

Analysis:

The Fair Share Traffic Impact Fee (TIF) program is intended to implement the goals and objectives of the General Plan by providing revenue to ensure that the adopted Level of Service standards for arterial roadways and signalized intersections are maintained when new development is constructed within the City limits and that these developments pay their fair share towards short and long term transportation improvements.

Revenues:

During FY 2019/20, the Traffic Impact Fee fund recognized revenues of \$564,172 in Impact Fees Paid and \$83,723 in interest and market adjustment for a total of \$647,895.

Expenditures:

Expenditures from the fund included \$3,078 in salary charges and \$1,914,332 in capital improvement expenses for Atlanta Avenue Widening. In addition, there were \$239,812 in Federal Highway Safety Improvement Program (HSIP) grant match expenditures related to traffic signal modifications at Main/17th/Utica, Gothard/Center, Gothard/Slater, and Newland/Ellis along with a new traffic signal installation at Bolsa Chica/Pearce. Total expenditures were \$2,157,222.

Conformance with Program Goals and Objectives:

The Traffic Impact Fee Program is being used to implement the goals, objectives and policies of the City of Huntington Beach General Plan, as stated in the Municipal Code Chapter 17.65. Completion of the planned projects implements improvements identified to continue to provide a safe and efficient transportation system consistent with the goals of the Circulation Element of the General Plan and is in conformance with the goals and objectives of the Fair Share Traffic Impact Fee program.

**Summary of Revenue and Expenditures
Traffic Impact Fund***

Beginning Balance 7/1/2019	\$4,248,742
Revenue	
Traffic Impact Fees	564,172
Interest and Adjustments	83,723
Total Revenue	\$647,895
Expenditures	
Salaries	(3,078)
Atlanta Avenue Widening	(1,914,332)
Main/Utica/17th Signals	(239,812)
Total Expenditures	\$(2,157,222)
Beginning Balance 7/1/2020	\$2,739,414

*Figures are rounded to the nearest dollar

Attachments:

1. Traffic Impact Fee Schedule effective 7/1/2019.

Schedule of Rates for Traffic Impact Fees
Resolution No. 2012-23

Land Use	Fee	
Detached Dwelling Unit	\$ 2,226.16	/Unit
Apartment	\$ 1,563.46	/Unit
Condominium/Townhouse	\$ 1,364.01	/Unit
Mobile Home Dwelling	\$ 1,164.55	/Unit
Hotel	\$ 1,537.73	/Room
All Suites Hotel	\$ 920.06	/Room
Motel	\$ 1,061.61	/Room
General Light Industrial	\$ 1,788.65	/1,000 sf
Heavy Industrial	\$ 1,730.75	/1,000 sf
Manufacturing	\$ 791.38	/1,000 sf
Warehousing	\$ 1,273.93	/1,000 sf
Office Park	\$ 2,097.48	/1,000 sf
Research Park	\$ 1,415.48	/1,000 sf
Business Park	\$ 2,644.37	/1,000 sf
Bldg. Materials/Lumber Store	\$ 4,059.85	/1,000 sf
Garden Center	\$ 3,242.74	/1,000 sf
Movie Theater	\$ 341.00	/1,000 sf
Church	\$ 817.12	/1,000 sf
Medical-Dental Office	\$ 6,286.02	/1,000 sf
General Office Building	\$ 2,026.71	/1,000 sf
Shopping Center	\$ 4,175.67	/1,000 sf
Hospital	\$ 1,582.76	/1,000 sf
Discount Center	\$ 8,705.20	/1,000 sf
High-Turnover Restaurant	\$ 1,228.89	/1,000 sf
Convenience Market	\$ 6,028.66	/1,000 sf
Office Park	\$ 1,930.20	/1,000 sf
Cemetery	\$ 424.64	/Acre
Service Station/Market (avg)	\$ 14,894.71	/Fuel Position
Service Station w/Car Wash	\$ 13,743.02	/Fuel Position

* Calculation of the actual Traffic Impact Fee shall be based on HBMC 17.65

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The City's current, Adopted Budget 2020-2021, which includes the Five-Year Capital Improvement Plan (CIP) 2020/21 – 2024/25 can be found on the City's website at:

<https://huntingtonbeachca.gov/files/users/finance/FY-2020-21-Adopted-Budget.pdf>

Funding of Infrastructure

The FY 2020/21 – FY 2024/25 CIP identifies all funding sources and amounts for individual projects through FY 2024/25. The CIP is updated annually to reflect the current City's infrastructure needs. As a CIP is identified, the project is evaluated to determine the portion of the project that will service existing residents and businesses versus new development.

Once the determination of use is made, the percentage of use attributed to new development is then funded by the appropriate development fee based on the type of project. The percentage of use associated with existing residents or businesses are funded from other appropriate sources. Estimated construction start dates for projects are adjusted, as needed, to reflect the needs of the community.

CURRENT MAJOR CIP PROJECTS

Parkland Acquisition and Park Facilities Development Impact Fees

The Capital Improvement Plan for FY 2020/21 includes the construction of various park projects as listed below. Funds are also budgeted for park leases, professional services and personnel services.

FY 2020/21

Playground Improvements - \$370,000 (Circle View and Bushard)

Many play units in the City are coming to the end of their life expectancy and are in need of replacement. In 2018, the City Council approved the City's Park Playground Equipment Replacement Priority List. A total of 27 park playground units have been identified as in need of replacement and rehabilitation.

Edison Community Center Interior Improvements – \$1,195,000 (carry-over funds)

Since Edison Community Center was constructed in the 1970's only limited interior improvements have been made. The current project includes rehabilitation of the building's interior in order to improve accessibility, safety, and energy as well as the addition of a ramp to comply with ADA requirements.

Bluff Top Park Improvements - \$1,300,000

Renovations to the Bluff Top Park area include replacement of access ramp and stairway railing, turf mitigation, and enhanced landscaping. FY 20-21 funding represents the first year of a two-year project estimated to total \$2.45 million. The Bluff Top guardrail replacement and pathway widening project also scheduled for FY 20-21 is funded through a separate allocation from the State of California.

Central Library Fountain Restoration - \$560,000

The project as currently planned includes the restoration and rehabilitation of the two exterior fountains and one interior fountain.

Central Park West Picnic Area Repurposing & Playground Improvements - \$774,000

Improvements include repurposing of the group picnic shelter area and adjacent playgrounds, including installation of new ADA accessible playground equipment.

Harbour View Clubhouse Rehabilitation & Reconfiguration - \$50,000

FY 20-21 includes funding for design services for improvements to be constructed in FY 21-22.

LeBard Park Improvements - \$550,000

Project includes the installation of new playground equipment, turf, irrigation, and concrete walkway rehabilitation.



Development Impact Fee Project Identification

Parks and Recreation Master Plan Five-Year Update - \$93,000

The Parks and Recreation Master Plan serves as a guide and implementation tool for the management and development of parks and recreational facilities for the City. The existing Parks and Recreation Master Plan was completed in February 2016. In order to continue to be a relevant document, the plan must be reviewed and updated every five years to reassess community needs.

Rodgers Seniors' Center Site Redevelopment - \$925,000

FY 20-21 includes funding for the redevelopment of the Rodgers Seniors' Center site. The project includes the demolition of the former Senior Center recreation building, re-use of the existing Senior Outreach building as an assembly hall and converting the remaining acreage into a neighborhood park with limited parking. FY 20-21 funding represents the first year of a two-year project estimated at \$1.8 million.

Schroeder Park Improvements - \$300,000

The FY 20-21 budget includes funding for new tot lot play equipment and access walkways.

FY 2021/22

Preliminary projects include the second year of the two-year Bluff Top Park Improvements, the first year of a two-year Edison Park Reconfiguration project, construction of the Harbour View Clubhouse Renovation, as well as the Marina Park Reconfiguration design.

FY 2022/23

Preliminary projects include the continuation of playground equipment rehabilitation at various parks, the second year of the two-year Edison Park Reconfiguration project, as well as the first year of the two-year Marina Park Reconfiguration.

Police Facilities Development Impact Fees

Preliminary projects include the modernization and expansion of the main police station located at 2000 Main Street. The expansion includes additional male and female locker room spaces, a remodeled and modernized Dispatch Center, a dedicated armory building and additional community meeting spaces. The Police Facility project is currently in the design and cost estimation phase, which will be included in next year's compliance report.

Fire Facilities Development Impact Fees

The Capital Improvement Plan for FY 2020/21 includes the construction for reconfiguration and renovation of Fires Station 5 – Lake dorm rooms, restrooms and kitchen and installation of ventilation and air conditioning system. This project is needed for gender accommodation and ADA compliance, in addition to better use of space to accommodate additional apparatus and personnel to provide service to the rapidly developing downtown area.

The Fire Facilities Development Fees are eligible for expenditures related to providing additional Fire suppression and medic facilities, vehicles and equipment associated with residential and nonresidential construction. The Master Facilities Plan for the City of Huntington Beach, adopted in October 2011, identifies the following eligible projects:

1. Relocate Fire Station #8 (Heil)
2. Construct Station #8 (Heil) Apparatus Storage Facility
3. Construct a Single Bay/Quarters at Station #4 (Magnolia)
4. Acquire an Engine and Ambulance and for Station #4 (Magnolia)
5. Acquire an Additional Engine for Station #1 (Gothard)
6. Acquire an Additional Engine for Station #2 (Murdy)



Development Impact Fee Project Identification

These projects will be evaluated and considered for submission in the FY 2021/22 budget process.

Library Development Impact Fees

The Library Development Impact Fees are eligible for expenditures related to costs for expanded or new library spaces and the number of collection items attributed to new residential construction. Future use of funds include expenditures for additional library collection materials, such as books and media items (DVD, books on CD and music CDs) and for a Library Facilities Master Plan, to direct future expansion and/or replacement of library facilities and expanded library spaces.

Sanitary Sewer Facilities Fund

The Capital Improvement Plan for FY 2020/21 through FY 2024/25 includes sewer lift station reconstruction projects for a total cost of \$3.4 million. This will include the rehabilitation/upgrade of McFadden, New Britain and Bushard sewer lift stations.

Planned Local Drainage Facilities Fund

No current year CIP project is scheduled. The Drainage Master Plan has been updated. Staff is currently in the process of developing a five-year plan of future projects.

Fair Share Traffic Impact Mitigation Fee Program

Current year (FY 2020/21) includes \$195,000 for the traffic signal improvements at Warner Avenue and Graham Street.

The City plans on utilizing Traffic Impact funds for future improvements along the Edinger and Warner corridors to improve signal operations and traffic flows. These projects are expected to occur in FY 2021/22 and will use Traffic Impact fees for our required matching funds, estimated to be \$350,000 out of the more than \$1.7 million in improvements. Other projects identified for FY 2021/22 thru 2024/25 include intersection improvements at Beach/Warner and Brookhurst/Adams, and signal improvements at Beach/Heil and Beach/Talbert.

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City of Huntington Beach

D. GILBERT
APPROVED 7-0

File #: 18-609

MEETING DATE: 12/17/2018

REQUEST FOR CITY COUNCIL ACTION

SUBMITTED TO: Honorable Mayor and City Council Members

SUBMITTED BY: Fred A. Wilson, City Manager

PREPARED BY: Ursula Luna-Reynosa, Director of Community Development

Subject:

Adopt Resolution No. 2018-85 amending the existing Development Impact Fee schedule to include Accessory Dwelling Units and removing references to Development Impact Fees from the Master Fee Schedule

Statement of Issue:

Transmitted for City Council consideration (1) amend the City's existing Development Impact Fees to establish a reduced DIF specific to Accessory Dwelling Units (ADUs) and (2) remove references to DIFs from the City's Master Fee Schedule so that it is a standalone schedule. The ADU DIF has been established in consultation with Revenue & Cost Specialists, LLC to ensure that ADUs are not charged a DIF more than their proportionate share towards public services as established in the *Development Impact Fee Calculation and Nexus Report for the City of Huntington Beach*, dated October 2011 and amended on April 27, 2012.

Financial Impact:

If adopted, the recommended action will establish a reduced, prorated Development Impact Fee rate for accessory dwelling units. Estimated revenues from development impact fees related to ADUs are approximately \$48,000 annually.

Recommended Action:

Conduct a public hearing regarding the ADU Development Impact Fees; and, adopt Resolution No. 2018-85, "A Resolution of the City Council of the City of Huntington Beach Amending the Existing Development Impact Fee Schedule to Include Accessory Dwelling Units and Removing References to Development Impact Fees from the Master Fee Schedule."

Alternative Action(s):

Do not approve the recommended actions and direct staff accordingly.

Analysis:

Background: On May 7, 2012, the City Council revised the City's existing Development Impact Fees

(DIFs) by adopting Resolution No. 2012-23 and Ordinance Nos. 3942 through 3947. These actions resulted in establishing two new DIFs (Law Enforcement and Fire), and updates to three previously existing DIFs (Traffic, Public Library and Parks).

Revenue & Cost Specialists, LLC (the "Consultant") was retained to assist the City in preparing a study to: (1) project the future growth to be served, (2) identify the current and projected level of service for each public facility, (3) identify any additional facilities or improvements needed to accommodate future growth, and (4) allocate the costs of providing the needed public services between the existing population and new population. This study was titled *Development Impact Fee Calculation and Nexus Report for the City of Huntington Beach*, dated October 2011, amended on April 27, 2012, and attached as Attachment 4 (the "Nexus Report").

The City has been collecting the revised DIFs since adoption. The City is required to account for every fee it collects. Funds collected for each capital facility or service are deposited in separate accounts and not commingled with any other funds for other impact fees. While funds are accruing for individual capital facilities, the City must keep track of each fund and provide an annual report. This information must be provided at a regularly scheduled public meeting. This report has been scheduled as Item 18-577 on the December 17 City Council agenda.

ADU DIF: The State of California has promoted the construction of Accessory Dwelling Units (ADUs) in single-family and multi-family zones as a means to provide additional rental housing. Effective January of 2017, SB 1069 was codified (Chapter 720, Statutes of 2016) which made several changes to address barriers to the development of ADUs. One such change has to do with fees and provides that DIFs shall not be charged for ADUs that are incorporated into existing square footage, and that for attached or detached ADUs that result in new square footage, the fee must be proportionate to the burden of the unit and may not exceed the reasonable cost of providing the service.

Staff is proposing to revise the City's DIFs to include a new sub-land use category that will result in a DIF specific to ADUs. The Consultant was retained to prepare a memo, dated December 3, 2018, entitled, *Imposition of Development Impact Fees on Accessory Dwelling Units* (the "ADU Nexus Report") attached to this Staff Report as Attachment 3, which tiers off the Nexus Report to determine the appropriate DIFs for an ADU. The Nexus Report already projected future growth, identified current and projected level of service for public facilities, and identified additional facilities or improvements needed to accommodate future growth. Therefore, the focus of the ADU Nexus Report is to demonstrate the nexus between the impact created by the development of ADUs and the amount of the fee and the projected burden that ADUs will create on the City's infrastructure.

The analysis contained within the ADU Nexus Report results in a DIF for ADUs of \$3,954.

Legal Requirements: As stated in the ADU Nexus Report (toward the bottom of page 7), the required Government Code Section 66001 findings contained within each chapter of the Nexus Report apply to the imposition/ collection of ADU DIFs also. The ADU fees collected would be used to finance the same projects specifically identified in each corresponding infrastructure chapter contained in the Nexus Study as follows:

The portion of the DIF proceeds for *Law Enforcement Facilities, Vehicles and Equipment Infrastructure* (about 4.6% of the total) would be limited to projects identified on Schedule 3.1, page 37 of the 2012 DIF Calculation and Nexus Report of pages 6 through 9 of the accompanying *2012 Master Facilities Plan*;

The portion of the DIF proceeds for *Fire Suppression/Medic Facilities, Vehicles and Equipment Infrastructure* (about 2.1% of the total) would be limited to projects identified on Schedule 4.1, page 51 of the 2012 DIF Calculation and Nexus Report or pages 12 through 127 of the accompanying *2012 Master Facilities Plan*;

The 11.4% portion of the DIF proceeds for the *Circulation (Streets, Signals and Bridges System)* Infrastructure would be limited to projects as identified on Schedule 5.1 page 67 of the 2012 DIF Calculation and Nexus Report or pages 21 through 42 of the accompanying *2012 Master Facilities Plan*;

The 5.3% portion of the DIF proceeds for the *Public Library Facilities and Collection* infrastructure would be limited to projects identified on pages 53 through 55 of the accompanying *2012 Master Facilities Plan*;

The 78.0% portion of the DIF proceeds for *Park Land Acquisition and Park Facilities Development* infrastructure would be limited to projects identified on pages 59 through 82 of the accompanying *2012 Master Facilities Plan*.

A duly noticed public hearing will be held on December 17, 2018, pursuant to Government Code Section 66018. A legal notice was published in the *Huntington Beach Wave*, a newspaper of general circulation, on November 29, 2018, and December 6, 2018, pursuant to Government Code Section 6062a.

If approved by the City Council, adjustments to the DIFs will become effective sixty (60) days upon adoption consistent with Government Code Section 66017(a).

Remove DIFs from Master Fee Schedule: The procedural requirements for DIFs are different from other types of fees and charges in that a public hearing is required and very specific findings are required. For this reason, staff is recommending that the references to DIFs be removed from the Master Fee Schedule and remain a standalone existing resolution to aid any future revisions.

Environmental Status:

Not applicable as the action is not subject to the California Environmental Quality Act (CEQA) in that pursuant to Section 15378(b)(4) of the CEQA Guidelines, the creation of government funding mechanisms which do not involve any commitment to any specific project which may cause a significant effect on the environment, is not defined as a "project".

Strategic Plan Goal:

Enhance and maintain infrastructure

Attachment(s):

1. Resolution No. 2018-85, "A Resolution of the City Council of the City of Huntington Beach Amending the Existing Development Impact Fee Schedule to Include Accessory Dwelling Units and Removing References to Development Impact Fees from the Master Fee Schedule"
2. Public Hearing Notifications.
3. ADU Nexus Report (December 3, 2018, Memorandum prepared by Revenue & Cost Specialists, LLC., entitled *Imposition of Development Impact Fees on Accessory Dwelling Units*)
4. Nexus Report (*Development Impact Fee Calculation and Nexus Report for the City of Huntington Beach*, dated October 2011 and amended on April 27, 2012, prepared by Revenue & Cost Specialists, LLC.)

ATTACHMENT #1

RESOLUTION NO. 2018-85

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF HUNTINGTON BEACH
AMENDING THE EXISTING DEVELOPMENT IMPACT FEE SCHEDULE TO INCLUDE
ACCESSORY DWELLING UNITS AND REMOVING REFERENCES TO DEVELOPMENT
IMPACT FEES FROM THE MASTER FEE SCHEDULE

WHEREAS, several policies within the City's General Plan require that new development mitigate its share of impacts to the natural and built environments and be fiscally neutral so as to not result in a net economic loss for the City; and

Such General Plan policies include the maintenance of existing quality of life, maintenance of existing service levels and funding of new facilities, the requirement of new development to mitigate a fair share of its impacts, and calling for the use of impact fees to fund needed improvements to serve new development, amount other policies; and

In accordance with these General Plan policies, the City Council has directed staff in the past to create development impact fees in accordance with State law. Said impact fees were codified in Chapters 17.65, 17.67, 17.73, 17.74, 17.75, and 17.76, (collectively, the "DIFs"), of the Huntington Beach Municipal Code. Pursuant to each ordinance set forth above, the amount of the DIFs was set by Resolution No. 2012-23 based upon the report of Revenue & Cost Specialists, LLC (the "Consultant"), entitled *Development Impact Fee Calculation and Nexus Report for the City of Huntington Beach*, dated October 2011 and amended in April 27, 2012 (the "Nexus Report"); and

Subsequently, the State of California has promoted the construction of Accessory Dwelling Units ("ADUs") in single-family and multi-family zones as a means to provide additional rental housing. Effective January of 2017, SB 1069 was codified (Chapter 720, Statutes of 2016) which made several changes to address barriers to the development of ADUs. One such change pertains to fees and provides that DIFs shall not be charged for ADUs that are incorporated into existing square footage and that for attached or detached ADUs that result in new square footage, the fee must be proportionate to the burden of the unit and may not exceed the reasonable cost of providing the service; and

The City retained the services of the Consultant to provide analysis and demonstrate the nexus between the impact created by ADUs and the amount of the fee, and the projected burden that ADUs will create on the City's infrastructure. This information is contained in a memorandum dated December 3, 2018, entitled *Imposition of Development Impact Fees on Accessory Dwelling Units* (the "ADU Nexus Report"); and

The ADU Nexus Report has been available for public review and comment; and,

Further, while leaving Resolution No. 2012-23 unamended and in place, the City incorporated the Development Impact Fees into the Consolidated Comprehensive Citywide Master Fee and Charges Schedule pursuant to Resolution No. 2016-59. The City desires to remove the Development Impact Fees from the Fee and Charges Schedule, and amend

Resolution No. 2012-23 to establish and add Development Impact Fees Resolution for ADUs. The amount of all DIFs is attached as Exhibit A; and

To solicit public input on the proposed DIFs for ADUs, and in compliance with the Mitigation Fee Act, California Government Code section 66000 *et seq.*, the City Council held a noticed public hearing on the ADU Nexus Report and on DIFs for ADUs at its regular meeting on December 17, 2018,

NOW, THEREFORE, the City Council of the City of Huntington Beach does hereby resolve as follows:

1. Findings pursuant to Government Code section 66001. The City Council finds and determines that the ADU Nexus Report complies with California Government Code section 66001, and as to each of the proposed fees to be imposed on ADUs:

- (a) Identifies the purpose of the fee;
- (b) Identifies the use to which the fee will be put;
- (c) Shows a reasonable relationship between the use of the fee and the type of development project on which the fee is imposed;
- (d) Demonstrates a reasonable relationship between the need for the public facilities and the type of development projects on which the fee is imposed; and
- (e) Demonstrates a reasonable relationship between the amount of the fee and the cost of the public facilities or portion of the public facilities attributable to the development on which the fee is imposed.

2. Fees for Uses Consistent with the ADU Nexus Report. The City Council hereby determines that the DIFs for ADUs imposed, pursuant to this Resolution shall be used solely to finance the public facilities and/or equipment and park land acquisition described or identified in the respective ordinances and ADU Nexus Report.

3. Approval of ADU DIFS as set forth in the ADU Nexus Report. Pursuant to Resolution No. 2012-23, the City Council approved the specific public facilities, equipment and park land acquisition cost estimates identified in the Nexus Report. As set forth in the ADU Nexus Report, the City Council finds that there is a nexus between the impacts of ADUs and the public facilities, equipment and park land acquisition identified in the Nexus Report such that the ADU Impact Fees are necessary to mitigate the impact of ADUs. The Council further finds that, as set forth in the ADU Nexus Report, the cost estimates contained in the Nexus Report are a reasonable basis for calculating and imposing the ADU DIFS.

4. Consistency with General Plan. As set forth in the ADU Nexus Report, the City Council finds that ADU Impact Fees are necessary to mitigate the impact of ADUs on City infrastructure.

5. CEQA Finding. The adoption of the ADU Nexus Report and the establishment of ADU Impact Fees are not subject to the California Environmental Quality Act in that pursuant to CEQA Guidelines, section 15378(b) (4), the creation of government funding mechanisms which do not involve any commitment to any specific project which may cause a significant effect on the environment, is not defined as a "project" under CEQA.

6. Adoption of Report. The ADU Nexus Report, including Appendices, is hereby adopted.

7. Amount of Impact Fees. The City Council hereby amends the DIFs to include ADU DIFS and adopts the DIFs as a stand-alone fee schedule as set forth in Exhibit "A," attached hereto and incorporated herein. The amount of the DIFs, including those for ADUs, but excluding traffic impact fees, shall be automatically modified annually pursuant to the percentage of increase or decrease in the Los Angeles-Anaheim-Riverside All Urban Consumer Price Index (CPI) or any relevant successor for the Orange County area, from March to March of the preceding twelve (12) months.

Traffic impact fees, including traffic impact fees on ADUs, shall be increased using the *Engineering News Record's* construction cost index as reported for the twelve month period ending in March of each year.

The escalator indices provided for only the ADU DIFS shall not take effect until March of 2020, but this limitation shall not affect the escalator indices for all other DIFS.

8. Use of DIFs. The DIFs shall be solely used for the purposes described in the respective Ordinances and Resolutions creating the DIFs and their associated Nexus Reports.

DIFs collected pursuant to existing Ordinances and Resolutions shall be maintained and used exclusively for those purposes and accounts for these Fees shall remain in effect and shall be maintained by the City Manager or his/her designee. Fees collected under any of the categories listed in the ADU Nexus Report may be used to finance the construction or implementation of any public facility listed in those categories to the extent that use of the fees may not exceed the percentage allocated to new development of all of the public facilities listed in the category, or sub-category.

9. Fee Determination by Type of Use.

A. Residential Development. DIFs for residential development shall be based upon the type of unit constructed. The DIF categories as shown in Exhibit A generally correspond to the City's land use designations in the land use element of the City's General Plan.

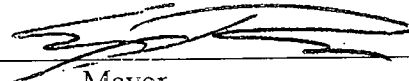
B. Nonresidential Land Uses. DIFs for nonresidential land uses shall be based upon the square footage of the building or other measurement detailed in the respective development impact fee ordinances. The DIF categories as shown in Exhibit A generally correspond to the City's land use designations in the land use element of the City's General Plan.

C. Uses Not Specified. In the event that there are land uses not specified in Exhibit A, the DIF for such use shall be determined by the City Manager or his/her designee who shall determine such fee based on an analysis of the impacts of the proposed use on public facilities, equipment and/or park land.

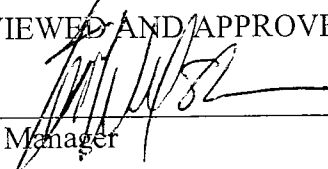
10. Severability. If any action, subsection, sentence, clause or phrase of this Resolution, the ADU Nexus Report, or other attachments thereto, shall be held invalid or unconstitutional by a court of competent jurisdiction, such invalidity shall not affect the validity of the remaining portions of this Resolution, the, or other attachments thereto or fees levied by this Resolution that can be given effect without the invalid provisions or application of fees. In the event any section of this Resolution is held invalid the previously adopted affected fees shall be automatically reinstate as if never repealed or modified herein.

11. Effective Date. Consistent with California Government Code Section 66017(a), the DIFs as identified in attached Exhibit "A" adopted by this Resolution shall take effect sixty (60) days following final action taken on the respective ordinances or amendments thereto by the City Council.

PASSED AND ADOPTED by the City Council of the City of Huntington Beach at a regular meeting thereof held on the 17th day of December, 2018.


Mayor

REVIEWED AND APPROVED:


City Manager

INITIATED AND APPROVED:


Community Development Director

APPROVED AS TO FORM:


City Attorney

SFF
MV

Development Impact Fees

(per Resolution 2012-23 and amended on 12/17/18 to include ADU DIF)

Land Use	Law Enforcement Facilities	Fire Suppression Facilities	Circulation Systems (Streets, Signals, Bridges)	Public Library Facilities	Park Land/ Open Space & Facilities (No Tract Map)
Detached Dwelling Units (per Unit)	\$ 362.05	\$ 844.11	\$ 2,385.00	\$ 1,179.72	\$ 16,554.73
Attached Dwelling Units (per Unit)	\$ 746.48	\$ 349.85	\$ 1,597.00	\$ 866.48	\$ 12,732.84
Accessory Dwelling Units (per Unit)	\$ 183.50	\$ 86.00	*	\$ 213.00	\$ 3,130.00
Mobile Home Dwelling Units (per Unit)	\$ 337.64	\$ 1,449.23	\$ 1,248.00	\$ 708.85	\$ 10,222.88
Hotel/Motel Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.041/SF	\$0.234/SF
Resort Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.041/SF	\$0.234/SF
Commercial/Office Uses (per sq. ft.)	\$ 0.953	\$0.301	\$4.175	No Fee	\$0.897
Industrial/Manufacturing Uses (per sq. ft.)	\$ 0.406	\$0.0275	\$1.716	No Fee	\$0.730

* see Schedule Rates of Traffic Impact Fees, amended 12/17/2018 to include Accessory Dwelling

Schedule of Rates for Traffic Impact Fees

(per Resolution 2012-23 and amended on 12/17/18 to include ADU DIF)

Land Use	Adjusted Trip Ends	Average Distance	Trip-end to Trip	Additional Trip Miles	Cost per Trip Mile	Cost per 1000 sq. ft, dwelling unit or other unit	
RESIDENTIAL LAND USES (per Unit)							
Detached Dwelling Unit	8.76	7.9	0.5	34.6	\$ 64.34	\$ 2,226.16	/Unit
Apartment	6.15	7.9	0.5	24.3	\$ 64.34	\$ 1,563.46	/Unit
Condominium/ Townhouse	5.36	7.9	0.5	21.2	\$ 64.34	\$ 1,364.01	/Unit
Accessory Dwelling						\$ 341.00	/Unit
Mobile Home Dwelling	4.57	7.9	0.5	18.1	\$ 64.34	\$ 1,164.55	/Unit
RESORT/TOURIST (per Unit or Entry Door)							
Hotel	6.29	7.6	0.5	23.9	\$ 64.34	\$ 1,537.73	/Room
All Suites Hotel	3.77	7.6	0.5	14.3	\$ 64.34	\$ 920.06	/Room
Motel	4.34	7.6	0.5	16.5	\$ 64.34	\$ 1,061.61	/Room
INDUSTRIAL (per 1,000 SF)							
General Light Industrial	6.17	9.0	0.5	27.8	\$ 64.34	\$ 1,788.65	/1,000 sf
Heavy Industrial	5.97	9.0	0.5	26.9	\$ 64.34	\$ 1,730.75	/1,000 sf
Manufacturing	2.73	9.0	0.5	12.3	\$ 64.34	\$ 791.38	/1,000 sf
Warehousing	4.39	9.0	0.5	19.8	\$ 64.34	\$ 1,273.93	/1,000 sf
COMMERCIAL (per 1,000 SF)							
Office Park	7.42	8.8	0.5	32.6	\$ 64.34	\$ 2,097.48	/1,000 sf
Research Park	5.01	8.8	0.5	22.0	\$ 64.34	\$ 1,415.48	/1,000 sf
Business Park	9.34	8.8	0.5	41.1	\$ 64.34	\$ 2,644.37	/1,000 sf
Bldg. Materials/Lumber Store	29.35	4.3	0.5	63.1	\$ 64.34	\$ 4,059.85	/1,000 sf
Garden Center	23.45	4.3	0.5	50.4	\$ 64.34	\$ 3,242.74	/1,000 sf
Movie Theater	2.47	4.3	0.5	5.3	\$ 64.34	\$ 341.00	/1,000 sf
Church	5.92	4.3	0.5	12.7	\$ 64.34	\$ 817.12	/1,000 sf
Medical-Dental Office	22.21	8.8	0.5	97.7	\$ 64.34	\$ 6,286.02	/1,000 sf
General Office Building	7.16	8.8	0.5	31.5	\$ 64.34	\$ 2,026.71	/1,000 sf
Shopping Center	30.2	4.3	0.5	64.9	\$ 64.34	\$ 4,175.67	/1,000 sf
Hospital	11.42	4.3	0.5	24.6	\$ 64.34	\$ 1,582.76	/1,000 sf
Discount Center	62.93	4.3	0.5	135.3	\$ 64.34	\$ 8,705.20	/1,000 sf
High-Turnover Restaurant	8.9	4.3	0.5	19.1	\$ 64.34	\$ 1,228.89	/1,000 sf
Convenience Market	43.57	4.3	0.5	93.7	\$ 64.34	\$ 6,028.66	/1,000 sf
Office Park	13.97	4.3	0.5	30.0	\$ 64.34	\$ 1,930.20	/1,000 sf
OTHER (as noted)							
Cemetery	3.07	4.3	0.5	6.6	\$ 64.34	\$ 424.64	/Acre
Service Station/Market (avg)	107.69	4.3	0.5	231.5	\$ 64.34	\$ 14,894.71	/Fuel Position
Service Station w/Car Wash	99.35	4.3	0.5	213.6	\$ 64.34	\$ 13,743.02	/Fuel Position

STATE OF CALIFORNIA
COUNTY OF ORANGE) ss:
CITY OF HUNTINGTON BEACH)

I, ROBIN ESTANISLAU, the duly elected, qualified City Clerk of the City of Huntington Beach, and ex-officio Clerk of the City Council of said City, do hereby certify that the whole number of members of the City Council of the City of Huntington Beach is seven; that the foregoing resolution was passed and adopted by the affirmative vote of at least a majority of all the members of said City Council at a **Regular** meeting thereof held on **December 17, 2018** by the following vote:

AYES: Brenden, Carr, Semeta, Peterson, Posey, Delgleize, Hardy
NOES: None
ABSENT: None
RECUSE: None



City Clerk and ex-officio Clerk of the
City Council of the City of
Huntington Beach, California

ATTACHMENT #2

**PUBLIC HEARING
CITY OF HUNTINGTON BEACH**

Notice of Public Hearing on the Adoption of a Resolution Amending the Development Impact Fee Section of the Citywide Master Fee and Charges Schedule

Notice is hereby given that a public hearing will be held by the City Council of the City of Huntington Beach, in the Council Chambers of the Civic Center, Huntington Beach located at 2000 Main Street, at the hour of 6:00 PM, or as soon as possible thereafter on Monday, the 17th day of December 2018, for the purpose of considering the Adoption of a Resolution Amending the Development Impact Fee section of the Citywide Master Fee and Charges Schedule.

The revisions to be considered are to modify the Development Impact Fee section of the Citywide Master Fee and Charges Schedule to create a new proportionate share fee for Accessory Dwelling Units that is significantly less than the fee for a single-family house.

All interested persons are invited to attend to express their opinions for, or against, the proposed fee revisions with written or oral comments. Written communications to the City Council should be mailed to the Office of the City Clerk at the address below. Further information may be obtained from the Finance Department, 2000 Main Street, Huntington Beach, CA, 92648-2702 or by telephone (714) 536-5630.

The City of Huntington Beach endeavors to accommodate persons of handicapped status in the admission or access to, or treatment or employment in, city programs or activities. The City of Huntington Beach is an equal opportunity employer.

Dated: November 29, 2018
December 6, 2018

**City of Huntington Beach
By: Robin Estanislau, City Clerk
2000 Main Street
Huntington Beach, CA 92648-2702
Telephone: (714) 536-5405**

**** Notice to City Clerk ****

this copy to run twice in newsprint no later than 19 days prior to the Council Meeting date. Run in both display format and in legal section.

ATTACHMENT #3

TO: Ursula Luna-Reynosa, Community Development Director
FROM: Scott Thorpe, Senior Vice President, Revenue and Cost Specialists, LLC
DATE: December 3, 2018
RE: Imposition of Development Impact Fees on Accessory Dwelling Units



The State Legislature has concluded that increased demand for housing units in California has exceeded the existing housing inventory and also the current pace of housing unit construction. Furthermore, the Legislature determined that one approach to diminishing the housing imbalance was to increase the production of Accessory Dwelling Units (ADUs). The State Legislature then passed a number of bills requiring that local government ordinances and resolutions be amended to meet this objective. There are three bills, they are:¹

AB 2299 (Bloom) generally requires local governments to ministerially approve ADUs if the unit complies with certain parking requirements, the maximum allowable size of an attached ADU and the set-back requirements.

SB-1069 (Wiecowski) reduces parking requirements to one space per bedroom or unit. The law also prohibits parking requirements if the ADU meets other certain conditions.

AB 2406 (Thurmond) creates more flexibility for housing options by authorizing local governments to permit junior accessory dwelling units (JADU) through local ordinance amendments. The bill defines JADUs cannot exceed 500 square feet and it must be completely contained within the space of an existing residential structure.

There are three types of ADUs to be addressed by local governments; each type requires that there be a "main house" on the parcel. The three types are:

1. ADUs constructed from unused space within an existing residential detached dwelling or attached dwelling on a parcel.
2. ADUs constructed separate and distinct from existing residential dwelling from currently excess or unused parcel space.
3. ADUs constructed creating an addition structure contiguous to an existing residential structure.

This Report will address the second and third types identified above. The reason that #1 is not a focus of this report will be addressed later.

This report will also not address the merits of the State's program to quickly and easily create additional small housing units but will instead address the potential impact that these ADUs will have on the City's ability to accommodate the additional service demands from these new units with adequate municipal infrastructure and municipal services.

Demand Upon City Infrastructure from the Construction of ADUs. It is unclear in the end just how many ADU applications will be received in either the short or long term but a few basic dynamics would indicate that a good number could be expected¹¹. Many homeowners in Huntington Beach are likely to have adequate space for an ADU and equity with which to finance it. Given the City's access to beaches and many other outdoor activities, a new ADU could command high return in terms of rents, more so than many cities. Regardless of how many ADU applications are received, the City will need to be prepared to absorb that number of new ADUs and the City will have no option but to accommodate these new dwelling units with municipal services due to the State's imposition of the streamlined rules.

The Importance of Capital Infrastructure. The Levels of Service (LOS) of any one City infrastructure is based upon (or limited by) the capacity of that infrastructure to support the residents and businesses. The design of any municipal project has a finite capacity, such as a four lane road, a 30" storm drainage pipe or a 10,000 square foot library. Each is designed to meet the needs of a defined number of users. A street segment can only handle so many vehicles per hour, especially at an allowable/practical speed that makes it worth using for driving, especially over longer distances. A storm drainage pipe that is 30" cannot handle storm flows twice that capacity. A library can hold just some many collection items and serve only so many people, and doubling the amount of librarians cannot make up for limited library space. A municipality with 0.40 square feet per resident of library space will be able to serve more residents than a municipality with only a 0.10 square feet standard per resident of library space. Make no mistake about it, the amount of and complexity of any infrastructure inventory defines (all or in part) the level of service (LOS) provided by that infrastructure.

Good municipal service takes a balance of infrastructure and service-providing staff, requiring both one-time capital revenues and reoccurring operational revenues (i.e. property and sales taxes) respectively. As an example, it takes a balance of capital and operating costs to accommodate new ADU development generated additional police responses within the City's desired standard. It will also take additional officer-assigned equipment, law enforcement station space, response and support vehicles and specialty equipment to make that response possible.

Limited Capital and Operating Revenues. It is unlikely that the construction of ADUs will significantly increase the City's annual operation revenues. This makes the one-time DIF financing of any City development-required infrastructure that much more important. The importance of having a properly calculated and documented DIF schedule in order to accommodate development-related demands cannot be over-stated. The same concept holds

true for the two labor-intensive public safety services and the infrastructure-intensive services such as the City's circulation, storm drainage collection, and potable water distribution and sewer collection systems. Of course, the DIFs can only be used for the capital acquisitions but the ongoing labor staffing costs needed to meet the added demands for service will need to come from other annual tax receipts and other financial resources.

The City has an adopted DIF schedule that includes the following land-uses:

Detached Dwelling Units
Attached Dwelling Units
Mobile Home Dwelling Units
Hotel/Motel Lodging Units
Resort Lodging Units
Commercial/Office Uses
Industrial Uses

The adopted fee schedule was based upon a DIF Calculation and Nexus Reportⁱⁱⁱ that was adopted June 18, 2012 via City Resolution 2012-23. The DIF schedule was empirically derived based upon documented demands for the previously identified land-uses. This is the preferred manner to approach the identification of the ADU development-generated impact costs.

ADU Development Within and Existing Detached Dwelling. As a recap, one major type of ADU that the City will likely face is one that can be cobbled from existing excess space inside of the initial detached dwelling (i.e. an unused bonus room or a master bedroom, a breezeway or other similar existing underutilized space). This will not be addressed because it is *existing* space and is already considered to be part of the City's housing inventory. It is merely unused space due perhaps to changes in the lifestyle of the existing structure occupants. A good example would be excess space resulting from the "empty nest" issue. The impact of the conversion of existing space within the main house cannot be calculated as any additional person or persons living in space converted from within an existing detached dwelling would be indistinguishable from the original occupants of the existing detached dwelling. Numerous existing detached dwellings already provide space for numerous extended family members. Lastly, the impact costs of an ADU within and existing detached dwelling have probably already been included in the average of the detached dwelling empirically-supported infrastructure demand within the existing *DIF Calculation and Nexus Report*.

The second major type of ADU is one that is constructed separate and distinct from the existing detached dwelling. The third type may be constructed contiguous to the main house. Both represent new or added residential dwellings to the City's existing housing inventory. These separate and distinct ADUs can range up to a maximum of 1,200 square feet, assuming all other required City codes and standards are met. The conversion of a garage would be included in this category as it would result in a new residential dwelling repurposed from prior parking (non-living) capacity.

Unfortunately, the calculation of new demand resulting from the latter type of ADUs cannot be calculated empirically as was done with the existing land-uses in the City's *2012 DIF Calculation and Nexus Report*. The simple reason is that, due to the dispersed nature of ADUs, there is no empirically-derived individual demand information available about ADUs.

Law Enforcement Demands – Surely these units will annually generate new police-related calls-for-service, but an empirically calculated annual ratio of police calls-for-service per number of dwelling units is too difficult to determine. Law enforcement agencies do not keep track of nor keep records based upon the land-use *type* of the structure that generated a call-for-service focusing instead on the *type* of call-for-service, i.e. a burglary, assault, noise, etc. Additionally, most cities are simply unaware of how many ADUs are within their city limits.

Fire Suppression/Paramedic Demands – Again, some calls-for-service can be expected as people who live in any new ADUs will occasionally need fire suppression/paramedic assistance, but again, there is no information as to how many additional calls-for-service there will be and how often they will occur. As an example, in the *2012 DIF Calculation and Nexus Report*, the Fire Department was able to identify 4,762 responses to calls-for-service requests from the 38,616 existing detached dwellings for a ratio of 0.123 annual calls-for-service per detached dwelling. Fire departments keep excellent calls-for-service records but the *National Fire Information Reporting System* (NFIRS) that is used by every fire department does not have a separate reporting category for "accessory dwelling units", thus no call demand information is available.

Circulation System Demands – The demand upon the City's existing circulation system from a new detached dwelling can be determined to be about 36.4 daily trip-miles generated mostly in part from data contained in the *Institute of Transportation Engineers (ITE)* three volume manual where detached dwelling is a specific category. ITE data for detached dwellings has been calculated by surrounding tracts of detached dwellings (absent any ADUs) with trip counting equipment, determining the number of trip-ends for the survey area and then dividing it by the number of detached dwellings included within the survey area. This is the process behind all ITE data and is consistently applied to all of the previously mentioned land-uses. However, it is not possible to duplicate that effort for ADUs because, by definition, there can be no survey area consisting of only ADUs. As a result the *ITE* manual, as comprehensive as it is, also does not have a separate ADU category in their list of traffic generators simply because of the great difficulty in measuring that demand.

Storm Drainage Collection System Runoff Demands – Storm Drainage runoff can be measured. If an accessory unit is built new with a pad that creates an additional 750 square feet of impervious space, the additional storm water runoff that can be measured and thus calculated. If the ADU is constructed within the existing

detached dwelling, there will be no additional runoff and thus no additional demand upon the storm drainage system. Schedule 6.2 of the 2012 DIF Report identified a cost of \$18,149 in capital needs per residential acre. When that figure is divided by 43,560 square feet (in an acre), the result is \$0.417 per square foot of impervious rooftop or pad. However, in 2012 the Council did not adopt a DIF for the storm drainage collection system infrastructure, so to remain consistent with that City Council DIF policy; no storm drainage DIF for ADUs is recommended.

Library Space and Collection Items – The City of Huntington Beach owns and operates five public libraries consisting of 127,400 square feet of library space housing 410,594 collection items. These five facilities can all expect to see some increases in demand. Again, the difficulty in determining additional demand rests in the complexity in determining the average number of persons living in ADUs. A 600 square foot ADU is easily capable of housing two or more people. A 1,200 square foot ADU is can easily consist of three bedrooms and can easily support the housing needs of between four and six residents. Unfortunately, the United States Census does not have a separate category for determining the number of residents per ADUs either placing such data into a category along with persons living in boats, RV's and "other" units.

Utility Demands – Water distribution and sewer collection demand can probably be determined for a new ADU, most likely on a fixture basis as long as the new ADU is separate from the "main" house and not converted space within the existing "main" house. The City has a schedule identifying "connection fees" (impact fees) for differing meter sizes. Many public agencies that provide utility services will probably see water or sewer demand by existing detached dwellings increase over time due to the inclusion of a new ADU on the existing water meters. Homeowners can be expected to take economic advantage of interior unused space within their home to turn some of the unused space into ADUs thus by increasing the average number of persons in any particular home. The same can be said for unused space within their parcels. Sewer collection system demand is usually a function of water use, so that could be expected to increase also, and probably can be determined for a new separate accessory living unit, again, by fixtures.

Utility engineering staff has indicated that according to current City policy, "connection" fees will be imposed if the proposed ADU requires an increase in meter size at the main house or an additional meter (i.e. from a 3/4" meter to a 1" meter, and the fee would be the delta between the two). The City also collects a DIF on behalf of the Orange County Sanitation District (OCSD) which would likely charge the fee based upon the number of bedroom additions per the OCSD rate schedule. See attachment A, City of Huntington Beach Public Works Fee Schedule, page 5-6 of 7.

Long Term Demand Changes. What is most likely to occur from an increase in the number of detached dwellings with ADUs will effectively be the creation of duplex-style residential units within residential neighborhoods, primarily comprised of detached dwelling units (single family). The ADU adds a kitchen and the opportunity for another household to occupy the property; therefore, resulting in an increase in the average number of persons living at that property. This in turn will increase the average demands from detached dwellings (where we can measure demands) as vacant spaces within the existing detached dwelling to indoor apartments and back-yard separate ADUs (again, up to 1,200 S.F.).

Clearly, some unknown amount of ADUs are likely to be constructed in the City of Huntington Beach and it appears that the best (and only) way to deal with the unknown demand on City services is to have a development impact fee schedule specifically for ADUs. Given the difficulties in identifying an empirical methodology, some other approach on calculating demand is necessary.

Recommended Approach. The recommended approach for the calculation of DIFs for application to the construction of ADUs is to make it a function of the demand of one attached dwelling unit. Staff has indicated that the 25 ADU applications to date more closely resemble a duplex for reasons previously explained and thus the attached dwelling DIF should be applied. Any new application for a new duplex unit currently has the attached dwelling unit DIF rate imposed.

The five separate infrastructure-based DIFs adopted from the 2012 report are assessed on a per unit basis, regardless of the size of the dwelling unit, and differentiated by land use categories. For residential development, the land use categories include either detached residential dwellings (single-family units), or attached residential dwellings (multi-family units). In other words, the adopted fee for a detached dwelling (single family unit) is \$21,009 regardless of whether the house is 1,500 square feet or 5,000 square feet in size. Similarly, the adopted fee for an attached dwelling (multi-family unit) is \$16,047 regardless of the size of the unit. The impacts to public infrastructure and the municipal services with the development of those units are based upon statistical averages from the land use category as opposed to the size of the units. In short, empirical evidence is only available based upon the average of *all* attached dwellings. Municipal service demand statistics based upon differing sizes of attached dwellings (i.e. one, two or more bedrooms) are not available. The same holds true for detached dwellings.

The City could adopt a similar modified approach for application to the construction of ADUs. According to data received from the Orange County Assessor the average size for all dwelling units in Huntington Beach is 2,386 square feet. Again, since the adoption of SB 1069 became effective in January of 2017, the City of Huntington Beach has received roughly 25 applications for ADUs. The average size ADU applied for in Huntington Beach is 729 square feet. The average size of an ADU in Huntington Beach is approximately 31% of the average sized dwelling unit in Huntington Beach. Cities are not required to impose DIFs; however, if they choose to impose them it is critical that the fee not exceed the proportionate share of the

impact. Therefore, to be conservative, it is recommended that the City adopt an ADU fee that is only 25% of the attached dwelling unit DIF. This action would recognize that an individual ADU will have some impact on City services but would allow the City to recognize the State Legislature's encouragement that cities and counties consider the spirit/intent of the new ADU laws, that is to create additional smaller housing supply alternatives without overwhelming financial barriers.

The fee has to be separated into the five individual impact fees identified in the 2012 report and resolution. Table 1, following, demonstrates this.

Table 1-1
Calculation of an Attached Dwelling Unit
Per Imposed Infrastructure-based Development Impact Fee

Infrastructure	Calculated Development Impact Fee	Percent of DIF Imposed	Adopted Impact Fee/Unit	City Staff Recommended Percentage	DIF Impact Cost Per ADU
Law Enforcement	\$815	90.1%	\$734	25.0%	\$183.50
Fire Suppression	\$382	90.1%	\$344	25.0%	\$86.00
Circulation System	\$1,657	96.4%	\$1,597	25.0%	\$399.25
Storm Drainage	\$397	0.0%	\$0	25.0%	\$0.00
Library Facilities	\$908	93.8%	\$852	25.0%	\$213.00
Park Land et. al.	\$13,835	90.5%	\$12,520	25.0%	\$3,130.00
Total	\$17,994	89.2%	\$16,047	25.0%	\$4,011.75

The five required Government Code §66000 findings within each chapter would apply to the imposition/collection of ADUs DIFs also. The fees collected would be used to finance the same projects specifically identified in each corresponding infrastructure chapter in the *2012 DIF Calculation and Nexus Report*.

The portion of the DIF proceeds for *Law Enforcement Facilities, Vehicles and Equipment Infrastructure* (about 4.6% of the total) would be limited to projects identified on Schedule 3.1, page 37 of the 2012 DIF Calculation and Nexus Report or pages 6 through 9 of the accompanying *2012 Master Facilities Plan*.

The portion of the DIF proceeds for *Fire Suppression/Medic Facilities, Vehicles and Equipment infrastructure* (about 2.1% of the total) would be limited to projects identified on Schedule 4.1, page 51 of the 2012 DIF Calculation and Nexus Report or pages 12 through 17 of the accompanying *2012 Master Facilities Plan*.

The 11.4% portion of the DIF proceeds for the *Circulation (Streets, Signals and Bridges System* infrastructure would be limited to projects identified on Schedule 5.1 page 67 of the 2012 DIF Calculation and Nexus Report or pages 21 through 42 of the accompanying 2012 Master Facilities Plan.

The 5.3% portion of the DIF proceeds for *Public Library Facilities and Collection* infrastructure would be limited to projects identified on pages 53 through 55 of the accompanying 2012 Master Facilities Plan.

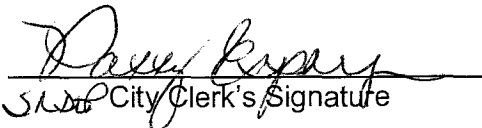
The 78.0% portion of the DIF proceeds for *Park Land Acquisition and Park Facilities Development* infrastructure would be limited to projects identified on pages 59 through 82 of the accompanying 2012 Master Facilities Plan.

Summary: This approach for applying a reasonable DIF upon the construction of ADU's provides a methodology consistent with that utilized in the original 2012 *Development Impact Fee Calculation and Nexus Report for the City of Huntington Beach*, in terms of assessing fees based upon average residential land uses as opposed to the size of the residence, and ensures that ADUs are not paying more than their proportionate share for the impact on City services. This approach results in DIFs for ADUs that are significantly less than those fees imposed on non-ADUs, which likely include higher impacts.

ⁱ As summarized from *Accessory Dwelling Unit Memorandum*, State of California Department of Housing and Community Development, December 2016, pages 3-5.

ⁱⁱ However, the City has received 25 applications to date and the ADU applications average about 729 square feet.

ⁱⁱⁱ *Development Impact Fee Calculation and Nexus Report for the City of Huntington Beach, California, and October, 2011 (Amended April 27, 2012)*. Revenue and Cost Specialists, LLC, Fullerton, CA. 92831. Adopted as Resolution #2012-23 June 18, 2012.

Council/Agency Meeting Held: _____	 City Clerk's Signature
Deferred/Continued to: <u>6/4/2012, 6/18/12</u> ☐ Approved ☐ Conditionally Approved ☐ Denied	
Council Meeting Date: May 7, 2012	Department ID Number: PL 2012-007

**CITY OF HUNTINGTON BEACH
REQUEST FOR CITY COUNCIL ACTION**

SUBMITTED TO: Honorable Mayor and City Council Members

SUBMITTED BY: Fred A. Wilson, City Manager

PREPARED BY: Bob Hall, Deputy City Manager

SUBJECT: Revise the City's Existing Development Impact Fees by adopting Resolution No. 2012-23 and Ordinance Nos. 3942 through 3947

Statement of Issue:

Transmitted for City Council consideration are revisions to the City's existing Development Impact Fees. With the assistance of Revenue & Cost Specialists, L.L.C. staff has evaluated the City's public services needs for the next twenty years and analyzed what the future development opportunities were based on General Plan land use. From that Revenue & Cost Specialists, L.L.C. compared the future City's needs with the potential build out and derived these revised/new Development Impact Fees included in the Development Impact Fee Calculation and Nexus Report.

Financial Impact:

Adoption of the recommended impact fees (new and updates) will generate approximately \$154.8 million through General Plan Build-out. This represents an approximately \$20 million increase over the currently adopted impact fees.

Recommended Action: Motion to:

- A) Adopt Resolution No. 2012 - 23, "A Resolution of the City Council of the City of Huntington Beach Adopting the Development Impact Fee Calculation and Nexus Report for the City of Huntington Beach, and Establishing New and Revised Development Impact Fees For All Development Within the City;" and,
- B) Approve for introduction Ordinance No. 3942, "An Ordinance of the City of Huntington Beach Amending the Huntington Beach Municipal Code by Adding Chapter 17.75 Relating to Development Impact Fees for Police Facilities;" and,
- C) Approve for introduction Ordinance No. 3943, "An Ordinance of the City of Huntington Beach Amending the Huntington Beach Municipal Code by Adding Chapter 17.74 Relating to Development Impact Fees for Fire Facilities;" and,
- D) Approve for introduction Ordinance No. 3944, "An Ordinance of the City of Huntington Beach Amending Chapter 17.65 of the Huntington Beach Municipal Code Relating to Traffic Impact Fees;" and,

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E) Approve for introduction Ordinance No. 3945, "An Ordinance of the City of Huntington Beach Deleting Chapter 17.66 of the Huntington Beach Municipal Code and Adding Chapter 17.67 Relating to Library Development Impact Fees;" and,

F) Approve for introduction Ordinance No. 3946, "An Ordinance of the City of Huntington Beach Amending the Huntington Beach Municipal Code by Adding Chapter 17.76 Relating to Parkland Acquisition and Park Facilities Development Impact Fees;" and,

G) Approve for introduction Ordinance No. 3947, "An Ordinance of the City of Huntington Beach Amending the Huntington Beach Municipal Code by Adding Chapter 17.73 Relating to the General Provisions for Development Impact Fees."

Alternative Action(s):

The City Council may make the following alternative motions:

1. Do not adopt Resolution #2012-23 and Ordinances #3942-3947, updating the proposed development impact fees leaving fees at current levels.
2. Make changes to the recommended fees and adopt as amended.
3. Continue the Development Impact Fee Calculation and Nexus Report and direct staff accordingly.

Analysis:

BACKGROUND

Development Impact fees are one-time charges applied to offset the additional public-service costs of new development. Fees are proposed to be assessed at the time a building permit is issued and rededicated to providing additional services, such as water and sewer systems, roads, libraries, and parks and recreation facilities, made necessary by the increase in number of new residents in the area. The funds cannot be used for operation, maintenance, repair or replacement of existing capital facilities. The amount of the proposed fee is clearly linked to the added service cost.

The development community has requested that the City of Huntington Beach make it easier for potential developers to calculate all impact fees from the early design stage of their project and to defer payment of the development impact fees to the issuance of the Certificate of Occupancy or Final Building Permit Approval.

The actions in this report address only Development Impact Fees. Fees charged under the Subdivision Map Act will be addressed separately at a later date. These fees are Quimby and Drainage fees.

STAFF ANALYSIS AND RECOMMENDATION:

The City of Huntington Beach is getting close to full build-out and development of the remaining vacant parcels as well as renovation/construction of existing homes and businesses. New development results in increased demand that must be absorbed by the existing

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infrastructure. Currently the city collects development impact fees for traffic, library development, and park land/open space. Working with staff, Revenue & Cost Specialist, L.L.C. generated a Master Facilities Plan for theoretical General Plan build-out of the City. The Master Facilities Plan identifies all growth-related capital projects required to accommodate new City development through General Plan build-out. Using information in the Master Facilities Plan, a Development Impact Fee Calculation Report was generated. The purpose of the report is to assure that the impacts created by new development pays a fair share of the proportional costs required for expansion of all development within the City of Huntington Beach.

On April 27, 2012 the Nexus report dated October 2011 was amended. Due to additional costs associated with the accounting, collection and state mandated tracking Park Land/Open Space Fee and the Public Meeting Facilities fee were collapsed into one fee, now called the Park Land Acquisition and Park Facilities Development Fee. This was undertaken to provide the City greater flexibility to address the City's capital project needs and priorities over time.

The Development Impact Report contemplates two new fees, police and fire, and updates the existing traffic, library, and park land/open space impact fees (Attachment No. 1) based on the City's changing requirement for public safety, streets and signals and other quality-of-life facilities. Attachment No. 9 is a comparison of current impact fees and proposed impact fees. The paragraphs to follow provide additional, detailed analysis of the changes sought to each type of fee.

Law Enforcement Facilities, Vehicles, and Equipment Fee (New)

The purpose of the new Law Enforcement Facilities, Vehicles and Equipment Fee is to collect proportional contributions from new development to pay for additional required law enforcement facilities, vehicles and equipment. New development can be expected to generate additional law enforcement calls for service. Different types of development will create proportional levels of calls for service that generate law enforcement response. Additional sworn officers are necessary to respond to the increased demands for service and these fees will offset the added costs of housing and equipping the additional required officers.

The proposed resolution establishes the actual amount of the new Law Enforcement Development Impact Fee. The resolution also specifies that the proposed fees be used solely for expanding or increasing capacity within the law enforcement facilities and to increase the number of enforcement vehicles and specialty equipment.

Fire Suppression/Medic Facilities Vehicles and Equipment Fee (New)

The purpose of this new fee is to provide proportional financial contributions as a result of new development to pay for additional fire suppression/emergency medical response facilities, vehicles and specialized equipment. In order to be able to continue to respond to an ever-increasing number of expected emergency calls, fire department staff has determined the need for the relocation of one fire station (as opposed to adding a ninth) and expanding one existing fire station. Having the right type and inventory of fire stations in the right locations enables the City's policy makers to house firefighters, apparatus and equipment to provide for maximum use of resources.

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The proposed resolution establishes the actual amount of the Fair Share Fire Department Impact Fee. The resolution specifies that the proposed fees would be used solely to acquire additional fire facilities, vehicles and specialized equipment required to respond to additional calls for service (related to the new development) necessary to maintain the capability of responding to calls to the existing community. Fees will be used to finance the construction or acquisition of fire suppression/emergency medical facilities, vehicles and specialized equipment identified in the Master Facilities Plan that are necessary to accommodate anticipated and planned development in the community.

Circulation (Streets, Signals and Bridges) System Fee (Updated)

The Fair Share Traffic Impact Fee collects proportional contributions from new development to pay for additional circulation system capacity by creating more travel lanes or more efficient street use to accommodate the additional trip-miles created by new development. Improvements take the form of construction of new travel lanes including the widening of streets, installation and modification of traffic signals to accommodate changes in traffic patterns and improving the infrastructure of our traffic signal system to enable development of better signal coordination. Improvements for pedestrians, bicycles and transit may also be included in these improvements.

The current Traffic Impact Fee is \$172 per net new trip generated by a proposed development. The recommended update to the Traffic Impact Fee slightly modifies the methodology for proportioning the cost to users, resulting in slightly increased fees for some uses and slightly lower fees for others. In general, the recommended methodology shifts fees from commercial uses to residential uses. The new methodology better reflects the actual impacts to the street system by not only accounting for the number of trips generated by the land use, but also the average length of the trip. This approach is based on the concept that a longer trip has greater potential to impact multiple locations within the circulation system.

The proposed methodology is predicated on distributing the estimated \$23,867,660 in circulation system improvement costs needed to serve additional traffic generated by new development. This process results in a "per unit" fee which can be assessed on new development. The "per unit" fee is developed based on typical trip generation rates for specific uses and also factors in the average length of a trip associated with that type of use. The "per unit" fee reflects the prorated fair share costs of improvements based on the number of trip-miles generated by the particular land use category. Rates recommended for adoption are based on a daily trip-mile of \$64.34. This represents 10% less than the amount recommended in the Development Impact Fee Calculation Report due to the elimination of approximately \$2.7 million in maintenance facility and equipment costs previously included in the calculation.

The current Traffic Impact Fee was established using a fair share methodology based only on the number of trips generated by a particular land use. The following example is presented to generally describe the difference in methodology:

If a typical single family home generates 8.8 trips per day the Traffic Impact Fee under the current program (\$172 per trip) is \$1,513.

If a medium sized shopping center generates 30 trips/1000 square feet of floor area the Traffic Impact Fee under the current program is \$5,160/1000 sf.

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Under the current program, with a trip length factor included (3.95 miles/trip for residential and 2.15 miles per trip for shopping center) the rates change to \$2,482/dwelling unit and \$4,655/1000 sf of floor area for the shopping center. While 1,000 square feet of floor area in a shopping center generates more than 3 times the number of trips of one single family home, the shopping center only generates approximately 85% more trip miles.

The resolution specifies that the proposed fees would be used solely for circulation system capacity improvements. This information is generally identified in Use of the Fee section the report.

The ordinance modifications are necessary to revise Chapter 17.65 so that the collection of fees imposed on development projects is consistent with the intent of the City Council to impose fees on residential, commercial and industrial development projects.

Public Library Facilities and Collection Fee (Updated)

The current Library Development fee was initially adopted in 1998. A Library Facilities Impact Fee imposed on residential development would allow the City to expand on existing facilities to ensure the City's existing and new residents have adequate and sufficient access to enjoy the library space and collections. The City of Huntington Beach, through its General Plan, and Facility Master Plan has established its commitment to maintaining current standards of library services. The Library Development Fee, along with other City revenue sources, will allow the City to expand facilities and enhance collections to accommodate projected growth and increased demand for service.

The development of any acreage zoned for residential use increases the demand on the finite amount of library space and collection items. Thus, those residential land uses that generate a higher number of residents will pay a proportionally higher amount. There is no information available demonstrating a substantive link between library use and local businesses. Library use is primarily by residents as opposed to business persons. Therefore, there are no fees being collected for commercial or industrial construction.

The resolution specifies that the fees would be used solely for support of library services and facilities. Funds collected from the Public Library Fee shall be used to cover the cost of expansion of library space and collection items needed to meet the increased demands of residential growth and development. Funds can be used to acquire additional property, construct new facilities, furnish new buildings or facilities, purchase collection materials, funding for master plans or other studies to identify capital needs and the cost of financing. Funds shall not be used for periodic or routine maintenance or to maintain or repair existing facilities.

Ordinance modifications are necessary to revise Chapter 17.66 so that the collection of fees imposed on development projects is consistent with the intent of the City Council to impose fees on residential, commercial and industrial development projects.

Park Land Acquisition and Park Facilities Development Fee (Updated)

On December 16, 2002 The City Council adopted Resolution 2001-129 with findings that stated, "the purpose of the fee is for the development and improvements of the City's parks and recreational facilities in order to assure that the policies and standards for park, open space and recreational facilities contained in the City's General Plan and described in the Park Fee Study are met."

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The proposed fees presented herein do not change this approved purpose, but merely update the methodology used in calculating the fee based on the latest land values, future population, and build-out projections cited in the new "Development Impact Fee Calculation and Nexus Report" completed by Revenue and Cost Specialists L.L.C. in October 2011.

As referenced in the October 2011 report, the City owns or has long-term control of 778.41 acres of traditional park land, with about 87.9% developed. It is anticipated that the City will need to acquire 70.5 acres in park land to serve the additional projected 17,089 residents at build-out. The challenge facing the City is to provide new facilities and park land to serve the recreational needs of new residents.

The proposed fees are based on the estimated per acre acquisition and development costs as presented in Schedule 9.1 factored by the City's existing park standards, and then multiplied by the average number of persons per type of dwelling unit.

Currently this fee is \$0.86 per square foot and applies to all new residential development (new construction and additions) the fee is paid at the time of permit issuance for all new residential development. The proposed fee will apply to new residential units only; it will no longer apply to residential room additions or expansions. This will result in an elimination of the per square foot fee for residential development, however a square foot fee will continue to be applied to all non-residential development. In addition, it should be noted that currently Ordinance No. 3596 of Chapter 254 of the Zoning and Subdivision Ordinance exempts mobile homes from Park Impact fees. The proposed fees would require the payment of \$11,169 per mobile home dwelling unit. However, in an effort to implement the proposed fees in a timely manner and since there no applications on file for approval of a mobile home park, staff is recommending that the mobile home exemption be extended until such time that Ordinance No. 3596 can be revised to reflect the new fees.

Projected population increases will also place additional demands on existing community centers, and other community use facilities (such as the City's clubhouses, the Beach Public Service Center, Shipley Nature Center, etc). The Park Acquisition and Park Facilities Development Fee will enable the City to meet the added demands created by the construction of additional residential dwelling units to maintain the current standard of 0.620 square feet per person for the Public Facility use space.

IMPLEMENTATION

In order to mitigate the impact of increasing Law Enforcement Facilities Fee, Fire Suppression Facilities Fee, Circulation System Fee, and the Park Land Acquisition and Park Facilities Development Fee, the proposed resolution is to have a "phased" implementation for the detached, attached and mobile home residential unit fees. The Public Library Fee will not be phased in. While the goal is to generate adequate funding to serve the increased demands of development, the phased implementation would allow for a more gradual increase over a three year period and not inhibit development in a difficult economy.

That is, the phased approach would increase the detached, attached and mobile home residential unit to 70% of recommended fee in the first year beginning July 20, 2012, then increasing to 80% effective July 20, 2013, reaching 90% on July 20, 2014, and remaining at 90% of the recommendation. Beginning in March 2016, a CPI adjustment factor would be used to adjust those fees until a new study is funded. Using a Detached Dwelling as an example,

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the total development impact fee 100% recovery amount of \$22,829 would not be implemented. Beginning July 20, 2012, the amount would be \$16,331/unit. On July 20, 2013 the fee would increase to \$18,499/unit. On July 20, 2014, the fee would be \$20,655 and would remain at the 90% level.

Currently, all fees are collected at the time of building permit issuance. It is recommended that the fees be collected at the time the impact is imposed on the system; therefore later in the development process at final building permit approval or issuance of the Certificate of Occupancy.

Regarding development projects that have already received zoning entitlement approval (i.e., CUP, SPR, Variances, etc), there is proposed to be a "grandfathering" of existing development impact fees. Section 8, Fees Imposed, of the Fee Resolution (Attachment No. 1) describes the criteria for being "grandfathered" which basically states that new development impact fees shall not apply to those development projects that have received discretionary project entitlement approval on or before May 7, 2012 and the following milestones are met:

1. Project has submitted an approved application for building permits within 180 days after the fee going into effect or no later than January 20, 2013.
2. From the time of initial building permit application, the project makes continued progress toward satisfying plan check comments.
3. Building Permits are issued within 360 days after the fees go into effect, no later than July 20, 2013.

An exception to these milestones is when there is involvement by an outside third party regulatory agency. In such cases the 180 days to make building permit application will begin when the developer receives clearance from that agency. All other projects are subject to the new fees, which go into effect July 20, 2012

SUMMARY

Staff is recommending approval of the proposed resolution and ordinances based on the following reasons:

- The per unit fee established herein allows developers to easily calculate development impact fees
- The fees established herein meet the City's changing requirement for public safety, streets and signals, storm drainage and other quality of life facilities
- Allows for payment of Developer Impact fees at the time the impact is imposed on the system, therefore later in the development process.

Environmental Status:

Not applicable

Strategic Plan Goal:

Improve the City's infrastructure

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Attachment(s):

No.	Description
1.	Resolution No. 2012 - 23 "A Resolution of the City Council of the City of Huntington Beach adopting the Development Impact Fee Calculation and Nexus Report for the City of Huntington Beach, and establishing new and revised Development Impact Fees."
2.	Ordinance No. 3942 "An Ordinance of the City of Huntington Beach amending the Huntington Beach Municipal Code by adding Chapter 17.75 relating to Development Impact Fees for Police Facilities ."
3.	Ordinance No. 3943 "An Ordinance of the City of Huntington Beach amending the Huntington Beach Municipal Code by adding Chapter 17.74 relating to Development Impact Fees for Fire Facilities."
4.	Ordinance No. 3944 "An Ordinance of the City of Huntington Beach amending Chapter 17.65 of the Huntington Beach Municipal Code relating to Traffic Impact Fees."
5.	Ordinance No. 3945 "An Ordinance of the City of Huntington Beach deleting Chapter 17.66 of the Huntington Beach Municipal Code and adding Chapter 17.67 relating to Library Development Impact Fees."
6.	Ordinance No. 3946 "An Ordinance of the City of Huntington Beach amending the Huntington Beach Municipal Code by adding Chapter 17.76 relating to Parkland Acquisition and Park Facilities Development Impact Fees."
7.	Ordinance No. 3947 "An Ordinance of the City of Huntington Beach amending the Huntington Beach Municipal Code by adding Chapter 17.73 relating to the General Provisions for Development Impact Fees."
8.	Comparison of Current vs. Proposed Development Impact Fees
9.	Master Facilities Plan, prepared by Revenue & Cost Specialists, L.L.C. October 2011, (Amended April 27, 2012)
10.	Development Impact Fee Calculation and Nexus Report, prepared by Revenue & Cost Specialists, L.L.C October 2011, (Amended April 27, 2012)

ATTACHMENT #1

RESOLUTION NO. 2012-23

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF HUNTINGTON BEACH
ADOPTING *THE DEVELOPMENT IMPACT FEE CALCULATION AND NEXUS REPORT*
FOR THE CITY OF HUNTINGTON BEACH, AND ESTABLISHING NEW AND REVISED
DEVELOPMENT IMPACT FEES FOR ALL DEVELOPMENT WITHIN THE CITY

WHEREAS, several policies within the City's General Plan require that new development mitigate its share of the impacts to the natural and built environments and be fiscally neutral so as to not result in a net economic loss for the City; and

Such General Plan policies include the maintenance of existing quality of life, maintenance of existing service levels and funding of new facilities, the requirement of new development to mitigate a fair share of its impacts, and calling for the use of impact fees to fund needed improvements to serve new development, among other policies; and

In accordance with these General Plan policies, the City Council has directed staff in the past to create development impact fees in accordance with State law. Said impact fees were codified in Chapter 17.65 and Chapter 17.66 of the Huntington Beach Municipal Code as well as Huntington Beach Zoning and Subdivision Ordinance Chapter 230.20. Pursuant to each ordinance set forth above, the amount of the development impact fee is to be set and/or updated by resolution of the City Council; and

Subsequently, and periodically, staff has conducted comprehensive reviews of the City's development impact fees to determine whether those fees are adequate to defray the cost of public facilities related to new development; those fees are set forth in Resolutions 6164, 2006-23, 2000-97, 2004-88, 99-60 and 96-71; 2002-129, 2004-88 and

The City contracted with Revenue & Cost Specialists, LLC to provide a updated comprehensive evaluation of the City's existing development impact fees; and

Revenue & Cost Specialists, LLC prepared a report, entitled *Development Impact Fee Calculation and Nexus Report for the City of Huntington Beach*, dated October, 2011 as amended April 27, 2012 (the "Nexus Report"), that provides an evaluation of existing development impact fees, recommends an increase and change in methodology in certain development impact fees, the creation of new impact fees and establishes the nexus between the imposition of such impact fees and the estimated reasonable cost of providing the service for which the fees are charged; and

The Nexus Report has been available for public review and comment; and

The Nexus Report substantiates the need for a modification to existing fees to change certain methodology as well as creation of new impact fees; and

The City has collected development impact fees to mitigate the impacts of new development, including fees for transportation, park land acquisition and development, library and other public facilities since the adoption of the respective ordinances and resolutions; and

The City Council desires to repeal certain resolutions, create and update other development impact fee resolutions in accordance with the calculations and recommendations contained in the Nexus Report; and

In compliance with the Mitigation Fee Act, California Government Code section 66000 *et seq.*, the City Council held a noticed public hearing on the proposed increase in development impact fees at its regular meeting on _____, 2012, to solicit public input on the proposed increases to development impact fees,

NOW, THEREFORE, the City Council of the City of Huntington Beach does hereby resolve as follows:

1. Findings pursuant to Government Code section 66001. The City Council finds and determines that the Nexus Report complies with California Government Code section 66001, and as to each of the proposed fees to be imposed on new development:

- (a) Identifies the purpose of the fee;
- (b) Identifies the use to which the fee will be put;
- (c) Shows a reasonable relationship between the use of the fee and the type of development project on which the fee is imposed;
- (d) Demonstrates a reasonable relationship between the need for the public facilities and the type of development projects on which the fee is imposed; and
- (e) Demonstrates a reasonable relationship between the amount of the fee and the cost of the public facilities or portion of the public facilities attributable to the development on which the fee is imposed.

2. Fees for Uses Consistent with the Nexus Report. The City Council hereby determines that the fees imposed, pursuant to this resolution shall be used solely to finance the public facilities and/or equipment and park land acquisition described or identified in the respective ordinances and Nexus Report.

3. Approval of Items in the Nexus Report. The City Council has considered the specific public facilities, equipment and park land acquisition cost estimates identified in the Nexus Report and each ordinance thereto and hereby approves such public facilities, equipment and park land acquisition cost and cost estimates and further finds that the cost estimates serve as a reasonable basis for calculating and imposing the development impact fees as set forth in the Nexus Report.

4. Consistency with General Plan. The City Council finds that the public facilities equipment and park land acquisition and fee methodology identified in the respective ordinances and Nexus Report are consistent with the City's General Plan and, in particular, those policies that require new development to mitigate its share of the impacts to City infrastructure and to be fiscally neutral.

5. Differentiation among Public Facilities. The City Council finds that the public facilities identified in the Nexus Report and funded through the collection of development impact fees recommended in the Nexus Report are separate and distinct from those public facilities funded through other fees presently imposed and collected by the City. To the extent that other fees imposed and collected by the City, including Specific Plan fees are used to fund the construction of the same public facilities identified in the respective ordinances and Nexus Report, then such other fees shall be a credit against the applicable development impact fees. Notwithstanding the above provision, this resolution shall not be deemed to affect the imposition or collection of the water and sewer connection fees authorized by the Huntington Beach Municipal Code.

6. CEQA Finding. The adoption of the Nexus Report and the increase in development impact fees are not subject to the California Environmental Quality Act in that pursuant to CEQA Guidelines, section 15378(b) (4), the creation of government funding mechanisms which do not involve any commitment to any specific project which may cause a significant effect on the environment, is not defined as a "project" under CEQA.

7. Adoption of Report. The Nexus Report as amended April 27, 2012, including Appendices, is hereby adopted.

8. Fee Imposed. The new Development Impact Fees set by this resolution shall not apply to projects that have received discretionary project entitlement approval on or before June 5, 2012 and the following milestones are met:

1. Project applicant has submitted an approved application for building permits within 180 days after the fee going into effect or no later than February 18, 2013.
2. From the time of initial building permit application, the project makes continued progress toward satisfying plan check comments.
3. Building Permits are issued within 360 days after the fees go into effect.

An exception to the above milestones is the involvement of an outside third party regulatory agency. In such cases the 180 days to make building permit application will begin when the developer receives clearance from that agency. The City Manager shall have the authority, in his/her sole discretion, to extend milestone dates for qualifying "grandfathered" projects. All other projects are subject to the fees then in effect. All existing Development Impact Fees remain in effect until final action is taken on this resolution and respective ordinances. In the event any portion of this resolution is held invalid, the previously approved development impact fee shall automatically apply.

9. Timing of Fee. The development impact fees imposed by this resolution shall be paid pursuant to the ordinances or resolution creating each separate fee. Until final action is

taken by City Council adopting the ordinances or resolution referenced herein, resolutions 6164, 2006-23, 2000-97, 99-60, 2004-88 and 96-71 shall remain in effect.

10. Amount of Fee. The City Council hereby approves and adopts the Development Impact Fees as set forth in Exhibit "A," attached hereto and incorporated herein as well as Nexus Report Schedules 3.2, 4.3, 5.2, 6.2, 7.1, 8.1, and 8.4. Exhibit A and the Nexus Report sets forth the methodology and aggregate amount imposed as a development impact fee for both residential and nonresidential land uses and also sets forth the breakdown of each development impact fee by type of facility.

The amount of the development impact fees excluding traffic impact fees shall be automatically modified annually pursuant to the the percentage of increase or decrease in the Los Angeles-Anaheim-Riverside All Urban Consumer Price Index (CPI) or any relevant successor for the Orange County area, from March to March of the preceding twelve (12) months.

Traffic impact fees shall be increased using the *Engineering News Record's* construction cost index as reported for the twelve month period ending in March of each year.

The escalator indices provided herein shall not take effect until March of 2016.

11. Use of fee. The development impact fees shall be solely used for the purposes described in the respective ordinances creating the fees and the Nexus Report.

Fees collected pursuant to existing ordinances and resolutions shall be maintained and used exclusively for those purposes and accounts for these fees shall remain in effect and shall be maintained by the City Manager or his/her designee. Fees collected under any of the categories listed in the Nexus Report may be used to finance the construction or implementation of any public facility listed in those categories to the extent that use of the fees may not exceed the percentage allocated to new development of all of the public facilities listed in the category, or sub-category.

12. Fee Determination by Type of Use.

A. Residential Development. Development impact fees for residential development shall be based upon the type of unit constructed. The development impact fee categories as shown in Exhibit A generally correspond to the City's land use designations in the land use element of the City's General Plan.

B. Nonresidential Land Uses. Development impact fees for nonresidential land uses shall be based upon the square footage of the building or other measurement detailed in the respective development impact fee ordinances. The development impact fee categories as shown in Exhibit A generally correspond to the City's land use designations in the land use element of the City's General Plan.

C. Uses Not Specified. In the event that there are land uses not specified in Exhibit A, the development impact fee for such use shall be determined by the City Manager or

his/her designee who shall determine such fee based on an analysis of the impacts of the proposed use on public facilities, equipment and/or park land.

13. Prior Resolutions Superseded. As provided herein the development impact fees approved and adopted by this resolution shall supersede and repeal any previously adopted development impact fee resolutions concerning the same, including 6164, 96-71, 99-60, 2000-97, 2004-88 and 2006-23, 2002-129, 2004-88.

14. Severability. If any action, subsection, sentence, clause or phrase of this resolution, the Nexus Report, or other attachments thereto, shall be held invalid or unconstitutional by a court of competent jurisdiction, such invalidity shall not affect the validity of the remaining portions of this resolution the Nexus Report, or other attachments thereto or fees levied by this resolution that can be given effect without the invalid provisions or application of fees. In the event any section of this resolution is held invalid the previously adopted affected fees shall be automatically reinstate as if never repealed or modified herein.

15. Effective Date. Consistent with California Government Code section 66017(a), the fees as identified in attached Exhibit "A" adopted by this resolution shall take effect sixty (60) days following final action taken on the respective ordinances or amendments thereto by the City Council.

16. Appeals. Appeals of any fees, including methodology, use, land valuation etc. created pursuant to this resolution shall be conducted as set forth in Huntington Beach Municipal Code Chapter 17.73.

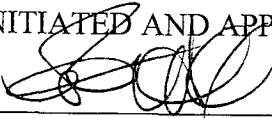
PASSED AND ADOPTED by the City Council of the City of Huntington Beach at a regular meeting thereof held on the _____ day of _____, 20____.

Mayor

REVIEWED AND APPROVED:

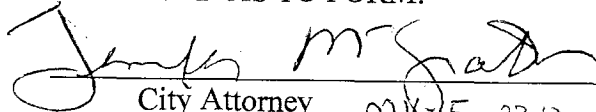
INITIATED AND APPROVED:

City Manager



Deputy City Manager

APPROVED AS TO FORM:



City Attorney MK-5-23-12

EXHIBIT A

Exhibit A: Staff Recommendation**Development Impact Fees (Effective 9/2/2012)**

Land Use	Law Enforcement Facilities*	Fire Suppression Facilities*	Circulation System (Streets, Signals, Bridges)*	Public Library Facilities	Park Land/ Open Space & Facilities (No Tract Map)*
Detached Dwelling Units (per Unit)	\$277	\$645	\$1,737	\$1,172	\$12,500
Attached Dwelling Units (per Unit)	\$571	\$267	\$1,220	\$908	\$9,685
Mobile Home Dwelling Units (per Unit)	\$258	\$1,108	\$909	\$733	\$7,818
Hotel/Motel Lodging Units (per Unit)	\$455	\$356	\$1,062	No Fee	\$459
Resort Lodging Units (per Unit)	\$532	\$794	\$1,538	No Fee	\$359
Commercial/Office Uses (per sq. ft.)	\$1.041	\$0.329	\$4.175	No Fee	\$0.954
Industrial/Manufacturing Uses (per sq. ft.)	\$0.443	\$0.030	\$1.789	No Fee	\$0.772

*Represents 70% of recommended residential land use fee set forth in the Development Impact Fee Calculation and Nexus Report, October 2011 (Amended April 27, 2012)

Development Impact Fees (Effective 9/2/2013)

Land Use	Law Enforcement Facilities*	Fire Suppression Facilities*	Circulation System (Streets, Signals, Bridges)*	Public Library Facilities	Park Land/ Open Space & Facilities (No Tract Map)*
Detached Dwelling Units (per Unit)	\$317	\$738	\$1,986	\$1,172	\$14,286
Attached Dwelling Units (per Unit)	\$652	\$306	\$1,395	\$908	\$11,068
Mobile Home Dwelling Units (per Unit)	\$295	\$1,266	\$1,039	\$733	\$8,935
Hotel/Motel Lodging Units (per Unit)	\$455	\$356	\$1,062	No Fee	\$459
Resort Lodging Units (per Unit)	\$532	\$794	\$1,538	No Fee	\$359
Commercial/Office Uses (per sq. ft.)	\$1.041	\$0.329	\$4.175	No Fee	\$0.954
Industrial/Manufacturing Uses (per sq. ft.)	\$0.443	\$0.030	\$1.789	No Fee	\$0.772

*Represents 80% of recommended residential land use fee set forth in the Development Impact Fee Calculation and Nexus Report, October 2011 (Amended April 27, 2012)

Exhibit A: Staff Recommendation**Development Impact Fees (Effective 9/2/2014)**

<i>Land Use</i>	Law Enforcement Facilities*	Fire Suppression Facilities*	Circulation System (Streets, Signals, Bridges)*	Public Library Facilities	Park Land/ Open Space & Facilities (No Tract Map)*
Detached Dwelling Units (per Unit)	\$356	\$830	\$2,226	\$1,172	\$16,071
Attached Dwelling Units (per Unit)	\$734	\$344	\$1,563	\$908	\$12,452
Mobile Home Dwelling Units (per Unit)	\$332	\$1,425	\$1,165	\$733	\$10,052
Hotel/Motel Lodging Units (per Unit)	\$455	\$356	\$1,062	No Fee	\$459
Resort Lodging Units (per Unit)	\$532	\$794	\$1,538	No Fee	\$359
Commercial/Office Uses (per sq. ft.)	\$1.041	\$0.329	\$4.175	No Fee	\$0.954
Industrial/Manufacturing Uses (per sq. ft.)	\$0.443	\$0.030	\$1.789	No Fee	\$0.772

*Represents 90% of recommended residential land use fee set forth in the Development Impact Fee Calculation and Nexus Report, October 2011 (Amended April 27, 2012)

Exhibit A: Staff Recommendation**Schedule of Rates for Traffic Impact Fees (Effective 9/2/2012)**

Land Use	Adjusted Trip Ends	Average Distance	Trip-end to Trip	Additional Trip Miles	Cost per Trip Mile	Cost per 1000 sq. ft, dwelling unit or other unit	
RESIDENTIAL LAND USES (per Unit)							
Detached Dwelling Unit	8.76	7.9	0.5	34.6	\$ 50.22	\$ 1,737.61	/Unit
Apartment	6.15	7.9	0.5	24.3	\$ 50.22	\$ 1,220.35	/Unit
Condominium/Townhouse	5.36	7.9	0.5	21.2	\$ 50.22	\$ 1,064.66	/Unit
Mobile Home Dwelling	4.57	7.9	0.5	18.1	\$ 50.22	\$ 908.98	/Unit
RESORT/TOURIST (per Unit or Entry Door)							
Hotel	6.29	7.6	0.5	23.9	\$ 64.34	\$ 1,537.73	/Room
All Suites Hotel	3.77	7.6	0.5	14.3	\$ 64.34	\$ 920.06	/Room
Motel	4.34	7.6	0.5	16.5	\$ 64.34	\$ 1,061.61	/Room
INDUSTRIAL (per 1,000 SF)							
General Light Industrial	6.17	9.0	0.5	27.8	\$ 64.34	\$ 1,788.65	/1,000 sf
Heavy Industrial	5.97	9.0	0.5	26.9	\$ 64.34	\$ 1,730.75	/1,000 sf
Manufacturing	2.73	9.0	0.5	12.3	\$ 64.34	\$ 791.38	/1,000 sf
Warehousing	4.39	9.0	0.5	19.8	\$ 64.34	\$ 1,273.93	/1,000 sf
COMMERCIAL (per 1,000 SF)							
Office Park	7.42	8.8	0.5	32.6	\$ 64.34	\$ 2,097.48	/1,000 sf
Research Park	5.01	8.8	0.5	22.0	\$ 64.34	\$ 1,415.48	/1,000 sf
Business Park	9.34	8.8	0.5	41.1	\$ 64.34	\$ 2,644.37	/1,000 sf
Bldg. Materials/Lumber Store	29.35	4.3	0.5	63.1	\$ 64.34	\$ 4,059.85	/1,000 sf
Garden Center	23.45	4.3	0.5	50.4	\$ 64.34	\$ 3,242.74	/1,000 sf
Movie Theater	2.47	4.3	0.5	5.3	\$ 64.34	\$ 341.00	/1,000 sf
Church	5.92	4.3	0.5	12.7	\$ 64.34	\$ 817.12	/1,000 sf
Medical-Dental Office	22.21	8.8	0.5	97.7	\$ 64.34	\$ 6,286.02	/1,000 sf
General Office Building	7.16	8.8	0.5	31.5	\$ 64.34	\$ 2,026.71	/1,000 sf
Shopping Center	30.2	4.3	0.5	64.9	\$ 64.34	\$ 4,175.67	/1,000 sf
Hospital	11.42	4.3	0.5	24.6	\$ 64.34	\$ 1,582.76	/1,000 sf
Discount Center	62.93	4.3	0.5	135.3	\$ 64.34	\$ 8,705.20	/1,000 sf
High-Turnover Restaurant	8.9	4.3	0.5	19.1	\$ 64.34	\$ 1,228.89	/1,000 sf
Convenience Market	43.57	4.3	0.5	93.7	\$ 64.34	\$ 6,028.66	/1,000 sf
Office Park	13.97	4.3	0.5	30.0	\$ 64.34	\$ 1,930.20	/1,000 sf
OTHER (as noted)							
Cemetery	3.07	4.3	0.5	6.6	\$ 64.34	\$ 424.64	/Acre
Service Station/Market (avg)	107.69	4.3	0.5	231.5	\$ 64.34	\$ 14,894.71	/Fuel Position
Service Station w/Car Wash	99.35	4.3	0.5	213.6	\$ 64.34	\$ 13,743.02	/Fuel Position

Exhibit A: Staff Recommendation

Schedule of Rates for Traffic Impact Fees (Effective 9/2/2013)

Land Use	Adjusted Trip Ends	Average Distance	Trip-end to Trip	Additional Trip Miles	Cost per Trip Mile	Cost per 1000 sq. ft, dwelling unit or other unit	
RESIDENTIAL LAND USES (per Unit)							
Detached Dwelling Unit	8.76	7.9	0.5	34.6	\$ 57.39	\$ 1,985.69	/Unit
Apartment	6.15	7.9	0.5	24.3	\$ 57.39	\$ 1,394.58	/Unit
Condominium/ Townhouse	5.36	7.9	0.5	21.2	\$ 57.39	\$ 1,216.67	/Unit
Mobile Home Dwelling	4.57	7.9	0.5	18.1	\$ 57.39	\$ 1,038.76	/Unit
RESORT/TOURIST (per Unit or Entry Door)							
Hotel	6.29	7.6	0.5	23.9	\$ 64.34	\$ 1,537.73	/Room
All Suites Hotel	3.77	7.6	0.5	14.3	\$ 64.34	\$ 920.06	/Room
Motel	4.34	7.6	0.5	16.5	\$ 64.34	\$ 1,061.61	/Room
INDUSTRIAL (per 1,000 SF)							
General Light Industrial	6.17	9.0	0.5	27.8	\$ 64.34	\$ 1,788.65	/1,000 sf
Heavy Industrial	5.97	9.0	0.5	26.9	\$ 64.34	\$ 1,730.75	/1,000 sf
Manufacturing	2.73	9.0	0.5	12.3	\$ 64.34	\$ 791.38	/1,000 sf
Warehousing	4.39	9.0	0.5	19.8	\$ 64.34	\$ 1,273.93	/1,000 sf
COMMERCIAL (per 1,000 SF)							
Office Park	7.42	8.8	0.5	32.6	\$ 64.34	\$ 2,097.48	/1,000 sf
Research Park	5.01	8.8	0.5	22.0	\$ 64.34	\$ 1,415.48	/1,000 sf
Business Park	9.34	8.8	0.5	41.1	\$ 64.34	\$ 2,644.37	/1,000 sf
Bldg. Materials/Lumber Store	29.35	4.3	0.5	63.1	\$ 64.34	\$ 4,059.85	/1,000 sf
Garden Center	23.45	4.3	0.5	50.4	\$ 64.34	\$ 3,242.74	/1,000 sf
Movie Theater	2.47	4.3	0.5	5.3	\$ 64.34	\$ 341.00	/1,000 sf
Church	5.92	4.3	0.5	12.7	\$ 64.34	\$ 817.12	/1,000 sf
Medical-Dental Office	22.21	8.8	0.5	97.7	\$ 64.34	\$ 6,286.02	/1,000 sf
General Office Building	7.16	8.8	0.5	31.5	\$ 64.34	\$ 2,026.71	/1,000 sf
Shopping Center	30.2	4.3	0.5	64.9	\$ 64.34	\$ 4,175.67	/1,000 sf
Hospital	11.42	4.3	0.5	24.6	\$ 64.34	\$ 1,582.76	/1,000 sf
Discount Center	62.93	4.3	0.5	135.3	\$ 64.34	\$ 8,705.20	/1,000 sf
High-Turnover Restaurant	8.9	4.3	0.5	19.1	\$ 64.34	\$ 1,228.89	/1,000 sf
Convenience Market	43.57	4.3	0.5	93.7	\$ 64.34	\$ 6,028.66	/1,000 sf
Office Park	13.97	4.3	0.5	30.0	\$ 64.34	\$ 1,930.20	/1,000 sf
OTHER (as noted)							
Cemetery	3.07	4.3	0.5	6.6	\$ 64.34	\$ 424.64	/Acre
Service Station/Market (avg)	107.69	4.3	0.5	231.5	\$ 64.34	\$ 14,894.71	/Fuel Position
Service Station w/Car Wash	99.35	4.3	0.5	213.6	\$ 64.34	\$ 13,743.02	/Fuel Position

Exhibit A: Staff Recommendation**Schedule of Rates for Traffic Impact Fees (Effective 9/2/2014)**

Land Use	Adjusted Trip Ends	Average Distance	Trip-end to Trip	Additional Trip Miles	Cost per Trip Mile	Cost per 1000 sq. ft, dwelling unit or other unit	
RESIDENTIAL LAND USES (per Unit)							
Detached Dwelling Unit	8.76	7.9	0.5	34.6	\$ 64.34	\$ 2,226.16	/Unit
Apartment	6.15	7.9	0.5	24.3	\$ 64.34	\$ 1,563.46	/Unit
Condominium/ Townhouse	5.36	7.9	0.5	21.2	\$ 64.34	\$ 1,364.01	/Unit
Mobile Home Dwelling	4.57	7.9	0.5	18.1	\$ 64.34	\$ 1,164.55	/Unit
RESORT/TOURIST (per Unit or Entry Door)							
Hotel	6.29	7.6	0.5	23.9	\$ 64.34	\$ 1,537.73	/Room
All Suites Hotel	3.77	7.6	0.5	14.3	\$ 64.34	\$ 920.06	/Room
Motel	4.34	7.6	0.5	16.5	\$ 64.34	\$ 1,061.61	/Room
INDUSTRIAL (per 1,000 SF)							
General Light Industrial	6.17	9.0	0.5	27.8	\$ 64.34	\$ 1,788.65	/1,000 sf
Heavy Industrial	5.97	9.0	0.5	26.9	\$ 64.34	\$ 1,730.75	/1,000 sf
Manufacturing	2.73	9.0	0.5	12.3	\$ 64.34	\$ 791.38	/1,000 sf
Warehousing	4.39	9.0	0.5	19.8	\$ 64.34	\$ 1,273.93	/1,000 sf
COMMERCIAL (per 1,000 SF)							
Office Park	7.42	8.8	0.5	32.6	\$ 64.34	\$ 2,097.48	/1,000 sf
Research Park	5.01	8.8	0.5	22.0	\$ 64.34	\$ 1,415.48	/1,000 sf
Business Park	9.34	8.8	0.5	41.1	\$ 64.34	\$ 2,644.37	/1,000 sf
Bldg. Materials/Lumber Store	29.35	4.3	0.5	63.1	\$ 64.34	\$ 4,059.85	/1,000 sf
Garden Center	23.45	4.3	0.5	50.4	\$ 64.34	\$ 3,242.74	/1,000 sf
Movie Theater	2.47	4.3	0.5	5.3	\$ 64.34	\$ 341.00	/1,000 sf
Church	5.92	4.3	0.5	12.7	\$ 64.34	\$ 817.12	/1,000 sf
Medical-Dental Office	22.21	8.8	0.5	97.7	\$ 64.34	\$ 6,286.02	/1,000 sf
General Office Building	7.16	8.8	0.5	31.5	\$ 64.34	\$ 2,026.71	/1,000 sf
Shopping Center	30.2	4.3	0.5	64.9	\$ 64.34	\$ 4,175.67	/1,000 sf
Hospital	11.42	4.3	0.5	24.6	\$ 64.34	\$ 1,582.76	/1,000 sf
Discount Center	62.93	4.3	0.5	135.3	\$ 64.34	\$ 8,705.20	/1,000 sf
High-Turnover Restaurant	8.9	4.3	0.5	19.1	\$ 64.34	\$ 1,228.89	/1,000 sf
Convenience Market	43.57	4.3	0.5	93.7	\$ 64.34	\$ 6,028.66	/1,000 sf
Office Park	13.97	4.3	0.5	30.0	\$ 64.34	\$ 1,930.20	/1,000 sf
OTHER (as noted)							
Cemetery	3.07	4.3	0.5	6.6	\$ 64.34	\$ 424.64	/Acre
Service Station/Market (avg)	107.69	4.3	0.5	231.5	\$ 64.34	\$ 14,894.71	/Fuel Position
Service Station w/Car Wash	99.35	4.3	0.5	213.6	\$ 64.34	\$ 13,743.02	/Fuel Position

EXHIBIT A-1

Development Impact Fees (Current)

<i>Land Use</i>	Law Enforcement Facilities	Fire Suppression Facilities	Circulation System (Streets, Signals, Bridges)	Public Library Facilities	Park Land/ Open Space & Facilities (No Tract Map)
Detached Dwelling Units (per Unit)	No Fee	No Fee	\$1,720	\$0.44/SF	\$0.86SF
Attached Dwelling Units (per Unit)	No Fee	No Fee	\$1,548	\$0.44/SF	\$0.86SF
Mobile Home Dwelling Units (per Unit)	No Fee	No Fee	\$1,032	\$0.44/SF	No Fee
Hotel/Motel Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23SF
Resort Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23SF
Commercial/Office Uses (per sq. ft.)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23SF
Industrial/Manufacturing Uses (per sq. ft.)	No Fee	No Fee	\$1.061	\$0.04/SF	\$0.23SF

Development Impact Fees (Effective 9/2/2014)

<i>Land Use</i>	Law Enforcement Facilities*	Fire Suppression Facilities*	Circulation System (Streets, Signals, Bridges)*	Public Library Facilities	Park Land/ Open Space & Facilities (No Tract Map)*
Detached Dwelling Units (per Unit)	\$356	\$830	\$2,226	\$1,172	\$16,071
Attached Dwelling Units (per Unit)	\$734	\$344	\$1,563	\$908	\$12,452
Mobile Home Dwelling Units (per Unit)	\$332	\$1,425	\$1,165	\$733	\$10,052
Hotel/Motel Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23SF
Resort Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23SF
Commercial/Office Uses (per sq. ft.)	\$1.041	\$0.329	\$4.175	No Fee	\$0.954
Industrial/Manufacturing Uses (per sq. ft.)	\$0.443	\$0.030	\$1.789	No Fee	\$0.772

*Represents 90% of recommended residential land use fee set forth in the Development Impact Fee Calculation and Nexus Report, October 2011 (Amended April 27, 2012)

Exhibit A-1 Hansen-Alternative Fee Schedule No. 1**Schedule of Rates for Traffic Impact Fees (Effective 9/2/2014)**

Land Use	Adjusted Trip Ends	Average Distance	Trip-end to Trip	Additional Trip Miles	Cost per Trip Mile	Cost per 1000 sq. ft, dwelling unit or other unit	
RESIDENTIAL LAND USES (per Unit)							
Detached Dwelling Unit	8.76	7.9	0.5	34.6	\$ 64.34	\$ 2,226.16	/Unit
Apartment	6.15	7.9	0.5	24.3	\$ 64.34	\$ 1,563.46	/Unit
Condominium/ Townhouse	5.36	7.9	0.5	21.2	\$ 64.34	\$ 1,364.01	/Unit
Mobile Home Dwelling	4.57	7.9	0.5	18.1	\$ 64.34	\$ 1,164.55	/Unit
RESORT/TOURIST (per Unit or Entry Door)							
Hotel	6.29	7.6	0.5	23.9	\$ 64.34	\$ 1,537.73	/Room
All Suites Hotel	3.77	7.6	0.5	14.3	\$ 64.34	\$ 920.06	/Room
Motel	4.34	7.6	0.5	16.5	\$ 64.34	\$ 1,061.61	/Room
INDUSTRIAL (per 1,000 SF)							
General Light Industrial	6.17	9.0	0.5	27.8	\$ 64.34	\$ 1,788.65	/1,000 sf
Heavy Industrial	5.97	9.0	0.5	26.9	\$ 64.34	\$ 1,730.75	/1,000 sf
Manufacturing	2.73	9.0	0.5	12.3	\$ 64.34	\$ 791.38	/1,000 sf
Warehousing	4.39	9.0	0.5	19.8	\$ 64.34	\$ 1,273.93	/1,000 sf
COMMERCIAL (per 1,000 SF)							
Office Park	7.42	8.8	0.5	32.6	\$ 64.34	\$ 2,097.48	/1,000 sf
Research Park	5.01	8.8	0.5	22.0	\$ 64.34	\$ 1,415.48	/1,000 sf
Business Park	9.34	8.8	0.5	41.1	\$ 64.34	\$ 2,644.37	/1,000 sf
Bldg. Materials/Lumber Store	29.35	4.3	0.5	63.1	\$ 64.34	\$ 4,059.85	/1,000 sf
Garden Center	23.45	4.3	0.5	50.4	\$ 64.34	\$ 3,242.74	/1,000 sf
Movie Theater	2.47	4.3	0.5	5.3	\$ 64.34	\$ 341.00	/1,000 sf
Church	5.92	4.3	0.5	12.7	\$ 64.34	\$ 817.12	/1,000 sf
Medical-Dental Office	22.21	8.8	0.5	97.7	\$ 64.34	\$ 6,286.02	/1,000 sf
General Office Building	7.16	8.8	0.5	31.5	\$ 64.34	\$ 2,026.71	/1,000 sf
Shopping Center	30.2	4.3	0.5	64.9	\$ 64.34	\$ 4,175.67	/1,000 sf
Hospital	11.42	4.3	0.5	24.6	\$ 64.34	\$ 1,582.76	/1,000 sf
Discount Center	62.93	4.3	0.5	135.3	\$ 64.34	\$ 8,705.20	/1,000 sf
High-Turnover Restaurant	8.9	4.3	0.5	19.1	\$ 64.34	\$ 1,228.89	/1,000 sf
Convenience Market	43.57	4.3	0.5	93.7	\$ 64.34	\$ 6,028.66	/1,000 sf
Office Park	13.97	4.3	0.5	30.0	\$ 64.34	\$ 1,930.20	/1,000 sf
OTHER (as noted)							
Cemetery	3.07	4.3	0.5	6.6	\$ 64.34	\$ 424.64	/Acre
Service Station/Market (avg)	107.69	4.3	0.5	231.5	\$ 64.34	\$ 14,894.71	/Fuel Position
Service Station w/Car Wash	99.35	4.3	0.5	213.6	\$ 64.34	\$ 13,743.02	/Fuel Position

EXHIBIT A-2

Development Impact Fees (Effective 9/2/2012) 25%, 20%

<i>Land Use</i>	Law Enforcement Facilities	Fire Suppression Facilities	Circulation System (Streets, Signals, Bridges)	Public Library Facilities	Park Land/ Open Space & Facilities (No Tract Map)
Detached Dwelling Units (per Unit)	\$99	\$231	\$1,751	\$1,085	\$5,223
Attached Dwelling Units (per Unit)	\$204	\$96	\$1,208	\$491	\$3,386
Mobile Home Dwelling Units (per Unit)	\$92	\$396	\$914	\$460	\$2,969
Hotel/Motel Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23/SF
Resort Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23/SF
Commercial/Office Uses (per sq. ft.)	\$0.260	\$0.082	\$4.175	No Fee	\$0.375
Industrial/Manufacturing Uses (per sq. ft.)	\$0.111	\$0.008	\$1.243	No Fee	\$0.338

Development Impact Fees (Effective 9/2/2013) 50%, 40%

<i>Land Use</i>	Law Enforcement Facilities	Fire Suppression Facilities	Circulation System (Streets, Signals, Bridges)	Public Library Facilities	Park Land/ Open Space & Facilities (No Tract Map)
Detached Dwelling Units (per Unit)	\$198	\$461	\$1,995	\$1,114	\$8,381
Attached Dwelling Units (per Unit)	\$408	\$191	\$1,358	\$630	\$5,998
Mobile Home Dwelling Units (per Unit)	\$185	\$792	\$1,043	\$551	\$5,019
Hotel/Motel Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23/SF
Resort Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23/SF
Commercial/Office Uses (per sq. ft.)	\$0.521	\$0.165	\$4.175	No Fee	\$0.520
Industrial/Manufacturing Uses (per sq. ft.)	\$0.222	\$0.015	\$1.425	No Fee	\$0.447

Development Impact Fees (Effective 9/2/2014) 75%, 60%

<i>Land Use</i>	Law Enforcement Facilities	Fire Suppression Facilities	Circulation System (Streets, Signals, Bridges)	Public Library Facilities	Park Land/ Open Space & Facilities (No Tract Map)
Detached Dwelling Units (per Unit)	\$297	\$692	\$2,238	\$1,143	\$11,540
Attached Dwelling Units (per Unit)	\$611	\$287	\$1,507	\$769	\$8,611
Mobile Home Dwelling Units (per Unit)	\$277	\$1,187	\$1,171	\$642	\$7,069
Hotel/Motel Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23/SF
Resort Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23/SF
Commercial/Office Uses (per sq. ft.)	\$0.781	\$0.247	\$4.175	No Fee	\$0.664
Industrial/Manufacturing Uses (per sq. ft.)	\$0.332	\$0.023	\$1.607	No Fee	\$0.555

Development Impact Fees (Effective 9/2/2015) 100%, 80%

<i>Land Use</i>	Law Enforcement Facilities	Fire Suppression Facilities	Circulation System (Streets, Signals, Bridges)	Public Library Facilities	Park Land/ Open Space & Facilities (No Tract Map)
Detached Dwelling Units (per Unit)	\$396	\$922	\$2,482	\$1,172	\$14,698
Attached Dwelling Units (per Unit)	\$815	\$382	\$1,657	\$908	\$11,223
Mobile Home Dwelling Units (per Unit)	\$369	\$1,583	\$1,299	\$733	\$9,119
Hotel/Motel Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23/SF
Resort Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23/SF
Commercial/Office Uses (per sq. ft.)	\$1.041	\$0.329	\$4.175	No Fee	\$0.809
Industrial/Manufacturing Uses (per sq. ft.)	\$0.443	\$0.030	\$1.789	No Fee	\$0.664

Development Impact Fees (Effective 9/2/2016) 100%, 100%

<i>Land Use</i>	Law Enforcement Facilities	Fire Suppression Facilities	Circulation System (Streets, Signals, Bridges)	Public Library Facilities	Park Land/ Open Space & Facilities (No Tract Map)
Detached Dwelling Units (per Unit)	\$396	\$922	\$2,482	\$1,172	\$17,857
Attached Dwelling Units (per Unit)	\$815	\$382	\$1,657	\$908	\$13,835
Mobile Home Dwelling Units (per Unit)	\$369	\$1,583	\$1,299	\$733	\$11,169
Hotel/Motel Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23/SF
Resort Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23/SF
Commercial/Office Uses (per sq. ft.)	\$1.041	\$0.329	\$4.175	No Fee	\$0.954
Industrial/Manufacturing Uses (per sq. ft.)	\$0.443	\$0.030	\$1.789	No Fee	\$0.772

Schedule of Rates for Traffic Impact Fees (Effective 9/2/2012)

Land Use	Adjusted Trip Ends	Average Distance	Trip-end to Trip	Additional Trip Miles	Cost per Trip Mile	Cost per 1000 sq. ft, dwelling unit or other unit	25% Increase Scenario Cost per 1000 sq. ft, dwelling unit or other unit
RESIDENTIAL LAND USES (per Unit)							
Detached Dwelling Unit	8.76	7.9	0.5	34.6	\$ 50.22	\$ 1,737.61 /Unit	\$ 1,686.58 /Unit
Apartment	6.15	7.9	0.5	24.3	\$ 50.22	\$ 1,220.35 /Unit	\$ 1,184.22 /Unit
Condominium/Townhouse	5.36	7.9	0.5	21.2	\$ 50.22	\$ 1,064.66 /Unit	\$ 1,032.44 /Unit
Mobile Home Dwelling	4.57	7.9	0.5	18.1	\$ 50.22	\$ 908.98 /Unit	\$ 880.67 /Unit
RESORT/TOURIST (per Unit or Entry Door)							
Hotel	6.29	7.6	0.5	23.9	\$ 64.34	\$ 1,537.73 /Room	\$ 1,195.84 /Room
All Suites Hotel	3.77	7.6	0.5	14.3	\$ 64.34	\$ 920.06 /Room	\$ 716.35 /Room
Motel	4.34	7.6	0.5	16.5	\$ 64.34	\$ 1,061.61 /Room	\$ 825.26 /Room
INDUSTRIAL (per 1,000 SF)							
General Light Industrial	6.17	9.0	0.5	27.8	\$ 64.34	\$ 1,788.65 /1,000 sf	\$ 1,243.09 /1,000 sf
Heavy Industrial	5.97	9.0	0.5	26.9	\$ 64.34	\$ 1,730.75 /1,000 sf	\$ 1,202.82 /1,000 sf
Manufacturing	2.73	9.0	0.5	12.3	\$ 64.34	\$ 791.38 /1,000 sf	\$ 550.02 /1,000 sf
Warehousing	4.39	9.0	0.5	19.8	\$ 64.34	\$ 1,273.93 /1,000 sf	\$ 884.79 /1,000 sf
COMMERCIAL (per 1,000 SF)							
Office Park	7.42	8.8	0.5	32.6	\$ 64.34	\$ 2,097.48 /1,000 sf	\$ 1,481.55 /1,000 sf
Research Park	5.01	8.8	0.5	22.0	\$ 64.34	\$ 1,415.48 /1,000 sf	\$ 1,000.16 /1,000 sf
Business Park	9.34	8.8	0.5	41.1	\$ 64.34	\$ 2,644.37 /1,000 sf	\$ 1,865.95 /1,000 sf
Bldg. Materials/Lumber Store	29.35	4.3	0.5	63.1	\$ 64.34	\$ 4,059.85 /1,000 sf	\$ 4,059.85 /1,000 sf
Garden Center	23.45	4.3	0.5	50.4	\$ 64.34	\$ 3,242.74 /1,000 sf	\$ 3,242.74 /1,000 sf
Movie Theater	2.47	4.3	0.5	5.3	\$ 64.34	\$ 341.00 /1,000 sf	\$ 341.00 /1,000 sf
Church	5.92	4.3	0.5	12.7	\$ 64.34	\$ 817.12 /1,000 sf	\$ 817.12 /1,000 sf
Medical-Dental Office	22.21	8.8	0.5	97.7	\$ 64.34	\$ 6,286.02 /1,000 sf	\$ 4,436.59 /1,000 sf
General Office Building	7.16	8.8	0.5	31.5	\$ 64.34	\$ 2,026.71 /1,000 sf	\$ 1,430.32 /1,000 sf
Shopping Center	30.2	4.3	0.5	64.9	\$ 64.34	\$ 4,175.67 /1,000 sf	\$ 4,175.67 /1,000 sf
Hospital	11.42	4.3	0.5	24.6	\$ 64.34	\$ 1,582.76 /1,000 sf	\$ 1,582.76 /1,000 sf
Discount Center	62.93	4.3	0.5	135.3	\$ 64.34	\$ 8,705.20 /1,000 sf	\$ 8,705.20 /1,000 sf
High-Turnover Restaurant	8.9	4.3	0.5	19.1	\$ 64.34	\$ 1,228.89 /1,000 sf	\$ 1,228.89 /1,000 sf
Convenience Market	43.57	4.3	0.5	93.7	\$ 64.34	\$ 6,028.66 /1,000 sf	\$ 6,028.66 /1,000 sf
Office Park	13.97	4.3	0.5	30.0	\$ 64.34	\$ 1,930.20 /1,000 sf	\$ 1,930.20 /1,000 sf
OTHER (as noted)							
Cemetery	3.07	4.3	0.5	6.6	\$ 64.34	\$ 424.64 /Acre	\$ 424.64 /Acre
Service Station/Market (avg)	107.69	4.3	0.5	231.5	\$ 64.34	\$ 14,894.71 /Fuel Position	\$ 14,894.71 /Fuel Position
Service Station w/Car Wash	99.35	4.3	0.5	213.6	\$ 64.34	\$ 13,743.02 /Fuel Position	\$ 13,743.02 /Fuel Position

Exhibit A-2 Dwyer-Alternative Fee Schedule No. 2

Schedule of Rates for Traffic Impact Fees (Effective 9/2/2013)

Land Use	Adjusted Trip Ends	Average Distance	Trip-end to Trip	Additional Trip Miles	Cost per Trip Mile	Cost per 1000 sq. ft, dwelling unit or other unit	50% Increase Scenario Cost per 1000 sq. ft, dwelling unit or other unit
RESIDENTIAL LAND USES (per Unit)							
Detached Dwelling Unit	8.76	7.9	0.5	34.6	\$ 57.39	\$ 1,985.69 /Unit	\$ 1,866.44 /Unit
Apartment	6.15	7.9	0.5	24.3	\$ 57.39	\$ 1,394.58 /Unit	\$ 1,310.63 /Unit
Condominium/Townhouse	5.36	7.9	0.5	21.2	\$ 57.39	\$ 1,216.67 /Unit	\$ 1,142.96 /Unit
Mobile Home Dwelling	4.57	7.9	0.5	18.1	\$ 57.39	\$ 1,038.76 /Unit	\$ 975.30 /Unit
RESORT/TOURIST (per Unit or Entry Door)							
Hotel	6.29	7.6	0.5	23.9	\$ 64.34	\$ 1,537.73 /Room	\$ 1,309.80 /Room
All Suites Hotel	3.77	7.6	0.5	14.3	\$ 64.34	\$ 920.06 /Room	\$ 784.25 /Room
Motel	4.34	7.6	0.5	16.5	\$ 64.34	\$ 1,061.61 /Room	\$ 904.05 /Room
INDUSTRIAL (per 1,000 SF)							
General Light Industrial	6.17	9.0	0.5	27.8	\$ 64.34	\$ 1,788.65 /1,000 sf	\$ 1,424.95 /1,000 sf
Heavy Industrial	5.97	9.0	0.5	26.9	\$ 64.34	\$ 1,730.75 /1,000 sf	\$ 1,378.79 /1,000 sf
Manufacturing	2.73	9.0	0.5	12.3	\$ 64.34	\$ 791.38 /1,000 sf	\$ 630.47 /1,000 sf
Warehousing	4.39	9.0	0.5	19.8	\$ 64.34	\$ 1,273.93 /1,000 sf	\$ 1,014.51 /1,000 sf
COMMERCIAL (per 1,000 SF)							
Office Park	7.42	8.8	0.5	32.6	\$ 64.34	\$ 2,097.48 /1,000 sf	\$ 1,686.86 /1,000 sf
Research Park	5.01	8.8	0.5	22.0	\$ 64.34	\$ 1,415.48 /1,000 sf	\$ 1,138.60 /1,000 sf
Business Park	9.34	8.8	0.5	41.1	\$ 64.34	\$ 2,644.37 /1,000 sf	\$ 2,125.43 /1,000 sf
Bldg. Materials/Lumber Store	29.35	4.3	0.5	63.1	\$ 64.34	\$ 4,059.85 /1,000 sf	\$ 4,059.85 /1,000 sf
Garden Center	23.45	4.3	0.5	50.4	\$ 64.34	\$ 3,242.74 /1,000 sf	\$ 3,242.74 /1,000 sf
Movie Theater	2.47	4.3	0.5	5.3	\$ 64.34	\$ 341.00 /1,000 sf	\$ 341.00 /1,000 sf
Church	5.92	4.3	0.5	12.7	\$ 64.34	\$ 817.12 /1,000 sf	\$ 817.12 /1,000 sf
Medical-Dental Office	22.21	8.8	0.5	97.7	\$ 64.34	\$ 6,286.02 /1,000 sf	\$ 5,053.07 /1,000 sf
General Office Building	7.16	8.8	0.5	31.5	\$ 64.34	\$ 2,026.71 /1,000 sf	\$ 1,629.12 /1,000 sf
Shopping Center	30.2	4.3	0.5	64.9	\$ 64.34	\$ 4,175.67 /1,000 sf	\$ 4,175.67 /1,000 sf
Hospital	11.42	4.3	0.5	24.6	\$ 64.34	\$ 1,582.76 /1,000 sf	\$ 1,582.76 /1,000 sf
Discount Center	62.93	4.3	0.5	135.3	\$ 64.34	\$ 8,705.20 /1,000 sf	\$ 8,705.20 /1,000 sf
High-Turnover Restaurant	8.9	4.3	0.5	19.1	\$ 64.34	\$ 1,228.89 /1,000 sf	\$ 1,228.89 /1,000 sf
Convenience Market	43.57	4.3	0.5	93.7	\$ 64.34	\$ 6,028.66 /1,000 sf	\$ 6,028.66 /1,000 sf
Office Park	13.97	4.3	0.5	30.0	\$ 64.34	\$ 1,930.20 /1,000 sf	\$ 1,930.20 /1,000 sf
OTHER (as noted)							
Cemetery	3.07	4.3	0.5	6.6	\$ 64.34	\$ 424.64 /Acre	\$ 424.64 /Acre
Service Station/Market (avg)	107.69	4.3	0.5	231.5	\$ 64.34	\$ 14,894.71 /Fuel Position	\$ 14,894.71 /Fuel Position
Service Station w/Car Wash	99.35	4.3	0.5	213.6	\$ 64.34	\$ 13,743.02 /Fuel Position	\$ 13,743.02 /Fuel Position

Exhibit A-2 Dwyer-Alternative Fee Schedule No. 2

Schedule of Rates for Traffic Impact Fees (Effective 9/2/2014)

Land Use	Adjusted Trip Ends	Average Distance	Trip-end to Trip	Additional Trip Miles	Cost per Trip Mile	Cost per 1000 sq. ft, dwelling unit or other unit	75% Increase Scenario Cost per 1000 sq. ft, dwelling unit or other unit
RESIDENTIAL LAND USES (per Unit)							
Detached Dwelling Unit	8.76	7.9	0.5	34.6	\$ 64.34	\$ 2,226.16 /Unit	\$ 2,046.30 /Unit
Apartment	6.15	7.9	0.5	24.3	\$ 64.34	\$ 1,563.46 /Unit	\$ 1,437.05 /Unit
Condominium/Townhouse	5.36	7.9	0.5	21.2	\$ 64.34	\$ 1,364.01 /Unit	\$ 1,253.49 /Unit
Mobile Home Dwelling	4.57	7.9	0.5	18.1	\$ 64.34	\$ 1,164.55 /Unit	\$ 1,069.93 /Unit
RESORT/TOURIST (per Unit or Entry Door)							
Hotel	6.29	7.6	0.5	23.9	\$ 64.34	\$ 1,537.73 /Room	\$ 1,423.76 /Room
All Suites Hotel	3.77	7.6	0.5	14.3	\$ 64.34	\$ 920.06 /Room	\$ 852.16 /Room
Motel	4.34	7.6	0.5	16.5	\$ 64.34	\$ 1,061.61 /Room	\$ 982.83 /Room
INDUSTRIAL (per 1,000 SF)							
General Light Industrial	6.17	9.0	0.5	27.8	\$ 64.34	\$ 1,788.65 /1,000 sf	\$ 1,606.80 /1,000 sf
Heavy Industrial	5.97	9.0	0.5	26.9	\$ 64.34	\$ 1,730.75 /1,000 sf	\$ 1,554.77 /1,000 sf
Manufacturing	2.73	9.0	0.5	12.3	\$ 64.34	\$ 791.38 /1,000 sf	\$ 710.93 /1,000 sf
Warehousing	4.39	9.0	0.5	19.8	\$ 64.34	\$ 1,273.93 /1,000 sf	\$ 1,144.22 /1,000 sf
COMMERCIAL (per 1,000 SF)							
Office Park	7.42	8.8	0.5	32.6	\$ 64.34	\$ 2,097.48 /1,000 sf	\$ 1,892.17 /1,000 sf
Research Park	5.01	8.8	0.5	22.0	\$ 64.34	\$ 1,415.48 /1,000 sf	\$ 1,277.04 /1,000 sf
Business Park	9.34	8.8	0.5	41.1	\$ 64.34	\$ 2,644.37 /1,000 sf	\$ 2,384.90 /1,000 sf
Bldg. Materials/Lumber Store	29.35	4.3	0.5	63.1	\$ 64.34	\$ 4,059.85 /1,000 sf	\$ 4,059.85 /1,000 sf
Garden Center	23.45	4.3	0.5	50.4	\$ 64.34	\$ 3,242.74 /1,000 sf	\$ 3,242.74 /1,000 sf
Movie Theater	2.47	4.3	0.5	5.3	\$ 64.34	\$ 341.00 /1,000 sf	\$ 341.00 /1,000 sf
Church	5.92	4.3	0.5	12.7	\$ 64.34	\$ 817.12 /1,000 sf	\$ 817.12 /1,000 sf
Medical-Dental Office	22.21	8.8	0.5	97.7	\$ 64.34	\$ 6,286.02 /1,000 sf	\$ 5,669.54 /1,000 sf
General Office Building	7.16	8.8	0.5	31.5	\$ 64.34	\$ 2,026.71 /1,000 sf	\$ 1,827.91 /1,000 sf
Shopping Center	30.2	4.3	0.5	64.9	\$ 64.34	\$ 4,175.67 /1,000 sf	\$ 4,175.67 /1,000 sf
Hospital	11.42	4.3	0.5	24.6	\$ 64.34	\$ 1,582.76 /1,000 sf	\$ 1,582.76 /1,000 sf
Discount Center	62.93	4.3	0.5	135.3	\$ 64.34	\$ 8,705.20 /1,000 sf	\$ 8,705.20 /1,000 sf
High-Turnover Restaurant	8.9	4.3	0.5	19.1	\$ 64.34	\$ 1,228.89 /1,000 sf	\$ 1,228.89 /1,000 sf
Convenience Market	43.57	4.3	0.5	93.7	\$ 64.34	\$ 6,028.66 /1,000 sf	\$ 6,028.66 /1,000 sf
Office Park	13.97	4.3	0.5	30.0	\$ 64.34	\$ 1,930.20 /1,000 sf	\$ 1,930.20 /1,000 sf
OTHER (as noted)							
Cemetery	3.07	4.3	0.5	6.6	\$ 64.34	\$ 424.64 /Acre	\$ 424.64 /Acre
Service Station/Market (avg)	107.69	4.3	0.5	231.5	\$ 64.34	\$ 14,894.71 /Fuel Position	\$ 14,894.71 /Fuel Position
Service Station w/Car Wash	99.35	4.3	0.5	213.6	\$ 64.34	\$ 13,743.02 /Fuel Position	\$ 13,743.02 /Fuel Position

Exhibit A-2 Dwyer-Alternative Fee Schedule No. 2

Schedule of Rates for Traffic Impact Fees (Effective 9/2/2015)

Land Use	Adjusted Trip Ends	Average Distance	Trip-end to Trip	Additional Trip Miles	Cost per Trip Mile	Cost per 1000 sq. ft, dwelling unit or other unit	100% Increase Scenario Cost per 1000 sq. ft, dwelling unit or other unit
RESIDENTIAL LAND USES (per Unit)							
Detached Dwelling Unit	8.76	7.9	0.5	34.6	\$ 64.34	\$ 2,226.16 /Unit	\$ 2,226.16 /Unit
Apartment	6.15	7.9	0.5	24.3	\$ 64.34	\$ 1,563.46 /Unit	\$ 1,563.46 /Unit
Condominium/Townhouse	5.36	7.9	0.5	21.2	\$ 64.34	\$ 1,364.01 /Unit	\$ 1,364.01 /Unit
Mobile Home Dwelling	4.57	7.9	0.5	18.1	\$ 64.34	\$ 1,164.55 /Unit	\$ 1,164.55 /Unit
RESORT/TOURIST (per Unit or Entry Door)							
Hotel	6.29	7.6	0.5	23.9	\$ 64.34	\$ 1,537.73 /Room	\$ 1,537.73 /Room
All Suites Hotel	3.77	7.6	0.5	14.3	\$ 64.34	\$ 920.06 /Room	\$ 920.06 /Room
Motel	4.34	7.6	0.5	16.5	\$ 64.34	\$ 1,061.61 /Room	\$ 1,061.61 /Room
INDUSTRIAL (per 1,000 SF)							
General Light Industrial	6.17	9.0	0.5	27.8	\$ 64.34	\$ 1,788.65 /1,000 sf	\$ 1,788.65 /1,000 sf
Heavy Industrial	5.97	9.0	0.5	26.9	\$ 64.34	\$ 1,730.75 /1,000 sf	\$ 1,730.75 /1,000 sf
Manufacturing	2.73	9.0	0.5	12.3	\$ 64.34	\$ 791.38 /1,000 sf	\$ 791.38 /1,000 sf
Warehousing	4.39	9.0	0.5	19.8	\$ 64.34	\$ 1,273.93 /1,000 sf	\$ 1,273.93 /1,000 sf
COMMERCIAL (per 1,000 SF)							
Office Park	7.42	8.8	0.5	32.6	\$ 64.34	\$ 2,097.48 /1,000 sf	\$ 2,097.48 /1,000 sf
Research Park	5.01	8.8	0.5	22.0	\$ 64.34	\$ 1,415.48 /1,000 sf	\$ 1,415.48 /1,000 sf
Business Park	9.34	8.8	0.5	41.1	\$ 64.34	\$ 2,644.37 /1,000 sf	\$ 2,644.37 /1,000 sf
Bldg. Materials/Lumber Store	29.35	4.3	0.5	63.1	\$ 64.34	\$ 4,059.85 /1,000 sf	\$ 4,059.85 /1,000 sf
Garden Center	23.45	4.3	0.5	50.4	\$ 64.34	\$ 3,242.74 /1,000 sf	\$ 3,242.74 /1,000 sf
Movie Theater	2.47	4.3	0.5	5.3	\$ 64.34	\$ 341.00 /1,000 sf	\$ 341.00 /1,000 sf
Church	5.92	4.3	0.5	12.7	\$ 64.34	\$ 817.12 /1,000 sf	\$ 817.12 /1,000 sf
Medical-Dental Office	22.21	8.8	0.5	97.7	\$ 64.34	\$ 6,286.02 /1,000 sf	\$ 6,286.02 /1,000 sf
General Office Building	7.16	8.8	0.5	31.5	\$ 64.34	\$ 2,026.71 /1,000 sf	\$ 2,026.71 /1,000 sf
Shopping Center	30.2	4.3	0.5	64.9	\$ 64.34	\$ 4,175.67 /1,000 sf	\$ 4,175.67 /1,000 sf
Hospital	11.42	4.3	0.5	24.6	\$ 64.34	\$ 1,582.76 /1,000 sf	\$ 1,582.76 /1,000 sf
Discount Center	62.93	4.3	0.5	135.3	\$ 64.34	\$ 8,705.20 /1,000 sf	\$ 8,705.20 /1,000 sf
High-Turnover Restaurant	8.9	4.3	0.5	19.1	\$ 64.34	\$ 1,228.89 /1,000 sf	\$ 1,228.89 /1,000 sf
Convenience Market	43.57	4.3	0.5	93.7	\$ 64.34	\$ 6,028.66 /1,000 sf	\$ 6,028.66 /1,000 sf
Office Park	13.97	4.3	0.5	30.0	\$ 64.34	\$ 1,930.20 /1,000 sf	\$ 1,930.20 /1,000 sf
OTHER (as noted)							
Cemetery	3.07	4.3	0.5	6.6	\$ 64.34	\$ 424.64 /Acre	\$ 424.64 /Acre
Service Station/Market (avg)	107.69	4.3	0.5	231.5	\$ 64.34	\$ 14,894.71 /Fuel Position	\$ 14,894.71 /Fuel Position
Service Station w/Car Wash	99.35	4.3	0.5	213.6	\$ 64.34	\$ 13,743.02 /Fuel Position	\$ 13,743.02 /Fuel Position

EXHIBIT A-3

Development Impact Fees (Effective 9/2/2012) 30%

<i>Land Use</i>	Law Enforcement Facilities	Fire Suppression Facilities	Circulation System (Streets, Signals, Bridges)	Public Library Facilities	Park Land/ Open Space & Facilities (No Tract Map)
Detached Dwelling Units (per Unit)	\$119	\$277	\$1,800	\$1,091	\$6,802
Attached Dwelling Units (per Unit)	\$245	\$115	\$1,238	\$519	\$4,632
Mobile Home Dwelling Units (per Unit)	\$111	\$475	\$940	\$479	\$3,351
Hotel/Motel Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23/SF
Resort Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23/SF
Commercial/Office Uses (per sq. ft.)	\$0.312	\$0.099	\$4.175	No Fee	\$0.447
Industrial/Manufacturing Uses (per sq. ft.)	\$0.133	\$0.009	\$1.279	No Fee	\$0.393

Development Impact Fees (Effective 9/2/2013) 60%

<i>Land Use</i>	Law Enforcement Facilities	Fire Suppression Facilities	Circulation System (Streets, Signals, Bridges)	Public Library Facilities	Park Land/ Open Space & Facilities (No Tract Map)
Detached Dwelling Units (per Unit)	\$238	\$553	\$2,092	\$1,126	\$11,540
Attached Dwelling Units (per Unit)	\$489	\$229	\$1,417	\$686	\$8,576
Mobile Home Dwelling Units (per Unit)	\$221	\$950	\$1,094	\$588	\$6,701
Hotel/Motel Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23/SF
Resort Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23/SF
Commercial/Office Uses (per sq. ft.)	\$0.625	\$0.197	\$4.175	No Fee	\$0.664
Industrial/Manufacturing Uses (per sq. ft.)	\$0.266	\$0.018	\$1.498	No Fee	\$0.555

Development Impact Fees (Effective 9/2/2014) 90%

<i>Land Use</i>	Law Enforcement Facilities	Fire Suppression Facilities	Circulation System (Streets, Signals, Bridges)	Public Library Facilities	Park Land/ Open Space & Facilities (No Tract Map)
Detached Dwelling Units (per Unit)	\$356	\$830	\$2,385	\$1,160	\$16,278
Attached Dwelling Units (per Unit)	\$734	\$344	\$1,597	\$852	\$12,520
Mobile Home Dwelling Units (per Unit)	\$332	\$1,425	\$1,248	\$697	\$10,052
Hotel/Motel Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23/SF
Resort Lodging Units (per Unit)	No Fee	No Fee	\$172/trip	\$0.04/SF	\$0.23/SF
Commercial/Office Uses (per sq. ft.)	\$0.937	\$0.296	\$4.175	No Fee	\$0.882
Industrial/Manufacturing Uses (per sq. ft.)	\$0.399	\$0.027	\$1.716	No Fee	\$0.718

Schedule of Rates for Traffic Impact Fees (Effective 9/2/2012)

Land Use	Adjusted Trip Ends	Average Distance	Trip-end to Trip	Additional Trip Miles	Cost per Trip Mile	Recommended Cost per 1000 sq. ft, dwelling unit or other unit (90% of original)		30% Increase Scenario Cost per 1000 sq. ft, dwelling unit or other unit	
RESIDENTIAL LAND USES (per Unit)									
Detached Dwelling Unit	8.76	7.9	0.5	34.6	\$ 50.22	\$ 1,737.61	/Unit	\$ 1,722.55	/Unit
Apartment	6.15	7.9	0.5	24.3	\$ 50.22	\$ 1,220.35	/Unit	\$ 1,209.50	/Unit
Condominium/Townhouse	5.36	7.9	0.5	21.2	\$ 50.22	\$ 1,064.66	/Unit	\$ 1,054.55	/Unit
Mobile Home Dwelling	4.57	7.9	0.5	18.1	\$ 50.22	\$ 908.98	/Unit	\$ 899.59	/Unit
RESORT/TOURIST (per Unit or Entry Door)									
Hotel	6.29	7.6	0.5	23.9	\$ 64.34	\$ 1,537.73	/Room	\$ 1,218.63	/Room
All Suites Hotel	3.77	7.6	0.5	14.3	\$ 64.34	\$ 920.06	/Room	\$ 729.93	/Room
Motel	4.34	7.6	0.5	16.5	\$ 64.34	\$ 1,061.61	/Room	\$ 841.02	/Room
INDUSTRIAL (per 1,000 SF)									
General Light Industrial	6.17	9.0	0.5	27.8	\$ 64.34	\$ 1,788.65	/1,000 sf	\$ 1,279.46	/1,000 sf
Heavy Industrial	5.97	9.0	0.5	26.9	\$ 64.34	\$ 1,730.75	/1,000 sf	\$ 1,238.01	/1,000 sf
Manufacturing	2.73	9.0	0.5	12.3	\$ 64.34	\$ 791.38	/1,000 sf	\$ 566.11	/1,000 sf
Warehousing	4.39	9.0	0.5	19.8	\$ 64.34	\$ 1,273.93	/1,000 sf	\$ 910.74	/1,000 sf
COMMERCIAL (per 1,000 SF)									
Office Park	7.42	8.8	0.5	32.6	\$ 64.34	\$ 2,097.48	/1,000 sf	\$ 1,522.61	/1,000 sf
Research Park	5.01	8.8	0.5	22.0	\$ 64.34	\$ 1,415.48	/1,000 sf	\$ 1,027.85	/1,000 sf
Business Park	9.34	8.8	0.5	41.1	\$ 64.34	\$ 2,644.37	/1,000 sf	\$ 1,917.85	/1,000 sf
Bldg. Materials/Lumber Store	29.35	4.3	0.5	63.1	\$ 64.34	\$ 4,059.85	/1,000 sf	\$ 4,059.85	/1,000 sf
Garden Center	23.45	4.3	0.5	50.4	\$ 64.34	\$ 3,242.74	/1,000 sf	\$ 3,242.74	/1,000 sf
Movie Theater	2.47	4.3	0.5	5.3	\$ 64.34	\$ 341.00	/1,000 sf	\$ 341.00	/1,000 sf
Church	5.92	4.3	0.5	12.7	\$ 64.34	\$ 817.12	/1,000 sf	\$ 817.12	/1,000 sf
Medical-Dental Office	22.21	8.8	0.5	97.7	\$ 64.34	\$ 6,286.02	/1,000 sf	\$ 4,559.89	/1,000 sf
General Office Building	7.16	8.8	0.5	31.5	\$ 64.34	\$ 2,026.71	/1,000 sf	\$ 1,470.08	/1,000 sf
Shopping Center	30.2	4.3	0.5	64.9	\$ 64.34	\$ 4,175.67	/1,000 sf	\$ 4,175.67	/1,000 sf
Hospital	11.42	4.3	0.5	24.6	\$ 64.34	\$ 1,582.76	/1,000 sf	\$ 1,582.76	/1,000 sf
Discount Center	62.93	4.3	0.5	135.3	\$ 64.34	\$ 8,705.20	/1,000 sf	\$ 8,705.20	/1,000 sf
High-Turnover Restaurant	8.9	4.3	0.5	19.1	\$ 64.34	\$ 1,228.89	/1,000 sf	\$ 1,228.89	/1,000 sf
Convenience Market	43.57	4.3	0.5	93.7	\$ 64.34	\$ 6,028.66	/1,000 sf	\$ 6,028.66	/1,000 sf
Office Park	13.97	4.3	0.5	30.0	\$ 64.34	\$ 1,930.20	/1,000 sf	\$ 1,930.20	/1,000 sf
OTHER (as noted)									
Cemetery	3.07	4.3	0.5	6.6	\$ 64.34	\$ 424.64	/Acre	\$ 424.64	/Acre
Service Station/Market (avg)	107.69	4.3	0.5	231.5	\$ 64.34	\$ 14,894.71	/Fuel Position	\$ 14,894.71	/Fuel Position
Service Station w/Car Wash	99.35	4.3	0.5	213.6	\$ 64.34	\$ 13,743.02	/Fuel Position	\$ 13,743.02	/Fuel Position

Schedule of Rates for Traffic Impact Fees (Effective 9/2/2013)

Land Use	Adjusted Trip Ends	Average Distance	Trip-end to Trip	Additional Trip Miles	Cost per Trip Mile	Recommended Cost per 1000 sq. ft, dwelling unit or other unit (90% of original)		60% Increase Scenario Cost per 1000 sq. ft, dwelling unit or other unit	
RESIDENTIAL LAND USES (per Unit)									
Detached Dwelling Unit	8.76	7.9	0.5	34.6	\$ 57.39	\$ 1,985.69	/Unit	\$ 1,938.39	/Unit
Apartment	6.15	7.9	0.5	24.3	\$ 57.39	\$ 1,394.58	/Unit	\$ 1,361.20	/Unit
Condominium/Townho use	5.36	7.9	0.5	21.2	\$ 57.39	\$ 1,216.67	/Unit	\$ 1,187.17	/Unit
Mobile Home Dwelling	4.57	7.9	0.5	18.1	\$ 57.39	\$ 1,038.76	/Unit	\$ 1,013.15	/Unit
RESORT/TOURIST (per Unit or Entry Door)									
Hotel	6.29	7.6	0.5	23.9	\$ 64.34	\$ 1,537.73	/Room	\$ 1,355.39	/Room
All Suites Hotel	3.77	7.6	0.5	14.3	\$ 64.34	\$ 920.06	/Room	\$ 811.41	/Room
Motel	4.34	7.6	0.5	16.5	\$ 64.34	\$ 1,061.61	/Room	\$ 935.56	/Room
INDUSTRIAL (per 1,000 SF)									
General Light Industrial	6.17	9.0	0.5	27.8	\$ 64.34	\$ 1,788.65	/1,000 sf	\$ 1,497.69	/1,000 sf
Heavy Industrial	5.97	9.0	0.5	26.9	\$ 64.34	\$ 1,730.75	/1,000 sf	\$ 1,449.18	/1,000 sf
Manufacturing	2.73	9.0	0.5	12.3	\$ 64.34	\$ 791.38	/1,000 sf	\$ 662.65	/1,000 sf
Warehousing	4.39	9.0	0.5	19.8	\$ 64.34	\$ 1,273.93	/1,000 sf	\$ 1,066.39	/1,000 sf
COMMERCIAL (per 1,000 SF)									
Office Park	7.42	8.8	0.5	32.6	\$ 64.34	\$ 2,097.48	/1,000 sf	\$ 1,768.99	/1,000 sf
Research Park	5.01	8.8	0.5	22.0	\$ 64.34	\$ 1,415.48	/1,000 sf	\$ 1,193.98	/1,000 sf
Business Park	9.34	8.8	0.5	41.1	\$ 64.34	\$ 2,644.37	/1,000 sf	\$ 2,229.22	/1,000 sf
Bldg. Materials/Lumber Store	29.35	4.3	0.5	63.1	\$ 64.34	\$ 4,059.85	/1,000 sf	\$ 4,059.85	/1,000 sf
Garden Center	23.45	4.3	0.5	50.4	\$ 64.34	\$ 3,242.74	/1,000 sf	\$ 3,242.74	/1,000 sf
Movie Theater	2.47	4.3	0.5	5.3	\$ 64.34	\$ 341.00	/1,000 sf	\$ 341.00	/1,000 sf
Church	5.92	4.3	0.5	12.7	\$ 64.34	\$ 817.12	/1,000 sf	\$ 817.12	/1,000 sf
Medical-Dental Office	22.21	8.8	0.5	97.7	\$ 64.34	\$ 6,286.02	/1,000 sf	\$ 5,299.66	/1,000 sf
General Office Building	7.16	8.8	0.5	31.5	\$ 64.34	\$ 2,026.71	/1,000 sf	\$ 1,708.63	/1,000 sf
Shopping Center	30.2	4.3	0.5	64.9	\$ 64.34	\$ 4,175.67	/1,000 sf	\$ 4,175.67	/1,000 sf
Hospital	11.42	4.3	0.5	24.6	\$ 64.34	\$ 1,582.76	/1,000 sf	\$ 1,582.76	/1,000 sf
Discount Center	62.93	4.3	0.5	135.3	\$ 64.34	\$ 8,705.20	/1,000 sf	\$ 8,705.20	/1,000 sf
High-Turnover Restaurant	8.9	4.3	0.5	19.1	\$ 64.34	\$ 1,228.89	/1,000 sf	\$ 1,228.89	/1,000 sf
Convenience Market	43.57	4.3	0.5	93.7	\$ 64.34	\$ 6,028.66	/1,000 sf	\$ 6,028.66	/1,000 sf
Office Park	13.97	4.3	0.5	30.0	\$ 64.34	\$ 1,930.20	/1,000 sf	\$ 1,930.20	/1,000 sf
OTHER (as noted)									
Cemetery	3.07	4.3	0.5	6.6	\$ 64.34	\$ 424.64	/Acre	\$ 424.64	/Acre
Service Station/Market (avg)	107.69	4.3	0.5	231.5	\$ 64.34	\$ 14,894.71	/Fuel Position	\$ 14,894.71	/Fuel Position
Service Station w/Car Wash	99.35	4.3	0.5	213.6	\$ 64.34	\$ 13,743.02	/Fuel Position	\$ 13,743.02	/Fuel Position

Exhibit A-3 Alternative Fee Schedule No. 3
Schedule of Rates for Traffic Impact Fees (Effective 9/2/2014)

Land Use	Adjusted Trip Ends	Average Distance	Trip-end to Trip	Additional Trip Miles	Cost per Trip Mile	Recommended Cost per 1000 sq. ft, dwelling unit or other unit (90% of original)	
RESIDENTIAL LAND USES (per Unit)							
Detached Dwelling Unit	8.76	7.9	0.5	34.6	\$ 64.34	\$ 2,226.16	/Unit
Apartment	6.15	7.9	0.5	24.3	\$ 64.34	\$ 1,563.46	/Unit
Condominium/Townhouse	5.36	7.9	0.5	21.2	\$ 64.34	\$ 1,364.01	/Unit
Mobile Home Dwelling	4.57	7.9	0.5	18.1	\$ 64.34	\$ 1,164.55	/Unit
RESORT/TOURIST (per Unit or Entry Door)							
Hotel	6.29	7.6	0.5	23.9	\$ 64.34	\$ 1,537.73	/Room
All Suites Hotel	3.77	7.6	0.5	14.3	\$ 64.34	\$ 920.06	/Room
Motel	4.34	7.6	0.5	16.5	\$ 64.34	\$ 1,061.61	/Room
INDUSTRIAL (per 1,000 SF)							
General Light Industrial	6.17	9.0	0.5	27.8	\$ 64.34	\$ 1,788.65	/1,000 sf
Heavy Industrial	5.97	9.0	0.5	26.9	\$ 64.34	\$ 1,730.75	/1,000 sf
Manufacturing	2.73	9.0	0.5	12.3	\$ 64.34	\$ 791.38	/1,000 sf
Warehousing	4.39	9.0	0.5	19.8	\$ 64.34	\$ 1,273.93	/1,000 sf
COMMERCIAL (per 1,000 SF)							
Office Park	7.42	8.8	0.5	32.6	\$ 64.34	\$ 2,097.48	/1,000 sf
Research Park	5.01	8.8	0.5	22.0	\$ 64.34	\$ 1,415.48	/1,000 sf
Business Park	9.34	8.8	0.5	41.1	\$ 64.34	\$ 2,644.37	/1,000 sf
Bldg. Materials/Lumber Store	29.35	4.3	0.5	63.1	\$ 64.34	\$ 4,059.85	/1,000 sf
Garden Center	23.45	4.3	0.5	50.4	\$ 64.34	\$ 3,242.74	/1,000 sf
Movie Theater	2.47	4.3	0.5	5.3	\$ 64.34	\$ 341.00	/1,000 sf
Church	5.92	4.3	0.5	12.7	\$ 64.34	\$ 817.12	/1,000 sf
Medical-Dental Office	22.21	8.8	0.5	97.7	\$ 64.34	\$ 6,286.02	/1,000 sf
General Office Building	7.16	8.8	0.5	31.5	\$ 64.34	\$ 2,026.71	/1,000 sf
Shopping Center	30.2	4.3	0.5	64.9	\$ 64.34	\$ 4,175.67	/1,000 sf
Hospital	11.42	4.3	0.5	24.6	\$ 64.34	\$ 1,582.76	/1,000 sf
Discount Center	62.93	4.3	0.5	135.3	\$ 64.34	\$ 8,705.20	/1,000 sf
High-Turnover Restaurant	8.9	4.3	0.5	19.1	\$ 64.34	\$ 1,228.89	/1,000 sf
Convenience Market	43.57	4.3	0.5	93.7	\$ 64.34	\$ 6,028.66	/1,000 sf
Office Park	13.97	4.3	0.5	30.0	\$ 64.34	\$ 1,930.20	/1,000 sf
OTHER (as noted)							
Cemetery	3.07	4.3	0.5	6.6	\$ 64.34	\$ 424.64	/Acre
Service Station/Market (avg)	107.69	4.3	0.5	231.5	\$ 64.34	\$ 14,894.71	/Fuel Position
Service Station w/Car Wash	99.35	4.3	0.5	213.6	\$ 64.34	\$ 13,743.02	/Fuel Position

ATTACHMENT #2

AN ORDINANCE OF THE CITY OF HUNTINGTON BEACH
AMENDING THE HUNTINGTON BEACH MUNICIPAL
CODE BY ADDING CHAPTER 17.75 RELATING TO
DEVELOPMENT IMPACT FEES FOR POLICE FACILITIES

The City Council of the City of Huntington Beach does hereby ordain as follows:

SECTION 1. The Huntington Beach Municipal Code is hereby amended to add Chapter 17.73, said chapter to read as follows:

Chapter 17.75

POLICE FACILITIES DEVELOPMENT IMPACT FEES

Sections

- 17.75.010 Legislative findings.
- 17.75.020 Intent and Purpose.
- 17.75.030 Definitions.
- 17.75.040 Police Facilities Development Impact Fee.
- 17.75.050 Fund Established.
- 17.75.060 Fee imposed.
- 17.75.070 Calculation of Police Facilities Development Impact Fee.
- 17.75.075 Fee Payments for Phased Development Projects
- 17.75.076 Fee Adjustments.
- 17.75.080 Payment of fee.
- 17.75.090 Use of funds.
- 17.75.100 Refund.
- 17.75.110 Exemptions and credits.
- 17.75.120 Appeals.
- 17.75.130 Credit for Construction of Non-Site Related Improvements.
- 17.75.140 Eligible Expenditures from Fee Reserve Account
- 17.75.150 Annual report and amendment procedures.
- 17.75.160 Effect of Police Facilities Development Impact Fee on zoning and subdivision regulations.
- 17.75.170 Violation—Penalty.
- 17.75.180 Severability.

17.75.010 - Legislative findings.

- A. The State of California, through the enactment of Government Code Sections 66001 through 66009 has authorized the City to enact Development Impact Fees.
- B. The imposition of Development Impact Fees is a method of ensuring that new development bears a proportionate share of the cost of capital facilities and other costs necessary to accommodate such development. These fees are established to promote and protect the public health, safety and welfare.
- C. Increase in residential and nonresidential development in the City creates a need for increased funds to pay for the cost of increased police services and facilities which are needed to serve the increasing development in the City.
- D. Pursuant to the "Development Development Impact Fee Calculation and Nexus Report for the City of Huntington Beach" ("Nexus Report") dated October, 2011, as amended April 27, 2012, which incorporated herein by reference in these findings as though set forth in full, the fees established pursuant to this Chapter are derived from, based upon, and do not exceed the costs of providing additional police services attributable to applicable new residential or nonresidential development. This study is based in part upon master planning to more specifically identify capital facilities to serve new development; the acquisition of additional property for police facilities; the construction of buildings for police services; the furnishing of buildings or facilities for police services; and the purchasing of equipment and vehicles for police services.
- E. The fees collected pursuant to this Chapter shall be used to finance the police facilities and equipment identified in herein in furtherance of the City's General Plan, as well as the Nexus Report and its attached Master Facilities Plan and the City of Huntington Beach Capital Improvement Plan.
- F. Detailed study of the impacts of future residential and nonresidential construction in the City, along with an analysis of the need for new police facilities and equipment has been prepared. This study is included in the Nexus Report.
- G. As set forth in the Nexus Report, there is a reasonable relationship between the need for the police facilities and equipment set forth in this Chapter and the impacts of the types of development for which the corresponding fee is charged. In addition, there is a reasonable relationship between the fee's use and the type of development to which the fee is charged and a reasonable relationship between the amount of the fee and the cost of the facilities and equipment or portion thereof attributable to the development on which the fee is imposed.

17.75.020 – Intent and Purpose.

A Police Facilities Development Impact Fee is being created for the purpose of assuring that the impacts created by new development in the City of Huntington Beach pay a fair share of the proportional facility and equipment and vehicle costs required to support needed police facilities and related costs necessary to accommodate such development.

This Chapter is intended to implement the goals, objectives and policies of the City of Huntington Beach General Plan, as well as following the recommendations in the Nexus Report including the Master Facilities Plan, and the City of Huntington Beach Capital Improvement Plan by ensuring that the City's police services are maintained when new development is constructed within the City limits. By imposing a fee that is reasonably related to the burdens created by new development on the City's Police Department, together with funding available from other City revenue sources, the City will be able to construct the required capital improvements, accommodate projected growth and fulfill the goals, objectives and policies of the City's General Plan and Master Facilities Plan, a part of the Nexus Report.

It is the intent of the City Council that the fee required by this Chapter shall be supplementary to any conditions imposed upon a development project pursuant to other provisions of the Municipal Code, the Subdivision Map Act, the California Environmental Quality Act, other state and local laws, ordinances or chapter provisions which may authorize the imposition of conditions on development.

17.75.030 - Definitions. Shall be as set forth in Chapter 17.73 of this Code.

17.75.040 - Police Facilities Development Impact Fee. There is imposed a Police Facilities Development Impact Fee on all new non-subdivided Residential and Nonresidential development.

17.75.050 - Fund established. A Police Facilities Development Impact Fee fund is established. The Police Facilities Development Impact Fee fund is a fund to be utilized for payment of the actual or estimated costs of police facilities and equipment as set forth in the Nexus Report which includes the Master Facilities Plan, as well as the City of Huntington Beach Capital Improvement Plan related to new residential and nonresidential construction.

17.75.060 - Fee imposed.

- A. Any person who, 60 days after the effective date of this Development Impact Fee Ordinance, seeks to engage in non-subdivided Residential or Nonresidential development including mobilehome development by obtaining a building permit or other discretionary approval is required to pay a Police Facilities Development Impact Fee in the manner and amount as set forth in the current City of Huntington Beach Fee Resolution separately adopted.

- B. No certificate of occupancy, temporary certificate of occupancy, or final building permit approval or construction approval for a mobilehome pad or pads, as applicable, for the activities listed in this Chapter, shall be issued unless and until the Police Facilities Development Impact Fee required by this Chapter has been paid to the City.

17.75.070 - Calculation of Police Facilities Development Impact Fee.

- A. At the time of the issuance of the building permit, the Director of Planning and Building or his/her designee ("Director") shall calculate the amount of the applicable Police Facilities Development Impact Fee due as specified in the current fee resolution setting the amount of the fee.
- B. The Director of Planning and Building shall calculate the amount of the applicable Police Facilities Development Impact Fee due by:
1. Determining the number and type of dwelling units in a residential development or mobilehome pads in a mobilehome park or site, and multiplying the same by the Police Facilities Development Impact Fee amount per dwelling unit or pad as established by the current fee resolution setting the amount of the fee;
 2. Determining the gross square feet of floor area, or number of lodging units, type of use and location in a nonresidential development, and multiplying the same by the Police Facilities Development Impact Fee amount as established by the current fee resolution setting the amount of the fee;
 3. Determining the number and type of dwelling units and the nonresidential number of lodging units or gross square feet of floor area, type of use and location, in a structure containing mixed uses which include a residential use, and multiplying the same by the Police Facilities Development Impact Fee amount for each use as established by the current fee resolution setting the amount of the fee;
 4. Determining the gross square feet of floor area, or number of lodging units, type of use and location in a structure containing mixed uses which include two (2) or more nonresidential principal uses, and multiplying the same by the Police Facilities Development Impact Fee amount as established by the current fee resolution. The gross square feet of floor area of any accessory use will be charged at the same rate as the predominant principal use unless the Department of Planning and Building finds that the accessory use is related to another principal use.

17.75.075 Fee Payments for Phased Development Projects. If a Development Project will be constructed in phases, and separate building permits and certificates of occupancy will be issued for each phase, fees imposed pursuant to this Chapter shall be calculated on the basis of the development characteristics of the entire Development Project. Payment of

the fees may be made separately for each phase, provided the amount paid for each phase shall be equal to the percentage that that phase represents of the total development project's development characteristics. The fee shall be the fee in effect at the time payment is due.

17.75.076 Fee Adjustments. Shall be as set forth in Chapter 17.73 of this Code.

17.75.080 - Payment of fee.

- A. The City shall collect from the applicant the Police Facilities Development Impact Fee prior to the issuance of a certificate of occupancy, temporary certificate of occupancy, final building permit approval or construction approval for mobilehome pad or pads, whichever occurs first.
- B. Except for any administrative charge allocated to the City, all funds collected shall be properly identified and promptly transferred for deposit in the Police Facilities Development Impact Fee fund and used solely for the purposes specified in this Chapter.

17.75.090 - Use of funds.

- A. Funds collected from the Police Facilities Development Impact Fee shall be used to fund the costs of providing additional police services attributable to new residential and nonresidential construction and shall include:
 - 1. The acquisition of additional property for law enforcement facilities;
 - 2. The construction of new facilities for law enforcement services;
 - 3. The furnishing of new buildings or facilities for law enforcement services;
 - 4. The purchase of new specialty equipment and vehicles for law enforcement services;
 - 5. The funding of a master plan to identify capital facilities to serve new police department development;
 - 6. The cost of financing (e.g., interest payments).
 - 7. Projects identified in the City of Huntington Beach General Plan, the Master Facilities Plan included in the Nexus Report, the City of Huntington Beach Capital Improvement Plan, adopted annual City of Huntington Beach budget or City Council approved development projects.
- B. Funds shall not be used for periodic or routine maintenance or to maintain or repair existing buildings, and/or existing vehicles or equipment.

- C. Revenue raised would be limited to capitalized cost related to growth.
- D. In the event that bonds or similar debt instruments are issued for advanced provision of capital facilities for which Police Facilities Development Impact Fees may be expended, Development Impact Fees may be used to pay debt service on such bonds or similar debt instruments to the extent that the facilities provided are of the type described in this Chapter.
- E. Funds may be used to provide refunds as described in this Chapter.

17.75.100 - Refund.

- A. Any applicant who has paid a Police Facilities Development Impact Fee pursuant to this Chapter may apply for a full or partial refund of same, if, within one (1) year after collection of the Police Facilities Development Impact Fee the fee has been modified as follows: reduction in the number of dwelling units, a change in the type of dwelling units, a reduction in square footage, or the applicability of an exemption pursuant to this Chapter. In the event a refund is issued, the City may retain a sum up to twenty (20%) percent of the Development Impact Fee paid by the applicant to offset the administrative costs of refund. In no event shall a refund exceed the amount of the Police Facilities Development Impact Fee actually paid.
- B. Erroneous or Illegal Collection. Fees will be refunded if the applicant demonstrates to the satisfaction of the Director that they were erroneously or illegally collected. If the Director determines the fees were not erroneously or illegally collected, then the applicant may appeal the decision pursuant to Chapter 17.73 Appeals. An application for a refund pursuant to this Section must be filed within ninety (90) days after the payment of the fees.
- C. City Failure to Commit Funds. Pursuant to the Mitigated Fee Act, upon application of the then current landowner, fees will be refunded if the City fails to commit them to a project of the nature or type identified in the Nexus Report within five years from the date that the fees were collected from the applicant. For purposes of this subsection, fees are deemed to have been "committed" if they have been budgeted or otherwise encumbered by the City for an eligible improvement, studies, design drawings or any necessary applications for approval by other governmental agencies have been initiated, construction bidding has been initiated, or improvements are under construction. Eligible refunds, plus interest at the City's average annual cost of funds will be made only upon an application filed within 180 days of the expiration of the fifth anniversary of the fee payment.

17.74.110 Exemptions and credits.

- A. Exemptions. Any claim of exemption must be made no later than the time of application for a building permit or mobilehome construction approval. Any claim of exemption must be filed in the same manner and will be considered pursuant to

the same procedure as for a fee adjustment as provided in Chapter 17.73. The following shall be exempted from payment of the Police Facilities Development Impact Fee:

1. Residential Development

- a. Alteration or expansion of an existing residential building in which no additional dwelling units are created, the use is not changed and where no additional police services will be provided over and above those provided by the existing building;
- b. The replacement of a destroyed or partially destroyed building or structure with a new building or structure of the same size and use, provided that no additional police services will be required over and above those provided by the original use of the land;
- c. The construction of residential accessory buildings, structures or uses which will not require additional police services over and above those provided by the principal building or use of the land;
- d. The installation of a replacement mobilehome on a lot or other such site when a Police Facilities Development Impact Fee for such mobilehome site has previously been paid pursuant to this Chapter, or where a mobilehome legally existed on such site on or prior to the effective date of the ordinance codified in this Chapter;
- e. Construction, replacement or rebuilding of a single-family dwelling (one (1) unit per lot) on an existing lot of record, or the replacement of one (1) mobilehome with another on the same pad, or the moving and relocation of a single-family home from one (1) lot within the City to another lot within the City. This exemption shall not apply to tract development, to the development of more than one (1) unit per lot, nor to the replacement of a single-family dwelling with more than one (1) dwelling unit;

- 2. Affordable housing for lower income households. Property rented, leased, sold, conveyed or otherwise transferred, at a rental price or purchase price which does not exceed the "affordable housing cost," as defined in Section 50052.5 of the California Health and Safety Code when provided to a "lower income household" as defined in Section 50079.5 of the California Health and Safety Code or "very low-income household" as defined in Section 50105 of the California Health and Safety Code. This exemption shall require the applicant to execute an agreement to guarantee that the units shall be maintained for lower and very low-income households whether as units for rent or for sale or transfer. The agreement shall be in

the form of a deed restriction or other legally binding and enforceable document acceptable to the City Attorney and shall bind the owner and any successor-in-interest to the real property being developed. The agreement shall subordinate, if required, to any state or federal program providing affordable housing to lower and very low-income households. The agreement shall be recorded with the Orange County Recorder prior to the issuance of a certificate of occupancy. Applicant or any successor-in-interest shall be required to provide annually, or as requested, the names of all tenants or purchasers, current rents and income certification to insure compliance. Voluntary removal of the housing restriction or violation of the restriction shall require the applicant or any successor-in-interest to pay the then applicable Police Facilities Development Impact Fee at the time of voluntary conversion or as imposed at the time of violation on the unit in violation, plus any attorneys' fees and costs of enforcement, if applicable;

- B. **Credits.** Any applicant whose development is located within a community facilities district (CFD) or , and is subject to the assessments thereof, shall receive an offset credit towards the fees established by this Chapter to the extent that the assessments fund improvements within the CFD which would otherwise be funded by the Development Impact Fees established by this Chapter.

17.75.120 Appeals. Shall be as set forth in Chapter 17.73 of this Code.

17.74.130 Credit for Construction of Non-Site-Related Improvements. Applications for credit for construction of non-site-related improvements shall submit applicable engineering drawings, specifications and construction cost estimates or the like to the Director. The Director shall determine any credit for improvement based on either these cost estimates or alternative estimates if the Director determines reasonably that the estimates submitted by the applicant are either unreliable or inaccurate. In no event shall the amount of the credit exceed the improvement cost specified in the Nexus Report, or other applicable basis for the fee, nor shall the credit exceed the amount that would otherwise apply.

No final inspection or certificate of occupancy for the Development Project may be issued until: (1) the construction is completed and accepted by the City; (2) a suitable maintenance and warranty bond is received and accepted by the City; and (3) all design, construction, inspection, testing, bonding and acceptance procedures are in strict compliance with City paving, drainage and other applicable requirements

17.75.140 Eligible Expenditures From Fee Reserve Account. All monies and interest earnings in any Reserve Account shall be expended on the projects of the nature or type identified in the Nexus Report, or such other report as may be prepared from time to time

to document the reasonable fair share of the costs to mitigate the police services impacts of new development.

17.75.150 - Annual report and amendment procedures.

- A. Within one hundred eighty (180) days after the last day of each fiscal year, the Police Chief of the City of Huntington Beach shall evaluate progress in implementation of the Police Facilities Development Impact Fee program and shall prepare a report thereon to the City Council in accordance with Government Code Section 66006, incorporating among other things:
 - 1. The police facilities and equipment commenced, purchased or completed utilizing monies from this Police Facilities Development Impact Fee fund;
 - 2. The amount of the fees collected and the interest earned;
 - 3. The amount of Police Facilities Development Impact Fees in the fund; and
 - 4. Recommended changes to the Police Facilities Development Impact Fee, including, but not necessarily limited to changes in this Police Facilities Development Impact Fee chapter or the fee resolution.
- B. Based upon the report and such other factors as the City Council deems relevant and applicable, the City Council may amend the ordinance codified in this Chapter or the fee resolution implementing this Chapter. Changes to the Police Facilities Development Impact Fee rates or schedules may be made by amending the fee resolution. Any change which increases the amount of the Police Facilities Development Impact Fee shall be adopted by the City Council only after a noticed public hearing. Nothing herein precludes the City Council or limits its discretion to amend the ordinance codified in this Chapter or the fee resolution establishing Police Facilities Development Impact Fee rates or schedules at such other times as may be deemed necessary.

17.75.160 - Effect of Police Facilities Development Impact Fee on zoning and subdivision regulations. This Chapter shall not affect, in any manner, the permissible use of property, density/intensity of development, design and improvement standards and public improvement requirements or any other aspect of the development of land or construction of buildings, which may be imposed by the City pursuant to the City's zoning regulations, subdivision regulations or other ordinances or regulations of the City, which shall be operative and remain in full force and effect without limitation with respect to all residential and nonresidential development.

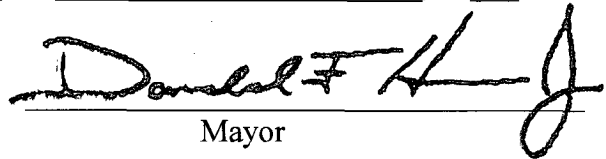
17.75.170 - Violation—Penalty. A violation of this Chapter shall be prosecuted in the same manner as misdemeanors are prosecuted; and upon conviction, the violator shall be punishable according to law. However, in addition to or in lieu of any criminal

prosecution, the City shall have the power to sue in civil court to enforce the provisions of this Chapter.

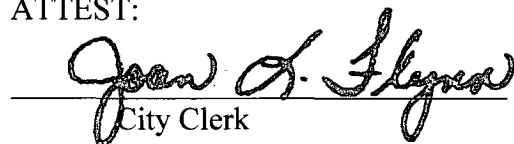
17.75.180 - Severability. If any section, phrase, sentence, or portion of this Chapter is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such portions shall be deemed a separate, distinct, and independent provision; and such holding shall not affect the validity of the remaining portions thereof.

SECTION 2. This ordinance shall become effective 30 days after its adoption.

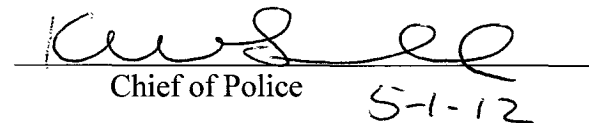
PASSED AND ADOPTED by the City Council of the City of Huntington Beach at a regular meeting thereof held on the 2nd day of July, 2012.


Mayor

ATTEST:


City Clerk

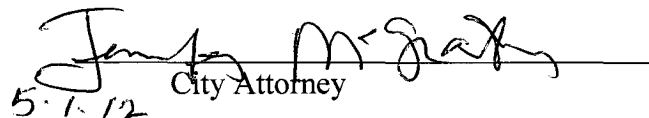
INITIATED AND APPROVED:


Chief of Police 5-1-12

REVIEWED AND APPROVED:


City Manager

APPROVED AS TO FORM:


City Attorney 5-1-12

ATTACHMENT #3

AN ORDINANCE OF THE CITY OF HUNTINGTON BEACH
AMENDING THE HUNTINGTON BEACH MUNICIPAL
CODE BY ADDING CHAPTER 17.74 RELATING TO THE DEVELOPMENT
IMPACT FEES FOR FIRE FACILITIES

The City Council of the City of Huntington Beach does hereby ordain as follows:

SECTION 1. The Huntington Beach Municipal Code is hereby amended by adding Chapter 17.74, said chapter to read as follows:

Chapter 17.74

FIRE FACILITIES DEVELOPMENT IMPACT FEE

Sections

- 17.74.010 Legislative findings.
- 17.74.020 Intent and Purpose.
- 17.74.030 Definitions
- 17.74.040 Fire Facilities Development Impact Fee.
- 17.74.050 Fund Established.
- 17.74.060 Fee imposed.
- 17.74.070 Calculation of Fire Facilities Development Impact Fee.
- 17.74.075 Fee Payments for Phased Development Projects
- 17.74.076 Fee Adjustments
- 17.74.080 Payment of fee.
- 17.74.090 Use of funds.
- 17.74.100 Refund.
- 17.74.110 Exemptions and credits.
- 17.74.120 Appeals
- 17.74.130 Credit for Construction of Non-Site Related Improvements.
- 17.74.140 Eligible Expenditures from Fee Reserve Account
- 17.74.150 Annual report and amendment procedures.
- 17.74.160 Effect of Fire Facilities Development Impact Fee on zoning and subdivision regulations.
- 17.74.170 Violation—Penalty.
- 17.74.180 Severability.

17.74.010 - Legislative findings.

- A. The State of California, through the enactment of Government Code Sections 66001 through 66009 has authorized the City to enact Development Impact Fees.
- B. The imposition of Development Impact Fees is a method of ensuring that new development bears a proportionate share of the cost of capital facilities and other costs necessary to accommodate such development. These fees are established to promote and protect the public health, safety and welfare.
- C. Increase in residential and nonresidential development in the City creates a need for increased funds to pay for the cost of increased fire suppression/medic facilities, vehicles and specialty equipment which are needed to serve the increasing development in the City.
- D. Pursuant to the Development Impact Fee Calculation and Nexus Report for the City of Huntington Beach" ("Nexus Report") dated October, 2011, as amended April 27, 2012, which is incorporated herein by reference in these findings as though set forth in full, the fees established pursuant to this Chapter are derived from, based upon, and do not exceed the costs of providing additional fire suppression/medic facilities, vehicles and specialty equipment attributable to applicable new residential or nonresidential development. This study is based in part upon master planning to more specifically identify capital facilities to serve new development; the acquisition, relocation and expansion of fire stations; the construction or acquisition of fire suppression/medic facilities, vehicles and specialty equipment, and increase the number of emergency response vehicles.
- E. The fees collected pursuant to this Chapter shall be used to finance the acquisition, relocation and expansion of fire stations; the construction or acquisition of fire suppression/medic facilities, vehicles and specialty equipment, and increase the number of emergency response vehicles identified herein in furtherance of the City General Plan, the Nexus Report and its attached Master Facilities Plan, and the City of Huntington Beach Master Improvement Plan.
- F. A detailed study of the impacts of future residential and nonresidential construction in the City, along with an analysis of the need for the acquisition, relocation and expansion of fire stations; the construction or acquisition of fire suppression/medic facilities, vehicles and specialty equipment, and increase the number of emergency response vehicles has been prepared. This study is included in the Nexus Report.
- G. As set forth in the Nexus Report, there is a reasonable relationship between the need for the acquisition, relocation and expansion of fire stations; the construction or acquisition of fire suppression/medic facilities, vehicles and specialty equipment, and increase the number of emergency response vehicles set forth in this Chapter and the impacts of the types of development for which the corresponding fee is charged. In addition, there is a reasonable relationship between the fee's use and the type of development to which the fee is charged and a reasonable relationship between the amount of the fee and the cost of

the facilities and equipment or portion thereof attributable to the development on which the fee is imposed.

17.74.020 – Intent and Purpose.

A Fire Facilities Development Impact Fee is being created for the purpose of assuring that the impacts created by new development in the City of Huntington Beach pay a fair share of the proportional facility and equipment and vehicle costs required to support needed acquisition, relocation and expansion of fire stations; the construction or acquisition of fire suppression/medic facilities, vehicles and specialty equipment, and increase the number of emergency response vehicles and related costs necessary to accommodate such development.

This Chapter is intended to implement goals, objectives and policies of the City of Huntington Beach General Plan, as well as following the recommendations in the Nexus Report including the Master Facilities Plan, which is a part of the Nexus Report, and the City of Huntington Beach Capital Improvement Plan by ensuring that the City's acquisition, relocation and expansion of fire stations; the construction or acquisition of fire suppression/medic facilities, vehicles and specialty equipment, and the increase in the number of emergency response vehicles are maintained when new development is constructed within the City limits. By imposing a fee that is reasonably related to the burdens created by new development on the City's Fire Department, together with funding available from other City revenue sources, the City will be able to construct the required capital improvements, accommodate projected growth and fulfill the goals, objectives and policies of the City's General Plan, the Nexus Report and its attached Master Facilities Plan.

It is the intent of the City Council that the fee required by this Chapter shall be supplementary to any conditions imposed upon a development project pursuant to other provisions of the Municipal Code, the Subdivision Map Act, the California Environmental Quality Act, other state and local laws, ordinances or chapter provisions which may authorize the imposition of conditions on development.

17.74.030 - Definitions. Shall be as set forth in Chapter 17.73 of this Code.

17.74.040 - Fire Facilities Development Impact Fee. There is imposed a Fire Facilities Development Impact Fee on all non-subdivided, new Residential and Nonresidential development.

17.74.050 - Fund established. A Fire Facilities Development Impact Fee fund is established. The Fire Facilities Development Impact Fee fund is a fund to be utilized for payment of the actual or estimated costs of Fire facilities and equipment as set forth the Nexus Report which includes the Master Facilities Plan, as well as the City of Huntington Beach Capital Improvement Plan related to new Residential and Nonresidential construction

17.74.060 - Fee imposed.

- A. Any person who, 60 days after the effective date of this Development Impact Fee, seeks to engage in non-subdivided Residential or Nonresidential development including mobilehome development by obtaining a building permit or other discretionary approval is required to pay a Fire Facilities Development Impact Fee in the manner and amount as set forth in the current City of Huntington Beach Fee Resolution separately adopted.
- B. No certificate of occupancy, temporary certificate of occupancy, or final building permit approval or construction approval for a mobilehome pad or pads, as applicable, for the activities listed in this Chapter, shall be issued unless and until the Fire Facilities Development Impact Fee required by this Chapter has been paid to the City.

17.74.070 - Calculation of Fire Facilities Development Impact Fee.

- A. At the time of the issuance of the building permit, the Director of Planning and Building or his/her designee ("Director") shall calculate the amount of the applicable Fire Facilities Development Impact Fee due as specified in the current fee resolution setting the amount of the fee.
- B. The Director shall calculate the amount of the applicable Fire Facilities Development Impact Fee due by:
 - 1. Determining the number and type of dwelling units in a residential development or mobilehome pads in a mobilehome park or site, and multiplying the same by the Fire Facilities Development Impact Fee amount per dwelling unit or pad as established by the current fee resolution setting the amount of the fee;
 - 2. Determining the gross square feet of floor area, or number of lodging units, type of use and location in a nonresidential development, and multiplying the same by the Fire Facilities Development Impact Fee amount as established by the current fee resolution setting the amount of the fee;
 - 3. Determining the number and type of dwelling units and the nonresidential number of lodging units or gross square feet of floor area, type of use and location, in a structure containing mixed uses which include a residential use, and multiplying the same by the Fire Facilities Development Impact Fee amount for each use as established by the current fee resolution setting the amount of the fee;
 - 4. Determining the gross square feet of floor area, or number of lodging units, type of use and location in a structure containing mixed uses which include two (2) or more nonresidential principal uses, and multiplying the same by the Fire Facilities Development Impact Fee amount as established by the current fee resolution. The gross square feet of floor area of any accessory use will be charged at the same rate as the predominant principal use unless the Director finds that the accessory use is related to another principal use.

17.74.075 Fee Payments for Phased Development Projects. If a Development Project will be constructed in phases, and separate building permits and certificates of occupancy will be issued for each phase, fees imposed pursuant to this Chapter shall be calculated on the basis of the development characteristics of the entire Development Project. Payment of the fees may be made separately for each phase, provided the amount paid for each phase shall be equal to the percentage that that phase represents of the total development project's development characteristics. The fee shall be the fee in effect at the time payment is due.

17.74.076 Fee Adjustments. Shall be as set forth in Chapter 17.73 of this Code.

17.74.080 Payment of fee.

- A. The City shall collect from the applicant the Fire Facilities Development Impact Fee prior to the issuance of a certificate of occupancy, temporary certificate of occupancy, or final building permit approval or construction approval for mobilehome pad or pads, whichever occurs first.
- B. Except for any administrative allocated to the City, all funds collected shall be properly identified and promptly transferred for deposit in the Fire Facilities Development Impact Fee fund and used solely for the purposes specified in this Chapter.

17.74.090 Use of funds.

- A. Funds collected from the Fire Facilities Development Impact Fee shall be used to fund the costs of providing additional Fire suppression/medic facilities, vehicles and specialty equipment attributable to new residential and nonresidential construction and shall include:
 - 1. The acquisition of additional property for fire department facilities;
 - 2. The construction of new facilities for fire department services;
 - 3. The furnishing of new buildings or facilities for fire department services;
 - 4. The purchase of new specialty equipment and vehicles for fire department services;
 - 5. The funding of a master plan to identify capital facilities to serve new Fire Department development;
 - 6. The cost of financing (e.g., interest payments).
 - 7. Projects identified in the City of Huntington Beach General Plan, the Master Facilities Plan included in the Nexus Report, the City of Huntington Beach Capital Improvement Plan, adopted annual City of Huntington Beach budget, or City Council approved development projects.

- B. Funds shall not be used for periodic or routine maintenance or to maintain or repair existing buildings, and/or existing vehicles or equipment.
- C. Revenue raised would be limited to capitalized cost related to growth.
- D. In the event that bonds or similar debt instruments are issued for advanced provision of capital facilities for which Fire Facilities Development Impact Fees may be expended, Development Impact Fees may be used to pay debt service on such bonds or similar debt instruments to the extent that the facilities provided are of the type described in this Chapter.
- E. Funds may be used to provide refunds as described in this Chapter.

17.74.100 Refund.

- A. Any applicant who has paid a Fire Facilities Development Impact Fee pursuant to this Chapter may apply to the Director for a full or partial refund of same, if, within one (1) year after collection of the Fire Facilities Development Impact Fee the fee has been modified as follows: reduction in the number of dwelling units, a change in the type of dwelling units, a reduction in square footage, or the applicability of an exemption pursuant to this Chapter. In the event a refund is issued, the City may retain a sum up to twenty (20%) percent of the Development Impact Fee paid by the applicant to offset the administrative costs of refund. In no event shall a refund exceed the amount of the Fire Facilities Development Impact Fee actually paid.
- B. Erroneous or Illegal Collection. Fees will be refunded if the applicant demonstrates to the satisfaction of the Director that they were erroneously or illegally collected. If the Director determines the fees were not erroneously or illegally collected, then the applicant may appeal the decision pursuant to Chapter 17.73 Appeals. An application for a refund pursuant to this Section must be filed within ninety (90) days after the payment of the fees.
- C. City Failure to Commit Funds. Pursuant to the Mitigated Fee Act, upon application of the then current landowner, fees will be refunded if the City fails to commit them to a project of the nature or type identified in the Nexus Report within five years from the date that the fees were collected from the applicant. For purposes of this subsection, fees are deemed to have been “committed” if they have been budgeted or otherwise encumbered by the City for an eligible improvement, studies, design drawings or any necessary applications for approval by other governmental agencies have been initiated, construction bidding has been initiated, or improvements are under construction. Eligible refunds, plus interest at the City’s average annual cost of funds, will be made only upon an application filed within 180 days of the expiration of the fifth anniversary of the fee payment.

17.74.110 Exemptions and credits.

- A. Exemptions. Any claim of exemption must be made no later than the time of application for a building permit or mobilehome construction approval. Any claim of exemption must be filed in the same manner and will be considered pursuant to the same procedure as for a fee adjustment as provided in this Chapter 17.73. The following shall be exempted from payment of the Fire Facilities Development Impact Fee:

1. Residential Development

- a. Alteration or expansion of an existing residential building in which no additional dwelling units are created, the use is not changed and where no additional Fire suppression/medic facilities, vehicles and specialty equipment will be provided over and above those provided by the existing building;
 - b. The replacement of a destroyed or partially destroyed building or structure with a new building or structure of the same size and use, provided that no additional Fire suppression/medic facilities, vehicles and specialty equipment will be required over and above those provided by the original use of the land;
 - c. The construction of residential accessory buildings, structures or uses which will not require additional Fire suppression/medic facilities, vehicles and specialty equipment over and above those provided by the principal building or use of the land;
 - d. The installation of a replacement mobilehome on a lot or other such site when a Fire Facilities Development Impact Fee for such mobilehome site has previously been paid pursuant to this Chapter, or where a mobilehome legally existed on such site on or prior to the effective date of the ordinance codified in this Chapter;
 - e. Construction, replacement or rebuilding of a single-family dwelling (one (1) unit per lot) on an existing lot of record, or the replacement of one (1) mobilehome with another on the same pad, or the moving and relocation of a single-family home from one (1) lot within the City to another lot within the City. This exemption shall not apply to tract development, to the development of more than one (1) unit per lot, nor to the replacement of a single-family dwelling with more than one (1) dwelling unit;
2. Affordable housing for lower income households. Property rented, leased, sold, conveyed or otherwise transferred, at a rental price or purchase price which does not exceed the "affordable housing cost," as defined in Section 50052.5 of the California Health and Safety Code when provided to a "lower income household" as defined in Section 50079.5 of the California Health and Safety Code or "very

low-income household" as defined in Section 50105 of the California Health and Safety Code. This exemption shall require the applicant to execute an agreement to guarantee that the units shall be maintained for lower and very low-income households whether as units for rent or for sale or transfer. The agreement shall be in the form of a deed restriction or other legally binding and enforceable document acceptable to the City Attorney and shall bind the owner and any successor-in-interest to the real property being developed. The agreement shall subordinate, if required, to any state or federal program providing affordable housing to lower and very low-income households. The agreement shall be recorded with the Orange County Recorder prior to the issuance of a certificate of occupancy. Applicant or any successor-in-interest shall be required to provide annually, or as requested, the names of all tenants or purchasers, current rents and income certification to insure compliance. Voluntary removal of the housing restriction or violation of the restriction shall require the applicant or any successor-in-interest to pay the then applicable Fire Facilities Development Impact Fee at the time of voluntary conversion or as imposed at the time of violation on the unit in violation, plus any attorneys' fees and costs of enforcement, if applicable;

- B. Credits. Any applicant whose development is located within a community facilities district (CFD) or , and is subject to the assessments thereof, shall receive an offset credit towards the fees established by this Chapter to the extent that the assessments fund improvements within the CFD which would otherwise be funded by the Development Impact Fees established by this Chapter.

17.74.120 Appeals. Shall be as set forth in Chapter 17.73 of this Code.

17.74.130 Credit for Construction of Non-Site-Related Improvements. Applications for credit for construction of non-fire-related improvements shall submit applicable engineering drawings, specifications and construction cost estimates or the like to the Director. The Director shall determine any credit for improvement based on either these cost estimates or alternative estimates if the Director determines reasonably that the estimates submitted by the applicant are either unreliable or inaccurate. In no event shall the amount of the credit exceed the improvement cost specified in the Nexus Report, or other applicable basis for the fee, nor shall the credit exceed the amount that would otherwise apply.

No final inspection or certificate of occupancy for the Development Project may be issued until: (1) the construction is completed and accepted by the City; (2) a suitable maintenance and warranty bond is received and accepted by the City; and (3) all design, construction, inspection, testing, bonding and acceptance procedures are in strict compliance with City paving, drainage and other applicable requirements

17.74.140 Eligible Expenditures From Fee Reserve Account. All monies and interest earnings in any Reserve Account shall be expended on projects of the nature or type identified in the Nexus Report, or such other report as may be prepared from time to time to document the

reasonable fair share of the costs to mitigate the fire suppression/medic facilities, vehicles and specialty equipment impacts of new development.

17.74.150 Annual report and amendment procedures.

- A. Within one hundred eighty (180) days after the last day of each fiscal year, the Fire Chief of the City of Huntington Beach shall evaluate progress in implementation of the Fire Facilities Development Impact Fee and shall prepare a report thereon to the City Council in accordance with Government Code Section 66006, incorporating among other things:
 - 1. The Fire facilities and equipment commenced, purchased or completed utilizing monies from the Fire Facilities Development Impact Fee fund;
 - 2. The amount of the fees collected and the interest earned;
 - 3. The amount of Fire Facilities Development Impact Fees in the fund; and
 - 4. Recommended changes to the Fire Facilities Development Impact Fee, including, but not necessarily limited to changes in this Fire Facilities Development Impact Fee chapter or the fee resolution.
- B. Based upon the report and such other factors as the City Council deems relevant and applicable, the City Council may amend the ordinance codified in this Chapter or the fee resolution implementing this Chapter. Changes to the Fire Facilities Development Impact Fee rates or schedules may be made by amending the fee resolution. Any change which increases the amount of the Fire Facilities Development Impact Fee shall be adopted by the City Council only after a noticed public hearing. Nothing herein precludes the City Council or limits its discretion to amend the ordinance codified in this Chapter or the fee resolution establishing Fire Facilities Development Impact Fee rates or schedules at such other times as may be deemed necessary.

17.74.160 Effect of Fire Facilities Development Impact Fee on zoning and subdivision regulations. This Chapter shall not affect, in any manner, the permissible use of property, density/intensity of development, design and improvement standards and public improvement requirements or any other aspect of the development of land or construction of buildings, which may be imposed by the City pursuant to the City's zoning regulations, subdivision regulations or other ordinances or regulations of the City, which shall be operative and remain in full force and effect without limitation with respect to all residential and nonresidential development.

17.74.170 Violation—Penalty. A violation of this Chapter shall be prosecuted in the same manner as misdemeanors are prosecuted; and upon conviction, the violator shall be punishable according to law. However, in addition to or in lieu of any criminal prosecution, the City shall have the power to sue in civil court to enforce the provisions of this Chapter.

17.74.180 Severability. If any section, phrase, sentence, or portion of this Chapter is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such portions shall

be deemed a separate, distinct, and independent provision; and such holding shall not affect the validity of the remaining portions thereof.

SECTION 2. This ordinance shall become effective 30 days after its adoption.

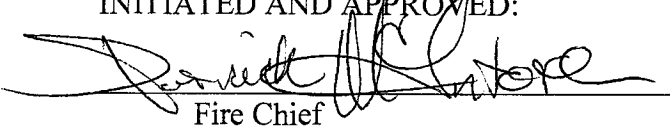
PASSED AND ADOPTED by the City Council of the City of Huntington Beach at a regular meeting thereof held on the _____ day of _____, 20__.

Mayor

ATTEST:

INITIATED AND APPROVED:

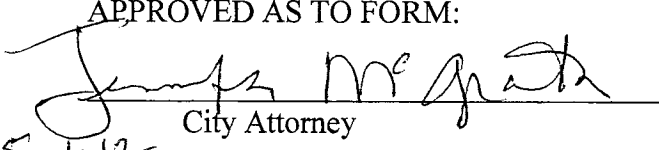
City Clerk


Fire Chief

REVIEWED AND APPROVED:

City Manager

APPROVED AS TO FORM:


City Attorney

5.1.12

ATTACHMENT #4

AN ORDINANCE OF THE CITY OF HUNTINGTON BEACH
AMENDING CHAPTER 17.65 OF THE HUNTINGTON BEACH MUNICIPAL
CODE RELATING TO TRAFFIC IMPACT FEES

The City Council of the City of Huntington Beach does hereby ordain as follows:

SECTION 1. Section 17.65.015 is hereby added to Chapter 17.65, said section to read as follows:

17.65.015 - Legislative findings.

- A. The State of California, through the enactment of Government Code Sections 66001 through 66009 has authorized the City to enact development impact fees.
- B. The imposition of development impact fees is a method of ensuring that new development bears a proportionate share of the cost of capital facilities and other costs necessary to accommodate such development. These fees are established to promote and protect the public health, safety and welfare.
- C. Increase in residential and nonresidential development in the City creates a need for increased funds to pay for the cost of street, traffic signal and bridge improvements which are needed to serve the increasing development in the City.
- D. Pursuant to the "Development Impact Fee Calculation and Nexus Report for the City of Huntington Beach" ("Nexus Report") dated October, 2011, as amended April 27, 2012, which is incorporated herein by reference in these findings as though set forth in full, the fees established pursuant to this Chapter are derived from, based upon, and do not exceed the costs of providing additional street, traffic signal and bridge improvements attributable to applicable new residential or nonresidential development. This study is based in part upon master planning to more specifically identify existing circulation system elements.
- E. The fees collected pursuant to this Chapter shall be used to finance the possible acquisition and expansion of circulation systems identified herein in furtherance of the City's General Plan, as well as the Master Facilities Plan which is part of the Nexus Plan and the City of Huntington Beach Capital Improvement Plan.
- F. Detailed study of the impacts of future residential and nonresidential construction in the City, along with an analysis of the need for the potential acquisition and expansion of circulation systems has been prepared. This study is included in the Nexus Report.

- G. As set forth in the Nexus Report, there is a reasonable relationship between the need for the potential acquisition and expansion of existing circulation system elements and increase the number of vehicles set forth in this Chapter and the impacts of the types of development for which the corresponding fee is charged. In addition, there is a reasonable relationship between the fee's use and the type of development to which the fee is charged and a reasonable relationship between the amount of the fee and the cost of the system or portion thereof attributable to the development on which the fee is imposed.

SECTION 2. Sections 17.65.050, 17.64.070, 17.65.090, 17.65.100, and 17.65.120 of the Huntington Beach Municipal Code are hereby amended to read as follows:

17.65.050 Establishment of a Fair Share Traffic Impact Mitigation Fee. A Fair Share Traffic Impact Mitigation Fee is hereby established. Any person who, 60 days after the effective date of this Chapter, seeks to develop land, or modify the use of land within the City, by applying for a building permit or other entitlement for use, or an extension of a building permit or other entitlement for use previously granted, for a development project that will generate net additional vehicle trips on City streets, is hereby required to pay a Fair Share Traffic Impact Mitigation Fee in the manner and amount specified in the current City of Huntington Beach Fee Resolution separately adopted.

The City Council shall, by resolution, set the specific amount of the fee, applicability of the fee, a formula for adjusting the fee to account for annual inflation in transportation improvement construction costs, describe the benefit and impact area on which the development impact fee is imposed, list the specific public improvements to be constructed, and describe the estimated cost of these facilities.

This fee shall be adjusted as provided in the resolution setting the specific amount of the Fee.

17.65.070 Calculation and Payment of the Traffic Impact Fee

- (a) **Fee Calculation.** The Public Works Director shall be responsible for calculating the Fair Share Traffic Impact Mitigation Fee required by this Chapter, in accordance with the Fair Share Traffic Impact Mitigation Fee Schedule adopted by resolution of the City Council. The applicable amount of the fee shall be estimated at least 60 days prior to the first public hearing for any discretionary planning approvals required by City Zoning and Subdivision Ordinance. The estimated fee shall identify the use category, the vehicle trip-miles for the use and the total estimated for fee based upon the proposed size of the developments. The fee estimated shall be recalculated as needed at the time a building permit is issued, based on the vehicle trip generation characteristics of the final development plan for which the building permit is issued.
- (b) **Payment Procedure for Commercial or Industrial Development Projects.** Fees required by this Chapter from a New Commercial or Industrial Development Project shall be paid at the time that the City issues a building permit for the Project. (
- (c) **Payment Procedure for Residential Development Projects.** The fee required by this Chapter from a New Residential Development Project shall be paid before final inspection of the dwelling unit on which the fee was imposed. However, the Planning Director may adopt procedures to advance the time the fee is due on Residential Development Projects consistent with *Government Code* Section 66007, as amended.

- (d) **Fee Payments for Phased Development Projects.** If a Development Project will be constructed in phases, and separate building permits and certificates of occupancy will be issued for each phase, fees imposed pursuant to this Chapter shall be calculated on the basis of the vehicle trip characteristics of the entire Development Project. Payment of the fees may be made separately for each phase, provided the amount paid for each phase shall be equal to the percentage that the vehicle trips for that phase represent of the total development project's vehicle trips. The fee per vehicle trip shall be the fee in effect at the time payment is due. (3827-4/09, 3879-6/10)
- (e) **Deposit of Fees.** All Traffic Impact Fees collected shall be transferred for deposit into a separate reserve account, as specified in this Chapter, and used solely for the purposes specified in this Chapter. (3827-4/09, 3879-6/10)

17.65.090 Fee Refunds. Upon application, fees collected by the City pursuant to this Chapter shall be refunded only under the following circumstances:

- (a) **Erroneous or Illegal Collection.** Fees will be refunded if the applicant demonstrates to the satisfaction of the Public Works Director that they were erroneously or illegally collected, or if the City is compelled to do so pursuant to a final judgment by a court of competent jurisdiction. An application for a refund pursuant to this Section shall be filed within ninety (90) days after the payment of the fees pursuant to Section 17.65.070.
- (b) **City Failure to Commit Funds.** Pursuant to Government Code Section 66001(e), fees will be refunded if the City fails to commit them to a surface transportation improvement project of the nature or type identified in the Master Facilities Plan, which is part of the Nexus Report, within five years from the date that the fees were collected from the applicant. For purposes of this subsection, fees are deemed to have been "committed" if they have been budgeted or otherwise encumbered by the City for an eligible improvement, studies, design drawings or any necessary applications for approval by other governmental agencies have been initiated, construction bidding has been initiated, or improvements are under construction. Eligible refunds, plus interest at the City's average annual cost of funds, will be made only upon an application filed within 180 days of the expiration of the fifth anniversary of the fee payment.

17.65.100 Fee Credits for Construction of Citywide Surface Transportation Improvements

- (a) An applicant for a New Development project shall be entitled to a credit against the amount of the Master Facilities Plan otherwise required by this Chapter, if the applicant agrees to dedicate right-of-way needed for, or construct a traffic improvement listed in the Master Facilities Plan. No credit shall be given for site-related improvements or site-related right-of-way dedications.
- (b) **Application.** A separate application shall be filed for each adjustment request made pursuant to this Section. Such application shall be filed with the Public Works Director on a form provided by the Director, not later than:
 - (1) Thirty (30) days prior to the first public hearing on an applicable discretionary permit application for the development project, pursuant to the City Zoning and Subdivision Ordinance; or
 - (2) If no such discretionary permit is required, at the time of application for a building permit for the development project. Each application shall provide the documentation and assurances specified below.

Any credit application shall be considered pursuant to Section 17.65.070 in the same manner as the fee calculation adjustment.

- (c) **Credit for the Dedication of Non-Site-Related Right-of-Way.** Credit for the dedication of non-site-related right-of-way for streets or street segments listed in the Master Facilities Plan shall be valued at 115 percent of the most recent assessed value as determined by the Orange County Assessor, or at the fair market value established by a private appraiser acceptable to the City. In no event shall the credit exceed the right-of-way costs for the street segment specified in the Master Facilities Plan or other applicable basis for the fee, nor shall the credit exceed the amount of the Fair Share Traffic Impact Mitigation Fee that would otherwise apply. Credit for the dedication shall be provided when the property has been conveyed at no cost to, and accepted by, the City in a manner specified by the City.
- (d) **Credit for Construction of Non-Site-Related Improvements.** Applications for credit for construction of non-site-related improvements shall submit acceptable engineering drawings, specifications and construction cost estimates to the Public Works Director. The Director shall recommend to the Planning Commission the amount of the credit for improvement construction based on either these cost estimates or alternative estimates if the Director determines reasonably that the estimates submitted by the applicant are either unreliable or inaccurate. In no event shall the amount of the credit exceed the improvement cost specified in the Master Facilities Plan, or other applicable basis for the fee, nor shall the credit exceed the amount of the Fair Share Traffic Impact Mitigation Fee that would otherwise apply.

No final inspection or certificate of occupancy for the Development Project may be issued until: (1) the construction is completed and accepted by the City; (2) a suitable maintenance and warranty bond is received and accepted by the City; and (3) all design, construction, inspection, testing, bonding and acceptance procedures are in strict compliance with City paving, drainage and other applicable requirements.

17.65.120 Eligible Expenditures From Fee Reserve Account. All monies and interest earnings in the Reserve Account established by this Chapter shall be expended on the construction of surface transportation projects of the nature or type identified in the Master Facilities Plan, or such other report as may be prepared from time to time to document the reasonable fair share of the costs to mitigate the traffic impacts of new development. Such expenditures may include, but are not necessarily limited to the following:

- (a) Reimbursement for all direct and indirect costs incurred by the City to construct surface transportation improvements pursuant to this Chapter, including the cost of land and right-of-way acquisition, planning, legal advice, engineering, design, construction and equipment.
- (b) Reimburse the City for the construction of surface transportation projects of the nature or type identified in the Master Facilities Plan, or such other report as may be prepared from time to time to document the reasonable fair share of the costs to mitigate the traffic impacts of new development constructed by the City with local funds from other sources.
- (c) Costs of issuance or debt service associated with bonds, notes or other security instruments issued to fund surface transportation improvements identified in the Master Facilities Plan.
- (d) Reimbursement for administrative costs incurred by the City in establishing or maintaining the Reserve Account required by this Chapter, including the cost of studies to establish the

requisite nexus between the fee amount and the use of fee proceeds. City administrative costs shall not exceed ten (10) percent of the Reserve Account balance in any fiscal year.

- (e) No Reserve Account funds shall be used to pay for capital improvements that are associated with existing arterial street segment or signalized intersection Level of Service deficiencies, except to the extent that new development contributes to the further degradation of operations, nor shall Reserve Account funds be used for periodic surface transportation system maintenance.

SECTION 3. Sections 17.65.030, 17.65.040, and 17.65.080 are hereby deleted in entirety from this chapter.

SECTION 4. Section 17.65.050 is hereby added to this chapter, said section to read as follows:

17.65.150 Severability. If any section, phrase, sentence, or portion of this Chapter is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such portions shall be deemed a separate, distinct, and independent provision; and such holding shall not affect the validity of the remaining portions thereof.

SECTION 5. All other sections of Chapter 17.65 not modified by this ordinance shall remain in full force and effect.

SECTION 6. This ordinance shall become effective 30 days after its adoption.

PASSED AND ADOPTED by the City Council of the City of Huntington Beach at a regular meeting thereof held on the _____ day of _____, 20__.

Mayor

ATTEST:

INITIATED AND APPROVED:

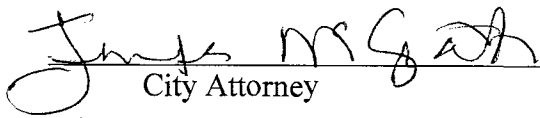
City Clerk


Director of Public Works

REVIEWED AND APPROVED:

APPROVED AS TO FORM:

City Manager


City Attorney

5.1.12

ORDINANCE NO. 3944

LEGISLATIVE DRAFT

Chapter 17.65

FAIR SHARE TRAFFIC IMPACT FEE

(3048-9/90, 3477-11/00, 3617-10/03, 3827-4/09, 3879-6/10)

Note: Ordinance No. 3827 (expired 4/15/10) and Ordinance No. 3879, effective from 5/3/10 to 5/3/11, temporarily defer the payment of certain Development Impact Fees.

Sections:

17.65.010 Short Title

17.65.015 - Legislative findings.

17.65.020 Intent and Purposes

17.65.030 Definitions

17.65.040 Applicability of Chapter

17.65.050 Establishment of a Fair Share Traffic Impact Mitigation Fee

17.65.060 Exemption

17.65.070 Calculation and Payment of the Traffic Impact Fee

17.65.080 Fee Adjustments

17.65.090 Fee Refunds

17.65.100 Fee Credits for Construction of Citywide Surface Transportation Improvements

17.65.110 Establishment of Reserve Account for Fees

17.65.120 Eligible Expenditures From Fee Reserve Account

17.65.130 Annual Program Review and Periodic Adjustment of the Fee

17.65.140 Preparation of Implementation Guidelines

17.65.150 Severability.

17.65.010 Short Title

This Chapter of the Municipal Code may be cited as the "Fair Share Traffic Impact Fee Ordinance".

17.65.015 - Legislative findings.

A. The State of California, through the enactment of Government Code Sections 66001 through 66009 has authorized the City to enact development impact fees.

B. The imposition of development impact fees is a method of ensuring that new development bears a proportionate share of the cost of capital facilities and other costs necessary to accommodate such development. These fees are established to promote and protect the public health, safety and welfare.

C. Increase in residential and nonresidential development in the City creates a need for increased funds to pay for the cost of street, traffic signal and bridge improvements which are needed to serve the increasing development in the City.

D. Pursuant to the "Development Impact Fee Calculation and Nexus Report for the City of

Huntington Beach” (“Nexus Report”) dated October, 2011, as amended April 27, 2012, which is approved and incorporated herein by reference in these findings as though set forth in full, the fees established pursuant to this Chapter are derived from, based upon, and do not exceed the costs of providing additional street, traffic signal and bridge improvements attributable to new residential or nonresidential construction. This study is based in part upon master planning to more specifically identify existing circulation system elements.

- E. The fees collected pursuant to this Chapter shall be used to finance the possible acquisition and expansion of circulation systems identified herein in furtherance of the City’s General Plan, as well as the Master Facilities Plan which is part of the Nexus Plan and the City of Huntington Beach Capital Improvement Plan.
- F. Detailed study of the impacts of future residential and nonresidential construction in the City, along with an analysis of the need for the potential acquisition and expansion of circulation systems has been prepared. This study is included in the Nexus Report.
- G. As set forth in the Nexus Report, there is a reasonable relationship between the need for the potential acquisition and expansion of existing circulation system elements and increase the number of vehicles set forth in this Chapter and the impacts of the types of development for which the corresponding fee is charged. In addition, there is a reasonable relationship between the fee's use and the type of development to which the fee is charged and a reasonable relationship between the amount of the fee and the cost of the system or portion thereof attributable to the development on which the fee is imposed.

17.65.020 Intent and Purposes

This Chapter is intended to implement the goals, objectives and policies of the City of Huntington Beach General Plan, by ensuring that the City’s adopted Level of Service standards for arterial roadways and signalized intersections are maintained when new development is constructed within the City limits. By imposing a fee that is reasonably related to the burdens created by new development on the City’s surface transportation system, together with funding available from other City revenue sources, the City will be able to construct the required capital improvements, accommodate projected growth and fulfill the goals, objectives and policies of the City’s General Plan.

It is the intent of the City Council that the fee required by this Chapter shall be supplementary to any conditions imposed upon a development project pursuant to other provisions of the Municipal Code, the Subdivision Map Act, the California Environmental Quality Act, other state and local laws, ordinances or Charter provisions which may authorize the imposition of conditions on development.

17.65.030 Definitions See Chapter 17.73 of this Code

For the purpose of this Chapter, the following terms shall be defined as follows:

- (a) “Applicant” shall mean any person or legal entity that applies for a permit or other entitlement for a new development project.

- ~~(b)~~ “City” shall mean the City of Huntington Beach.
- (c) “Commercial or Industrial Development Project” shall mean the construction of new Floor Area on a lot in any of the Non-Residential Zoning Districts of the City.
- (d) “Development Project” means any residential, commercial or industrial Development Project.
- (e) “Fair Share Traffic Impact Mitigation Fee” or “Fee” shall mean the fee imposed on new development projects pursuant to this Chapter.
- (f) “Floor Area” shall mean the area of all floors and levels as defined in the Huntington Beach Building Code.
- (g) “Government or Public Facilities” shall mean publicly owned buildings and structures used for the purposes of conducting City, County, State or Federal Government business. Such facilities shall include, but not be limited to, city halls, police and fire stations, offices, equipment yards, sanitation facilities, schools, recreation centers, and similar facilities. Private commercial Development Projects leasing publicly owned land shall not be considered Government or Public Facilities.
- (h) “Land Use Category” shall mean any of the specific land uses that have been listed in the fair share implementation resolution authorized pursuant to Section 17.65.050, and used to provide the basis for future traffic projections.
- (i) “New Development Project” shall mean any construction, addition, alteration or other change of use of a building or land that requires the City to issue a grading, building, plumbing, mechanical, or electrical permit, or any other form of entitlement.
- (j) “Public Works Director” shall mean the Director of Public Works or the Director’s designee.
- (k) “Residential Development Project” shall mean the construction of a dwelling unit on a lot in any of the residential zoning districts of the City. For purposes of this Chapter, the addition of Floor Area shall be considered construction of a Residential Development Project if the additional Floor Area exceeds fifty (50) percent of the existing Floor Area, as determined by the Building and Safety Director.
- (l) “Site-Related Right-of-Way or Improvement Construction” shall mean right-of-way or traffic improvements that must be constructed on the site of a new development project in order to comply with applicable City development regulations and standards.
- (m) “Surface Transportation System” shall mean the City’s system of streets, roads and intersections traversed by automobiles and other vehicles.
- (n) “Fee Calculation Report” shall mean the report entitled “City of Huntington Beach Fair Share Traffic Mitigation Impact Fee Calculation Method and Justification” prepared by Hamilton, Rabinovitz & Alschuler, dated September 19, 2000.
- ~~(o)~~ “Transportation System Needs Analysis” shall mean the report prepared for the City entitled *City of Huntington Beach Transportation System Needs Analysis 2000-2010*, prepared by JR Consulting Engineers, dated September 12, 2000.

- (p) “Vehicle Trips” shall mean the number of average, daily trips generated by uses of land, as specified in the Santa Ana River Area (“SARA”) traffic model, and at the discretion of the Public Works Director when the SARA traffic model does not provide vehicle trips, the most recent edition of Institute of Transportation Engineers, *Trip Generation*.

17.65.040 Applicability of Chapter

- (a) ~~New Development Projects Deemed Complete After December 1, 2000~~New Development Projects Deemed Complete After December 1, 2012. The obligations established by this Chapter shall apply to all new development projects for which a development application was deemed complete on or after December 1, 2000~~May 1, 2012~~. No building permit or any other entitlement for use shall be issued for a new development project unless such project complies with the requirements of this Chapter.
- (b) ~~New Development Projects Deemed Complete Prior to December 1, 2000~~New Development Projects Deemed Complete Prior to December 1, 2012. New development projects for which the last discretionary development application was deemed complete, or for which a building permit was issued, prior to December 1, 2000~~May 1, 2012~~ shall be subject to the provisions of Municipal Code Chapter 17.65 or the Interim Traffic Impact Fee Ordinance as either existed on the date the application was deemed approved, or the building permit was issued, as applicable.

17.65.050 Establishment of a Fair Share Traffic Impact Mitigation Fee. A Fair Share Traffic Impact Mitigation Fee is hereby established. Any person who, 60 days after the effective date of this Chapter, seeks to develop land, or modify the use of land within the City, by applying for a building permit or other entitlement for use, or an extension of a building permit or other entitlement for use previously granted, for a development project that will generate net additional vehicle trips on City streets, is hereby required to pay a Fair Share Traffic Impact Mitigation Fee in the manner and amount specified in the current City of Huntington Beach Fee Resolution separately adopted herein.

The City Council shall, by resolution, set the specific amount of the fee, applicability of the fee, a formula for adjusting the fee to account for annual inflation in transportation improvement construction costs, describe the benefit and impact area on which the development impact fee is imposed, list the specific public improvements to be constructed, and describe the estimated cost of these facilities, ~~and describe the reasonable relationship that exists between the fee, the various types of new development permitted in the City and the cost of improvements necessitated by new development.~~ The specific amount of the fee shall be based upon the category for the development, multiplied by the vehicle trip for Land Use Category multiplied by the size of the use.

This fee shall be adjusted as provided in the resolution setting the specific amount of the Fee. ~~on December 1, 2001~~May 1, 2013, and annually thereafter by an amount equal to the change in the construction cost index for the preceding year, as determined by the *Engineering News Record*, published by the McGraw Hill.

17.65.060 Exemptions

- (a) **Exemption Categories.** The following development projects shall be exempt from the requirements of this Chapter:

- (1) Government and public facilities.
 - (2) Alteration or expansion of an existing building in which no additional dwelling units are created, the use is not changed, and where no additional vehicle trips will be produced over and above those produced by the existing building.
 - (3) The construction of accessory buildings, structures or uses which will not produce additional vehicular trips over and above those produced by the principal building or use of the land.
 - (4) The replacement of a destroyed or partially destroyed building or structure with a new building or structure of the same size and use, provided that no additional vehicle trips will be produced over and above those produced by the original use of the land.
- (b) **Claim for Exemption Required.** Any claim of exemption must be filed in the same manner and will be considered pursuant to the same procedure as for a fee adjustment as provided in Section 17.65080(c).

17.65.070 Calculation and Payment of the Traffic Impact Fee

Note: Ordinance No. 3827 (expired 4/15/10) and Ordinance No. 3879, effective from 5/3/10 to 5/3/11, temporarily defer the payment of certain Development Impact Fees.

- (a) **Fee Calculation.** The Public Works Director shall be responsible for calculating the Fair Share Traffic Impact Mitigation Fee required by this Chapter, in accordance with the Fair Share Traffic Impact Mitigation Fee Schedule adopted by resolution of the City Council. The applicable amount of the fee shall be estimated at least 60 days prior to the first public hearing for any discretionary planning approvals required by City Zoning and Subdivision Ordinance. The estimated fee shall identify the use category, the vehicle ~~trip~~trip-strip-miles for the use and the total estimated for fee based upon the proposed size of the developments. The fee estimated shall be recalculated as needed at the time a building permit is issued, based on the vehicle trip generation characteristics of the final development plan for which the building permit is issued. (3827-4/09, 3879-6/10)

Note: Ordinance No. 3827 (expired 4/15/10) and Ordinance No. 3879, effective from 5/3/10 to 5/3/11, temporarily defer the payment of certain Development Impact Fees.

- (b) **Payment Procedure for Commercial or Industrial Development Projects.** Fees required by this Chapter from a New Commercial or Industrial Development Project shall be paid at the time that the City issues a building permit for the Project. (3827-4/09, 3879-6/10)

Note: Ordinance No. 3827 (expired 4/15/10) and Ordinance No. 3879, effective from 5/3/10 to 5/3/11, temporarily defer the payment of certain Development Impact Fees.

- (c) **Payment Procedure for Residential Development Projects.** The fee required by this Chapter from a New Residential Development Project shall be paid before final inspection of the dwelling unit on which the fee was imposed. However, the Planning Director may adopt procedures to advance the time the fee is due on Residential Development Projects consistent with *Government Code* Section 66007, as amended. (3827-4/09, 3879-6/10)

Note: Ordinance No. 3827 (expired 4/15/10) and Ordinance No. 3879, effective from 5/3/10 to 5/3/11, temporarily defer the payment of certain Development Impact Fees.

- (d) **Fee Payments for Phased Development Projects.** If a Development Project will be

constructed in phases, and separate building permits and certificates of occupancy will be issued for each phase, fees imposed pursuant to this Chapter shall be calculated on the basis of the vehicle trip characteristics of the entire Development Project. Payment of the fees may be made separately for each phase, provided the amount paid for each phase shall be equal to the percentage that the vehicle trips for that phase represent of the total development project's vehicle trips. The fee per vehicle trip shall be the fee in effect at the time payment is due. (3827-4/09, 3879-6/10)

Note: Ordinance No. 3827 (expired 4/15/10) and Ordinance No. 3879, effective from 5/3/10 to 5/3/11, temporarily defer the payment of certain Development Impact Fees.

- (e) **Deposit of Fees.** All Traffic Impact Fees collected shall be transferred for deposit into a separate reserve account, as specified in this Chapter, and used solely for the purposes specified in this Chapter. (3827-4/09, 3879-6/10)

Note: Ordinance No. 3827 (expired 4/15/10) and Ordinance No. 3879, effective from 5/3/10 to 5/3/11, temporarily defer the payment of certain Development Impact Fees.

17.65.080 Fee Adjustments See Chapter 17.73

- (a) An applicant for a New Development Project subject to a fee required by this Chapter may apply to the City for a reduction, adjustment or waiver of the fee.

- (b) **Circumstances That May Justify a Fee Adjustment.** Examples of circumstances that may justify a fee adjustment include, but are not necessarily limited to the following:

- (1) The Development Project includes an existing building that is proposed to be demolished, provided the building proposed to be demolished was capable of being used at the time of the Development Project application, and sufficient information about its prior use is available to determine its trip generation characteristics. Any such adjustment is limited to the amount of the fee that would otherwise be due for the New Development Project.
- (2) The physical or operating characteristics (e.g., hours of operation) of the New Development Project produce trip generation characteristics that are substantially different from the land use on which the fee calculation is based.
- (3) The New Development Project includes multiple land uses whose trip generation characteristics are complementary, such that the Development Project's total trip generation is anticipated to be less than the sum of the vehicle trips associated with its individual land uses.

- (c) An application for a fee adjustment shall be made and decided as follows:

- (1) **Application.** A separate application shall be filed for each adjustment request made pursuant to this Section. Such application shall be made on a form provided by the Public Works Director and shall be filed with the Public Works Director not later than:

- (A) thirty (30) days prior to the first public hearing on an applicable discretionary permit application for the Development Project, pursuant to the City Zoning and Subdivision Ordinance; or
- (B) if no such discretionary permit is required, at the time of application for a building permit for the Development Project. Each application shall state in

~~detail the factual basis for the requested fee reduction, adjustment or waiver. The Public Works Director shall determine if the application is complete, and if not, may cause the public hearing to be continued until the application is determined to be complete.~~

- (2) **Hearing** ~~The Planning Commission or the Zoning Administrator shall consider the fee adjustment application at the same public hearing as the application for a discretionary development permit for the Development Project, or, if no such permit is required, the Public Works Commission shall consider the application at a separate hearing within (sixty) 60 days after the fee adjustment application is deemed complete by the Public Works Director.~~
- (3) **Appeal** ~~Any person may appeal the decision of the Planning Commission, Zoning Administrator or Public Works Commission to the City Council, by filing a written appeal with the City Clerk within ten (10) days of the Planning Commission's decision.~~

17.65.090 Fee Refunds

Upon application, fees collected by the City pursuant to this Chapter shall be refunded only under the following circumstances:

- (a) **Erroneous or Illegal Collection**. Fees will be refunded if the applicant demonstrates to the satisfaction of the Public Works Director that they were erroneously or illegally collected, or if the City is compelled to do so pursuant to a final judgment by a court of competent jurisdiction. An application for a refund pursuant to this Section shall be filed within ninety (90) days after the payment of the fees pursuant to Section 17.65.070.
- (b) **City Failure to Commit Funds**. Pursuant to Government Code Section 66001(e), fees will be refunded if the City fails to commit them to a surface transportation improvement project of the nature or type identified in the ~~Transportation System Needs Analysis~~Master Facilities Plan, which is a part of the Nexus Report, within five years from the date that the fees were collected from the applicant. For purposes of this subsection, fees are deemed to have been "committed" if they have been budgeted or otherwise encumbered by the City for an eligible improvement, studies, design drawings or any necessary applications for approval by other governmental agencies have been initiated, construction bidding has been initiated, or improvements are under construction. Eligible refunds, plus interest at the City's average annual cost of funds, will be made only upon an application filed within 180 days of the expiration of the fifth anniversary of the fee payment.

17.65.100 Fee Credits for Construction of Citywide Surface Transportation Improvements

- (a) An applicant for a New Development project shall be entitled to a credit against the amount of the Fair Share Traffic Impact Mitigation Fee otherwise required by this Chapter, if the applicant agrees to dedicate right-of-way needed for, or construct a traffic improvement listed in, the ~~Transportation System Needs Analysis~~Master Facilities Plan. No credit shall be given for site-related improvements or site-related right-of-way dedications.
- (b) **Application**. A separate application shall be filed for each adjustment request made pursuant to this Section. Such application shall be filed with the Public Works Director on a form provided by the Director, not later than:

- (1) Thirty (30) days prior to the first public hearing on an applicable discretionary permit application for the development project, pursuant to the City Zoning and Subdivision Ordinance; or
- (2) If no such discretionary permit is required, at the time of application for a building permit for the development project. Each application shall provide the documentation and assurances specified below.

Any credit application shall be considered pursuant to Section 17.65.070 in the same manner as the fee calculation adjustment.

- (c) **Credit for the Dedication of Non-Site-Related Right-of-Way.** Credit for the dedication of non-site-related right-of-way for streets or street segments listed in the ~~Transportation System Needs Analysis~~Master Facilities Plan shall be valued at 115 percent of the most recent assessed value as determined by the Orange County Assessor, or at the fair market value established by a private appraiser acceptable to the City. In no event shall the credit exceed the right-of-way costs for the street segment specified in the ~~Transportation System Needs Analysis~~Master Facilities Plan, or other applicable basis for the fee, nor shall the credit exceed the amount of the Fair Share Traffic Impact Mitigation Fee that would otherwise apply. Credit for the dedication shall be provided when the property has been conveyed at no cost to, and accepted by, the City in a manner specified by the City.
- (d) **Credit for Construction of Non-Site-Related Improvements.** Applications for credit for construction of non-site-related improvements shall submit acceptable engineering drawings, specifications and construction cost estimates to the Public Works Director. The Director shall recommend to the Planning Commission the amount of the credit for improvement construction based on either these cost estimates or alternative estimates if the Director determines reasonably that the estimates submitted by the applicant are either unreliable or inaccurate. In no event shall the amount of the credit exceed the improvement cost specified in the ~~Transportation System Needs Analysis~~Master Facilities Plan, or other applicable basis for the fee, nor shall the credit exceed the amount of the Fair Share Traffic Impact Mitigation Fee that would otherwise apply.

No final inspection or certificate of occupancy for the Development Project may be issued until: (1) the construction is completed and accepted by the City; (2) a suitable maintenance and warranty bond is received and accepted by the City; and (3) all design, construction, inspection, testing, bonding and acceptance procedures are in strict compliance with City paving, drainage and other applicable requirements.

17.65.110 Establishment of Reserve Account for Fees

Pursuant to *Government Code* Section 66006, fees paid to the City pursuant to this Chapter shall be deposited into a separate Reserve Account in the City's General Fund and used solely for the purposes of providing surface transportation improvements. All monies deposited into the Reserve Account established by this Chapter shall be held separate and apart from other City funds. All interest or other earnings on the unexpended balance in the Reserve Account shall be credited to the Reserve Account.

17.65.120 Eligible Expenditures From Fee Reserve Account

All monies and interest earnings in the Reserve Account established by this Chapter shall be expended on the construction of surface transportation projects of the nature or type identified in

the ~~Transportation System Needs Analysis~~ Master Facilities Plan, or such other report as may be prepared from time to time to document the reasonable fair share of the costs to mitigate the traffic impacts of new development. Such expenditures may include, but are not necessarily limited to the following:

- (a) Reimbursement for all direct and indirect costs incurred by the City to construct surface transportation improvements pursuant to this Chapter, including the cost of land and right-of-way acquisition, planning, legal advice, engineering, design, construction and equipment.
- (b) Reimburse the City for the construction of surface transportation projects of the nature or type identified in the ~~Transportation System Needs Analysis~~ Master Facilities Plan, or such other report as may be prepared from time to time to document the reasonable fair share of the costs to mitigate the traffic impacts of new development constructed by the City with local funds from other sources.
- (c) Costs of issuance or debt service associated with bonds, notes or other security instruments issued to fund surface transportation improvements identified in the ~~Transportation System Needs Analysis~~ Master Facilities Plan.
- (d) Reimbursement for administrative costs incurred by the City in establishing or maintaining the Reserve Account required by this Chapter, including the cost of studies to establish the requisite nexus between the fee amount and the use of fee proceeds. City administrative costs shall not exceed ten (10) percent of the Reserve Account balance in any fiscal year.
- (e) No Reserve Account funds shall be used to pay for capital improvements that are associated with existing arterial street segment or signalized intersection Level of Service deficiencies, except to the extent that new development contributes to the further degradation of operations, nor shall Reserve Account funds be used for periodic surface transportation system maintenance.

17.65.130 Annual Program Review and Periodic Adjustment of the Fee

Within 180 days after the last day of each fiscal year, the City Council shall review the status of compliance with this Chapter, including the amount of fees collected, expenditures from the Reserve Account, and the degree to which the fees collected pursuant to this Chapter are assisting the City to mitigate the surface transportation impacts of new development. At least every five (5) years after the effective date of the Ordinance enacting this Chapter, the Public Works Director shall prepare, and the City Council shall consider, the fee formula established to implement this Chapter, whether any adjustment in the fee formula or use of fee proceeds is warranted, or any other changes are needed to the procedures established by this Chapter, to fulfill the goals, objectives or policies of the City's General Plan. Each year between periodic reviews of the fee formula, the fee shall be increased by a factor to account for inflation in surface transportation construction costs, as provided in the City Council resolution setting the fee amount. (3617-10/03)

17.65.140 Preparation of Implementation Guidelines

Within sixty (60) days after the effective date of the Ordinance enacting this Chapter, the Director of Public Works shall prepare administrative guidelines to implement the provisions of this Chapter. The guidelines shall include administrative procedures, example fee calculations, application forms and such other information that will assist City staff, decision makers,

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DELETIONS	Strikethrough

developers and the public to understand how the provisions of this Chapter are to be implemented.”

17.65.150 Severability. If any section, phrase, sentence, or portion of this Chapter is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such portions shall be deemed a separate, distinct, and independent provision; and such holding shall not affect the validity of the remaining portions thereof.

ATTACHMENT #5

ORDINANCE NO. 3945

AN ORDINANCE OF THE CITY OF HUNTINGTON BEACH
DELETING CHAPTER 17.66 OF THE HUNTINGTON BEACH MUNICIPAL
CODE AND ADDING CHAPTER 17.67 RELATING TO LIBRARY
DEVELOPMENT IMPACT FEES

The City Council of the City of Huntington Beach does hereby ordain as follows:

SECTION 1. Chapter 17.66 of the Huntington Beach Municipal Code is hereby deleted in its entirety.

SECTION 2. Chapter 17.67 is hereby added to the Huntington Beach Municipal Code said Chapter to read as follows:

Chapter 17.67

LIBRARY DEVELOPMENT IMPACT FEES

Sections:

- 17.67.010 Intent and Purpose
- 17.67.015 Legislative Finding
- 17.67.020 Definitions
- 17.67.030 Establishment of a Library Development Impact Fee
- 17.67.035 Fund Established
- 17.67.036 Fee imposed.
- 17.67.040 Exemptions and Credits
- 17.67.045 Calculation of Required Fees
- 17.67.050 Payment of Fees
- 17.67.055 Fee Payments for Phased Development Projects
- 17.67.060 Refund
- 17.67.065 Use of Funds
- 17.67.070 Fee Adjustments
- 17.67.072 Appeals
- 17.67.075 Credit for Construction of Non-Site-Related Improvements
- 17.67.080 Eligible Expenditures From Fee Reserve Account.
- 17.67.090 Annual report and amendment procedures.
- 17.67.100 Effect of Library Development Impact Fee on zoning and subdivision regulations.
- 17.67.110 Violation—Penalty.
- 17.67.120 Severability.

17.67.010 Intent and Purpose. The purpose of this Chapter is to establish a Library Development Impact Fee upon future Development Projects, an equitable share of the cost of mitigating future Library Facility needs created by such projects.

A Library Development Impact Fee is being created for the purpose of assuring that the impacts created by new developments in the City of Huntington Beach pay a fair share of the proportional costs required for expansion of library facilities and collections.

This Chapter is intended to implement the goals, objectives and policies of the City of Huntington Beach General Plan, as well as following recommendations in the Master Facilities Plan, a part of the Nexus Report (as described below), and the City of Huntington Beach Capital Improvement Plan by ensuring that the City's expansion of library facilities and collections are maintained when new development is constructed within the City limits. By imposing a fee that is reasonably related to the burdens created by new development on the City's Library Services, together with funding available from other City revenue sources, the City will be able to construct the required capital improvements, accommodate projected growth and fulfill the goals, objectives and policies of the City's General Plan and Master Facilities Plan a part of the Nexus Report6.

It is the intent of the City Council that the fee required by this Chapter shall be supplementary to any conditions imposed upon a development project pursuant to other provisions of the Municipal Code, the Subdivision Map Act, the California Environmental Quality Act, other state and local laws, ordinances or chapter provisions which may authorize the imposition of conditions on development.

17.67.015 Legislative Findings.

- A. The State of California, through the enactment of Government Code Sections 66001 through 66009 has authorized the City to enact development impact fees.
- B. The imposition of development impact fees is a method of ensuring that new development bears a proportionate share of the cost of capital facilities and other costs necessary to accommodate such development. These fees are established to promote and protect the public health, safety and welfare.
- C. Increase in residential development in the City increases the demand on the amount of library space and collection items.
- D. Pursuant to the "Development Impact Fee Calculation and Nexus Report for the City of Huntington Beach" ("Nexus Report") dated October, 2011, as amended April 27, 2012, which is incorporated herein by reference in these findings as though set forth in full, the fees established pursuant to this Chapter are derived from, based upon, and do not exceed the costs of providing additional library services attributable to applicable new residential development. This study is based in part upon master planning to more specifically identify capital facilities to serve new development; the expansion of the amount of library facilities space and the number of collection items in the systems.

- E. The fees collected pursuant to this Chapter shall be used to finance the expansion of library facilities and collections identified herein in furtherance of the City's General Plan, as well as the Master Facilities Plan which is a part of the Nexus Report and the City of Huntington Beach Capital Improvement Plan.
- F. A detailed study of the impacts of future residential construction in the City, along with an analysis of the need for the expansion of library facilities and collections has been prepared. This study is included in the Nexus Report.
- G. As set forth in the Nexus Report, there is a reasonable relationship between the need for the expansion of library facilities and collections set forth in this Chapter and the impacts of the types of development for which the corresponding fee is charged. In addition, there is a reasonable relationship between the fee's use and the type of development to which the fee is charged and a reasonable relationship between the amount of the fee and the cost of the facilities and collections or portion thereof attributable to the development on which the fee is imposed.

17.67.020 Definitions. Shall be as set forth in Chapter 17.73 of this Code

17.67.030 Establishment of a Library Development Impact Fee. There is imposed a Library Development Impact Fee on all new non-subdivided Residential and Nonresidential development in the City.

17.67.035 Fund Established. A Library Development Impact Fee fund is established. The Library Development Impact Fee fund is a fund to be utilized for payment of the actual or estimated costs of Library services and collections as set forth in the Nexus Report which includes the Master Facilities Plan, as well as the City of Huntington Beach Capital Improvement Plan related to new residential construction.

17.67.036 - Fee imposed.

- A. Any person who, 60 days after the effective date of this Development Impact Fee Ordinance, seeks to engage in non-subdivided Residential or Nonresidential development including mobilehome development by obtaining a building permit or other discretionary approval is required to pay a Library Development Impact Fee in the manner and amount as set forth in the current City of Huntington Beach Fee Resolution separately adopted.
- B. No certificate of occupancy, temporary certificate of occupancy, final building permit approval or construction approval for a mobilehome pad or pads, as applicable, for the activities listed in this Chapter, shall be issued unless and until the Library Development Impact Fee required by this Chapter has been paid to the City.

17.67.040 Exemptions and credits.

- A. **Exemptions.** Any claim of exemption must be made no later than the time of application for a building permit or mobilehome construction approval. Any claim of exemption

must be filed in the same manner and will be considered pursuant to the same procedure as for a fee adjustment as provided in Chapter 17.73. The following shall be exempted from payment of the Library Development Impact Fee:

1. Residential development.
 - a. Alteration or expansion of an existing residential building in which no additional dwelling units are created, the use is not changed and where no additional library services will be provided over and above those provided by the existing building;
 - b. The replacement of a destroyed or partially destroyed building or structure with a new building or structure of the same size and use, provided that no additional library services will be required over and above those provided by the original use of the land;
 - c. The construction of residential accessory buildings, structures or uses which will not require additional library services over and above those provided by the principal building or use of the land;
 - d. The installation of a replacement mobilehome on a lot or other such site when a Library Development Impact Fee for such mobilehome site has previously been paid pursuant to this Chapter, or where a mobilehome legally existed on such site on or prior to the effective date of the ordinance codified in this Chapter;
 - e. Construction, replacement or rebuilding of a single-family dwelling (one (1) unit per lot) on an existing lot of record, or the replacement of one (1) mobilehome with another on the same pad, or the moving and relocation of a single-family home from one (1) lot within the City to another lot within the City. This exemption shall not apply to tract development, to the development of more than one (1) unit per lot, nor to the replacement of a single-family dwelling with more than one (1) dwelling unit;
2. Affordable housing for lower income households. Property rented, leased, sold, conveyed or otherwise transferred, at a rental price or purchase price which does not exceed the "affordable housing cost," as defined in Section 50052.5 of the California Health and Safety Code when provided to a "lower income household" as defined in Section 50079.5 of the California Health and Safety Code or "very low-income household" as defined in Section 50105 of the California Health and Safety Code. This exemption shall require the applicant to execute an agreement to guarantee that the units shall be maintained for lower and very low-income households whether as units for rent or for sale or transfer. The agreement shall be in the form of a deed restriction or other legally binding and enforceable document acceptable to the City Attorney and shall bind the owner and any successor-in-interest to the real property being developed. The agreement shall

subordinate, if required, to any state or federal program providing affordable housing to lower and very low-income households. The agreement shall be recorded with the Orange County Recorder prior to the issuance of a certificate of occupancy. Applicant or any successor-in-interest shall be required to provide annually, or as requested, the names of all tenants or purchasers, current rents and income certification to insure compliance. Voluntary removal of the housing restriction or violation of the restriction shall require the applicant or any successor-in-interest to pay the then applicable Library Development Impact Fee at the time of voluntary conversion or as imposed at the time of violation on the unit in violation, plus any attorneys' fees and costs of enforcement, if applicable;

- B. Credits. Any applicant whose development is located within a community facilities district (CFD) or , and is subject to the assessments thereof, shall receive an offset credit towards the fees established by this Chapter to the extent that the assessments fund improvements within the CFD which would otherwise be funded by the Development Impact Fees established by this Chapter.

17.67.045 Calculation of Required Fees.

- A. At the time of the issuance of the building permit, the Director of Planning and Building or his/her designee ("Director") shall calculate the amount of the applicable Library Development Impact Fee due as specified in the current fee resolution setting the amount of the fee.
- B. The Director shall calculate the amount of the applicable Library Development Impact Fee due by:
1. Determining the number and type of dwelling units in a residential development or mobilehome pads in a mobilehome park or site, and multiplying the same by the Library Development Impact Fee amount per dwelling unit or pad as established by the current fee resolution setting the amount of the fee;
 2. Determining the gross square feet of floor area, or number of lodging units, type of use and location in a nonresidential development, and multiplying the same by the Library Development Impact Fee amount as established by the current fee resolution setting the amount of the fee;
 3. Determining the number and type of dwelling units and the nonresidential number of lodging units or gross square feet of floor area, type of use and location in a structure containing mixed uses which include a residential use, and multiplying the same by the Library Development Impact Fee amount for each use as established by the current fee resolution setting the amount of the fee;
 4. Determining the gross square feet of floor area, or number of lodging units, type of use and location in a structure containing mixed uses which include two (2) or more nonresidential principal uses, and multiplying the same by the Library Development Impact Fee amount as established by the current fee resolution. The

gross square feet of floor area of any accessory use will be charged at the same rate as the predominant principal use unless the Department of Planning and Building finds that the accessory use is related to another principal use.

17.67.050 Payment of Fees.

- A The City shall collect from the applicant the Library Development Impact Fee prior to the issuance of a certificate of occupancy, temporary certificate of occupancy, final building permit approval or construction approval for mobilehome pad or pads, whichever occurs first.
- B Except for any adjustment charge allocated to the City all funds collected shall be properly identified and promptly transferred for deposit in the library facilities impact fee fund and used solely for the purposes specified in this Chapter.

17.67.055 Fee Payments for Phased Development Projects. If a Development Project will be constructed in phases, and separate building permits and certificates of occupancy will be issued for each phase, fees imposed pursuant to this Chapter shall be calculated on the basis of the development characteristics of the entire Development Project. Payment of the fees may be made separately for each phase, provided the amount paid for each phase shall be equal to the percentage that that phase represents of the total development project's development characteristics. The fee shall be the fee in effect at the time payment is due.

17.67.060 - Refund.

- A. Any applicant who has paid a Library Development Impact Fee pursuant to this Chapter may apply to the Director for a full or partial refund of same, if, within one (1) year after collection of the Library Development Impact Fee the fee has been modified as follows: reduction in the number of dwelling units, a change in the type of dwelling units, a reduction in square footage, or the applicability of an exemption pursuant to this Chapter. In the event a refund is issued, the City may retain a sum up to twenty (20%) percent of the Development Impact Fee paid by the applicant to offset the administrative costs of refund. In no event shall a refund exceed the amount of the Library Development Impact Fee actually paid.
- B. Erroneous or Illegal Collection. Fees will be refunded if the applicant demonstrates to the satisfaction of the Director that they were erroneously or illegally collected. If the Director determines the fees were not erroneously or illegally collected, then the applicant may appeal the decision pursuant to Chapter 17.73 Appeals. An application for a refund pursuant to this Section MUST be filed within ninety (90) days after the payment of the fees.
- C. City Failure to Commit Funds. Pursuant to the Mitigated Fee Act, upon application of the then current landowner, fees will be refunded if the City fails to commit them to a project of the nature or type identified in the Nexus Report within five years from the date that the fees were collected from the applicant. For purposes of this subsection, fees

are deemed to have been “committed” if they have been budgeted or otherwise encumbered by the City for an eligible improvement, studies, design drawings or any necessary applications for approval by other governmental agencies have been initiated, construction bidding has been initiated, or improvements are under construction. Eligible refunds, plus interest at the City’s average annual cost of funds will be made only upon an application filed within 180 days of the expiration of the fifth anniversary of the fee payment.

17.67.065 Use of Funds

- A. Funds collected from the Library Development Impact Fee shall be used to fund the costs of expansion of the amount of library space and the number of collection items in the Library’s collection attributable to new residential construction and shall include:
 - 1. The acquisition of additional property for Library expansion;
 - 2. The construction of new facilities for Library Services;
 - 3. The furnishing of new buildings or facilities for Library Services;
 - 4. The purchase of Library collections to expand the collections;
 - 5. The funding of a master plan to identify capital facilities to serve new users and patrons;
 - 6. The cost of financing (e.g., interest payments).
 - 7. Projects identified in the City of Huntington Beach General Plan, the Master Facilities Plan included in the Nexus Report, City of Huntington Beach Capital Improvement Plan, adopted annual City of Huntington Beach budget, or City Council approved development projects.
- B. Funds shall not be used for periodic or routine maintenance or to maintain or repair existing buildings.
- C. Revenue raised would be limited to capitalized cost related to growth.
- D. In the event that bonds or similar debt instruments are issued for advanced provision of capital facilities for which Library Development Impact Fees may be expended, impact fees may be used to pay debt service on such bonds or similar debt instruments to the extent that the facilities provided are of the type described in this Chapter.
- E. Funds may be used to provide refunds as described in this Chapter.

17.67.070 Fee Adjustments Shall be as set forth in Chapter 17.73 of this Code

17.67.072 Appeals Shall be as set forth in Chapter 17.73 of this Code

17.67.075 Credit for Construction of Non-Site-Related Improvements. Applications for credit for construction of non-site-related improvements shall include acceptable engineering drawings, specifications and construction cost estimates submitted to the Director. The Director shall determine the amount of the credit for improvement construction based on either these cost estimates or alternative estimates if the Director determines reasonably that the estimates submitted by the applicant are either unreliable or inaccurate. In no event shall the amount of the credit exceed the improvement cost specified in the Nexus Report, or other applicable basis for the fee, nor shall the credit exceed the amount that would otherwise apply.

No final inspection or certificate of occupancy for the Development Project may be issued until: (1) the construction is completed and accepted by the City; (2) a suitable maintenance and warranty bond is received and accepted by the City; and (3) all design, construction, inspection, testing, bonding and acceptance procedures are in strict compliance with City paving, drainage and other applicable requirements.

17.67.080 Eligible Expenditures From Fee Reserve Account. All monies and interest earnings in any Reserve Account shall be expended on the projects of the nature or type identified in the Nexus Report, or such other report as may be prepared from time to time to document the reasonable fair share of the costs to mitigate the impact of new development on the expansion of Library Services and collections.

17.67.090 Annual report and amendment procedures.

- A. Within one hundred eighty (180) days after the last day of each fiscal year, the Director of Library Services of the City of Huntington Beach shall evaluate progress in implementation of the Library Development Impact Fee and shall prepare a report thereon to the City Council in accordance with Government Code Section 66006, incorporating among other things:
 1. The expansion of Library Services and collections commenced, purchased or completed utilizing monies from the Library Development Impact Fee fund;
 2. The amount of the fees collected and the interest earned;
 3. The amount of Library Development Impact Fees in the fund; and
 4. Recommended changes to the Library Development Impact Fee, including, but not necessarily limited to changes in this Library Development Impact Fee chapter or fee resolution.
- B. Based upon the report and such other factors as the City Council deems relevant and applicable, the City Council may amend the ordinance codified in this Chapter or the fee resolution implementing this Chapter. Changes to the Library Development Impact Fee rates or schedules may be made by amending the fee resolution. Any change which

increases the amount of the Library Development Impact Fee shall be adopted by the City Council only after a noticed public hearing. Nothing herein precludes the City Council or limits its discretion to amend the ordinance codified in this Chapter or the fee resolution establishing Library Development Impact Fee rates or schedules at such other times as may be deemed necessary.

17.67.100 Effect of Library Development Impact Fee on zoning and subdivision regulations. This Chapter shall not affect, in any manner, the permissible use of property, density/intensity of development, design and improvement standards and public improvement requirements or any other aspect of the development of land or construction of buildings, which may be imposed by the City pursuant to the City's zoning regulations, subdivision regulations or other ordinances or regulations of the City, which shall be operative and remain in full force and effect without limitation with respect to all residential and nonresidential development.

17.67.110 Violation—Penalty. A violation of this Chapter shall be prosecuted in the same manner as misdemeanors are prosecuted; and upon conviction, the violator shall be punishable according to law. However, in addition to or in lieu of any criminal prosecution, the City shall have the power to sue in civil court to enforce the provisions of this Chapter.

17.67.120 Severability. If any section, phrase, sentence, or portion of this Chapter is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such portions shall be deemed a separate, distinct, and independent provision; and such holding shall not affect the validity of the remaining portions thereof.

SECTION 3. This ordinance shall become effective 30 days after its adoption.

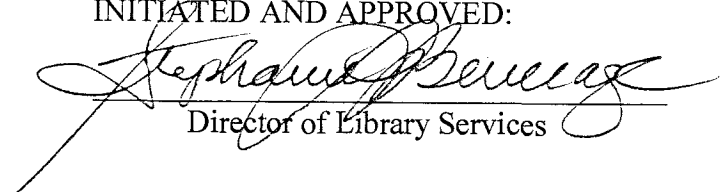
PASSED AND ADOPTED by the City Council of the City of Huntington Beach at a regular meeting thereof held on the _____ day of _____, 20____.

Mayor

ATTEST:

City Clerk

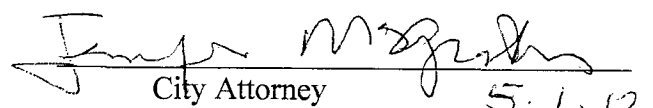
INITIATED AND APPROVED:


Director of Library Services

REVIEWED AND APPROVED:

City Manager

APPROVED AS TO FORM:


City Attorney

5.1.12

ATTACHMENT #6

AN ORDINANCE OF THE CITY OF HUNTINGTON BEACH
AMENDING THE HUNTINGTON BEACH MUNICIPAL CODE
BY ADDING CHAPTER 17.76 RELATING TO PARKLAND ACQUISITION
AND PARK FACILITIES DEVELOPMENT IMPACT FEES

The City Council of the City of Huntington Beach does hereby ordain as follows:

SECTION 1. The Huntington Beach Municipal Code is hereby amended to add Chapter 17.76, said chapter to read as follows:

Chapter 17.76

**PARKLAND ACQUISITION AND PARK FACILITIES
DEVELOPMENT IMPACT FEES**

Sections

- 17.76.010 Legislative findings.
- 17.76.020 Intent and Purpose.
- 17.76.030 Definitions.
- 17.76.040 Parkland Acquisition, and Park Facilities Development Impact Fee.
- 17.76.050 Fund Established.
- 17.76.060 Fee imposed.
- 17.76.070 Calculation of Parkland Acquisition and Park Facilities Development Impact Fee.
- 17.76.075 Fee Payments for Phased Development Projects
- 17.76.076 Fee Adjustments.
- 17.76.080 Payment of fee.
- 17.76.090 Use of funds.
- 17.76.100 Refund.
- 17.76.110 Exemptions and credits.
- 17.76.120 Appeals.
- 17.76.130 Credit for Construction of Non-Site Related Improvements.
- 17.76.140 Eligible Expenditures from Fee Reserve Account
- 17.76.150 Annual report and amendment procedures.
- 17.76.160 Effect of Parkland Acquisition and Park Facilities Development Impact Fee on zoning and subdivision regulations.
- 17.76.170 Violation—Penalty.
- 17.76.180 Severability.

17.76.010 - Legislative findings.

- A. The State of California, through the enactment of Government Code Sections 66001 through 66009 has authorized the City to enact development impact fees.
- B. The imposition of development impact fees is a method of ensuring that new development bears a proportionate share of the cost of capital facilities and other costs necessary to accommodate such development. These fees are established to promote and protect the public health, safety and welfare.
- C. A well-planned park system, with a variation in the size and nature of facilities offered is an important amenity to residents of the City. The City considers a mixture of passive and active park space uses optimal. Future residential development that does not require subdivision, will impact the City's existing park system by creating additional park users thus necessitating additional space for athletic fields, community facilities "tot lots," and other active uses and passive uses as well as passive space for businesses to enjoy.
- D. Funds to pay for the cost of acquisition and development of additional parkland and development of currently owned but underutilized parkland as well as development of facilities will be needed to serve the increasing users caused by development in the City. Without additional parks, parks development and community facilities, the City's current parks and community facilities will become overcrowded and overused.
- E. Pursuant to the "Development Impact Fee Calculation and Nexus Report for the City of Huntington Beach" ("Nexus Report") dated October, 2011, as amended April 27, 2012, which is incorporated herein by reference in these findings as though set forth in full, the fees established pursuant to this Chapter are derived from, based upon, and do not exceed the costs of parkland acquisition, park development and community facilities attributable to applicable new residential or nonresidential development. This study is based in part upon master planning to more specifically identify capital facilities to serve new development; the acquisition, relocation and expansion of parkland and park development and community facilities.
- F. The fees collected pursuant to this Chapter shall be used to finance the acquisition, relocation and expansion of parkland, park development, and community facilities in furtherance of the City General Plan, as well as identified in the Nexus Report, and the attached City of Huntington Beach Master Facilities Development Plan, and the City of Huntington Beach Capital Improvement Plan.
- F. A detailed study of the impacts of future residential and nonresidential construction in the City, along with an analysis of the need for the acquisition, relocation and expansion of parkland and park facilities development is set forth in the Nexus Report.
- G. As set forth in the Nexus Report, there is a reasonable relationship between the need for the acquisition, relocation and expansion of parkland, park development,

community facilities, and the impacts of the types of development for which the corresponding fee is charged. In addition, there is a reasonable relationship between the fee's use and the type of development to which the fee is charged and a reasonable relationship between the amount of the fee and the cost of the facilities or portion thereof attributable to the development on which the fee is imposed.

17.76.020 – Intent and Purpose.

A Parkland Acquisition and Park Facilities Development Impact fee is being created for the purpose of assuring that the impacts created by new development in the City of Huntington Beach pay a fair share of the proportional costs for the acquisition, relocation and expansion of parkland, park development and community use facilities and related costs necessary to accommodate such development. This fee was once identified as a development impact fee in Resolution 2002-129 created pursuant to Huntington Beach Zoning and Subdivision Ordinance section 230.20.

This Chapter is intended to implement the goals, objectives and policies of the City of Huntington Beach General Plan, as well as following the recommendations in the Nexus Report including the Master Facilities Plan and the City of Huntington Beach Capital Improvement Plan by ensuring that the City's acquisition, relocation and expansion of parkland and community facilities development are maintained when new development is constructed within the City limits. By imposing a fee that is reasonably related to the burdens created by new development on the City's parklands, together with funding available from other City revenue sources, the City will be able to purchase land and construct the required capital improvements to accommodate projected growth and fulfill the goals, objectives and policies of the City's General Plan and Master Facilities Plan a part of the Nexus Report.

It is the intent of the City Council that the fee required by this Chapter shall be supplementary to any conditions imposed upon a development project pursuant to other provisions of the Municipal Code, the Subdivision Map Act, the California Environmental Quality Act, other state and local laws, ordinances or chapter provisions which may authorize the imposition of conditions on development.

17.76.030 - Definitions. Shall be as set forth in Chapter 17.73 of this Code.

17.76.040 - Parkland Acquisition and Park Facilities Development Impact Fee. There is imposed a Parkland Acquisition and Park Facilities Development Impact Fee on all non-subdivided new residential and nonresidential development.

17.76.050 - Fund established. A Parkland Acquisition and Park Facilities Development Impact Fee fund is established. The Parkland Acquisition and Park Facilities Development Impact Fee fund is a fund to be utilized for payment of the actual or estimated costs of parkland acquisition and community facilities development as set forth in Chapter 8 of the Nexus Report which includes the City of Huntington Beach Master Facilities Plan, as well as the City of Huntington Beach Capital Improvement Plan related to new residential and nonresidential construction.

17.76.060 - Fee imposed.

- A. Any person who, 60 days after the effective date of this Development Impact Fee, seeks to engage in non-subdivided Residential or Nonresidential development by obtaining a building permit or other discretionary approval is required to pay a Parkland Acquisition and Park Facilities Development Impact Fee in the manner and amount as set forth in the current City of Huntington Beach Fee Resolution separately adopted.
- B. No certificate of occupancy, temporary certificate of occupancy, or building permit approval for the activities listed in this Chapter, shall be issued unless and until the Parkland Acquisition and Park Facilities Development Impact Fee required by this Chapter has been paid to the City.

17.76.070 - Calculation of Parkland Acquisition and Park Facilities Development Impact Fee.

- A. At the time of the issuance of the building permit, the Director of Planning and Building or his/her designee ("Director") shall calculate the amount of the applicable Parkland Acquisition and Park Facilities Development Impact Fee due as specified in the current fee resolution setting the amount of the fee.
- B. The Director shall calculate the amount of the applicable Parkland Acquisition and Park Facilities Development Impact Fee due by:
 - 1. Determining the number and type of dwelling units in a residential development and multiplying the same by the Parkland Acquisition and Park Facilities Development Impact Fee amount per dwelling unit or pad as established by the current fee resolution setting the amount of the fee;
 - 2. Determining the gross square feet of floor area or number of lodging units, type of use and location in a nonresidential development, and multiplying the same by the Parkland Acquisition and Park Facilities Development Impact Fee amount as established by the current fee resolution setting the amount of the fee;
 - 3. Determining the number and type of dwelling units and the nonresidential number of lodging units or gross square feet of floor area, type of use and location, in a structure containing mixed uses which include a residential use, and multiplying the same by the Parkland Acquisition and Park Facilities Development Impact Fee amount for each use as established by the current fee resolution setting the amount of the fee;
 - 4. Determining the gross square feet of floor area or number of lodging units, type of use and location in a structure containing mixed uses which include

two (2) or more nonresidential principal uses, and multiplying the same by the Parkland Acquisition and Park Facilities Development Impact Fee amount as established by the current fee resolution. The gross square feet of floor area of any accessory use will be charged at the same rate as the predominant principal use unless the Department of Planning and Building finds that the accessory use is related to another principal use.

17.76.075 Fee Payments for Phased Development Projects. If a Development Project will be constructed in phases, and separate building permits and certificates of occupancy will be issued for each phase, fees imposed pursuant to this Chapter shall be calculated on the basis of the development characteristics of the entire Development Project. Payment of the fees may be made separately for each phase, provided the amount paid for each phase shall be equal to the percentage that that phase represents of the total development project's development characteristics. The fee shall be the fee in effect at the time payment is due.

17.76.076 Fee Adjustments. Shall be as set forth in Chapter 17.73 of this Code.

17.76.080 Payment of fee.

- A. The City shall collect from the applicant the Parkland Acquisition and Park Facilities Development Impact Fee prior to the issuance of a certificate of occupancy, temporary certificate of occupancy, or final building permit approval.
- B. Except for any administrative charge allocated to the City, all funds collected shall be properly identified and promptly transferred for deposit in the Parkland Acquisition and Park Facilities Development Impact Fee fund and used solely for the purposes specified in this Chapter.

17.76.090 Use of funds.

- A. Funds collected from the Parkland Acquisition and Park Facilities Development Impact Fee shall be used to fund the costs of providing the acquisition, relocation and expansion of parkland and park facilities development attributable to new residential and nonresidential construction and shall include:
 - 1. The acquisition of additional property for the expansion of parkland and community facilities development;
 - 2. The construction of new parks and park facilities and community use facilities (except for non-residential as set forth in the Nexus report) and;
 - 3. The funding of a master plan to identify capital facilities to serve new parkland and park facilities and community use facilities development;
 - 4. The cost of financing (e.g., interest payments).

5. Projects identified in City of Huntington Beach General Plan, the Master Facilities Plan included in the Nexus Report, City of Huntington Beach Capital Improvement Plan, adopted annual City of Huntington Beach budget, or City Council approved park acquisition and development projects.
- B. Funds shall not be used for periodic or routine maintenance or to maintain or repair existing parkland or park facilities or community facilities.
- C. Revenue raised would be limited to capitalized cost related to growth.
- D. In the event that bonds or similar debt instruments are issued for advanced provision of capital facilities for which Parkland Acquisition and Park Facilities Development Impact Fees may be expended, impact fees may be used to pay debt service on such bonds or similar debt instruments to the extent that the facilities provided are of the type described in this Chapter.
- E. Funds may be used to provide refunds as described in this Chapter.

17.76.100 Refund.

- A. Any applicant who has paid a Parkland Acquisition and Park Facilities Development Impact Fee(s) pursuant to this Chapter may apply to the Director for a full or partial refund of same, if, within one (1) year after collection of the Parkland Acquisition and Park Facilities Development Impact Fee the Fee has been modified as follows: reduction in the number of dwelling units, a change in the type of dwelling units, a reduction in square footage, or the applicability of an exemption pursuant to this Chapter. In the event a refund is issued, the City may retain a sum up to twenty (20%) percent of the Parkland Acquisition and Park Facilities Development Impact Fee paid by the applicant to offset the administrative costs of refund. In no event shall a refund exceed the amount of the Parkland Acquisition and Park Facilities Development Impact Fee actually paid.
- B. Erroneous or Illegal Collection. Fees will be refunded if the applicant demonstrates to the satisfaction of the Director that they were erroneously or illegally collected. If the Director determines the fees were not erroneously or illegally collected, then the applicant may appeal the decision pursuant to Chapter 17.73.030 Appeals. An application for a refund pursuant to this Section must be filed within ninety (90) days after the payment of the fees.
- C. City Failure to Commit Funds. Pursuant to the Mitigated Fee Act, upon application of the then current landowner, fees will be refunded if the City fails to commit them to a project of the nature or type identified in the Nexus Report within five years from the date that the fees were collected from the applicant. For purposes of this subsection, fees are deemed to have been “committed” if they have been budgeted or otherwise encumbered by the City for an eligible improvement, studies, design drawings or any necessary applications for approval by other governmental agencies have been

initiated, construction bidding has been initiated, or improvements are under construction. Eligible refunds, plus interest at the City's average annual cost of funds, will be made only upon an application filed within 180 days of the expiration of the fifth anniversary of the fee payment.

17.76.110 Exemptions and credits.

A. Exemptions. Any claim of exemption must be made no later than the time of application for a building permit or construction approval. Any claim of exemption must be filed in the same manner and will be considered pursuant to the same procedure as for a fee adjustment as provided in this Chapter 17.73. The following shall be exempted from payment of the Parkland Acquisition and Park Facilities Development Impact Fee:

1. Residential Development

- a. Alteration or expansion of an existing residential building in which no additional dwelling units are created, the use is not changed, and where no additional relocation and expansion of parkland and park facilities development will be provided over and above those provided by the existing building;
- b. The replacement of a destroyed or partially destroyed building or structure with a new building or structure of the same size and use, provided that no additional relocation or expansion of parkland and park facilities development will be required over and above those provided by the original use of the land;
- c. The construction of residential accessory buildings, structures or uses which will not require additional acquisition, relocation or expansion of parkland and park facilities development over and above those provided by the principal building or use of the land;
- d. Construction, replacement or rebuilding of a single-family dwelling (one (1) unit per lot) on an existing lot of record, or the moving and relocation of a single-family home from one (1) lot within the City to another lot within the City. This exemption shall not apply to tract development, to the development of more than one (1) unit per lot, nor to the replacement of a single-family dwelling with more than one (1) dwelling unit;

2. Affordable housing for lower income households. Property rented, leased, sold, conveyed or otherwise transferred, at a rental price or purchase price which does not exceed the "affordable housing cost," as defined in Section 50052.5 of the California Health and Safety Code when provided to a "lower income household" as defined in Section 50079.5 of the California Health and Safety

Code or "very low-income household" as defined in Section 50105 of the California Health and Safety Code. This exemption shall require the applicant to execute an agreement to guarantee that the units shall be maintained for lower and very low-income households whether as units for rent or for sale or transfer. The agreement shall be in the form of a deed restriction or other legally binding and enforceable document acceptable to the City Attorney and shall bind the owner and any successor-in-interest to the real property being developed. The agreement shall subordinate, if required, to any state or federal program providing affordable housing to lower and very low-income households. The agreement shall be recorded with the Orange County Recorder prior to the issuance of a certificate of occupancy. Applicant or any successor-in-interest shall be required to provide annually, or as requested, the names of all tenants or purchasers, current rents and income certification to insure compliance. Voluntary removal of the housing restriction or violation of the restriction shall require the applicant or any successor-in-interest to pay the then applicable Parkland Acquisition and Park Facilities Development Impact Fee at the time of voluntary conversion or as imposed at the time of violation on the unit in violation, plus any attorneys' fees and costs of enforcement, if applicable;

- B. Credits. Any applicant whose development is located within a community facilities district (CFD) or , and is subject to the assessments thereof, shall receive an offset credit towards the fees established by this Chapter to the extent that the assessments fund improvements within the CFD which would otherwise be funded by the development impact fees established by this Chapter.

17.76.120 Appeals. Shall be as set forth in Chapter 17.73 of this Code.

17.76.130 Credit for Construction of Non-Site-Related Improvements. Applications for credit for construction of non-site-related improvements shall submit applicable engineering drawings, specifications and construction cost estimates or the like to the Director. The Director shall determine any credit for improvement based on either these cost estimates or alternative estimates if the Director determines reasonably that the estimates submitted by the applicant are either unreliable or inaccurate. In no event shall the amount of the credit exceed the improvement cost specified in the Nexus Report, or other applicable basis for the fee, nor shall the credit exceed the amount that would otherwise apply.

No final inspection or certificate of occupancy for the Development Project may be issued until: (1) the construction is completed and accepted by the City; (2) a suitable maintenance and warranty bond is received and accepted by the City; and (3) all design, construction, inspection, testing, bonding and acceptance procedures are in strict compliance with City paving, drainage and other applicable requirements.

17.76.140 Eligible Expenditures From Fee Reserve Account. All monies and interest earnings in any Reserve Account shall be expended on the projects of the nature or type identified in the Nexus Report, or such other report as may be prepared from time to time to

document the reasonable fair share of the costs to mitigate the acquisition, relocation and expansion of parkland and park facilities development impacts of new development.

17.76.150 Annual report and amendment procedures.

- A. Within one hundred eighty (180) days after the last day of each fiscal year, the Deputy City Manager of the City of Huntington Beach shall evaluate progress in implementation of the Parkland Acquisition and Park Facilities Development Impact Fee and shall prepare a report thereon to the City Council in accordance with Government Code Section 66006, incorporating among other things:
1. Any parkland acquisition, park development and community facilities development commenced, purchased or completed utilizing monies from the Parkland Acquisition and Park Facilities Development Impact Fee fund;
 2. The amount of the fees collected and the interest earned;
 3. The amount of Parkland Acquisition and Park Facilities Development Impact Fees in the fund; and
 4. Any recommended changes to the Parkland Acquisition and Park Facilities Development Impact Fee, including, but not necessarily limited to changes in this Parkland Acquisition and Park Facilities Development Impact Fee chapter or fee resolution.
- B. Based upon the report and such other factors as the City Council deems relevant and applicable, the City Council may amend the ordinance codified in this Chapter or the fee resolution implementing this Chapter. Changes to the Parkland Acquisition and Park Facilities Development Impact Fee rates or schedules may be made by amending the fee resolution. Any change which increases the amount of the Parkland Acquisition and Park Facilities Development Impact Fee shall be adopted by the City Council only after a noticed public hearing. Nothing herein precludes the City Council or limits its discretion to amend the ordinance codified in this Chapter or the fee resolution establishing Parkland Acquisition and Park Facilities Development Impact Fee rates or schedules at such other times as may be deemed necessary.

17.76.160 Effect of Parkland Acquisition And Park Facilities Development Impact Fee on zoning and subdivision regulations. This Chapter shall not affect, in any manner, the permissible use of property, density/intensity of development, design and improvement standards and public improvement requirements or any other aspect of the development of land or construction of buildings, which may be imposed by the City pursuant to the City's zoning regulations, subdivision regulations or other ordinances or regulations of the City, which shall be operative and remain in full force and effect without limitation with respect to all residential and nonresidential development.

17.76.170 Violation—Penalty. A violation of this Chapter shall be prosecuted in the same manner as misdemeanors are prosecuted; and upon conviction, the violator shall be punishable according to law. However, in addition to or in lieu of any criminal prosecution, the City shall have the power to sue in civil court to enforce the provisions of this Chapter.

17.76.180 Severability. If any section, phrase, sentence, or portion of this Chapter is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such portions shall be deemed a separate, distinct, and independent provision; and such holding shall not affect the validity of the remaining portions thereof.

SECTION 2. This ordinance shall become effective 30 days after its adoption.

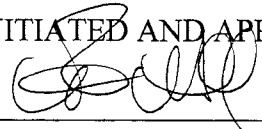
PASSED AND ADOPTED by the City Council of the City of Huntington Beach at a regular meeting thereof held on the _____ day of _____, 20__.

Mayor

ATTEST:

City Clerk

INITIATED AND APPROVED:

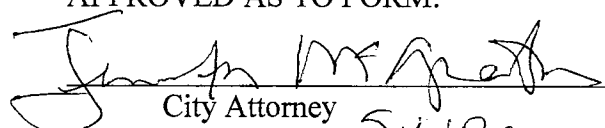


Deputy City Manager

REVIEWED AND APPROVED:

City Manager

APPROVED AS TO FORM:



City Attorney 5.1.12

ATTACHMENT #7

AN ORDINANCE OF THE CITY OF HUNTINGTON BEACH
AMENDING THE HUNTINGTON BEACH MUNICIPAL CODE
BY ADDING CHAPTER 17.73 RELATING TO GENERAL PROVISIONS
FOR DEVELOPMENT IMPACT FEES

The City Council of the City of Huntington Beach does hereby ordain as follows:

SECTION 1. The Huntington Beach Municipal Code is hereby amended to add Chapter 17.73, said chapter to read as follows:

Chapter 17.73

DEVELOPMENT IMPACT FEE(S) - GENERAL

Sections

- 17.73.010 Definitions
- 17.73.020 Fee(s) Adjustment
- 17.73.030 Appeals.
- 17.73.040 Judicial Review

17.73.010 Definitions. As used in this Chapter:

- (a) "Applicant" means the property owner, landowner or duly designated agent thereof, that applies for a permit or other entitlement for a new development permit.
- (b) "Attached Dwelling Unit" [term is used in Thorpe report] shall mean shared living quarters with two or more dwelling units on a site, without separate kitchen or bathroom facilities for each room or unit. This classification includes boarding houses.
- (c) "Building permit" means the City permit required for new building construction and/or additions which add square footage pursuant to Title 17 of this Code. Neither a grading permit, nor a foundation permit shall be considered a building permit for purposes of this Chapter.
- (d) "Calculation" means the point in time at which the City calculates the development impact fee(s) to be paid by the applicant. Calculation will generally occur at the time of issuance of the applicable building permit or construction approval for a residential or commercial/industrial development or mobilehome pad but may occur earlier in the development approval process.
- (e) "Chief" may mean the Chief of Police or Fire Chief.
- (f) "City" shall mean the City of Huntington Beach.

- (g) "City Manager" means the City Manager or his/her designee of the City of Huntington Beach.
- (h) "Collect" or "collection" means the point in time at which the development impact fee(s) are paid by the applicant. Collection will occur on the date of final inspection or the date a certificate of occupancy or temporary certificate of occupancy, whichever occurs first, or in the case of a mobilehome pad or pads, collection will occur at or on the date of construction approval is issued.
- (i) "Collections" shall mean books, magazines, DVDs, compact disks, computer programs, digital resources and other reference and circulation materials.
- (j) "Commercial or Industrial Development Project" shall mean the construction of new Floor Area on a lot in any of the Non-Residential Zoning Districts of the City.
- (k) "Community Use Facilities" shall mean facilities dedicated for community use for social, community and educational groups.
- (l) "Detached Dwelling Unit" shall mean a detached building or buildings designed primarily for use as a dwelling, with one or more habitable rooms with only one kitchen, and designed for occupancy as a unit by one or more persons living as a household unit with common access to all living, kitchen and bathroom areas, no portion of which is rented as a separate unit.
- (m) "Development" means the addition of new dwelling units and/or new nonresidential square footage to an undeveloped, partially developed or redeveloped site and involving the issuance of a building permit and certificate of occupancy for such construction, reconstruction or use. Development may also include expanded uses that create additional impacts on City facilities, infrastructure or park land. Development also includes the approval and construction of new mobilehome pads in existing or new mobilehome parks or sites, but not including the following so long as no additional dwelling units or gross floor area is added:
 - 1. A permit to operate;
 - 2. A permit for the internal alteration, remodeling, rehabilitation, or other improvements or modifications to an existing structure;
 - 3. The rebuilding of a structure destroyed by an act of God or the rehabilitation or replacement of a building in order to comply with the City's seismic safety requirements;
 - 4. Parking facilities; or
 - 5. The rehabilitation or replacement of a building destroyed by imminent public hazard, acts of terrorism, sabotage, vandalism, warfare or civil disturbance except where said destruction was caused or in any manner accomplished, instigated,

motivated, prompted, incited, induced, influenced, or participated in by any persons or their agents having any interest in the real or personal property at the location.

- (n) "Development Project" means any residential, commercial or industrial Development Project. shall mean any construction, addition, alteration or other change of use of a building or land that requires the City to issue a grading, building, plumbing, mechanical, or electrical permit, or any other form of entitlement.
- (o) "Director" may mean the Director of Community Services; Director of Library Services; Director of Planning and Building, or Director of Public Works.
- (p) "Dwelling unit" or "DU" is as defined in Section 203.06 of the Huntington Beach Zoning and Subdivision Ordinance ("ZSO").
- (q) "Fee resolution" means and refers to the City resolution specifying the development impact fee(s) per dwelling unit or mobilehome pad for residential development and per gross square foot of floor area for nonresidential development, by type and by location.
- (r) "Fees Calculation Report" shall mean the report prepared for the City entitled "Development Impact Fee(s) Calculation and Nexus Report for the City of Huntington Beach" dated October, 2011.
- (s) "Floor Area" shall mean the area of all floors and levels as defined in the ZSO.
- (t) "Government or Public Facilities" shall mean publicly owned buildings and structures used for the purposes of conducting City, County, State or Federal Government business. Such facilities shall include, but not be limited to, city halls, police and fire stations, offices, equipment yards, sanitation facilities, schools, recreation centers, and similar facilities. Private commercial Development Projects leasing publicly owned land shall not be considered Government or Public Facilities.
- (u) "Gross square feet" or "gsf" means the area of a nonresidential development measured from the exterior building lines of each floor with respect to enclosed spaces but excluding parking spaces whether or not enclosed. For purposes of this Chapter, the term "enclosed spaces" specifically includes, but is not limited to, an area available to and customarily used by the general public and all areas of business establishments generally accessible to the public such as fenced, or partially fenced in areas of garden centers attached to and serving the primary structure.
- (v) "Land Use Category" shall mean any of the specific land uses that have been listed in the fair share implementation resolution authorized pursuant to Section 17.65.050, and used to provide the basis for future development impact projections.
- (w) "Library Facilities" shall mean library building space and library materials, which are owned and operated by the City of Huntington Beach.

- (x) "Library Materials" shall mean books, magazines, DVDs, compact disks, computer programs, digital resources and other reference and circulation materials.
- (y) "Master Facilities Plan" shall mean the report prepared for the City entitled *Development Impact Fee Master Facilities Plan*, prepared by Revenue & Costs Specialists, LLC, dated October 2011.
- (z) "Mobilehome" shall mean a structure transportable in sections which is a minimum of 8 feet in width and 40 feet in length, built on a permanent chassis, and designed to be a dwelling with or without a permanent foundation.
- (aa) "Nonresidential development" means a development undertaken for the purpose of creating gross floor area, excluding dwelling units, but which includes, and is not limited to commercial, industrial, retail, office, hotel/motel, and warehouse uses involving the issuance of a building permit for such construction, reconstruction or use.
- (bb) "Planning and Building Director" shall mean the Planning and Building Director of The City of Huntington Beach or his/her designee.
- (cc) "Planning Department" shall mean the Planning Department of the City of Huntington Beach.
- (dd) "Police Department" means the Police Department of the City of Huntington Beach.
- (ee) "Residential development" means a development undertaken for the purpose of creating a new dwelling unit or units and involving the issuance of a building permit and certificate of occupancy for such construction, reconstruction or use, or the construction approval for a mobilehome pad or pads.
- (ff) "Residential Development Project" shall mean the construction of a dwelling unit on a lot in any of the residential zoning districts of the City. For purposes of this Chapter, the addition of Floor Area shall be considered construction of a Residential Development project if the additional Floor Area exceeds fifty (50) percent of the existing Floor Area, as determined by the Director of Planning and Building.
- (gg) "Site-Related Right-of-Way or Improvement Construction" shall mean right-of-way or traffic improvements that must be constructed on the site of a new development project in order to comply with applicable City development regulations and standards.
- (hh) "Surface Transportation System" shall mean the City's system of streets, roads and intersections traversed by automobiles and other vehicles.
- (ii) "Trip-Miles" shall mean the number of Vehicle Trips multiplied by the average trip length for a specified use as identified in the "Fee Calculation Report".
- (jj) "Vehicle Trips" shall mean the number of average, daily trips generated by uses of land, as specified in the most recent edition of the Institute of Transportation Engineers, *Trip Generation*, and at the discretion of the Public Works Director when the reference

document does not provide a reasonable representation of vehicle trips for a specific use, special studies or alternative reference documents may be used.

17.73.020 Fee Adjustments

- (a) An applicant for a New Development Project subject to a fee required by Title 17 of this Code may apply to the City for a refund, reduction, adjustment or waiver of the fee.
- (b) Circumstances That May Justify a Fee Adjustment. Examples of circumstances that may justify a fee adjustment include, but are not necessarily limited to the following:
 - (1) The Development Project includes an existing building that is proposed to be demolished, provided the building proposed to be demolished was capable of being used at the time of the Development Project application, and sufficient information about its prior use is available. Any such adjustment is limited to the amount of the fee that would otherwise be due for the New Development Project.
 - (2) The physical or operating characteristics (e.g., hours of operation) of the New Development Project are substantially different from the land use on which the fee calculation is based.
 - (3) The New Development Project includes multiple land uses that are complementary.
 - (4) Property values are worth less than the City's estimated value in the methodology. Likewise, the City may present evidence in the form of an appraisal and the value is in excess of that used in the methodology.
- (c) An application for a fee adjustment shall be made and decided as follows:
 - (1) Application. A separate application shall be filed for each adjustment request made pursuant to this Section. Such application shall be made on a form provided by the Director of Planning and Building or his/her designee and shall be filed with the Director of Planning and Building not later than:
 - (A) thirty (30) days prior to the first public hearing on an applicable discretionary permit application for the Development Project, pursuant to the City Zoning and Subdivision Ordinance; or
 - (B) if no such discretionary permit is required, at the time of application for a building permit for the Development Project.
- (d) Each application shall state in detail the factual basis for the requested fee reduction, adjustment or waiver. The Director of Planning and Building shall determine if the application is complete, and if not, may cause the public hearing to be continued until the application is determined to be complete. The Director shall act within 10 days after receipt of the completed application to approve or deny the application.

17.73.030 Appeals.

- (a) An applicant may appeal, by protest, any imposition of the development impact fee(s) by filing a notice of appeal with the City Manager or his/her designee or his/her designee within ninety (90) days after the applicant pays the required development impact fee(s).
- (b) A valid appeal by protest of the imposition of the development impact fee(s) shall meet all of the following requirements:
 - 1. Tendering in advance of the appeal any required payment in full or providing assurance of payment satisfactory to the City Manager or his/her designee;
 - 2. Serving written notice on the City Manager or his/her designee including:
 - (A) A statement that the required payment has been tendered under protest or that required conditions have been satisfied;
 - (B) A statement informing the City Manager or his/her designee of the factual elements of the dispute and the legal theory forming the basis of the protest;
 - (C) The name and address of the applicant;
 - (D) The name and address of the property owner;
 - (E) A description and location of the property;
 - (F) The number of residential units or nonresidential gross square footage proposed, by land use or dwelling unit type, as appropriate; and
 - (G) The date of issuance of the building permit.
- (c) The City Manager or his/her designee shall schedule a hearing and render a final decision on the applicant's appeal within sixty (60) days after the date the applicant files a valid appeal.
- (d) The hearing shall be administrative. Evidence shall be submitted by the City Manager or his/her designee and by the applicant and testimony shall be taken under oath.
- (e) The burden of proof shall be on the applicant to establish that the applicant is not subject to the imposition of the development impact fee(s) pursuant to the applicable development impact fee ordinance and applicable state law.
- (f) If the development impact fee(s) has been paid in full or if the notice of appeal is accompanied by a cash deposit, letter of credit, bond or other surety acceptable to the City Manager or his/her designee in an amount equal to the development impact fee(s) calculated to be due, the application for the building permit or mobilehome construction approval shall be processed. The filing of a notice of appeal shall not stay the imposition or the collection of the development impact fee(s) calculated by the City to be due unless sufficient and acceptable surety has been provided.
- (g) Any petition for judicial review of the City Manager's final decision shall be made in accordance with applicable state law and after the administrative remedies proscribed herein have been exhausted.

1. Hearing. The City Manager or his/her designee shall consider the fee(s) adjustment application prior to the public hearing as the application for a discretionary development permit for the Development Project, or, if no such permit is required, the City Manager or his/her designee shall consider the application at a separate hearing within (sixty) 60 days after the fee(s) adjustment application is deemed complete by the City Manager or his/her designee.
2. Appeal. Any person may appeal the decision of the City Manager or his/her designee to the City Council, by filing a written appeal with the City Clerk within ten (10) days of the City Manager or his/her designee's decision.

17.73.040 Judicial review.

- (a) Any judicial action or proceeding to attack, review, set aside, void or annul the development impact fee ordinance, or any provision thereof, or resolution, or amendment thereto, shall be commenced within ninety (90) days of the effective date of the ordinance, resolution, or any amendment thereto.
- (b) Any judicial action or proceeding to attack, review, set aside or annul the imposition or collection of a development impact fee(s) on a development shall be preceded by a valid appeal by protest pursuant to Section 17.73.030 hereof and a final decision of the City Manager or his/her designee pursuant thereto and shall be filed and service of process effected within ninety (90) days after the hearing on appeal regarding the imposition of development impact fee(s) upon the development.

SECTION 2. This ordinance shall become effective 30 days after its adoption.

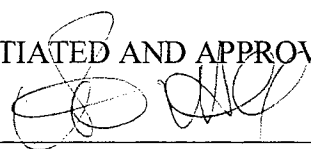
PASSED AND ADOPTED by the City Council of the City of Huntington Beach at a regular meeting thereof held on the _____ day of _____, 20____.

Mayor

ATTEST:

City Clerk

INITIATED AND APPROVED:

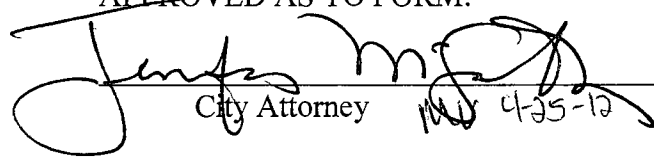


Deputy City Manager

REVIEWED AND APPROVED:

City Manager

APPROVED AS TO FORM:



City Attorney

ATTACHMENT #8

Development Impact Fee Comparison Current vs. Proposed

Law Enforcement Facilities

	Current Fee	Effective 7/20/12	Effective 7/20/13	Effective 7/20/14
Detached Dwelling Units (per Unit)	No Fee	\$277	\$317	\$356
Attached Dwelling Units (per Unit)	No Fee	\$571	\$652	\$734
Mobile Home Dwelling Units (per Unit)	No Fee	\$258	\$295	\$332
Hotel/Motel Lodging Units (per Unit)	No Fee	\$455	\$455	\$455
Resort Lodging Units (per Unit)	No Fee	\$532	\$532	\$532
Commercial/Office Uses (per sq. ft.)	No Fee	\$1.041	\$1.041	\$1.041
Industrial/Manufacturing Uses (per sq. ft.)	No Fee	\$0.443	\$0.443	\$0.443

Fire Suppression Facilities

	Current Fee	Effective 7/20/12	Effective 7/20/13	Effective 7/20/14
Detached Dwelling Units (per Unit)	No Fee	\$645	\$738	\$830
Attached Dwelling Units (per Unit)	No Fee	\$267	\$306	\$344
Mobile Home Dwelling Units (per Unit)	No Fee	\$1,108	\$1,266	\$1,425
Hotel/Motel Lodging Units (per Unit)	No Fee	\$356	\$356	\$356
Resort Lodging Units (per Unit)	No Fee	\$794	\$794	\$794
Commercial/Office Uses (per sq. ft.)	No Fee	\$0.329	\$0.329	\$0.329
Industrial/Manufacturing Uses (per sq. ft.)	No Fee	\$0.030	\$0.030	\$0.030

Circulation System Fee

	Current Fee	Effective 7/20/12	Effective 7/20/13	Effective 7/20/14
Detached Dwelling Units (per Unit)	\$1,507	\$1,737	\$1,986	\$2,226
Attached Dwelling Units (per Unit)	\$1,058	\$1,220	\$1,395	\$1,563
Mobile Home Dwelling Units (per Unit)	\$786	\$909	\$1,039	\$1,165
Motel Lodging Units (per Unit)	\$746	\$1,062	\$1,062	\$1,062
Resort Lodging Units (per Unit)	\$1,081	\$1,538	\$1,538	\$1,538
Commercial/Office Uses (per sq. ft.)	\$5.194	\$4.175	\$4.175	\$4.175
Industrial/Manufacturing Uses (per sq. ft.)	\$1.061	\$1.789	\$1.789	\$1.789

Development Impact Fee Comparison Current vs. Proposed

Public Library Facilities

	Current Fee	Effective 7/20/12	Effective 7/20/13	Effective 7/20/14
Detached Dwelling Units (per Unit)	\$0.44/SF	\$1,172	\$1,172	\$1,172
Attached Dwelling Units (per Unit)	\$0.44/SF	\$908	\$908	\$908
Mobile Home Dwelling Units (per Unit)	\$0.44/SF	\$733	\$733	\$733
Hotel/Motel Lodging Units (per Unit)	\$0.04/SF	No Fee	No Fee	No Fee
Resort Lodging Units (per Unit)	\$0.04/SF	No Fee	No Fee	No Fee
Commercial/Office Uses (per sq. ft.)	\$0.04/SF	No Fee	No Fee	No Fee
Industrial/Manufacturing Uses (per sq. ft.)	\$0.04/SF	No Fee	No Fee	No Fee

Park Land/Open Space & Facilities (No Tract Map)

	Current Fee	Effective 7/20/12	Effective 7/20/13	Effective 7/20/14
Detached Dwelling Units (per Unit)	\$0.86/SF	\$12,500	\$14,286	\$16,071
Attached Dwelling Units (per Unit)	\$0.86/SF	\$9,685	\$11,068	\$12,452
Mobile Home Dwelling Units (per Unit)	No Fee	\$7,818	\$8,935	\$10,052
Hotel/Motel Lodging Units (per Unit)	\$0.23/SF	\$459	\$459	\$459
Resort Lodging Units (per Unit)	\$0.23/SF	\$359	\$359	\$359
Commercial/Office Uses (per sq. ft.)	\$0.23/SF	\$0.954	\$0.954	\$0.954
Industrial/Manufacturing Uses (per sq. ft.)	\$0.23/SF	\$0.772	\$0.772	\$0.772

NOTE: The fees below fall under the Subdivision Map Act and will be addressed at a later date

Storm Drainage Fee

	Current Fee per acre	Effective 7/20/12 per acre	Effective 7/20/12 per unit
Detached Dwelling Units (per Unit)	\$13,880	\$18,149	\$3,061
Attached Dwelling Units (per Unit)	\$13,880	\$18,968	\$397
Mobile Home Dwelling Units (per Unit)	\$13,880	\$18,735	\$2,082
Hotel/Motel Lodging Units (per Unit)	\$13,880	\$21,076	\$479
Resort Lodging Units (per Unit)	\$13,880	\$20,497	\$356
Commercial/Office Uses (per sq. ft.)	\$13,880	\$21,076	\$0.35
Industrial/Manufacturing Uses (per sq. ft.)	\$13,880	\$22,247	\$1.14

Park Land/Open Space & Facilities (Tract Map/Quimby)

	Current Fee	Effective 7/20/12	Effective 7/20/13	Effective 7/20/14
	Based on Land			
Detached Dwelling Units (per Unit)	Appraisal	\$12,500	\$14,286	\$16,071
	Based on Land			
Attached Dwelling Units (per Unit)	Appraisal	\$9,685	\$11,068	\$12,452
Mobile Home Dwelling Units (per Unit)	N/A	N/A	N/A	N/A
Hotel/Motel Lodging Units (per Unit)	N/A	N/A	N/A	N/A
Resort Lodging Units (per Unit)	N/A	N/A	N/A	N/A
Commercial/Office Uses (per sq. ft.)	N/A	N/A	N/A	N/A
Industrial/Manufacturing Uses (per sq. ft.)	N/A	N/A	N/A	N/A

ATTACHMENT #9

*Master Facilities Plan
for the City of
Huntington Beach, California*

October, 2011

(Amended April 27, 2012)

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of:*

*Revenue & Cost Specialists, L.L.C.
1519 East Chapman Avenue, Suite C
Fullerton, CA 92831
(714) 992-9020*

Revenue & Cost Specialists, LLC

Serving Local Governments Since 1975

October 17, 2011 (amended April 27, 2012)

Honorable Mayor and City Council
Via Mr. Fred Wilson, City Manager
City of Huntington Beach - City Hall
2000 Main Street
Huntington Beach, CA 92648

RE: *City of Huntington Beach Master Facilities Plan*

Honorable Mayor, City Council, and City Manager Wilson,

The following Document, the proposed Master Facilities Plan (MFP) is hereby submitted for City Council review and consideration. The proposed MFP is the result of many hours of work between City staff and Revenue & Cost Specialists, L.L.C. staff. This document represents a long-range program of identification and recognition of the entirety of infrastructure and physical needs necessary to meet the service demands of an ever-growing residential population and business community. The information included in this proposed MFP identifies capital needs throughout the community and is primarily based on the numerous elements of the Huntington Beach Comprehensive General Plan, it's many elements, Master Plans and other official documents.

The City's five-year Capital Improvement Plan and the proposed development impact fees will be a function of the entire list of proposed projects listed in this document. Stated in a slightly different way, the list of projects contained herein needs to be agreed to by the City Council in order to increase the validity of both of the two above mentioned documents.

This Master Facilities Plan contains the following:

- A Table of Contents
- A Guide to the Master Facilities Plan
- A Project Summary schedule
- A section containing all *Law Enforcement* capital needs
- A section containing all of the *Fire Suppression/Medic* capital needs
- A section containing all of the *Streets, Bridges and Signals* projects
- A section containing all of the *Storm Drainage System* improvements
- A section containing the future *Public Library and Collection* expansion needs.

Internet: www.revenuecost.com

Voice 714.992.9020

1519 E. Chapman Ave HB -229 • C • Fullerton, CA 92831

Fax 714.992 Item 9. - 94

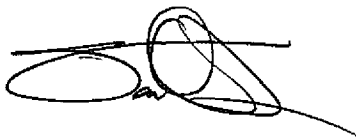
- A section containing all of the *Park Land Acquisition and Development of Recreation Facilities* including *Community Use Facilities* projects.

In addition to the efforts of Bob Hall, Deputy City Manager in coordinating the flow of information, the following staff were instrumental in identifying the required projects:

M. Todd Broussard, P.E. - Principal Civil Engineer (Storm Drainage)
David C. Dominguez - Facilities Development and Concessions Manager
Eric G. Enberg - Division Chief/Fire Operations
Jim B. Engle Community Services Director
Kevin Justen, - Senior Administrative Analyst - Fire
Tung M. Kao - Info Systems Specialist
Darrin Maresh, Fire Development Specialist
Tony Olmos - City Engineer
Jerry Thompson - General Services Manager
Bill Reardon - Fire Marshall/Division Chief
Dan Richards - Customer Support/GIS Manager
Bob Stachelski - Transportation Manager
Chuck Thomas - Police Captain
Jerry Thompson - General Services Manager
Bob Wingenroth - Director of Finance

RCS appreciates the efforts of the listed staff and any others whose efforts RCS may have been unaware of for their assistance in generating the information provided within this Master Facilities Plan, and we look forward to meeting with the City Council in order to implement and achieve maximum use this comprehensive report.

Sincerely,



SCOTT THORPE
Vice President

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Master Facilities Plan
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CITY OF HUNTINGTON BEACH

GUIDE TO THE MASTER FACILITIES PLAN

The *Master Facilities Plan* is a compilation of projects identified by City staff as being needed for the City of Huntington Beach through theoretical General Plan build-out of the City. The Plan is based on input from City staff, recommended projects contained in the City's several Master Plans for infrastructure and an occasional recommendation from RCS staff.

The *Master Facilities Plan* generally provides for three major types of projects. The first group of projects provides for the maintenance, repair and rehabilitation of the City's varied infrastructure, including its streets, storm drains and other public facilities. These projects represent a very small portion of the needed replacement of the City's fixed assets identified at more than \$1.435 billion of depreciable fixed assets which are being consumed, conservatively, at an annual rate of just over \$19.1 million, (assuming a conservative 75 year infrastructure lifetime). The \$1.435 billion figure excludes significant amounts of owned park land, not subject to depreciation, at approximately \$678.2 million. The following table indicates the replacement costs of the various infrastructure owned by the City.

Table MFP-1
Replacement Value of Existing Infrastructure

Infrastructure	Replacement Value
Law Enforcement	\$71,246,699
Fire Suppression/Medic	\$61,234,227
Circulation System (1)	\$533,539,375
Storm Drainage System (1)	\$203,631,313
Library Space/Collection	\$76,593,112
Park Improvements	\$488,783,370
Total	\$1,435,028,096

(1) Does not include millions of dollars owned in land right-of-way and
Excludes "local" facilities, those limited to neighborhood facilities.

The second group of projects are needed to serve future development and include such projects as widening of streets, creation of additional parkland or construction of a new fire station. These projects are proposed to be funded through the development impact fees recommended in the companion to this document called *Development Impact Fee Calculation and Nexus Report for City of Huntington Beach*.

Guide to the Huntington Beach Master Facilities Plan

The last group of projects are proposed to enhance the quality of life for all City residents and spur economic growth in the community. These projects include the construction of a community centers, libraries and parks that expand the existing level of service.

Goal of the Master Facilities Plan. The *Master Facilities Plan* is not intended to be the final word on capital improvement projects needed for the City, but rather a starting point for discussions between policy-makers (i.e., the City Council), City management staff and the public prior to the formulation of a Five- or Six-Year Capital Improvement Plan (CIP). The *Master Facilities Plan* begins the process of identifying all growth-related capital projects required to accommodate new City development through General Plan build-out. This document, as all capital improvement programs should be, is rooted in the philosophy that for the document to have any meaningful value to future residents and staff members, it must be constantly updated and revised as new legislation is adopted and as the environment and the City itself changes over the years.

In short, the *Master Facilities Plan* is intended as a fluid, not static, document. Thus, it is essential that periodic updates be performed to add new projects or delete completed or no longer needed projects.

The *Master Facilities Plan* represents the starting point for fulfillment of the following purposes:

Planning - The Plan implements the standards and goals contained in the City's General Plan when applicable and proposes improvement projects which are constructed and located in conformance with the General Plan.

Financial Planning - A Facilities Plan or CIP should consider the scheduling and availability of financing sources in order to achieve an orderly and comprehensive process. Individual project descriptions in this document detail the project's relationship to other recommended improvements and other scheduling constraints. This effort should always be a high priority of the City in order to insure that efforts between departments are coordinated and to avoid construction made more costly by duplication of construction efforts (i.e. a water pipe installed one year after a road is constructed).

A sound capital planning process can also help to rationally plan projects for the purposes of long-term financing. Taxpayers can accrue savings when capital financing is coordinated such that long-term financing can be sized and timed to achieve the lowest possible financing costs.

Budgeting - The following projects should provide the outline for preparation of the Five-Year Capital Improvement Plan in the future. The first year of the CIP then is incorporated into the City's Annual Budget. Note: the scope of services did not include the

Guide to the Huntington Beach Master Facilities Plan

identification of what year the projects will be needed therefore the project costs default to the last column.

Master Facilities Planning Process. The *Master Facilities Plan* represents an interdepartmental effort to identify needed projects through the theoretical point of build-out of the City. Management staff was then asked to allocate projects as a first step towards prioritizing all projects for the Plan. Criteria considered by the management team in evaluating projects included:

- Does the project generate operating savings or otherwise enhance the ability of the department to deliver services?
- Did the project reduce or eliminate safety or health hazards?
- Was the project needed to provide adequate levels of service to future residents or prevent deterioration of service to existing residents?
- Was the project recommended in any of the City's engineering or planning Master Plans, the Corporate Plan or any other adopted City document?
- Did the project have a significant positive effect on the community?

Funding Analysis. The following summary section of this Plan includes a projection of historical and potential revenue sources for the financing of the listed capital improvement projects. Development impact fee revenues were estimated based on the proposed rates recommended in the *Development Impact Fee Calculation and Nexus Report*. For the purposes of this Report it was assumed that development will occur evenly over the period of build-out for the City.

Other revenue sources were projected based on discussions with City staff, but are shown only for informational purposes. Given the magnitude of costs shown in this Report, RCS recommends that a more detailed financial strategy for construction of these improvements (i.e., a Capital Financing Plan) be conducted by the City within the immediate future. Such a document would seek to further identify and quantify potential financing sources for the City.

It should be noted that the *Master Facilities Plan* emphasizes the total capital needs of the City, in contrast to the more traditional Capital Improvement Program approach which places more of an emphasis on reducing total needs to only reasonably assured revenue sources. The process of further scheduling projects on a year-to-year basis should continue onward during the Capital Improvement Program process.

Organization of the Master Facilities Plan. The *Master Facilities Plan* is divided into eight major sections, according to the category of capital improvement. Each will ultimately be quantified as

Guide to the Huntington Beach Master Facilities Plan

a separate development impact fee in the companion document. The eight types of improvements are:

Law Enforcement Facilities, Vehicles and Equipment - These are projects needed for the City's Police Department, including expansion of the Police Station and acquisition of additional communication equipment and response vehicles.

Fire Suppression/Medic Facilities and Response Vehicles - This program includes facilities necessary to accommodate new development support with the existing level of service provided by the City's Fire Department. This section contains the need for one fire station relocation, expansion of second, construction of additional vehicle storage space and a number of additional response apparatus.

Circulation (streets, bridges and signals) System - These projects consists of future street additional traffic signals and intersection improvements.

Storm Drainage Collection System - These projects include the construction of new storm drain lines, channels and other facilities for the purposes of storm drainage.

Public Library Facilities and Collection - This program provides for the expansion of the City-owned library facilities. The project consists of the building expansion and expansion of the collection inventory.

Park Land Acquisition and Park Facilities Development - The acquisition and development of new parks, the construction of recreational facilities for the City and improvement of existing undeveloped parklands are accomplished through this program. It also includes open space acquisition and the construction of a number community/recreation/gymnasium centers for classes, meetings, sports activities and other general public uses.

At the beginning of each of these sections is a summary of projects in that category and proposed project cost. Next, is an individual project description for each project submitted, detailing the proposed scope of the project, the submitting department, justification and listing of related projects.

The table on the following page indicates the total project expenditures (\$403,399,086) identified as necessary through build-out. Some of this amount, about \$22.3 million would be financed by other revenues or government agencies.

Guide to the Huntington Beach Master Facilities Plan

Table MFP-2
Cost of Future Infrastructure

Infrastructure	Project Totals
Law Enforcement Facilities, et. al.	\$10,100,895
Fire Suppression/Medic Facilities et. al.	\$11,941,972
Circulation (Streets/Bridges/Signals)	\$28,537,800
Storm Drainage Collection System	\$207,494,050
Library Facilities/Collection	\$7,841,369
Park Land Acquisition & Improvements	\$137,483,000
Total	\$403,399,086

Fairness and reason (as well as the more important State and Federal statutes and court decisions) dictate that not all of the projects will qualify for development impact fee funding (i.e. some projects are replacements or service level increasing, etc.). If the City adopts the development impact fees that represent the General Plan Build-out need-based impact fees (Schedule 2.1 in the companion *Development Impact Fee Calculation and Nexus Report*), 42.6% of the required funding (or \$172.1 million) would be raised with development impact fees. Existing Development Impact Fee Fund balances of \$3.6 million will provide 0.9% of the total project funding and other sources (inter-governmental support) will finance 5.7% (\$23.0 million) This leaves 50.8%, or \$204.8 million of the total project costs as unfunded, to be financed by other sources such as fees, rates, existing taxes or voter approved additional taxes, inter-governmental transfers and the rare occasional grant.

Relationship to Development Impact Fee Report. The *Master Facilities Plan* was prepared in conjunction with the City's *Development Impact Fee Calculation and Nexus Report*, also prepared by RCS, LLC. Projects listed in the *Development Impact Fee Calculation and Nexus Report* correspond to projects found in this document and contain the same numbering sequence as the *Master Facilities Plan*. The *Development Impact Fee Calculation and Nexus Report* is also contains eight chapters specific to each one of these infrastructure sections according to the same category of projects described on the previous page.

Thus, a reader who wants to find more information on Law Enforcement Project No.1 (Additional Law Enforcement Facility Space found on Schedule 3.1 of the *Development Impact Fee Calculation and Nexus Report* may turn to Project No. LE-001 of the *Master Facilities Plan*. For readers of the *Master Facilities Plan* who wish to understand the determination of development

Guide to the Huntington Beach Master Facilities Plan

impact fee financing more fully, refer to the *Development Impact Fee Calculation and Nexus Report*, Chapter One.

Huntington Beach

Master Facilities Plan

Master Project List

	Total Thru G.P. Build-Out
LE001 Additional Law Enforcement Facility Space	\$7,597,165
LE002 Acquire Additional Response Vehicles	\$1,751,040
LE003 Acquire Additional Sworn Officer Issued Equipment	\$327,690
LE004 Acquire Law Enforcement Specialty Equipment	\$425,000
FS001 Relocate Fire Station #8 (Heil)	\$7,169,470
FS002 Construct Station #8 (Heil) Apparatus Storage Facility	\$1,716,044
FS003 Construct A Single Bay/Quarters At Station #4 (Magnolia)	\$1,266,458
FS004 Acquire An Engine And Ambulance For Station #4 (Magnolia)	\$740,000
FS005 Acquire An Additional Engine For Station #1 (Gothard)	\$525,000
FS006 Acquire An Additional Engine For Station #2 (Murdy)	\$525,000
LG001 Beach Boulevard And Edinger Avenue	\$600,000
LG002 Beach Boulevard And Heil Avenue	\$1,000,000
LG003 Beach Boulevard And Warner Avenue	\$400,000
LG004 Beach Boulevard And Slater Avenue	\$500,000
LG005 Beach Boulevard And Talbert Avenue	\$1,000,000
LG006 Beach Boulevard And Garfield Avenue	\$1,000,000
LG007 Beach Boulevard And Yorktown Avenue	\$500,000
LG008 Pacific Coast Highway And Warner Avenue	\$2,000,000
LG009 Pacific Coast Highway And Goldenwest Street	\$750,000
LG010 Pacific Coast Highway And Brookhurst Street	\$750,000
LG011 Goldenwest Street And Bolsa Avenue	\$500,000
LG012 Goldenwest Street And Slater Street	\$50,000
LG013 Newland Street And Talbert Avenue	\$500,000
LG014 Newland Street And Warner Avenue	\$30,000
LG015 Newland Street And Yorktown Avenue	\$300,000

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Huntington Beach

Master Facilities Plan

Master Project List

	Total Thru G.P. Build-Out
LG016 Gothard Street And Slater Avenue	\$500,000
LG017 Gothard Street And Talbert Avenue	\$264,000
LG018 Ward Street And Garfield Avenue	\$8,800
LG019 Brookhurst Street And Adams Avenue	\$10,000,000
LG020 Miscellaneous Traffic Signal/Intersection Improvements	\$5,000,000
LG021 Public Works Maintenance Building	\$2,820,000
LG022 Public Works Maintenance Vehicles	\$65,000
SD001 Santa Ana River & Talbert Channel Region (SD Region #1)	\$23,728,000
SD002 Coastal And Bolsa Chica Wetlands Region (SD Region #2)	\$21,527,000
SD003 Slater Channel Region (SD Region #3)	\$34,236,000
SD004 Wintersburg Channel Region (SD Region #4)	\$28,749,000
SD005 Bolsa Chica Channel & Harbour Region (SD Region #5)	\$98,549,000
SD006 Public Works Maintenance Building	\$705,050
PL001 Expand Banning Branch Library	\$5,268,470
PL002 Expand Main Street Branch Library	\$1,651,375
PL003 Expand Library Collection Items	\$921,524
PK001 Bartlett Park Conceptual Plan And EIR	\$5,400,000
PK002 Irby Park Phase II	\$500,000
PK003 Central Park Former Gun Range EIR, RAP And Development	\$4,325,000
PK004 Le Bard Park Expansion Master Plan And Development Plan	\$1,450,000
PK005 Blufftop Park Trail Improvements	\$1,000,000
PK006 Edinger Dock Development	\$700,000
PK007 Wardlow Field Reconfiguration Design/Construction	\$1,000,000
PK008 City-Wide Parks Master Plan	\$350,000
PK009 Central Park Habitat Plan	\$250,000

Huntington Beach

Master Facilities Plan

Master Project List

	Total Thru G.P. Build-Out
PK010 Central Park Acquisiton Of Encyclopedia Lots	\$1,020,000
PK011 Central Park Development Of Remaining 86 Acres	\$20,000,000
PK012 Central Park Rebuild Two Restaurant Facilities	\$800,000
PK013 General Youth Sports Facilities Grants	\$4,500,000
PK014 Murdy Youth Sports Complex Phase II	\$2,500,000
PK015 Beach Playground	\$350,000
PK016 Central Park Development Of Former Gun Range Area	\$3,000,000
PK017 Warner Dock Renovation And Expansion	\$800,000
PK018 Lamb Park Design And Development	\$1,100,000
PK019 Central Park Sports Complex Team Room	\$100,000
PK020 Future Parks Acquisition (Possible Closed School Sites)	\$59,588,000
PK021 Central Park Senior Center	\$22,000,000
PK022 Edison Community Center Gymnasium	\$2,975,000
PK023 Murdy Community Center Gymnasium	\$2,975,000
PK024 Oak View Recreation Center Expansion	\$800,000
Total All Projects	<u>\$403,399,086</u>

City of Huntington Beach

**Law Enforcement Facilities,
Vehicles and Equipment**

Huntington Beach

Master Facilities Plan

Law Enforcement Facilities, Vehicles And Equipment

		2015 - 16				Project Build Out Total
		2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 Through Build Out
LE -001	Additional Law Enforcement Facility Space	\$0	\$0	\$0	\$0	\$7,597,165
LE -002	Acquire Additional Response Vehicles	\$0	\$0	\$0	\$0	\$1,751,040
LE -003	Acquire Additional Sworn Officer Issued Equipment	\$0	\$0	\$0	\$0	\$327,690
LE -004	Acquire Law Enforcement Specialty Equipment	\$0	\$0	\$0	\$0	\$425,000
TOTALS		\$0	\$0	\$0	\$0	\$10,100,895
						\$10,100,895

Notes:
1) If project timing is not a component of this effort, then all projects default to their "Thru Build Out" amount

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Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Law Enforcement Facilities, Vehicles And Equipment
 Project Number:/ Title LE 001 Additional Law Enforcement Facility Space
 Submitting Departments: Police Department

Project Description:

Acquire land (or replacement land is placed at City Hall) for and construct 12,041 square feet of law enforcement space. The department will need to hire an additional 33 sworn officers at General Plan build-out to accommodate the additional 14.6% (8,697) in calls-for-service demand over the current 59,479 annual calls-for-service. Roughly 249 of these would be to the beach area. The additional space could be in the main station or could be located elsewhere in the City. The space would be necessary to expand, patrol, investigation, traffic control or any of the many specialty support services such as communications or records.

Justification / Consequences of Avoidance:

The City annually currently experiences roughly approximately 61,285 calls-for-service, 97.05% of which are from privately-held properties within the City's limits. The land-use database indicates the addition of 7,065 residential dwellings, 1,353 commercial lodging rooms and 7.3 million square feet of additional business (commercial, office and industrial) space which will generate, on average, an additional 8,448 annual calls-for-service, or a 14.6% increase. While the existing station is adequate to meet the current needs, the addition of 34 sworn officers will generate the need for a proportionally greater amount of space.

Relationship to General Plan Development

The project primarily addresses additional calls-for-service from new development (97.05%) and thus is allocated 97.05% to new General Plan development.

Allocation To General Plan Buildout: 97.05%

Reference Document:

Project Timing:

The project timing would be dependent upon both the rate of development and collection of Development Impact Fees.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	568,524.00	568,524.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	1,033,801.00	1,033,801.00
3. Construction	0.00	0.00	0.00	0.00	5,173,493.00	5,173,493.00
4. Contingency	0.00	0.00	0.00	0.00	309,604.00	309,604.00
5. Equipment / Other	0.00	0.00	0.00	0.00	511,743.00	511,743.00
TOTAL COST:	0.00	0.00	0.00	0.00	7,597,165.00	7,597,165.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Law Enforcement Facilities, Vehicles And Equipment
 Project Number/ Title LE 002 Acquire Additional Response Vehicles
 Submitting Departments: Police Department

Project Description:

Acquire thirty-two additional response or specialty vehicles at an average cost of \$54,720 each in order to maintain the existing ratio of 0.98 vehicles per officer. Approximately 97.05% of these vehicles are required to serve private sector development.

Justification / Consequences of Avoidance:

The Department currently has 231 law enforcement vehicles that are used by the 235 sworn officers creating an existing standard of 0.98 vehicles per sworn officer. With that the addition of 33 officers needed to respond to the annual calls-for-service likely to be generated by future General Plan development the City will need to acquire an additional 32 vehicles in order to maintain the 0.98 ratio of vehicle per sworn officer. Failure to maintain the current ratio of vehicles per officer could reduce the City's ability to maintain beat strength and would certainly accelerate vehicle turnover.

Relationship to General Plan Development:

The acquisition addresses only the future additional calls-for-service from General Plan new development and thus is allocated 97.05 percent to new development.

Allocation To General Plan Buildout: 97.05%

Reference Document

Project Timing:

The project timing would be dependent upon both the rate of development and collection of Development Impact Fees.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	0.00	0.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	1,751,040.00	1,751,040.00
TOTAL COST:	0.00	0.00	0.00	0.00	1,751,040.00	1,751,040.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Law Enforcement Facilities, Vehicles And Equipment
 Project Number:/ Title LE 003 Acquire Additional Sworn Officer Issued Equipment
 Submitting Departments: Police Department

Project Description:

Acquire additional equipment assigned to the additional 33 sworn officers necessary to accommodate General Plan development. The capitalized list of equipment includes (but is not limited to): a protective vest, handgun, baton, compliment of leathers, handcuffs, uniforms, helmet, raincoat and heavy duty flashlight. The costs, at \$9,930 includes a nominal background check, medical/physical check and polygraph exam for the successful candidates.

Justification / Consequences of Avoidance:

The equipment is necessary for an officer to function in the field. The list is mostly safety equipment but also includes the costs absorbed by the City in the necessary for identifying an appropriate candidate. Roughly 97.05% of the required new officers would be required to serve new General Plan development.

Relationship to General Plan Development:

The project primarily addresses additional calls-for-service from new development (97.05%) and thus is allocated 97.05% to new General Plan development.

Allocation To General Plan Buildout: 97.05%

Reference Document:

Project Timing:

The project timing would be dependent upon both development and collection of development impact fees.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	0.00	0.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	327,690.00	327,690.00
TOTAL COST:	0.00	0.00	0.00	0.00	327,690.00	327,690.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Law Enforcement Facilities, Vehicles And Equipment
 Project Number:/ Title LE 004 Acquire Law Enforcement Specialty Equipment
 Submitting Departments: Police Department

Project Description:

Acquire specialty equipment to support the additional 33 officers needed to accommodate new development. Approximately 97% of that figure are needed to accommodate new development of private property.

Justification / Consequences of Avoidance:

The amount and type of crime is ever increasing. The City will need to acquire additional information-sharing computer capacity as well as specialty equipment such as bikes, dogs, hand-held radios, etc.

Relationship to General Plan Development

The project primarily addresses additional calls-for-service from new development (97.05%) and thus is allocated 97.05% to new General Plan development.

Allocation To General Plan Buildout 97.05%

Reference Document:

Project Timing:

The project timing would be dependent upon both development and collection of development impact fees.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	0.00	0.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	425,000.00	425,000.00
TOTAL COST:	0.00	0.00	0.00	0.00	425,000.00	425,000.00

City of Huntington Beach

**Fire Suppression/Medic Facilities,
Vehicles and Equipment**

Huntington Beach

Master Facilities Plan

Fire Suppression/Medic Facilities, Vehicles And Equipment

		2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 Through Build Out	Project Build Out Total
FS -001	Relocate Fire Station #8 (Heil)	\$0	\$0	\$0	\$0	\$7,169,470	\$7,169,470
FS -002	Construct Station #8 (Heil) Apparatus Storage Facility	\$0	\$0	\$0	\$0	\$1,716,044	\$1,716,044
FS -003	Construct A Single Bay/Quarters At Station #4 (Magnolia)	\$0	\$0	\$0	\$0	\$1,266,458	\$1,266,458
FS -004	Acquire An Engine And Ambulance For Station #4 (Magnolia)	\$0	\$0	\$0	\$0	\$740,000	\$740,000
FS -005	Acquire An Addition Engine For Station #1 (Gothard)	\$0	\$0	\$0	\$0	\$525,000	\$525,000
FS -006	Acquire An Addition Engine For Station #2 (Murdy)	\$0	\$0	\$0	\$0	\$525,000	\$525,000
TOTALS		\$0	\$0	\$0	\$0	\$11,941,972	\$11,941,972

Notes:

1) If project timing is not a component of this effort, then all projects default to their "Thru Build Out" amount

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Fire Suppression/Medic Facilities, Vehicles And Equipment
 Project Number:/ Title FS 001 Relocate Fire Station #8 (Heil)
 Submitting Departments: Fire Department

Project Description:

Relocate Station #8 from its current location on Heil Avenue just west of Springale Street to a more northerly area near Graham Street just north of Edinger Street. The proposed 11,350 square foot facility would be a five vehicle configuration and would require roughly 1.25 acres. The facility would be capable of housing up to three companies and battalion chief. The facility would provide 3,550 square feet of vehicle bay space, 1,290 square feet of mechanical/technical space, 6,150 square feet of living quarters consisting of (a maximum of 24) bunks, lockers, restrooms/showers, a physical training room, kitchen, dining and a dayroom.

Justification / Consequences of Avoidance:

The forty-five year-old station, once state-of-the-art, has numerous limitations in addition to mere aging. In addition to asbestos removal needs, the station design does not allow for mixed gender accommodation or the assignment of an aerial response truck. Since the station needs to be reconstructed, relocation more northerly, about 1.25 miles, would improve the first-in engine, truck and paramedic ALS response capacity to that area of the City. Redevelopment along the Edinger/Beach corridor will likely result in a greater number of calls-for-service changing the response dynamic of the existing eight stations. If the station were not relocated, the area in question would receive longer response times.

Relationship to General Plan Development:

Relocating Station #8 (Heil) is consistent with the City's General Plan Public Safety response time commitments and would improve the average engine, aerial truck and ALS paramedic response time through-out the City, in particular the Edinger/Beach corridor area.

Allocation To General Plan Buildout 50.00%

Reference Document

Project Timing:

The redevelopment along the Edinger/Beach corridor would likely be the trigger point for the need of this relocation. The station age and limitations are also an issue and could trigger the construction timing.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	532,561.00	532,561.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	1,026,097.00	1,026,097.00
3. Construction	0.00	0.00	0.00	0.00	4,963,827.00	4,963,827.00
4. Contingency	0.00	0.00	0.00	0.00	285,204.00	285,204.00
5. Equipment / Other	0.00	0.00	0.00	0.00	361,781.00	361,781.00
TOTAL COST:	0.00	0.00	0.00	0.00	7,169,470.00	7,169,470.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Fire Suppression/Medic Facilities, Vehicles And Equipment
 Project Number/ Title FS 002 Construct Station #8 (Heil) Apparatus Storage Facility
 Submitting Departments: Fire Department

Project Description:

Construct a 3,620 square foot reserve apparatus storage facility upon relocation of the existing Station #8 (Heil) to its proposed future location. The facility would consist of a 2,660 square foot, two bays wide by two vehicle deep storage building for up to four reserve response vehicles. There would also be a contiguous 960 square foot basic storage room. The facility would be constructed on the rear portion of the parcel near the hose tower and hose storage building.

Justification / Consequences of Avoidance:

The proposed storage building is necessary for proper storage of the reserve vehicles and other specialty equipment not used on a routine basis, but important none-the-less. The existing vehicle storage facility cannot store all of the reserve vehicles that will be needed at General Plan build-out.

Relationship to General Plan Development:

The additional storage space is necessary, in part, to new development and also because of the limited capacity of the single existing reserve vehicle storage facility.

Allocation To General Plan Buildout: 25.00%

Reference Document:

Project Timing:

The facility would likely be constructed at the same time as the proposed relocation of station #8 (Heil), however, the construction could be completed at a different time.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	120,415.00	120,415.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	327,266.00	327,266.00
3. Construction	0.00	0.00	0.00	0.00	1,122,703.00	1,122,703.00
4. Contingency	0.00	0.00	0.00	0.00	64,210.00	64,210.00
5. Equipment / Other	0.00	0.00	0.00	0.00	81,450.00	81,450.00
TOTAL COST:	0.00	0.00	0.00	0.00	1,716,044.00	1,716,044.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Fire Suppression/Medic Facilities, Vehicles And Equipment
 Project Number./ Title FS 003 Construct A Single Bay/Quarters At Station #4 (Magnolia)
 Submitting Departments: Fire Department

Project Description:

Construct a 2,400 square foot addition to Station #4 (Magnolia). The plans consist of an additional bay and sufficient living quarters/training/storage space to the existing two-bay Station #4 (Magnolia). The additional 1,400 square foot vehicle bay would allow for two additional response vehicles, in this case an engine and an ambulance. The 1,000 square foot living quarters expansion would increase storage/locker space by approximately 200 square feet and living/training space by approximately 800 square feet.

Justification / Consequences of Avoidance:

The expanded facility will be needed to accommodate the additional calls-for-service demands from the planned density-increasing redevelopment from the Downtown Specific Plan and along the southerly portion of the Edinger/Beach Specific Plan corridor. Increased call-load must be balanced by have adequate fire station quarters and apparatus in order to meet the City's General Plan emergency response goals. Without the additional facilities, the response goals will be unachievable with the greater demands.

Relationship to General Plan Development:

The facility expansion is required to accommodate higher densities resulting from development consistent with the Downtown Specific Plan and the southerly portion of the Edinger/Beach Specific Plan corridor as well for multiple response vehicle demands to other parts of the City.

Allocation To General Plan Buildout: 50.00%

Reference Document:

Project Timing:

As needed and as development impact fee receipts and other revenues become available.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	109,650.00	109,650.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	1,020,000.00	1,020,000.00
4. Contingency	0.00	0.00	0.00	0.00	60,308.00	60,308.00
5. Equipment / Other	0.00	0.00	0.00	0.00	76,500.00	76,500.00
TOTAL COST:	0.00	0.00	0.00	0.00	1,266,458.00	1,266,458.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Fire Suppression/Medic Facilities, Vehicles And Equipment
 Project Number:/ Title FS 004 Acquire An Engine And Ambulance For Station #4 (Magnolia)
 Submitting Departments: Fire Department

Project Description:

Add an engine company and an ambulance to Station #4 (Magnolia). Project FD-003 details the proposed 2,400 square foot expansion required to house the new engine and paramedic vehicle and staff.

Justification / Consequences of Avoidance:

Increased call load must be balanced by have adequate fire station quarters and apparatus in order to meet the City's General Plan emergency response goals. Without the additional facilities, the response goals will be unachievable with the greater demands. The expanded facility will be needed to accommodate the additional calls-for-service demands from the planned density-increasing redevelopment from the Downtown Specific Plan and along the southerly portion of the Edinger/Beach Specific Plan corridor.

Relationship to General Plan Development:

The facility expansion is required to accommodate higher densities resulting from development consistent with the Downtown Specific Plan and the southerly portion of the Edinger/Beach Specific Plan corridor as well for multiple response vehicle demands to other parts of the City.

Allocation To General Plan Buildout: 50.00%

Reference Document

Project Timing:

As needed and as development impact fee receipts and other revenues become available.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	0.00	0.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	740,000.00	740,000.00
TOTAL COST:	0.00	0.00	0.00	0.00	740,000.00	740,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Fire Suppression/Medic Facilities, Vehicles And Equipment
 Project Number./ Title FS 005 Acquire An Addition Engine For Station #1 (Gothard)
 Submitting Departments: Fire Department

Project Description:

Ad a standard engine company at Station #1 (Gothard). The engine would be fully stocked with and appropriate and sufficient amount of hose, appurtenances and other safety/rescue equipment.

Justification / Consequences of Avoidance:

The expanded facility will be needed to accommodate the additional calls-for-service demands from the planned density-increasing redevelopment from the Downtown Specific Plan and along the Edinger/Beach Specific Plan corridor. Increased call load must be balanced by have adequate fire station quarters and apparatus in order to meet the City's General Plan emergency response goals. Without the additional facilities, the response goals will be unachievable with the greater demands.

Relationship to General Plan Development:

The facility expansion is required to accommodate higher densities resulting from development consistent with the Downtown Specific Plan and the Edinger/Beach Specific Plan corridor as well for multiple response vehicles response to other parts of the City.

Allocation To General Plan Buildout: 50.00%

Reference Document:

Project Timing:

As needed and as development impact fee receipts and other revenues become available.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	0.00	0.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	525,000.00	525,000.00
TOTAL COST:	0.00	0.00	0.00	0.00	525,000.00	525,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Fire Suppression/Medic Facilities, Vehicles And Equipment
 Project Number/ Title FS 006 Acquire An Addition Engine For Station #2 (Murdy)
 Submitting Departments: Fire Department

Project Description:

Add a standard engine company at Station #2 (Murdy). The engine would be fully stocked with an appropriate and sufficient amount of hose, appurtenances and other safety/rescue equipment.

Justification / Consequences of Avoidance:

The expanded facility will be needed to accommodate the additional calls-for-service demands from the planned density-increasing redevelopment along the Edinger/Beach Specific Plan corridor. Increased call-load must be balanced by have adequate fire station quarters and apparatus in order to meet the City's General Plan emergency response goals. Without the additional facilities, the response goals will be unachievable with the greater demands.

Relationship to General Plan Development:

The facility expansion is required to accommodate higher densities along Edison/Beach Specific Plan and multiple response vehicles demands to other parts of the City.

Allocation To General Plan Buildout 50.00%

Reference Document:

Project Timing:

As needed and as development impact fee receipts and other revenues become available.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16	Total all Years
					through Build-out	
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	0.00	0.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	525,000.00	525,000.00
TOTAL COST:	0.00	0.00	0.00	0.00	525,000.00	525,000.00

City of Huntington Beach

**Circulation (Streets, Signals
And Bridges) System**

Huntington Beach Master Facilities Plan Local Circulation (Streets, Signals And Bridges) System

		2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 Through Build Out	Project Build Out Total
LC -001	Beach Boulevard And Edinger Avenue	\$0	\$0	\$0	\$0	\$600,000	\$600,000
LC -002	Beach Boulevard And Heil Avenue	\$0	\$0	\$0	\$0	\$1,000,000	\$1,000,000
LC -003	Beach Boulevard And Warner Avenue	\$0	\$0	\$0	\$0	\$400,000	\$400,000
LC -004	Beach Boulevard And Slater Avenue	\$0	\$0	\$0	\$0	\$500,000	\$500,000
LC -005	Beach Boulevard And Talbert Avenue	\$0	\$0	\$0	\$0	\$1,000,000	\$1,000,000
LC -006	Beach Boulevard And Garfield Avenue	\$0	\$0	\$0	\$0	\$1,000,000	\$1,000,000
LC -007	Beach Boulevard And Yorktown Avenue	\$0	\$0	\$0	\$0	\$500,000	\$500,000
LC -008	Pacific Coast Highway And Warner Avenue	\$0	\$0	\$0	\$0	\$2,000,000	\$2,000,000
LC -009	Pacific Coast Highway And Goldenwest Street	\$0	\$0	\$0	\$0	\$750,000	\$750,000
LC -010	Pacific Coast Highway And Brookhurst Street	\$0	\$0	\$0	\$0	\$750,000	\$750,000
LC -011	Goldenwest Street And Bolsa Avenue	\$0	\$0	\$0	\$0	\$500,000	\$500,000
LC -012	Goldenwest Street And Slater Street	\$0	\$0	\$0	\$0	\$50,000	\$50,000
LC -013	Newland Street And Talbert Avenue	\$0	\$0	\$0	\$0	\$500,000	\$500,000
LC -014	Newland Street And Warner Avenue	\$0	\$0	\$0	\$0	\$30,000	\$30,000
LC -015	Newland Street And Yorktown Avenue	\$0	\$0	\$0	\$0	\$300,000	\$300,000
LC -016	Gothard Street And Slater Avenue	\$0	\$0	\$0	\$0	\$500,000	\$500,000
LC -017	Gothard Street And Talbert Avenue	\$0	\$0	\$0	\$0	\$264,000	\$264,000
LC -018	Ward Street And Garfield Avenue	\$0	\$0	\$0	\$0	\$8,800	\$8,800
LC -019	Brookhurst Street And Adams Avenue	\$0	\$0	\$0	\$0	\$10,000,000	\$10,000,000
LC -020	Miscellaneous Traffic Signal/Intersection Improvements	\$0	\$0	\$0	\$0	\$5,000,000	\$5,000,000
LC -021	Public Works Maintenance Building	\$0	\$0	\$0	\$0	\$2,820,000	\$2,820,000
LC -022	Public Works Maintenance Vehicles	\$0	\$0	\$0	\$0	\$65,000	\$65,000

Huntington Beach Master Facilities Plan Local Circulation (Streets, Signals And Bridges) System

	2015 - 16				Project Build Out Total
	2011 - 12	2012 - 13	2013 - 14	2014 - 15	
				Through Build Out	
TOTALS	\$0	\$0	\$0	\$28,537,800	\$28,537,800

Notes:
1) If project timing is not a component of this effort, then all projects default to their "Thru Build Out" amount.

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System
 Project Number/ Title LC 001 Beach Boulevard And Edinger Avenue
 Submitting Departments: Public Works - Engineering

Project Description:

To maximize the capability to move vehicles and pedestrians across the intersection (in all directions), the following improvements to the intersection are proposed: 1) Add 4th northbound through lane, and 2) Add a 3rd westbound through lane. Beach Boulevard, being a State Highway, makes this a CALTRANS managed project. Since the project would not be managed by the City, the estimated cost consists of the entire project cost, but does not separate those costs into engineering and contingency components.

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus maximum movement of traffic across major circulation routes is critical. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow," and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development:

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles.

Allocation To General Plan Buildout: 75.00%

Reference Document

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16	Total all Years
					through Build-out	
1. Design / Engineering / Adminstratic	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	600,000.00	600,000.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	600,000.00	600,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System
 Project Number:/ Title LC 002 Beach Boulevard And Heil Avenue
 Submitting Departments: Public Works - Engineering

Project Description:

To maximize the capability to move vehicles and pedestrians across the intersection (in all directions), the following improvements to the intersection are proposed: 1) Add 2nd northbound left-turn lane. An alternative would be to construct 1) A de-facto westbound right turn lane, and 2) add a de-facto southbound right turn lane. Beach Boulevard, being a State Highway, makes this a CALTRANS managed project. Since the project would not be managed by the City, the estimated cost consists of the entire project cost, but does not separate those costs into engineering and contingency components.

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus maximum movement of traffic across major circulation routes is critical. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow" and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles. The 454,542 added daily trip-miles represent 12.8% of the total 3,561,767 daily trip-miles at the twenty-year development horizon.

Allocation To General Plan Buildout 95.00%

Reference Document:

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	1,000,000.00	1,000,000.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	1,000,000.00	1,000,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System
 Project Number/ Title LC 003 Beach Boulevard And Warner Avenue
 Submitting Departments: Public Works - Engineering

Project Description:

To maximize the capability to move vehicles and pedestrians across the intersection (in all directions), the following improvements to the intersection are proposed: 1) Add a separate westbound right turn lane. An alternative would be to construct the following: 1) A de-facto westbound right turn lane, and 2) add a separate northbound right turn lane. Beach Boulevard, being a State Highway, makes this a CALTRANS managed project. Since the project would not be managed by the City, the estimated cost consists of the entire project cost, but does not separate those costs into engineering and contingency components.

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus maximum movement of traffic across major circulation routes is critical. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow," and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development:

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles. The 454,542 added daily trip-miles represent 12.8% of the total 3,561,767 daily trip-miles at the twenty-year development horizon.

Allocation To General Plan Buildout: 95.00%

Reference Document

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16	Total all Years
					through Build-out	
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	400,000.00	400,000.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	400,000.00	400,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System
 Project Number./ Title LC 004 Beach Boulevard And Slater Avenue
 Submitting Departments: Public Works - Engineering

Project Description:

To maximize the capability to move vehicles and pedestrians across the intersection (in all directions), the following improvement to the intersection is proposed: 1) Add a separate eastbound right turn lane. Beach Boulevard, being a State Highway, makes this a CALTRANS managed project. Since the project would not be managed by the City, the estimated cost consists of the entire project cost, but does not separate those costs into engineering and contingency components.

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus maximum movement of traffic across major circulation routes is critical. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow" and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles. The 454,542 added daily trip-miles represent 12.8% of the total 3,561,767 daily trip-miles at the twenty-year development horizon.

Allocation To General Plan Buildout 95.00%

Reference Document:

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	500,000.00	500,000.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	500,000.00	500,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System

Project Number/ Title LC 005 Beach Boulevard And Talbert Avenue

Submitting Departments: Public Works - Engineering

Project Description:

To maximize the capability to move vehicles and pedestrians across the intersection (in all directions), the following improvements to the intersection are proposed: 1) Add a 2nd westbound left turn lane, 2) add a de-facto westbound right turn lane, 3) add a separate northbound right turn lane, 4) add a 2nd eastbound left turn lane, and 5) stripe a de-facto eastbound right turn lane. Beach Boulevard, being a State Highway, makes this a CALTRANS managed project. Since the project would not be managed by the City, the estimated cost consists of the entire project cost, but does not separate those costs into engineering and contingency components.

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus maximum movement of traffic across major circulation routes is critical. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow;" and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development:

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles. The 454,542 added daily trip-miles represent 12.8% of the total 3,561,767 daily trip-miles at the twenty-year development horizon.

Allocation To General Plan Buildout: 62.00%

Reference Document:

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	1,000,000.00	1,000,000.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	1,000,000.00	1,000,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System
 Project Number./ Title LC 006 Beach Boulevard And Garfield Avenue
 Submitting Departments: Public Works - Engineering

Project Description:

To maximize the capability to move vehicles and pedestrians across the intersection (in all directions), the following Option #1 improvements to the intersection are proposed: 1) Add a separate northbound right turn lane, and 2) add a de-facto southbound right turn lane. An alternative would to those improvements would be to: 1) Add a 2nd northbound left turn lane, and 2) add a 2nd southbound left turn lane. Beach Boulevard, being a State Highway, makes this a CALTRANS managed project. Since the project would not be managed by the City, the estimated cost consists of the entire project cost, but does not separate those costs into engineering and contingency components.

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus maximum movement of traffic across major circulation routes is critical. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow" and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development:

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles. The 454,542 added daily trip-miles represent 12.8% of the total 3,561,767 daily trip-miles at the twenty-year development horizon.

Allocation To General Plan Buildout: 95.00%

Reference Document

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	1,000,000.00	1,000,000.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	1,000,000.00	1,000,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System

Project Number:/ Title LC 007 Beach Boulevard And Yorktown Avenue

Submitting Departments: Public Works - Engineering

Project Description:

To maximize the capability to move vehicles and pedestrians across the intersection (in all directions), the following improvement to the intersection is proposed: 1) Add a separate westbound right turn lane. Beach Boulevard, being a State Highway, makes this a CALTRANS managed project. Since the project would not be managed by the City, the estimated cost consists of the entire project cost, but does not separate those costs into engineering and contingency components.

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus maximum movement of traffic across major circulation routes is critical. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow;" and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development:

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles. The 454,542 added daily trip-miles represent 12.8% of the total 3,561,767 daily trip-miles at the twenty-year development horizon.

Allocation To General Plan Buildout 95.00%

Reference Document:

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	500,000.00	500,000.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	500,000.00	500,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System
 Project Number/ Title LC 008 Pacific Coast Highway And Warner Avenue
 Submitting Departments: Public Works - Engineering

Project Description:

To maximize the capability to move vehicles and pedestrians across the intersection (in all directions), the following improvement to the intersection is proposed: 1) Add a 3rd northbound through lane. Pacific Coast Highway, being a State Highway, makes this a CALTRANS managed project. Since the project would not be managed by the City, the estimated cost consists of the entire project cost, but does not separate those costs into engineering and contingency components.

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus maximum movement of traffic across major circulation routes is critical. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow" and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development:

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles. The 454,542 added daily trip-miles represent 12.8% of the total 3,561,767 daily trip-miles at the twenty-year development horizon.

Allocation To General Plan Buildout 95.00%

Reference Document

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16	Total all Years
					through Build-out	
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	2,000,000.00	2,000,000.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	2,000,000.00	2,000,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System
 Project Number/ Title LC 009 Pacific Coast Highway And Goldenwest Street
 Submitting Departments: Public Works - Engineering

Project Description:

To maximize the capability to move vehicles and pedestrians across the intersection (in all directions), the following improvements to the intersection are proposed: 1) Add a 2nd eastbound left turn lane, and 2) allow southbound right turn overlap. Pacific Coast Highway, being a State Highway, makes this a CALTRANS managed project. Since the project would not be managed by the City, the estimated cost consists of the entire project cost, but does not separate those costs into engineering and contingency components.

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus maximum movement of traffic across major circulation routes is critical. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow;" and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development:

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles. The 454,542 added daily trip-miles represent 12.8% of the total 3,561,767 daily trip-miles at the twenty-year development horizon.

Allocation To General Plan Buildout: 88.00%

Reference Document:

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	750,000.00	750,000.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	750,000.00	750,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System
 Project Number:/ Title LC 010 Pacific Coast Highway And Brookhurst Street
 Submitting Departments: Public Works - Engineering

Project Description:

To maximize the capability to move vehicles and pedestrians across the intersection (in all directions), the following improvements to the intersection are proposed: 1) Add a 2nd eastbound left turn lane and, 2) allow southbound right turn overlap. Pacific Coast Highway, being a State Highway, makes this a CALTRANS managed project. Since the project would not be managed by the City, the estimated cost consists of the entire project cost, but does not separate those costs into engineering and contingency components.

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus maximum movement of traffic across major circulation routes is critical. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow" and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development:

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles. The 454,542 added daily trip-miles represent 12.8% of the total 3,561,767 daily trip-miles at the twenty-year development horizon.

Allocation To General Plan Buildout: 95.00%

Reference Document

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	750,000.00	750,000.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	750,000.00	750,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System
 Project Number:/ Title LC 011 Goldenwest Street And Bolsa Avenue
 Submitting Departments: Public Works - Engineering

Project Description:

To maximize the capability to move vehicles and pedestrians across the intersection (in all directions), the following improvements to the intersection are proposed: 1) Add a second southbound left turn lane, 2) Add a separate northbound right turn lane and 3). Allow westbound right turn overlap. This would be a City-managed project.

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus movement of traffic across major circulation routes. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow," and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles. The 454,542 added daily trip-miles represent 12.8% of the total 3,561,767 daily trip-miles at the twenty-year development horizon.

Allocation To General Plan Buildout 95.00%

Reference Document:

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	60,000.00	60,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	400,000.00	400,000.00
4. Contingency	0.00	0.00	0.00	0.00	40,000.00	40,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	500,000.00	500,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System
 Project Number:/ Title LC 012 Goldenwest Street And Slater Street
 Submitting Departments: Public Works - Engineering

Project Description:

To maximize the capability to move vehicles and pedestrians across the intersection (in all directions), the following improvement to the intersection is proposed: 1) Add a 2nd southbound left turn lane. An alternative would to that improvement would be to: 1) Convert a separate northbound right turn lane to a third northbound through lane. This would be a City-managed project.

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus maximum movement of traffic across major circulation routes is critical. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow," and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development:

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles. The 454,542 added daily trip-miles represent 12.8% of the total 3,561,767 daily trip-miles at the twenty-year development horizon.

Allocation To General Plan Buildout: 95.00%

Reference Document:

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	6,000.00	6,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	40,000.00	40,000.00
4. Contingency	0.00	0.00	0.00	0.00	4,000.00	4,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	50,000.00	50,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System
 Project Number./ Title LC 013 Newland Street And Talbert Avenue
 Submitting Departments: Public Works - Engineering

Project Description:

To maximize the capability to move vehicles and pedestrians across the intersection (in all directions), the following improvement to the intersection is proposed: 1) Add a 2nd eastbound left turn lane. This would be a City-managed project

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus maximum movement of traffic across major circulation routes is critical. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow;" and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development:

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles. The 454,542 added daily trip-miles represent 12.8% of the total 3,561,767 daily trip-miles at the twenty-year development horizon.

Allocation To General Plan Buildout: 95.00%

Reference Document:

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	60,000.00	60,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	400,000.00	400,000.00
4. Contingency	0.00	0.00	0.00	0.00	40,000.00	40,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	500,000.00	500,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System
 Project Number:/ Title LC 014 Newland Street And Warner Avenue
 Submitting Departments: Public Works - Engineering

Project Description:

To maximize the capability to move vehicles and pedestrians across the intersection (in all directions), the following improvements to the intersection are proposed: 1) Convert a separate westbound right turn lane to a de-facto right turn lane, and 2) add a 3rd westbound through lane. This would be a City-managed project.

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus maximum movement of traffic across major circulation routes is critical. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow;" and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles. The 454,542 added daily trip-miles represent 12.8% of the total 3,561,767 daily trip-miles at the twenty-year development horizon.

Allocation To General Plan Buildout: 95.00%

Reference Document:

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16	Total all Years
					through Build-out	
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	3,600.00	3,600.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	24,000.00	24,000.00
4. Contingency	0.00	0.00	0.00	0.00	2,400.00	2,400.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	30,000.00	30,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System

Project Number/ Title LC 015 Newland Street And Yorktown Avenue

Submitting Departments: Public Works - Engineering

Project Description:

To maximize the capability to move vehicles and pedestrians across the intersection (in all directions), the following improvement to the intersection is proposed: 1) Re-stripe westbound right turn lane to a 2nd westbound through lane. This would be a City-managed project.

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus maximum movement of traffic across major circulation routes is critical. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow;" and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development:

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles. The 454,542 added daily trip-miles represent 12.8% of the total 3,561,767 daily trip-miles at the twenty-year development horizon.

Allocation To General Plan Buildout: 95.00%

Reference Document:

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	36,000.00	36,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	240,000.00	240,000.00
4. Contingency	0.00	0.00	0.00	0.00	24,000.00	24,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	300,000.00	300,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System
 Project Number:/ Title LC 016 Gothard Street And Slater Avenue
 Submitting Departments: Public Works - Engineering

Project Description:

To maximize the capability to move vehicles and pedestrians across the intersection (in all directions), the following improvement to the intersection is proposed: 1) Add a 2nd northbound left turn lane. This would be a City-managed project

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus maximum movement of traffic across major circulation routes is critical. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow" and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development:

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles. The 454,542 added daily trip-miles represent 12.6% of the total 3,561,767 daily trip-miles at the twenty-year development horizon.

Allocation To General Plan Buildout: 95.00%

Reference Document:

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	60,000.00	60,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	400,000.00	400,000.00
4. Contingency	0.00	0.00	0.00	0.00	40,000.00	40,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	500,000.00	500,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System

Project Number/ Title LC 017 Gothard Street And Talbert Avenue

Submitting Departments: Public Works - Engineering

Project Description:

To maximize the capability to move vehicles and pedestrians across the intersection (in all directions), the following improvement to the intersection is proposed: 1) Add a 2nd southbound left turn lane. An alternative to that improvement would be: 1) Convert a separate eastbound right turn to a 2nd eastbound through lane. This would be a City-managed project.

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus maximum movement of traffic across major circulation routes is critical. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow:" and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles. The 454,542 added daily trip-miles represent 12.8% of the total 3,561,767 daily trip-miles at the twenty-year development horizon.

Allocation To General Plan Buildout: 95.00%

Reference Document

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	240,000.00	240,000.00
4. Contingency	0.00	0.00	0.00	0.00	24,000.00	24,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	264,000.00	264,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System
 Project Number:/ Title LC 018 Ward Street And Garfield Avenue
 Submitting Departments: Public Works - Engineering

Project Description:

To maximize the capability to move vehicles and pedestrians across the intersection (in all directions), the following improvements to the intersection are proposed: 1) Add a 2nd eastbound left turn lane, and 2) remove a separate eastbound right turn lane. This would be a City-managed project.

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus maximum movement of traffic across major circulation routes is critical. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow;" and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development:

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles. The 454,542 added daily trip-miles represent 12.8% of the total 3,561,767 daily trip-miles at the twenty-year development horizon.

Allocation To General Plan Buildout 95.00%

Reference Document

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	8,000.00	8,000.00
4. Contingency	0.00	0.00	0.00	0.00	800.00	800.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	8,800.00	8,800.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System
 Project Number/ Title LC 019 Brookhurst Street And Adams Avenue
 Submitting Departments: Public Works - Engineering

Project Description:

To maximize the capability to move vehicles and pedestrians across the intersection (in all directions), the following improvements to the intersection are proposed: 1) Add a 4th through lane in each of the four directions, 2) add a separate northbound right turn lane, 3) allow northbound right turn overlap and 4) allow westbound right turn overlap. This would be a City-managed project.

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus maximum movement of traffic across major circulation routes is critical. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow;" and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development:

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles. The 454,542 added daily trip-miles represent 12.8% of the total 3,561,767 daily trip-miles at the twenty-year development horizon.

Allocation To General Plan Buildout: 95.00%

Reference Document:

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	1,200,000.00	1,200,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	8,000,000.00	8,000,000.00
4. Contingency	0.00	0.00	0.00	0.00	800,000.00	800,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	10,000,000.00	10,000,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System
 Project Number/ Title LC 020 Miscellaneous Traffic Signal/Intersection Improvements
 Submitting Departments: Public Works - Engineering

Project Description:

Construct, on average, a traffic signal (and supportive intersection improvements) per year over a twenty-year development window. The intersections would be selected on an as-needed basis from an existing prioritized list of proposed intersections. The improvements would include, but not necessarily be limited to, concrete curb, sidewalk and disabled ramp alterations, new signals infrastructure, consisting of light arms, lights, electrical control boxes, off-site controls. In addition there may be a need for lane restriping and left-turn and right turn pockets. These projects would be a City-managed.

Justification / Consequences of Avoidance:

There are few opportunities to add additional lane miles through out the City, thus movement of traffic across major circulation routes. Failure to or inability to increase circulation capacity where warranted and needed would reduce the Level of Service (or LOS) traffic flow at intersections of major streets to a Level "E" by acting as a bottleneck. Level "E" is "Unstable Flow;" and is identified as "long queues of vehicles waiting upstream of the intersection". Level "E", "Forced Flow" creates "Jammed conditions, back-ups from other locations restrict or prevent movement".

Relationship to General Plan Development:

All new development will impact existing intersections within the City, making some of them require improvements or the LOS will drop to unacceptable levels like "D", "E" or "F". Development anticipated over the next twenty years will generate 454,542 additional daily trip-miles. This is a 14.6% increase daily over the City's existing demand of 3,107,224 daily trip-miles, all of which will compete for use of a static number of major roadway lane miles. The 454,542 added daily trip-miles represent 12.8% of the total 3,561,767 daily trip-miles at the twenty-year development horizon.

Allocation To General Plan Buildout: 95.00%

Reference Document:

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	600,000.00	600,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	4,000,000.00	4,000,000.00
4. Contingency	0.00	0.00	0.00	0.00	400,000.00	400,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	5,000,000.00	5,000,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System
 Project Number/ Title LC 021 Public Works Maintenance Building
 Submitting Departments: Public Works - Engineering

Project Description:

Construct a 10,000 square foot, split-face block, general-use circulation system maintenance building. The facility would have full utilities and a number of roll-up doors. Approximately 80% of the cost of the additional space would benefit circulation system maintenance. The remaining 20% would be required for the growing storm drainage collection system maintenance needs and would thus be financed with Storm Drainage System Development Impact Fee proceeds. The cost below represents 80% of the proposed facility costs.

Justification / Consequences of Avoidance:

The additional space needs is required to support the roughly \$40.0 million in additional equipment and supply space needs resulting from the addition of major circulation and storm drainage improvements as well as an untold amount of local street miles and local storm drainage lines.

Relationship to General Plan Development

The facility expansion is limited to the demand created by the new infrastructure required to support new development.

Allocation To General Plan Buildout 95.00%

Reference Document:

Project Timing:

The project would be constructed based upon normal review of priorities and as adequate and sufficient DIF revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	265,000.00	265,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	2,410,000.00	2,410,000.00
4. Contingency	0.00	0.00	0.00	0.00	145,000.00	145,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	2,820,000.00	2,820,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Local Circulation (Streets, Signals And Bridges) System
 Project Number/ Title LC 022 Public Works Maintenance Vehicles
 Submitting Departments: Public Works - Maintenance

Project Description:
 Acquire an additional maintenance utility truck and a traffic signal lift truck.

Justification / Consequences of Avoidance:

The additional maintenance vehicle would be required to support the additional demands from the roughly \$40.0 million in additional circulation system improvements.

Relationship to General Plan Development

The circulation system maintenance fleet expansion is limited to the demands created by new infrastructure required to support new development.

Allocation To General Plan Buildout: 95.00%

Reference Document:

Project Timing:

The proposed fleet additions would be acquired based upon normal review of priorities and as adequate and sufficient DIF revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16	Total all Years
					through Build-out	
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	0.00	0.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	65,000.00	65,000.00
TOTAL COST:	0.00	0.00	0.00	0.00	65,000.00	65,000.00

City of Huntington Beach

Storm Drainage Collection System

Huntington Beach Master Facilities Plan Storm Drainage Collection System

		2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 Through Build Out	Project Build Out Total
SD -001	Santa Ana River & Talbert Channel Region (SD Region #1)	\$0	\$0	\$0	\$0	\$23,728,000	\$23,728,000
SD -002	Coastal And Bolsa Chica Wetlands Region (SD Region #2)	\$0	\$0	\$0	\$0	\$21,527,000	\$21,527,000
SD -003	Slater Channel Region (SD Region #3)	\$0	\$0	\$0	\$0	\$34,236,000	\$34,236,000
SD -004	Wintersburg Channel Region (SD Region #4)	\$0	\$0	\$0	\$0	\$28,749,000	\$28,749,000
SD -005	Bolsa Chica Channel & Harbour Region (SD Region #5)	\$0	\$0	\$0	\$0	\$98,549,000	\$98,549,000
SD -006	Public Works Maintenance Building	\$0	\$0	\$0	\$0	\$705,050	\$705,050
TOTALS		\$0	\$0	\$0	\$0	\$207,494,050	\$207,494,050

Notes:
1) If project timing is not a component of this effort, then all projects default to their "Thru Build Out" amount.

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Storm Drainage Collection System
 Project Number/ Title SD 001 Santa Ana River & Talbert Channel Region (SD Region #1)
 Submitting Departments: Public Works - Engineering

Project Description:

The 788 individual projects within Area 1 are required to remove storm drainage water from the City's street surfaces and other public areas and safely conveying it to the proper outlet. Sub-drainage region #1 drains the lower central to east and southerly areas of the City. It is generally bordered on the east by the Santa Ana River Channel, on the southwest by the Pacific Coast Highway and the Pacific Ocean, on the west mainly by Alabama and Main Streets, and on the north by Garfield and Ellis Avenues. It encompasses the Santa Ana River and the Talbert Channel Water Quality Planning Area and is represented in watershed Drainage Maps 20-27,29-32, 40, and 41.

Justification / Consequences of Avoidance:

These improvements are needed to provide efficient removal of storm water from the City's streets, roads and other public areas. Storm water will increase in amounts proportional to the amount of impervious surface reducing the capability of the ground to absorb water. The amount ranges from a low of 0.745 for detached dwellings to a high of 0.830 for commercial properties. If not completed, there would be the potential for flooding of downstream creeks, washes and other storm drainage collection pipes. Emergency vehicle response by the City's Police, Fire and Public Works crews could be effected to all areas of the City.

Relationship to General Plan Development:

A proportional amount of the projects, vis-a-vis the cost of the entire system, is appropriate.

Allocation To General Plan Buildout: 7.52%

Reference Document

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16	Total all Years
					through Build-out	
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	2,847,360.00	2,847,360.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	18,982,400.00	18,982,400.00
4. Contingency	0.00	0.00	0.00	0.00	1,898,240.00	1,898,240.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	23,728,000.00	23,728,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Storm Drainage Collection System
 Project Number/ Title SD 002 Coastal And Bolsa Chica Wetlands Region (SD Region #2)
 Submitting Departments: Public Works - Engineering

Project Description:

The 235 projects within Area #2 are required to remove storm drainage water from the City's street surfaces and other public areas and safely convey it to the proper outlet. Sub-drainage region # 2 drains the central southwest area of the City, and is generally bordered by Lake and Main Streets on the east, Pacific Coast Highway on the south and west, Seapoint Avenue and Edwards Street on the west, and Ellis Avenue on the north. Sub-drainage 2 also includes the community surrounding the Springdale/Talbert intersection. It encompasses the Bolsa Chica Wetlands and the Coastal Water Quality Planning Area and is represented in watershed Drainage Maps 16-19.

Justification / Consequences of Avoidance:

These improvements are needed to provide efficient removal of storm water from the City's streets, roads and other public areas. Storm water will increase in amounts proportional to the amount of impervious surface reducing the capability of the ground to absorb water. The amount ranges from a low of 0.745 for detached dwellings to a high of 0.830 for commercial properties. If not completed, there would be the potential for flooding of downstream creeks, washes and other storm drainage collection pipes. Emergency vehicle response by the City's Police, Fire and Public Works crews could be effected to all areas of the City.

Relationship to General Plan Development:

A proportional amount of the projects, vis-a-vis the cost of the entire system, is appropriate.

Allocation To General Plan Buildout: 7.52%

Reference Document:

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	2,583,240.00	2,583,240.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	17,221,600.00	17,221,600.00
4. Contingency	0.00	0.00	0.00	0.00	1,722,160.00	1,722,160.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	21,527,000.00	21,527,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Storm Drainage Collection System
 Project Number:/ Title SD 003 Slater Channel Region (SD Region #3)
 Submitting Departments: Public Works - Engineering

Project Description:

The 270 projects within Area #3 are required to remove storm drainage water from the City's street surfaces and other public areas and safely convey it to the proper outlet. Sub-drainage region 3 drains the central section of the City, including a portion of the City of Fountain Valley, and is generally bordered by Newland and Magnolia Avenues on the east, Ellis, Taylor and Talbert Avenues on the south, Graham and Bolsa Chica Streets on the west, and Warner Avenue on the north. Sub-drainage 3 consists of the Slater Channel Water Quality Planning Area and is represented in watershed Drainage Maps 10-15.

Justification / Consequences of Avoidance:

These improvements are needed to provide efficient removal of storm water from the City's streets, roads and other public areas. Storm water will increase in amounts proportional to the amount of impervious surface reducing the capability of the ground to absorb water. The amount ranges from a low of 0.745 for detached dwellings to a high of 0.830 for commercial properties. If not completed, there would be the potential for flooding of downstream creeks, washes and other storm drainage collection pipes. Emergency vehicle response by the City's Police, Fire and Public Works crews could be effected to all areas of the City.

Relationship to General Plan Development

A proportional amount of the projects, vis-a-vis the cost of the entire system, is appropriate.

Allocation To General Plan Buildout: 7.52%

Reference Document:

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16	Total all Years
					through Build-out	
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	4,108,320.00	4,108,320.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	27,388,800.00	27,388,800.00
4. Contingency	0.00	0.00	0.00	0.00	2,738,880.00	2,738,880.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	34,236,000.00	34,236,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Storm Drainage Collection System
 Project Number/ Title SD 004 Wintersburg Channel Region (SD Region #4)
 Submitting Departments: Public Works - Engineering

Project Description:

The 220 projects within Area #4 are required to remove storm drainage water from the City's street surfaces and other public areas and safely convey it to the proper outlet. Sub-drainage region 4 includes the northern and northeastern parts of the City, and is generally bordered by Newland Street on the east, Heil and Warner Avenues on the south, Springdale Street on the west, and McFadden Avenue on the north. Sub-drainage 4 corresponds to the Wintersburg Water Quality Channel Planning Area and is represented in watershed Drainage Maps 6-9.

Justification / Consequences of Avoidance:

These improvements are needed to provide efficient removal of storm water from the City's streets, roads and other public areas. Storm water will increase in amounts proportional to the amount of impervious surface reducing the capability of the ground to absorb water. The amount ranges from a low of 0.745 for detached dwellings to a high of 0.830 for commercial properties. If not completed, there would be the potential for flooding of downstream creeks, washes and other storm drainage collection pipes. Emergency vehicle response by the City's Police, Fire and Public Works crews could be effected to all areas of the City.

Relationship to General Plan Development:

A proportional amount of the projects, vis-a-vis the cost of the entire system, is appropriate.

Allocation To General Plan Buildout: 7.52%

Reference Document:

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	3,449,880.00	3,449,880.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	22,999,200.00	22,999,200.00
4. Contingency	0.00	0.00	0.00	0.00	2,299,920.00	2,299,920.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	28,749,000.00	28,749,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Storm Drainage Collection System
 Project Number/ Title SD 005 Bolsa Chica Channel & Harbour Region (SD Region #5)
 Submitting Departments: Public Works - Engineering

Project Description:

The 278 projects within Area #5 are required to remove storm drainage water from the City's street surfaces and other public areas and safely convey it to the proper outlet. Sub-drainage region 5 covers the northwestern section of the City, including a portion of the City of Westminster. Sub-drainage 5 corresponds to the Harbor Water Quality Planning Area and the Bolsa Chica Channel Water Quality Planning Area and is represented in watershed Drainage Maps 1-5.

Justification / Consequences of Avoidance:

These improvements are needed to provide efficient removal of storm water from the City's streets, roads and other public areas. Storm water will increase in amounts proportional to the amount of impervious surface reducing the capability of the ground to absorb water. The amount ranges from a low of 0.745 for detached dwellings to a high of 0.830 for commercial properties. If not completed, there would be the potential for flooding of downstream creeks, washes and other storm drainage collection pipes. Emergency vehicle response by the City's Police, Fire and Public Works crews could be effected to all areas of the City.

Relationship to General Plan Development:

A proportional amount of the projects, vis-a-vis the cost of the entire system, is appropriate.

Allocation To General Plan Buildout: 7.52%

Reference Document:

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16	Total all Years
					through Build-out	
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	11,825,880.00	11,825,880.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	78,839,200.00	78,839,200.00
4. Contingency	0.00	0.00	0.00	0.00	7,883,920.00	7,883,920.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	98,549,000.00	98,549,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Storm Drainage Collection System
 Project Number./ Title SD 006 Public Works Maintenance Building
 Submitting Departments: Public Works - Engineering

Project Description:

.Construct a 10,000 split-face block general use, maintenance building. The facility would be have full utilities and a number of roll-up doors. Approximately 20% of the cost of an additional 10,000 square foot building in support of General Fund Public Works maintenance from Storm Drainage System Development Impact Fees. The remaining 80% would be financed with Circuation System Development Impact Fees.

Justification / Consequences of Avoidance:

The additional space needs would be required to support the additional demands from the construction of \$ XXXXX in circulation and storm drainage infrastructure improvements.

Relationship to General Plan Development:

The facility expansion is limited to the demands created by the new infrastructure required to support new development.

Allocation To General Plan Buildout: 100.00%

Reference Document:

Project Timing:

The project will be constructed within normal review of priorities and as adequate and sufficient revenues are collected.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	66,250.00	66,250.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	602,500.00	602,500.00
4. Contingency	0.00	0.00	0.00	0.00	36,300.00	36,300.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	705,050.00	705,050.00

City of Huntington Beach

**Public Library Facilities
And Collection**

Huntington Beach Master Facilities Plan Public Library Facilities And Collection

		2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 Through Build Out	Project Build Out Total
PL -001	Expand Banning Branch Library	\$0	\$0	\$0	\$0	\$5,268,470	\$5,268,470
PL -002	Expand Main Street Branch Library	\$0	\$0	\$0	\$0	\$1,651,375	\$1,651,375
PL -003	Expand Library Collection System	\$0	\$0	\$0	\$0	\$921,524	\$921,524
TOTALS		\$0	\$0	\$0	\$0	\$7,841,369	\$7,841,369

Notes:
1) If project timing is not a component of this effort, then all projects default to their "Thru Build Out" amount.

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Huntington Beach October, 2011

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Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Public Library Facilities And Collection
 Project Number/ Title PL 001 Expand Banning Branch Library
 Submitting Departments: Library Services

Project Description:

Expand the Banning Branch Library facilities by 10,100 square feet from the current 2,400 square feet to 12,500 square feet to assist in maintain the existing levels of service and extend those same levels of service to the 17,089 new residents expected to be added through General Plan build-out.

Justification / Consequences of Avoidance:

The current de facto library standard of space is 0.669 square feet per resident. Added 17,089 residents from new General Plan development will create additional demands upon the existing level of service provided by the library. Without increasing library space, the existing standard would decrease to about 0.614 square feet per resident.

Relationship to General Plan Development

The proposed improvements are required to meet the demands of an increasing residential population.

Allocation To General Plan Buildout: 100.00%

Reference Document:

Project Timing:

Based upon the rate of construction of residential units and thus collection of any imposed development Impact Fees.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	535,260.00	535,260.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	808,000.00	808,000.00
3. Construction	0.00	0.00	0.00	0.00	3,568,370.00	3,568,370.00
4. Contingency	0.00	0.00	0.00	0.00	356,840.00	356,840.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	5,268,470.00	5,268,470.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Public Library Facilities And Collection
 Project Number/ Title PL 002 Expand Main Street Branch Library
 Submitting Departments: Library Services

Project Description:

Expand the Main Street Branch Library facilities by 4,804 square feet from the current 4,500 square feet to 9,304 square feet to assist in the maintenance of the existing levels of service and extend those same levels of service to the 17,089 new residents expected to be added through General Plan build-out. The project consists taking 4,804 square feet of the current building that house the branch library currently used by a non-City tenant and turning it into library space. There is no current effort to oust the current tenant, however, ultimately the non-library space could easily be converted as library space.

Justification / Consequences of Avoidance:

The current defacto library standard of space is 0.669 square feet per resident. Added 17,089 residents from new General Plan development will create additional demands upon the existing level of service provided by the library. Without increasing library space, the existing standard would decrease to about 0.614 square feet per resident.

Relationship to General Plan Development

The proposed improvements are required to meet the demands of an increasing residential population.

Allocation To General Plan Buildout: 100.00%

Reference Document:

Project Timing:

Based upon the rate of construction of residential units and thus collection of any imposed development Impact Fees.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	198,165.00	198,165.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	1,321,100.00	1,321,100.00
4. Contingency	0.00	0.00	0.00	0.00	132,110.00	132,110.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	1,651,375.00	1,651,375.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Public Library Facilities And Collection
 Project Number:/ Title PL 003 Expand Library Collection System
 Submitting Departments: Library Services

Project Description:
 Expand the public library collection items inventory by roughly 36,861 items to maintain the existing 2.157 collection items per resident currently offered by the City's library system.

Justification / Consequences of Avoidance:

Added population from new residential construction will increase the City's residential population by approximately 17,089 additional residents. Without expanding the library collection items inventory, that standard would drop to approximately 1.979 items per resident.

Relationship to General Plan Development:

The proposed improvements are required to meet the demands of an increasing residential population.

Allocation To General Plan Buildout: 100.00%

Reference Document:

Project Timing:

Based upon the rate of construction of residential units and thus collection of any imposed development Impact Fees.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	0.00	0.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	921,524.00	921,524.00
TOTAL COST:	0.00	0.00	0.00	0.00	921,524.00	921,524.00

City of Huntington Beach

**Park Land Acquisition and
Park Facilities Development**

Huntington Beach Master Facilities Plan Park Land Acquisition And Park Facilities Development

		2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 Through Build Out	Project Build Out Total
PK-001	Bartlett Park Conceptual Plan And EIR	\$400,000	\$0	\$0	\$0	\$5,000,000	\$5,400,000
PK-002	Libby Park Phase II	\$0	\$0	\$0	\$0	\$500,000	\$500,000
PK-003	Central Park Former Gun Range EIR, RAR And Development	\$325,000	\$0	\$0	\$0	\$4,000,000	\$4,325,000
PK-004	Le Bard Park Expansion Master Plan And Development Plan	\$250,000	\$0	\$0	\$0	\$1,200,000	\$1,450,000
PK-005	Blufftop Park Trail Improvements	\$0	\$0	\$0	\$0	\$1,000,000	\$1,000,000
PK-006	Edinger Dock Development	\$0	\$0	\$0	\$0	\$700,000	\$700,000
PK-007	Wardlow Field Reconfiguration Design/Construction	\$120,000	\$0	\$0	\$0	\$880,000	\$1,000,000
PK-008	City-Wide Parks Master Plan	\$0	\$0	\$0	\$0	\$350,000	\$350,000
PK-009	Central Park Habitat Plan	\$0	\$0	\$0	\$0	\$250,000	\$250,000
PK-010	Central Park Acquisition Of Encyclopaedia Lots	\$0	\$0	\$0	\$0	\$1,020,000	\$1,020,000
PK-011	Central Park Development Of Remaining 86 Acres	\$0	\$0	\$0	\$0	\$20,000,000	\$20,000,000
PK-012	Central Park Rebuild Two Restaurant Facilities	\$0	\$0	\$0	\$0	\$800,000	\$800,000
PK-013	General Youth Sports Facilities Grants	\$150,000	\$150,000	\$150,000	\$150,000	\$3,500,000	\$4,500,000
PK-014	Mundy Youth Sports Complex Phase II	\$0	\$0	\$0	\$0	\$2,500,000	\$2,500,000
PK-015	Beach Playground	\$0	\$0	\$0	\$0	\$350,000	\$350,000
PK-016	Central Park Development Of Former Gun Range Area	\$0	\$0	\$0	\$0	\$3,000,000	\$3,000,000
PK-017	Warner Dock Renovation And Expansion	\$0	\$0	\$0	\$0	\$800,000	\$800,000
PK-018	Lamb Park Design And Development	\$0	\$0	\$0	\$0	\$1,100,000	\$1,100,000
PK-019	Central Park Sports Complex Team Room	\$0	\$0	\$0	\$0	\$100,000	\$100,000
PK-020	Future Parks Acquisition (Possible Closed School Sites)	\$0	\$0	\$0	\$0	\$59,588,000	\$59,588,000
PK-021	Central Park Senior Center	\$0	\$0	\$0	\$0	\$22,000,000	\$22,000,000
PK-022	Edison Community Center Gymnasium	\$0	\$0	\$0	\$0	\$2,975,000	\$2,975,000

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Huntington Beach Master Facilities Plan Park Land Acquisition And Park Facilities Development

		2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 Through Build Out	Project Build Out Total
PK -023	Marcy Community Center Gymnasium	\$0	\$0	\$0	\$0	\$2,975,000	\$2,975,000
PK -024	Oak View Recreation Center Expansion	\$0	\$0	\$0	\$0	\$860,000	\$860,000
TOTALS		\$1,245,000	\$150,000	\$150,000	\$150,000	\$135788,000	\$137483,000

Notes:
1) If project timing is not a component of this effort, then all projects default to their "Thru Build Out" amount.

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
 Project Number./ Title PK 001 Bartlett Park Conceptual Plan And EIR
 Submitting Departments: Community Services

Project Description:

The project consists of the environmental assessment and conceptual plan for the remaining 28 acre Bartlett Park, largely an Environmentally Sensitive Habitat Area (ESHA). The preliminary plans include a natural-passive use consisting of trails, trailhead kiosks, and limited, natural parking.

Justification / Consequences of Avoidance:

The park improvements are needed for protection of the currently open or vacant parcel. Roughly 90% of the park would remain untouched with improvements designed to protect that 90%.

Relationship to General Plan Development:

Little direct relationship, but the improvements are consistent with the City's General Plan Recreation Element and indirectly support the additional residents resulting from new development. The project is also capacity increasing.

Allocation To General Plan Buildout: 0.00%

Reference Document:

Project Timing:

The design and environment assessment component is planned for 2009 to 2010. The first construction component is planned for between 2010 and 2020.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	400,000.00	0.00	0.00	0.00	500,000.00	900,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	4,000,000.00	4,000,000.00
4. Contingency	0.00	0.00	0.00	0.00	500,000.00	500,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	400,000.00	0.00	0.00	0.00	5,000,000.00	5,400,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development

Project Number:/ Title PK 002 Irby Park Phase II

Submitting Departments: Community Services

Project Description:

The project consists of the development of the remaining eight acres. Construct bio-filter and water retention area. In addition, construct trails, passive pocket areas, interpretive signs and a small area of neighborhood park improvements (climbing apparatus, benches, picnic tables) adjacent to the neighborhood area. The more active portion would be designed in a fashion to protect the more natural areas.

Justification / Consequences of Avoidance:

The park needs a combination of passive/active improvements to create a balance of active uses with protection of the water retention needs. The water retention needs would receive appropriations from storm drainage sources, a State Public Works Grant.

Relationship to General Plan Development

Little direct relationship, but the improvements are consistent with the City's General Plan Recreation Element and indirectly support the additional residents resulting from new development. The project is also capacity increasing.

Allocation To General Plan Buildout 0.00%

Reference Document

Project Timing:

Based upon receipt of State (Public Works) Grant. The project is in conjunction with a PW State Grant - matching funds.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	50,000.00	50,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	400,000.00	400,000.00
4. Contingency	0.00	0.00	0.00	0.00	50,000.00	50,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	500,000.00	500,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
 Project Number:/ Title PK 003 Central Park Former Gun Range EIR, RAP And Development
 Submitting Departments: Community Services

Project Description:

The project consists of an Environmental Impact Review, Remedial Action Plan and ultimately a development plan. The gun range has been inactive for over ten years and the accumulated lead in the soil and use of creosote wood presents an environmental problem and must be remediated before re-use. Phase I consists of preparation of an Environmental Impact Report and Remedial Action Plan. Phase II (\$2.0 million) is an estimate of the range remediation. Phase III (also \$2.0 million) is the actual site improvements to turn it into an active park use, proposed at this time to be a skate park.

Justification / Consequences of Avoidance:

The roughly five acre gun range area is part of the City's major regional park and needs to be used to its maximum potential in a yet to be determined manner.

Relationship to General Plan Development

Little direct relationship, but the improvements are consistent with the City's General Plan Recreation Element and indirectly support the additional residents resulting from new development. The project is also capacity increasing.

Allocation To General Plan Buildout: 0.00%

Reference Document:

Project Timing:

The study/report, site remediation and site improvements are planned for a period between 2010 and 2020.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	325,000.00	0.00	0.00	0.00	0.00	325,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	4,000,000.00	4,000,000.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	325,000.00	0.00	0.00	0.00	4,000,000.00	4,325,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
 Project Number/ Title PK 004 Le Bard Park Expansion Master Plan And Development Plan
 Submitting Departments: Community Services

Project Description:

Undertake the Park Master Plan and construction documents necessary to expand the turf area and park amenities on the two remaining undeveloped acres. The improvements will be completed in a single phase. Improvements also include the elimination of drainage problems and construction of a ramp to the Santa Ana River Trail.

Justification / Consequences of Avoidance:

The park improvements are necessary to complete the park and maximize the roughly five acres available at this park.

Relationship to General Plan Development:

Little direct relationship, but the improvements are consistent with the City's General Plan Recreation Element and indirectly support the additional residents resulting from new development. The project is also capacity increasing.

Allocation To General Plan Buildout 0.00%

Reference Document:

Project Timing:

As park-related revenues become available.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	250,000.00	0.00	0.00	0.00	0.00	250,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	1,200,000.00	1,200,000.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	250,000.00	0.00	0.00	0.00	1,200,000.00	1,450,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
 Project Number/ Title PK 005 Blufftop Park Trail Improvements
 Submitting Departments: Community Services

Project Description:

Construct improvements to the existing two and a half-mile long asphalt trail, including a split trail system for pedestrian and wheeled traffic. The project includes 15% for citizen input, project design/engineering, soils and materials testing, project plan check and construction inspection. The project also includes a standard 10% for project contingency.

Justification / Consequences of Avoidance:

The project is necessary to reduce the rate of erosion of the very important blufftop area.

Relationship to General Plan Development:

None directly, the improvements are primarily necessary to maintain an existing asset.

Allocation To General Plan Buildout: 0.00%

Reference Document:

Project Timing:

As revenues permit.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	120,000.00	120,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	800,000.00	800,000.00
4. Contingency	0.00	0.00	0.00	0.00	80,000.00	80,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	1,000,000.00	1,000,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
 Project Number:/ Title PK 006 Edinger Dock Development
 Submitting Departments: Community Services

Project Description:
 Construct a new dock and boat launch.

Justification / Consequences of Avoidance:
 The improvements need to be made to meet the recreational boating needs of the community.

Relationship to General Plan Development:
 Little direct relationship, but the improvements are consistent with the City's General Plan Recreation Element and indirectly support the additional residents resulting from new development.

Allocation To General Plan Buildout 0.00%

Reference Document:

Project Timing:
 Within priority and as Park Fund revenues become available.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	50,000.00	50,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	0.00	0.00
4. Contingency	0.00	0.00	0.00	0.00	600,000.00	600,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	50,000.00	50,000.00
TOTAL COST:	0.00	0.00	0.00	0.00	700,000.00	700,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
Project Number:/ Title PK 007 Wardlow Field Reconfiguration Design/Construction
Submitting Departments: Community Services

Project Description:

Reconfigure the park to accommodate a youth sports field and plan for additional parking. Construction costs for the little league field and parking lot are included at \$380,000.

Justification / Consequences of Avoidance:

The parks earlier configuration is inefficient in terms of space.

Relationship to General Plan Development:

Little direct relationship, but the improvements are consistent with the City's General Plan Recreation Element and indirectly support the additional residents resulting from new development.

Allocation To General Plan Buildout: 0.00%

Reference Document:

Project Timing:

2010.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	120,000.00	0.00	0.00	0.00	0.00	120,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	800,000.00	800,000.00
4. Contingency	0.00	0.00	0.00	0.00	80,000.00	80,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	120,000.00	0.00	0.00	0.00	880,000.00	1,000,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development

Project Number:/ Title PK 008 City-Wide Parks Master Plan

Submitting Departments: Community Services

Project Description:

The project consists solely of the preparation of a Parks Master Plan.

Justification / Consequences of Avoidance:

A Master Plan of Parks is needed to insure the continued rational programmed development of the City parks system.

Relationship to General Plan Development:

A Park Master Plan for the continued development of the City's Park system is directly related to General Plan development.

Allocation To General Plan Buildout: 0.00%

Reference Document

Project Timing:

The project is scheduled for the period of 2010 to 2020.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	350,000.00	350,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	0.00	0.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	350,000.00	350,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
 Project Number/ Title PK 009 Central Park Habitat Plan
 Submitting Departments: Community Services

Project Description:

Complete an enhanced habitat plan for entire Central Park area. The plan is necessary for mitigating the raptor foraging area related to the areas slated for construction of the proposed Central Park Senior Center. The results may indicate the need for a one-to-one basis within the park. That is, all negative impacts must be fully mitigated.

Justification / Consequences of Avoidance:

The area proposed for the Senior Citizens Center has been vacant for a great deal of time and has become a raptor foraging area. The City needs to study the entire park area and determine if and how the impact of the proposed development of the Senior Center can be mitigated on a park-wide basis.

Relationship to General Plan Development:

Little direct relationship, but the improvements are consistent with the City's General Plan Recreation Element and indirectly support the additional residents resulting from new development.

Allocation To General Plan Buildout: 0.00%

Reference Document:

Project Timing:

As revenues permit

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	250,000.00	250,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	0.00	0.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	250,000.00	250,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
 Project Number:/ Title PK 010 Central Park Acquisiton Of Encyclopedia Lots
 Submitting Departments: Community Services

Project Description:

The expenditures allow for the acquisition of fifty-one privately owned lots located within park boundaries at approximately \$20,000 per lot. The small, individual lots are located generally north of Ellis, south of Edwards and west of Golden West Avenues.

Justification / Consequences of Avoidance:

The acquisition of the small lots is necessary to allow for the complete development and thus maximization, of Central Park.

Relationship to General Plan Development

Little direct relationship, but the improvements are consistent with the City's General Plan Recreation Element and indirectly support the additional residents resulting from new development. The project is also capacity increasing.

Allocation To General Plan Buildout: 0.00%

Reference Document

Project Timing:

As Park Fund revenues permit

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	1,020,000.00	1,020,000.00
3. Construction	0.00	0.00	0.00	0.00	0.00	0.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	1,020,000.00	1,020,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
 Project Number/ Title PK 011 Central Park Development Of Remaining 86 Acres
 Submitting Departments: Community Services

Project Description:

Complete the mostly passive area of the park, near Ellis and Golden West Avenues, with trails, picnic areas, a restroom and additional parking per the Central Park Master Plan.

Justification / Consequences of Avoidance:

The improvements are necessary to maximize the use of this major park.

Relationship to General Plan Development:

Little direct relationship, but the improvements are consistent with the City's General Plan Recreation Element and indirectly support the additional residents resulting from new development. The project is also capacity increasing.

Allocation To General Plan Buildout: 0.00%

Reference Document:

Project Timing:

As park capital revenues permit.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	20,000,000.00	20,000,000.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	20,000,000.00	20,000,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
 Project Number/ Title PK 012 Central Park Rebuild Two Restaurant Facilities
 Submitting Departments: Community Services
 Project Description:
 Rebuild the "Park Bench Cafe" and "Alice's Restaurant".

Justification / Consequences of Avoidance:
 The facilities are nearly thirty years old and in need of replacement.

Relationship to General Plan Development:
 These improvements are largely concession-based improvements and thus financed with long-term concession revenues.

Allocation To General Plan Buildout 0.00%

Reference Document:

Project Timing:
 As revenues permit and as negotiations are completed.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	800,000.00	800,000.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	800,000.00	800,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
 Project Number/ Title PK 013 General Youth Sports Facilities Grants
 Submitting Departments: Community Services

Project Description:

The proposed expenditure acts as seed money for grants obtained by volunteer youth sports programs. The project consists of \$150,000 per year in grant assistance.

Justification / Consequences of Avoidance:

The City has had a long-term policy of assisting local groups leverage City money for common park area improvements.

Relationship to General Plan Development

Little direct relationship, but the improvements are consistent with the City's General Plan Recreation Element and indirectly support the additional residents resulting from new development.

Allocation To General Plan Buildout: 0.00%

Reference Document:

Project Timing:

As requested by local groups that have success in obtaining grants or other financial assistance.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	150,000.00	150,000.00	150,000.00	150,000.00	3,900,000.00	4,500,000.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	150,000.00	150,000.00	150,000.00	150,000.00	3,900,000.00	4,500,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development

Project Number/ Title PK 014 Murdy Youth Sports Complex Phase II

Submitting Departments: Community Services

Project Description:

Reconfigure the current park/school configuration to increase youth sports capabilities. The City and school district will amend the existing joint use agreement and the City will construct a sports field on school property. There will also be parking lot improvements with additional spaces and a turn-around.

Justification / Consequences of Avoidance:

The existing field configuration does not maximize the existing field space for use by youth sports associations and the re-design of the existing park and school parcels will address this shortcoming.

Relationship to General Plan Development:

The existing field configuration does not maximize the existing field space for use by youth sports associations and the re-design will address this.

Allocation To General Plan Buildout: 0.00%

Reference Document

Project Timing:

As revenues permit

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	2,500,000.00	2,500,000.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	2,500,000.00	2,500,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
 Project Number:/ Title PK 015 Beach Playground
 Submitting Departments: Community Services

Project Description:

Construct a tot lot/youth playground with capability to serve the needs of two different age groups. The improvement would be located on the City beach north of the pier adjacent to Blufftop Park at 9th Street. The park would have asphalt access with a turnabout.

Justification / Consequences of Avoidance:

The improvements are intended to improve the beach day experience for youths.

Relationship to General Plan Development:

The existing field configuration does not maximize the existing field space for use by youth sports associations and the re-design will address this.

Allocation To General Plan Buildout: 0.00%

Reference Document

Project Timing:

As revenues permit.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	350,000.00	350,000.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	350,000.00	350,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
 Project Number:/ Title PK 016 Central Park Development Of Former Gun Range Area
 Submitting Departments: Community Services
 Project Description:
 The project consists of the removal of the existing gun range and designing/constructing a skate park facility.

Justification / Consequences of Avoidance:

The City currently has no facilities of its own for in-line skating and skateboarding in this area of the community and will need to offset the loss of the existing Huntington Beach High School skate facility.

Relationship to General Plan Development:

None directly, but the proposed skate facility is capacity increasing.

Allocation To General Plan Buildout: 0.00%

Reference Document

Project Timing:

The project design is planned for 2010 and the construction between 2010 and 2020.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	360,000.00	360,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	2,400,000.00	2,400,000.00
4. Contingency	0.00	0.00	0.00	0.00	240,000.00	240,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	3,000,000.00	3,000,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
 Project Number/ Title PK 017 Warner Dock Renovation And Expansion
 Submitting Departments: Community Services

Project Description:

Improve the Edinger Dock area by dredging the area and adding four to six docks or slips. There would also be improvements made to the public boat launch ramp.

Justification / Consequences of Avoidance:

The area serves the yacht club activities as well as casual boaters.

Relationship to General Plan Development:

Little direct relationship, but the improvements are consistent with the City's General Plan Recreation Element and indirectly support the additional residents resulting from new development. The project is also capacity increasing.

Allocation To General Plan Buildout 0.00%

Reference Document:

Project Timing:

The project design is planned for 2010 and the construction between 2010 and 2020.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	96,000.00	96,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	0.00	0.00
4. Contingency	0.00	0.00	0.00	0.00	640,000.00	640,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	64,000.00	64,000.00
TOTAL COST:	0.00	0.00	0.00	0.00	800,000.00	800,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
 Project Number/ Title PK 018 Lamb Park Design And Development
 Submitting Departments: Community Services

Project Description:

Design, engineer and construct park improvements on the 2.4 acre Lamb Park site. The improvements would include lighted sports facilities (ballfield and sportsfield) and other neighborhood fixtures such as benches, sidewalks, drinking fountains and a play apparatus on the parcel, a closed school site.

Justification / Consequences of Avoidance:

The park improvements, mostly sports oriented, are necessary to complete the park and maximize the roughly 2.4 acres available at this park.

Relationship to General Plan Development

Little direct relationship, but the improvements are consistent with the City's General Plan Recreation Element and indirectly support the additional residents resulting from new development. The project is also capacity increasing.

Allocation To General Plan Buildout: 0.00%

Reference Document:

Project Timing:

The project design is planned for 2010 and the construction between 2010 and 2020.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	132,000.00	132,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	880,000.00	880,000.00
4. Contingency	0.00	0.00	0.00	0.00	88,000.00	88,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	1,100,000.00	1,100,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
 Project Number:/ Title PK 019 Central Park Sports Complex Team Room
 Submitting Departments: Community Services

Project Description:

Construct a team-room at the sports complex. The facility would be used by teams for during game breaks. The facility would have electrical service and possibly a drinking fountain but would not include shower/locker facilities.

Justification / Consequences of Avoidance:

The facility will provide sports teams with a location for team discussions, changing and personal effects security.

Relationship to General Plan Development:

Little direct relationship, but the improvements are consistent with the City's General Plan Recreation Element and indirectly support the additional residents resulting from new development. The project is also capacity increasing.

Allocation To General Plan Buildout: 0.00%

Reference Document

Project Timing:

The project design is planned for 2010 and the construction between 2010 and 2020.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	100,000.00	100,000.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	100,000.00	100,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
 Project Number/ Title PK 020 Future Parks Acquisition (Possible Closed School Sites)
 Submitting Departments: Community Services

Project Description:

Acquire approximately 68 acres of land suitable for development of active and passive parks such as including neighborhood, community and sports parks. Potential sites would include closed school sites. Land acquisition is estimated at \$20.00 per square foot or \$871,120 per acre.

Justification / Consequences of Avoidance:

The City needs to acquire approximately 100 acres in order to meet the General Plan target of 5.0 acres per 1,000 residents.

Relationship to General Plan Development:

The City's General Plan currently identifies a target of 5.0 acres of recreation opportunities per one thousand residents.

Allocation To General Plan Buildout: 0.00%

Reference Document:

Project Timing:

The project design is planned for 2010 and the construction between 2010 and 2020.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	0.00	0.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	59,588,000.00	59,588,000.00
3. Construction	0.00	0.00	0.00	0.00	0.00	0.00
4. Contingency	0.00	0.00	0.00	0.00	0.00	0.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	59,588,000.00	59,588,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development

Project Number:/ Title PK 021 Central Park Senior Center

Submitting Departments: Community Services

Project Description:

Construct 45,000 square foot Senior Center in Central Park. The facility would have a large multi-purpose room, a number of smaller classrooms, a warming kitchen, fitness center, game room with pool tables, and ancillary offices. There would also be a garden patio with a water feature, turf and gardens. The facility would have parking for 250 vehicles.

Justification / Consequences of Avoidance:

The City currently has a de-facto standard of 0.620 square feet of general purpose community use facility space per resident based upon the City's 118,820 square feet of public use facilities available to the 190,377 residents. The City wishes to maintain, if not improve, this standard by construction. The 0.620 square foot per person is not the standard for senior only facilities, but for all community use facilities available to the entire residential population.

Relationship to General Plan Development:

The proposed land-use database indicates additional residential dwellings that would likely result in roughly 17,089 additional residents requiring at least 10,595 square feet of public use space in order to maintain the existing level of service (LOS)

Allocation To General Plan Buildout 0.00%

Reference Document:

Project Timing:

The construction of the facility is on-hold pending litigation.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	2,200,000.00	2,200,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	17,600,000.00	17,600,000.00
4. Contingency	0.00	0.00	0.00	0.00	1,760,000.00	1,760,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	440,000.00	440,000.00
TOTAL COST:	0.00	0.00	0.00	0.00	22,000,000.00	22,000,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
 Project Number/ Title PK 022 Edison Community Center Gymnasium
 Submitting Departments: Community Services

Project Description:

Construct a 7,000 square foot gymnasium contiguous to the Edison Community Center. The facility would be a basic "high school" design or grade with a single main basketball court that can be broken down into two smaller full-courts or four half-courts for practice sessions. The facility would also have locker rooms and restrooms.

Justification / Consequences of Avoidance:

Due to higher demands of their own, the local high school gymnasiums are no longer as available as they once were. As a result, the City is finding it more difficult to meet the City's youth indoor sports needs.

Relationship to General Plan Development:

The proposed land-use database indicates additional residential dwellings that would likely result in roughly 17,089 additional residents requiring at least 10,595 square feet of public use space in order to maintain the existing level of service (LOS)

Allocation To General Plan Buildout 0.00%

Reference Document:

Project Timing:

The expansion is planned for construction between 2010 and 2020.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	357,000.00	357,000.00
2. Land Acquistion / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	2,380,000.00	2,380,000.00
4. Contingency	0.00	0.00	0.00	0.00	238,000.00	238,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	2,975,000.00	2,975,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
 Project Number/ Title PK 023 Murdy Community Center Gymnasium
 Submitting Departments: Community Services

Project Description:

Construct a 7,000 square foot gymnasium contiguous to the Murdy Community Center. The facility would be a basic "high school" design or grade with a single main basketball court that can be broken down into two smaller full-courts or four half-courts for practice sessions. The facility would also have locker rooms and restrooms.

Justification / Consequences of Avoidance:

The City currently has a de-facto standard of 0.620 square feet of general purpose community use facility space per resident based upon the City's 118,820 square feet of public use facilities available to the 190,377 residents. The City wishes to maintain, if not improve, this standard by construction. The 0.620 square foot per person is not the standard for senior only facilities, but for all community use facilities available to the entire residential population.

Relationship to General Plan Development:

The proposed land-use database indicates additional residential dwellings that would likely result in roughly 17,089 additional residents requiring at least 10,595 square feet of public use space in order to maintain the existing level of service (LOS)

Allocation To General Plan Buildout: 0.00%

Reference Document:

Project Timing:

The expansion is planned for construction between 2010 and 2020.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administratic	0.00	0.00	0.00	0.00	357,000.00	357,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	2,380,000.00	2,380,000.00
4. Contingency	0.00	0.00	0.00	0.00	238,000.00	238,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	0.00	0.00
TOTAL COST:	0.00	0.00	0.00	0.00	2,975,000.00	2,975,000.00

Huntington Beach

Master Facilities Plan Project Detail

Infrastructure: Park Land Acquisition And Park Facilities Development
 Project Number:/ Title PK 024 Oak View Recreation Center Expansion
 Submitting Departments: Community Services

Project Description:

Construct a roughly 2,000 square foot expansion to the existing 10,000 square foot Oak View Recreation Community Center. The facility would consist of a game room, multi-purpose room and a restroom.

Justification / Consequences of Avoidance:

The facility is necessary (or planned) to maximize the fairly small facility.

Relationship to General Plan Development

The proposed land-use database indicates additional residential dwellings that would likely result in roughly 17,089 additional residents requiring at least 10,595 square feet of public use space in order to maintain the existing level of service (LOS)

Allocation To General Plan Buildout: 0.00%

Reference Document:

Project Timing:

The expansion is planned for construction between 2010 and 2020.

PROPOSED EXPENDITURES	2011 - 12	2012 - 13	2013 - 14	2014 - 15	2015 - 16 through Build-out	Total all Years
1. Design / Engineering / Administrative	0.00	0.00	0.00	0.00	80,000.00	80,000.00
2. Land Acquisition / Right Of Way	0.00	0.00	0.00	0.00	0.00	0.00
3. Construction	0.00	0.00	0.00	0.00	640,000.00	640,000.00
4. Contingency	0.00	0.00	0.00	0.00	64,000.00	64,000.00
5. Equipment / Other	0.00	0.00	0.00	0.00	16,000.00	16,000.00
TOTAL COST:	0.00	0.00	0.00	0.00	800,000.00	800,000.00

End of Plan

ATTACHMENT #10

*Development Impact Fee
Calculation and Nexus Report
for the City of
Huntington Beach, California*

October, 2011

(Amended April 27, 2012)

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1519 East Chapman Avenue, Suite C
Fullerton, CA 92831
(714) 992-9020*

Revenue & Cost Specialists, LLC

Serving Local Governments Since 1975

October 17, 2011 (amended April 27, 2012)

Honorable Mayor and City Council
Via Mr. Fred Wilson, City Manager
City of Huntington Beach - City Hall
2000 Main Street
Huntington Beach, CA 92648

RE: 2011-12 Master Facilities Plan and Development Impact Fee (DIF) Calculation

Honorable Mayor, Council and City Manager Wilson:

The City is experiencing private development of remaining vacant parcels and the on-going redevelopment of existing homes and businesses. This continuous development results in increased demand that must be absorbed (and accommodated) by the City's existing infrastructure and the Levels of Service (LOS) offered by that existing infrastructure. Revenue & Cost Specialists, L.L.C., was contracted to undertake a comprehensive identification of the capital projects and capital acquisitions necessary to accommodate all such new demands for municipal service. Such a study is necessary to preserve the existing *Levels of Service (LOS)* currently offered to and enjoyed by (after having been paid for by) the existing community from the diminution of those existing LOS due to the addition of new residential and business development in Huntington Beach and calculate the development impact fees (DIFs) necessary to fund those required projects.

Council and City staff, responsible for providing services to a continually expanding residential and business community, must recognize that the magnitude of the impact fees is a direct function of the nearly \$403.4 million cost of the capital projects identified in the *Master Facilities Plan* as needed or required to accommodate new development. Regardless, anyone in the position of the Council members may find themselves reluctant to adopt the impact fees merely because they appear "too high". It is incumbent upon this Report and RCS Staff to convince the City Council of the justification and importance of the proposed impact fees

The following Report calculates some new and a few updated impact fees for the City of Huntington Beach based on the aforementioned changes and the City's changing requirements for public safety, streets and signals, storm drainage and other quality of life facilities. The adoption of the updated DIFs will enable this City Council, as well as succeeding Councils, to continue to ensure that the City will be able to meet the *basic* infrastructure needs of new growth, without unduly burdening the existing population and business community for these development-generated capital costs.

Internet: www.revenuecost.com

Voice 714.992.9020 1519 E. Chapman Ave HB -325 • C • Fullerton, CA 92831 Fax 714.992.9020 Item 9. - 190

Adoption of the recommended impact fees contained herein and imposition upon the numerous development opportunities in the City of Huntington Beach, would generate approximately \$172.1 million in a combination of public improvement dedications and DIF revenues limited for use on the many capital expansion projects deemed as development generated.

Existing Impact Fee Fund balances (\$3.5 million) and other revenues sources (\$23.0 million) make up a significant amount of the difference between the capital total and the total revenue sources. This leaves a shortfall of \$204.8 million (95% of which is \$194.4 million in unfunded storm drainage projects). The identification of \$403.4 million in capital needs mostly generated by new development, is not to be taken lightly, but must be examined in perspective to the cost of existing infrastructure, facilities, vehicles and equipment that a new development will share in the use and enjoyment of upon City review, approval, construction and finally, occupancy.

To offer such a perspective, a major element in this Report is a *proportional analysis*, or comparison of what is being asked of future residents, in the form of dedicated public improvements or an in-lieu (impact fee) payment, with the cost of the City's existing infrastructure (land, facilities, and equipment), contributed by the existing population and business community. The dedications, taxes and assessments contributed to date by the existing community over numerous decades of development have generated just over \$2.1 billion (at current replacement costs) in infrastructure or capital improvements to the City of Huntington Beach. The following table identifies those existing asset commitments (or equity if you will), by infrastructure.

Service Provided	Current Equity Investment
Law Enforcement Facilities, Vehicles and Equipment	\$71,246,699
Fire Suppression/Medic Facilities, Vehicles and Equipment	\$61,234,227
Circulation (Street, Signals and Bridges) System	\$533,539,375
Storm Drainage Collection System	\$203,631,313
Public Library Facilities and Collection	\$76,593,112
Park Land and Park Facilities Development	\$1,166,934,162
Total Existing Infrastructure Replacement Investment	\$2,113,178,888

It is not intended for the recommended Development Impact Fee schedule to address all of the City's capital needs, as identified on the various schedules in this Report. As per California Government Code 66000 et. seq. and common fairness, development impact fees cannot address current capital deficiencies. The proposed fees will recognize and meet the needs of the City's growing population and business community. However, with the adoption of development impact fees, other City discretionary revenue resources that may have been used to meet growth-generated needs for expanded services and facilities will now be available for those accumulating replacement and rehabilitation projects.

The information required to develop the City's capital costs and equity data was generated by the Huntington Beach staff, without whose help and cooperation, this Report would have been impossible to complete. The following management and support personnel were instrumental in working with RCS staff to gather or generate the information and technical data so critically necessary for the legal support of impact fees through the *Master Facilities Plan* and/or the *Development Impact Fee Calculation and Nexus Report*. They are:

Stephanie Beverage, Director of Library Services
M. Todd Broussard, P.E, Principal Engineer (Storm Drainage)
David Brunetta, Police Captain
Luann Brunson, Senior Administrative Analyst - Community Services
David C. Dominguez, Facilities Development/Concessions Manager
Debbie Dove, - Police Specialist
Eric C. Enberg - Fire Division Chief- Operations
Jim B. Engle, Community Services Director
Scott Hess, Director of Planning
Mindy James - Police Budget Manager
Kevin Justen, Senior Administrative Analyst - Fire
Tung M. Kao, - Information System/Network Specialist - Police
Jeff Lopez, Deputy Fire Marshall/Programs
Darin Maresh, Fire Department Specialist
Mike McClanahan, Deputy Fire Marshall/Training
Shirley McNamee. Police Personnel Analyst
Tony Olmos, City Engineer
Ricky Ramos, Senior Planner
Bill Reardon, Fire Marshall/Division Chief
Dan Richards, Information System GIS Manager
Bob Stachelski. Transportation Manager
Chuck Thomas, Police Captain
Jerry Thompson, General Services Manager
Ashley Wallace, Graduate Management Intern
Darren Witt, Fire Engineer

The revisions are limited to merging what had been Chapter 8 (Community Use Facilities) and Chapter 9 (Park Land and Park Facilities Development into one Chapter) merging both the calculation and proposed capital projects. The companion Master Facilities Plan does the same by merging the four Community Use Facilities projects into the Park Land Acquisition and Park Facilities Development section. This was undertaken to provide the City greater flexibility to address the City's capital project needs and priorities over time. The resulting impact fees did not change beyond the reduction of a single dollar reduction for Attached Dwellings (due to rounding of whole dollars). Schedule 2.1 the proposed Development Impact Fees will demonstrate this.

Without their hard work and willingness to provide the best data available, this Report could not have been completed to the degree of accuracy and completeness that it has. I would like to highlight the efforts of Bob Hall, Deputy City Manager for his efforts in generating timely responses to RCS's many requests for critical information. The quality of information and resulting calculation were directly improved by all of the participating staff member's efforts.

The *Development Impact Fee Calculation and Nexus Report* and the *Master Facilities Plan* appendix are now submitted for your review and consideration. RCS is prepared to assist in increasing the Council's and community's understanding of this very significant part of the City's revenue structure.

Sincerely,

Scott Thorpe,
Vice President

**CITY OF HUNTINGTON BEACH
DEVELOPMENT IMPACT FEE
CALCULATION AND NEXUS REPORT
and
MASTER FACILITIES PLAN**

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Chapter 1

Background and Introduction

The City of Huntington Beach has retained Revenue & Cost Specialists, L.L.C. to recalculate some of the City's existing Development Impact Fee (henceforth occasionally referred to as DIFs) schedules calculated at various points in time. Since that time, the City has experienced continued development of vacant land within the City. There is no reason to believe that the remaining undeveloped parcels will not also develop and underutilized parcels will redevelop, the current temporary economic building climate notwithstanding. The periodic review and adjustment of the Development Impact Fees that the City has committed to, are appropriate and warranted. Such updates are necessary to insure that the City collects sufficient DIF revenues to construct or acquire the additional infrastructure needed to accommodate new residents and businesses developing in the City.

This DIF calculation effort that staff has undertaken results in a complete list of projects to be financed by the recommended Development Impact Fee schedule.¹ The information contained in the *Development Impact Fee Calculation and Nexus Report* and the accompanying *Master Facilities Plan (MFP)* will allow the City Council to make more informed policy decisions. The DIF/MFP also combine to provide greater understanding of the need by the development community. It also provides an easier project tracking (and updating) system for the staff.

Proportional Analysis. For perspective on the total amount of the calculated DIFs this Report includes a *proportional analysis*, or a comparison of the infrastructure identified as required to accommodate continued development through General Plan build-out with that of the City's existing infrastructure. This proportional analysis is intended to reconcile any difference between the City's desired level-of-service (LOS) required of new development, per statements in the various General Plan elements, with that of the *de-facto* or actual level of service currently provided to the existing community. This addition will assist the Council in making many difficult policy decisions regarding the required additions of new development and will also recognize inter-generational equity along with common sense fairness.

Development Impact Fee Structure. The City's General Plan provides a range of potential densities for residential development. The DIFs for residential uses need to be calculated on a per dwelling unit basis to reflect more accurately the average impacts for a specific development. For example, a parcel zoned for development as detached dwelling units may contain from three to six units per acre. If fees are calculated on an acreage basis, the developer proposing three units per acre will pay the same amount as a developer constructing six units per acre. Development impact

fees for business uses are calculated on a square footage basis for commercial, office and industrial properties to reflect the impacts of different building intensities for this type of development. This structure addresses the issue of building expansion or intensification of commercial, office and industrial areas. For example, if a property owner of commercial, office or industrial property proposes an expansion to his building, the question exists about how to charge this proposed expansion for its impact on the City's streets, storm drainage system, and other infrastructures. A fee calculated on a building square footage basis will simplify this calculation.

CALCULATION OF DEVELOPMENT IMPACT FEES

In California, State legislation sets certain legal and procedural parameters for the charging of these fees. This legislation was passed as AB1600 by the California Legislature and is now codified as California Government Code Sections 66000 through 66009. This section of State Code became effective January 1, 1989.

AB1600 requires documentation of projects to be financed by Development Impact Fees prior to their levy and collection, and that the monies collected actually be committed within five years to a project of "direct benefit" to the development which paid the fees. Many states have such controlling statutes.

Specifically, AB1600 requires the following:

1. Delineation of the **PURPOSE** of the (development impact) fee.
2. Determination of the **USE** of the (development impact) fee.
3. Determination of the **RELATIONSHIP** between the use of the public facilities and the type of development paying the (development impact) fee.
4. Determination of the relationship between the **NEED** for the facility and the type of development project.
5. Determination of the relationship between the **AMOUNT** of the fee and the **COST** of the portion of the facility attributed to the specific development project.

This Report, with some additions, utilizes the basic methodology consistent with the above requirements of AB1600. Briefly, the following steps were undertaken in the calculation of impact fees for the City and are listed following:

1. Review the City's land use map and determine the existing mix of land uses and amount of undeveloped and developed land. The magnitude of growth and its impacts can thus be determined by considering this land use data when planning an infrastructure required to support General Plan build-out. This all-important inventory is summarized in Table 2-1 in Chapter 2 and detailed in Appendix A.
2. Define the level of service needed within the General Plan area for each project or acquisition identified as necessary. In some areas, certain statistical measures are commonly used to measure or define an acceptable level of service for a category of infrastructure. Street intersections, for instance, are commonly rated based on a Level of Service scale of "A" to "F" developed by transportation engineers. In some cases the identified level of service required of development may exceed that of what the City is currently providing. If so the reason must be explained and a methodology identified for raising the existing community's level of service without requiring new development to finance this increase.
3. Identify all additions to the capital facilities or equipment inventory necessary to maintain the identified levels of service in the area. Then, determine the cost of those additions.
4. Identify a level of responsibility of General Plan development, identifying the relative need for the facility or equipment necessary to accommodate additional growth as defined, and as opposed to current needs.
5. Distribute the costs identified as a result of development growth on a basis of land use demand. Costs are distributed between each land use based on their relative use, nexus or demand on that particular capital infrastructure system. For example, future street costs were distributed to each land use based on their trip generation characteristics (frequency and distance creating daily trip-miles).

OTHER ASSUMPTIONS OF THE REPORT

In addition to the land use assumptions contained in the next Chapter of this Report, other important assumptions of this study include the following:

Land Costs. Cost estimates for land acquisition were developed after discussions with City officials. Arguments for higher or lower costs can be made. However, the Report contains land costs (per acre) which are estimated to be the most appropriate figures for purposes of this study.

PROPORTIONALITY TEST

A test for proportionality is important, if for no other reason, than because it attempts to identify and achieve community inter-generational equity, i.e., fairness in balancing the infrastructure investment made by existing residents and businesses with the investment asked of new residents and businesses that will benefit from the existing infrastructure. In short, previous generations of businesses and residents have contributed to the development of the City's existing infrastructure and this fact should be recognized by future residents and businesses by contributing a like amount (but no more than) toward completing the various infrastructure systems. Mere replacements or the elimination of an existing deficiency cannot be required of new development.

It is one thing to identify the many public improvement projects needed through build-out. It is an entirely different thing to assume that all of the identified improvements are required to meet the demands of the new development. Clearly, some projects are *replacements* of the existing infrastructure while others are *capacity increasing* projects. Within the category of the latter, they may also be further classified into two categories;

1. Projects dealing with existing deficiencies, i.e., projects required regardless of whether there is additional development or not. An example² would be a traffic intersection currently controlled by stop signs that currently meets traffic warrants for a traffic signal, but is unfunded. However, some portion of that signal may be appropriate for impact fee financing. Another example would be the replacement of an existing but aged facility that creates no more capacity, but is merely the replacement of that same capacity.
2. Projects that are required as a result of development. An example of this would be a signal that is currently controlled quite adequately by stop signs, but because of development in the near and "downstream" areas, will ultimately need to be signalized.

All impact fee calculations claim to be fair. Government Code §66000 (also referred to as

AB1600) takes only two pages of text to describe the *findings* that development impact fees must adequately make, but does not explain specifically how to do so. Most DIF calculations will identify the desired or needed capital projects, ostensibly required *as a result of the new development*. Therefore, what is fair and equitable? Is it fair to require future residents and businesses in a city to construct, via payment of impact fees, a new Police Station when the current station is merely rented or leased space? On the other hand, if a community already has all of the water utility system they will need at build-out, are they precluded from imposing an impact fee to recoup some of that expenses incurred in the construction of the maximum needed water utility improvements prior to need for the maximum demand? These are difficult questions that may be made clearer and easier by reviewing the following examples.

Comparison of Needed Infrastructure with Existing Infrastructure. The answer to these difficult questions may best be answered by comparing various infrastructure scenarios. This can be accomplished by looking closely at our friends in the planned community of Happy Valley³ for a few scenarios to explain the three possible conditions that can occur regarding the agency's current infrastructure and the demand upon them. We will use the provision of fire protection, a service that most of us as nonprofessional fire fighters can somewhat understand. These three "conditions" include that the fire suppression system infrastructure construction has:

1. been *On-target*.
2. been *Deficient*. Or;
3. created *Excess Service Capacity*.

Adoption of a Standard - According to the National Fire Protection Association (NFPA), a standard two-bay fire station (estimated for purposes of this example to cost about \$3,000,000) can meet the needs of roughly 5,000 homes or 10,000,000 square feet of business pad. If these standards were adopted as Happy Valley's public safety element of the City's General Plan, they would be known as the *de jure* or stated (or desired) standard (i.e., the standard the community would like to meet). This fee would be referred to as the **General Plan Build-out Need-based Development Impact Fee**. The inductive development impact fees (or cost per proportional unit served) for this *de jure* standard would then be:

Table 1-1
Calculation of NFPA Impact Cost

Land Use	Station Cost	Units Served	Impact Fee
Residential Dwellings	\$3,000,000	5,000	\$600.00 per home
Business Square Feet	\$3,000,000	10,000,000	\$0.30 per S.F.

Service Base - Happy Valley's General Plan indicates that at General Plan build-out there will be 10,000 residential units and about 20,000,000 square feet of commercial/office/industrial space creating a need for four stations at build-out. The station calculation is as follows:

Table 1-2
Determination of Required Number of Stations

	Number of Units	Units served by One Station	Stations Required
Residential Dwellings	10,000	5,000	2 Stations
Business Square Feet	20,000,000	10,000,000	2 Stations
Required Stations at General Plan Build-out			4 Stations

The infrastructure is "On-target" - The need for four stations appears simple and the Happy Valley Council need only impose the impact fees identified in Table 1-1. Currently, Happy Valley has 6,250 residential units and 7,500,000 square feet of commercial/industrial building pad and is half "built-out" (in terms of fire calls for service). In this example, existing development within Happy Valley is generating half of the ultimate (General Plan build-out) fire calls-for-service. This is demonstrated in Table 1-3 following:

Table 1-3
Development of Current Infrastructure is "On-Target"

	Number of Units	Units served by One Station	Stations Required
Residential Dwellings	6,250	5,000	1.25 Stations
Business Square Feet	7,500,000	10,000,000	0.75 Stations
Total Number of Stations Required Currently			2.00 Stations

Conversely, Happy Valley has the remaining half of its fire demand (in terms of calls-for-service)

yet to come. Left to build are 3,750 detached dwelling units and 12,500,000 square feet of business floor space, and when constructed would generate the following capital needs identified on Table 1-4 following:

Table 1-4
Remaining Development and Station Requirement

	Number of Units	Units served by One Station	Stations Required
Residential Dwellings	3,750	5,000	0.75 Stations
Business Square Feet	12,500,000	10,000,000	1.25 Stations
# of New Stations Required from Land to be Developed			2.00 Stations

If the earlier calculated impact fees (\$600 per residence and \$0.30 per square foot of business pad) were adopted and imposed, Happy Valley would collect (by General Plan build-out) enough capital revenues to construct the remaining two stations and proportionality between existing and future residents and businesses would be evident. Table 1-5 following demonstrates this:

Table 1-5
Remaining DIF Collection

	Number of Units	Impact Fee	Amount Collected
Residential Dwellings	3,750	\$600.00	\$2,250,000
Business Square Feet	12,500,000	\$0.30	\$3,750,000
Amount Collected in Development Impact Fees			\$6,000,000
Cost of a Single New Station			\$3,000,000
Stations to be Built with Development Impact Fees			2.00

And everyone in the community of Happy Valley is adequately served by the four stations having been financed generally fairly by the total community.

The infrastructure is in Deficient Condition - Consider, however, the implications if the current Happy Valley residents and businesses had shown the earlier limited commitment to contribute only enough financing to construct one station when, based upon their own adopted standards and level of development, they should have two stations? Clearly three more stations would be needed on the path to General Plan "build-out." The possibility of requiring the remaining future home and business owners to finance all three remaining stations would be completely inequitable. But would it be fair and equitable to charge new residents the \$600 per home and new businesses the \$0.30 per business square foot in order to acquire the remaining two stations required to meet the NFPA standards required of the new development?

The simple and direct answer is probably not. With only one station constructed at half build-out, the Happy Valley community has not demonstrated to a proportional commitment to meeting the NFPA standards, and as a result would not have a strong case to assert that others who build later need to contribute toward the construction of multiple (two) fire stations at a higher service rate by including the "missing" second station. The problem is in trying to identify a municipal revenue source imposed only on the existing development. Simply, there is none. Soon as a business pays its impact fees, constructs, that business becomes part of the existing community.

The service provided by the single existing station is the community's *de facto* (or "in fact") standard service level. In short, it is *difficult* (but possible) to claim that a higher level of service is required of new development when the City is somehow getting by with a lower level of service. With one station, the contributed equity to build the single station would be half of the impact fee proposed in Table 1-1, or \$300/residential unit and \$0.15/square foot of business space respectively (See Table 1-6, following).

Table 1-6
Development Impact Fee
at Deficient Condition

	Number of Units	Existing Contribution	Amount Collected
Residential Units	3,750	\$300.00	\$1,125,000
Business S.F.	12,500,000	\$0.15	\$1,875,000
Amount Contributed by Existing Community			\$3,000,000
Cost of One New Station			\$3,000,000
Station(s) built with Community's Contribution			1.00

If Happy Valley has only built one station at half General Plan build-out, we would be forced to conclude that the City is currently *deficient* by one station (or 50% of the amount required). If the future residents were asked to pay at a rate that would build two stations (the \$600/\$0.30 rates) the City would have three stations at General Plan build-out, one financed and built by the first half of the community, and *two* financed and built by the second half of the community. Considering that the fire department will respond to all calls-for-service within the entire community from one of the three completed fire stations, the first half of the community would, in effect "inherit" one half of a station at no cost to themselves. In short, Happy Valley would fail the proportionality test. The inequity would then be exacerbated when the community decides to build the final "missing" last (fourth) station from a Citywide assessment or from annual General Fund receipts, paid for by the entire community, including those who just paid for the two new stations via the adopted fire impact fees.

The only equitable option is for the City to adopt impact fees at the \$300/residence and \$0.15/square foot rates. Adoption of this fee would be referred to as the ***Current Community Financial Commitment or Investment-based Impact Fees***. Admittedly, the City will go further into a deficit position in terms of the number of required stations, from being deficient by one station at half General Plan build-out to a deficiency of two stations at General Plan build-out, *but the deficiency (or proportionality) would remain a constant 50% of the stations needed at either point in time*. The community, if they are truly serious about meeting the NFPA recommended Level of Service (or standard), would then need to assess the entire community to raise the needed money in some fashion for financing the remaining two stations either in the form of an assessment or dedication of general receipts of the City.

The Infrastructure has "Excess Capacity" - One final but important scenario remains and must be considered. In this scenario the existing residents of Happy Valley were the industrious sort and (at half General Plan build-out) had constructed three stations when they were at the point when they only needed two stations. Clearly there is excess capacity in each of the three existing stations. In this case, the Happy Valley's current *de facto* standard would be well above the *de-jure* or target standard. Statistically, each of the three stations would have 1/3 excess capacity (for providing services) and should be busy only about two-thirds of the time. Should the impact fee be limited only to the marginal \$300 per residence and \$0.15 per square foot for business space required to construct the one remaining required station or should the City be able to recover the costs for the existing capacity in the three stations through a recoupment impact fee? If so, the future residents receive a gift of the extra (third) station. If the excess capacity was recognized at the time the facilities were constructed and the excess capacity was identified for future use, there will be tough decisions ahead to be made by the Happy Valley City Council.

General Plan Build-out Needs-based Development Impact Fees or Recoupment Fee? The Happy Valley City Council should adopt, *at a minimum*, the \$300/residence and \$0.15/square foot business space rates to insure that the fourth station would be built. Again, referred to as the **General Plan Build-out Needs-based** impact fees. This would be a benevolent gesture, giving the new residents a free ride on the cost of the (already built and paid for) third station.

Or in the alternative, the Council can recognize that the \$3,000,000 used to build the third station was a loan from the existing community's General Fund receipts, and should be repaid by the future community receiving an instantaneous level of fire protection the day they receive their occupancy permit⁴, through the imposition and collection of impact fees.⁵ In this case, the \$600/residence and \$0.30/square foot of business space impact fees should be adopted, imposed and collected. The impact fee would accumulate \$6,000,000 through build-out, with \$3,000,000 required to repay the General Fund in delayed revenue (for Station #3) and \$3,000,000 necessary to construct the fourth station. This would be referred to as a **Recoupment-based Fee** at General Plan build-out. More important, long term equity at General Plan built-out would be achieved as each home and business would have contributed the same \$600 per residence and \$0.30 per square foot. This situation is usually fairly limited and should be supported by the appropriate element of General Plan.

Exceptions to Proportionality Test. The previous discussion applies particularly well to above ground or capacity-based services such as community use centers, pools, police and fire stations, civic centers, maintenance yards or other fixed location and finite capacity facilities that serve the entire population. However, it does not necessarily work well on ground level or below **system** infrastructures such as streets, utilities, and storm drainage, where the continuation of a deficient system into the future is not at all possible and the lack of additions would ensure the complete inability to approve any further private construction without creating unsafe conditions to a specific area. As an example, if the agency's storm drainage system is currently deficient and creates some period flooding but not necessarily in dangerous amounts, the agency may not be able to approve and allow any more future development unless the storm drainage runoff created by the new development, is properly collected and released at a river or flood control channel.

Additionally, a currently deficient water system, i.e., one with only the most minimal of distribution pipes, may not be able to serve any more future development without a substantial increase in the capacity of the water distribution system. However, a water utility with users rates can increase existing user fees to eliminate any existing deficiencies.

Specific Plan or Benefit to a Specific Area. An additional exception occurs when the need or benefit from a specific facility is generated by a finite or easily defined area such as a specific plan or a new area of the agency that is significantly outside of the existing agency's urban in-fill service area or the specific plan is primarily the sole beneficiary of the infrastructure to be

constructed. An example may be a small area of the City, proposed for say 2,000 homes, but separate from the rest of the City in such a way that, to meet the General Plan's stated fire suppression standard level of service of a five minute response time, it requires a separate fire station but serving less than any of the other stations, which on average serve 5,000 homes. There is little argument as to why the remaining residents and businesses should not need to finance that higher cost per home served. This is common in an area geographically separated from the major, or urban part of the community. An example would be a small area separated by a river or up on a hillside or in a canyon. These areas may need facilities specific to that area that are of little or no benefit to the rest of the community, such a bridge across a river that only benefits those live or work across the river.

Density may also be a factor. Fire infrastructure system improvements to date may be spread over a more compact density (say 4-5 homes per acre) than the remaining development in town (say 2-3 homes per acre). The fire system infrastructure costs per residential dwelling for a lower density area will likely be higher than a more compact area with a higher dwelling density.

Public Utilities. The treatment for municipal utilities is particularly clear in that the utility's operating and capital funds do not receive any General Fund financial support and they do not typically charge stand-by fees to vacant property. This means that the entire utility system has been supported only by what are called *utility user fees* (payments by the utility's customers). Or stated in another way, it is *user-financed*. In many cases the utility may have significant extra capacity because most infrastructures cannot be expanded in small defined portions that exactly match the pace of new development. An example would water reservoirs which are generally expanded on 1.0 million gallon portions, not 1,000 gallons at a time. To an individual user who has been contributing to the existing system over a period of time, it would appear quite fair for this excess capacity to be "purchased" for by new users that connect to the system who will benefit from the excess capacity has been constructed and identified. This holds particularly true for the purchase of water shares required for future water users.

A water distribution system may also have significant distribution system capacity to reach homes and businesses in more outlying areas. RCS recently worked with a city where the existing water users, currently representing some 55% of the water use demand at General Plan build-out, had already constructed nearly 70% of the General Plan build-out water system. The 15 % difference amounted to just more than \$7.0 million. Should any excess capacity paid for by existing users be a gift to the future users? Government Code §66000 et. seq. *appears* to prevent the city from trying to recoup the costs of the excess capacity purchased by the current users that will be the direct benefit of future users. Some excess capacity can and should be identified wherever possible, and recovered, providing that was identified as necessary for future development at the time it is created.⁶ The excess capacity must be identified in terms of "existing project segment" and how it will benefit the future users must be identified.

Such equity is the attempt of this Report. Excess capacity is often difficult to identify and even more difficult to convince others of. The City is probably much like Happy Valley, with excess or overcapacity in some areas of the infrastructure, and perhaps slightly deficient⁷ in others, as you will see in the remainder of the Report.

OTHER ISSUES

Some members of the building industry have claimed that the addition of impact fees unfairly creates an inflated resale price for existing homes. The argument is that if the public agency adopts a development impact fee of \$20,000 to \$25,000 per detached dwelling home, then the price for an existing home is artificially increased by that same amount. We will use the example of detached dwelling at a construction cost of \$200,000 to complete to a point that the occupancy permit is approved.

Full Cost of a Residential Dwelling. The \$200,000 represents only the above ground cost's construction. The true and actual *cost* of a new dwelling unit consists of the cost of acquiring the parcel, necessary government approvals and permits, construction supplies, labor, debt service on the above, on-site⁸ public improvements, *and*

The hidden cost of extending public services⁹ to that home.

The costs of extending public services includes (but is not limited to):

- The addition of law enforcement personnel requiring the expansion of the police station and response vehicles
- Additional fire stations and response vehicles.
- Widening of arterial and collector roads.
- Additional capacity in downstream storm drainage pipes.
- Additions to water delivery capability, including source, treatment, storage and delivery.
- Additions to the sewage capability, including collection, treatment and disposal.
- Additions to the maintenance capabilities (i.e., municipal corporation yard and maintenance vehicles) necessary to maintain the above added infrastructure.
- Additional parks, library, and public meeting space for recreational/social purposes.

Thus while the cost of constructing the above ground portion of a detached dwelling may be \$325,000, the "downstream" costs identified above may be in the area of \$20,000 to \$30,000 per detached dwelling or in the area of 6% to 9% of the above ground cost.

As an example, imagine a 2,800 square foot home, costing \$325,000 to construct the above ground structure, located in the middle of an empty square mile, no roads, no utility service, no public safety response, no flood control and no recreational facilities. What is the market value of this home? Probably not even the \$325,000 that it cost to construct the structure. The \$25,000 development impact fee for all the infrastructures needed to support that one home, now seems like a relative bargain.

Thus, the true and complete cost of a new detached dwelling is the cost of building the structure and the cost of extending the municipal services to the home regardless of who pays for the actual costs of extending those services. To some degree these service-related infrastructure costs have been recognized. The only question remaining is, who should for pay the required improvements, existing or new residents?

Affect on Market Price. Again, let us assume that a cumulative \$25,000 impact fee imposed upon new detached dwelling construction increases the market price of an *existing* detached dwelling. This additional amount is the recognition that the existing detached dwelling already has those physical links to the municipal services and thus has that value. A slightly different way of looking at this argument is that each existing detached dwelling has a "share" in a municipal corporation¹⁰ and that share is valued at the cost of the connections to the various municipal utilities, circulation system, flood protection and public safety.

CHAPTER ORGANIZATION

Chapters three through six will have three fee cost/fee tables. These four chapters include:

Identification of Projects and Cost Allocation - This schedule identifies the various projects that the infrastructure manager has identified as required prior to General Plan build-out. These projects may be necessary in part or fully to accommodate new development. This schedule will identify the cost of the project and the portion of the project identified as resulting from new development.

General Plan Build-out Needs-based Development Impact Fee - This table will identify the set of impact fees that would need to be adopted to meet the basic, *or marginal needs*, capital needs identified in the Report. Adoption of this level of impact fees would allow City officials to claim that *new development is being approved and constructed without any additional cost to the existing residents and businesses*. You could not, however, claim that *new development is paying its "fair share."*

Existing Financial Commitment or Equity-based Proportionality Test Fees - This table will identify the cost (in current nominal dollar value) of the existing infrastructure, including land, physical improvements and capital equipment. This is the average amount "invested" by the existing community of residents and businesses. This equity will be expressed in terms of the cost to construct or acquire the assets at current costs.

If the average "equity" (for a detached dwelling for example) on this Table is greater than the average cost on the previous *General Plan Build-out Needs-based impact fee* Table, the infrastructure system is "front-ended" or has excess capacity. Stated slightly differently, the existing community has put more of the system into place than would be required of the remaining unbuilt portions of the community, (as they build). In effect, the existing community has advanced money to build capacity into the infrastructure system to meet the needs of residents and businesses not yet there! A good example of a *front-ended* system is the scenario where the City of Happy Valley had already built three fire stations while it only had the current actual demands for two stations.

If the *Existing Commitment-based* impact fees are less than the *General Plan Build-out Needs-based* impact fee, we must conclude that existing community may not have contributed the amount of equity that they have needed to and that the construction of a needed infrastructure to support that municipal service has been lagging and is *deficient*. When this occurs, the *Existing Community Financial Commitment or Investment-based* development impact fees may act as a ceiling or upper limit of the development impact fees.

A good example of a *deficient* system is the scenario where the City of Happy Valley had only built one fire station while it had current actual demands for two stations. In short, if the existing community has not been inclined to construct an infrastructure system proportionally as the community developed, what basis does the community have to require those future residents to invest more, thus by eliminating to some degree, the deficiencies created by the existing community? The answer is, there can be no such rational argument. To adopt the *General Plan Build-out Needs-based* impact fees, under these circumstances, would be an unfair attempt to eliminate the existing *deficiency* on the back of new development. Adoption of the *Existing Commitment-based* impact fees, under these circumstances, would allow City officials to claim that *new development is not being required to pay to eliminate existing deficiencies*.

[This space left vacant to place the following Chapter endnotes on a single page].

CHAPTER ENDNOTES

1. For greater detail of each project, refer to the City's *Master Facilities Plan* in Appendix C.
2. Examples using other infrastructure will be used from time to time in this report, even though the City may not provide that service.
3. "Happy Valley" has been used as an imaginary community for purposes of DIF example for about nine years. Clearly no insult is intended to any real or imagined community of Happy Valley. It is also a Happy Valley because there is no inflation and the value of a dollar remains nominal.
4. Actually, the permitted structure receives fire protection services as it is being constructed.
5. This example assumes that each of the existing three stations is debt-free and owned out-right.
6. This action would be more supportable with a recent appraisal of the existing utility assets.
7. Not necessarily in a manner that indicates a danger, just below the standard being asked of the future residents.
8. On-site improvements include local streets and medians, curbs and sidewalks, sewer lines, water lines, street lights, storm gutter or drainage pipes, electrical power lines and all of the other requirements of the Department's building requirements on the privately held property, hence the "on-site" reference. "Off-site" improvements are increased capacity need that occur "down-stream" from the private property. The on-site public improvements generally become a city asset upon acceptance of the on-site public improvements made by the developer while the property upon which the on-site improvements, is still privately owned.
9. This Report does not address all of these services. They are only highlighted to make a point about the types of public services typically required to support a residential dwelling.
10. Not unlike a share in a corporation such as I.B.M. or A.T. & T.

Chapter 2

Demographics and Findings

This Chapter provides an inventory of developed and undeveloped (and under-developed) land within the City. The City, surprisingly, still possesses areas of vacant land zoned for residential and business uses.

LAND USE ASSUMPTIONS

This Report contains an inventory of developed land and land with remaining development opportunities within Huntington Beach boundaries. The undeveloped land inventory columns form the base for distribution of the estimated infrastructure costs required to extend the existing levels of service to the new development. The developed land inventory also forms the base for distributing the cost of the existing infrastructure for comparison and for the *de-facto* identification of the existing levels of service (LOS) provided by those existing infrastructures. Table 2-1 below, summarizes the inventory of all private land uses contained within the current City limits. They are based upon General Plan data, Orange County projections, City records and a staff analysis of only privately held parcels.¹ Some of the vacant parcels have vested rights and would have the existing impact fees imposed. The acreage and unit data are detailed in Appendix A.

Table 2-1
Detailed Land Use Inventory

City of Huntington Beach Total – Land Use Database	Developed		Net Increase		Total	
	Acres	# of Units	Acres	# of Units	Acres	# of Units
Detached Dwelling Units (1)	6,436.0	38,616	295.00	1,749	6,731.00	40,365
Attached Dwelling Units	1,805.4	36,108	111.20	5,307	1,916.60	41,415
Mobile Home Dwelling Units (2)	204.6	2,865	1.00	9	205.60	2,874
Hotel/Motel Lodging Units	33.4	1,070	18.60	818	52.00	1,888
Resort Lodging Units	20.2	809	9.30	535	29.50	1,344
Commercial/Office Uses	841.9	12,836,000	39.80	2,417,000	881.70	15,253,000
Industrial/Manufacturing Uses	930.3	20,261,000	187.00	3,638,000	1,117.30	23,899,000
Total – City Limits	10,271.8	-----	661.90	-----	10,933.70	-----
Private Residences	8,446.0	77,589	407.2	7,065	8,853.2	84,654
Commercial Lodging Rooms	53.6	1,879	27.9	1,353	81.5	3,232
Business Square Feet	1,772.2	33,097,000	226.8	6,055,000	1,999.0	39,152,000

Land Use Definitions. This Report classifies properties as either one of three residential land uses or two different categories of commercial/industrial development. These land uses are defined below²:

Residential Land Uses:

- **Detached Dwelling Residential** - This category of land use is generally found in the City's General Plan designations of ***RL (Residential Low Density)*** and ***RM (Residential Medium Density)***.
- **Attached Dwelling Residential** - This category of land use is generally found in the City's General Plan designations of ***RM (Residential Medium Density)***, ***RMH (Residential Medium High Density)*** and ***RH (Residential High Density)***.
- **Mobile Home Residential** - This category of land use is generally found in any of the City's residential General Plan designations as noted above. With the more frequent replacement of a manufactured dwelling unit on an existing mobile home pad, it is important to note that such a replacement is not a development impact fee event. It is merely a replacement of an existing structure thus the demand already exists. No additional mobile home (or modular) units in private park like settings is anticipated. However, one acre has been included in the calculations in order to calculate a development impact fee for that use should such an application be filed.

Business/Commerce Land Uses:

- **Hotel/Motel Lodging** - This category identifies the hotel and motel commercial lodging units and is generally found in the City's General Plan designations of ***CV (Commercial Visitor)*** and ***CG (Commercial General)***. It is limited to commercial lodging that is two stories or less and does not have an inordinate amount of meeting space.
- **Resort Lodging** - This is a recognition that in terms of commercial lodging, a resort facility, with more intensive banquets or convention space, most likely will incur differing municipal service demands than that of a typical hotel/motel facility. It is also generally found in the City's General Plan designation of ***CV (Commercial Visitor)***. Resort lodging has been defined as three stories or higher with significant amounts of square feet with which to accommodate large events such as conventions, business sessions and weddings, thus having a large drive-in population that does not necessarily stay at the facility overnight.

- **Commercial Uses** - As utilized in this Report, Commercial uses include the general category of retail services and thus includes outlets ranging from restaurants to auto repair shops to shopping centers. This category is generally found in the City's General Plan designations of *CN (Commercial Neighborhood)*, *CO (Commercial Office)*, *CG (Commercial General)*, *CR (Commercial Regional)*, and *CV (Commercial Visitor)*. It would encompass all office uses.
- **Industrial Uses** - This category contains all businesses generally found in the City's General Plan designation of *I (Industrial)*.

Definitions of Land Use Status. Each of the major land use categories detailed above is categorized as either *Developed* or *Net Increase*. Definitions are as follows:

Developed Acreage - Includes land in the City which is fully developed and, or land which has received a building permit but which is not yet constructed. Acreage in this category may also include non-conforming use areas of the City which contain extensive development prior to annexation or before changes to the General Plan were made. City staff has also included projections regarding properties which are currently classified as "Developed" but which may undergo redevelopment in the future. In fact, most of the development increases within the Beach/Edinger Specific Plan Corridor and Downtown Specific Plan areas consist of redevelopment of existing uses.

Net Increase Acreage - (Intensified/Redeveloped/or acreage available for development or redevelopment) - Refers to all non-public vacant acreage located within the City. This category also includes any parcels that may currently be partially developed but may have capacity for redevelopment.

Table 2-2, following, provides a summary of the detailed land use inventory, limited to privately held property more detailed on Table 2-1. Staff's land use inventory reveals that there are approximately 10,271.80 acres of privately-held developed land within the City's planning boundaries. There remain approximately 661.90 acres of vacant or land available to be redeveloped (and thus increased in terms of demand) in the City. Available (undeveloped land or available for redevelopment) land represents approximately 6.0% of the total 10,933.7 privately held acres within the City of Huntington Beach. Undeveloped parcels to be developed as detached dwellings constitute the greatest amount (at 2.7%) of available acreage of all the land uses.

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Table 2-2
Summary of Undeveloped and Developed Acreage

	Developed Acres	Percent of Total	Vacant, Redeveloped or Intensified Acres	Percent of Total	Total Acres
Detached Dwelling Units	6,436.0	58.9%	(1) 295.0	2.7%	6,731.0
Attached Dwelling Units	1,805.4	16.5%	111.2	1.0%	1,916.6
Mobile Home Dwellings	204.6	1.9%	1.0	0.0%	205.6
Comm. Lodging Units	33.4	0.3%	18.6	0.2%	52.0
Resort Lodging Units	20.2	0.2%	9.3	0.1%	29.5
Commercial/Office Uses	841.9	7.7%	39.8	0.3%	881.7
Industrial/Manu. Uses	930.3	8.5%	187.0	1.7%	1,117.3
Total	10,271.8	94.0%	661.9	6.0%	10,933.7

(1) Only 34 of the 295 acres are vacant lots. The remaining 261 acres represents the subdivided acres necessary for the addition of 1,566 detached units (on their own lots) in areas already developed such as a lot split of a larger parcel with an existing detached dwelling unit. See Appendix A for greater detail.

General Plan Build-out is defined as that point in time when most if not all of the City's privately owned land is developed at maximum levels allowed by the City's General Plan.

Commercial/Industrial Development. In order to assess the costs of impact for commercial or industrial building intensification or building expansions, this Report includes a calculation of impact fees both on a per square foot basis for commercial and industrial development. In order to accomplish this, City Planning staff provided the typical maximum square feet of building allowable by the City's General Plan on a net acre of land. This percentage is sometimes referred to as the maximum Floor Area Ratio (or FAR), as shown following:

- **Commercial/Office Development - 15,246 G.S.F. per Acre (about 35% F.A.R.)**
- **Industrial Development - 21,390 G.S.F. per Acre (about 50% F.A.R.)**

POPULATION PROJECTIONS

A second component in determining the magnitude of impact of future development and the necessary facilities needed to mitigate that impact is a realistic assessment of the build-out population of the City. Many of the facilities contained in this Report are sized according to the estimated population at theoretical "build-out" or upon service levels which are based in part upon an estimation of the population to be served. Library facilities, parks and recreation facilities and community center facilities and equipment are examples of cost areas which rely heavily on population projections to determine space and facility needs. Park standards are usually stated in terms of the number of acres of park land per 1,000 persons, for instance.

There are at least two generally accepted methods for projecting future population levels in a City: (1) past growth trends projected forward and (2) population holding capacity based on the General Plan land-use element. Each of these methods can be useful even though both possess certain limitations.

There are several serious flaws in projecting the build-out population of a community using the past growth trend methodology. While this method is relatively simple and therefore easy for the general public to understand, it does not give consideration to when an area is actually built out. Eventually there comes a point in time where the amount of available land to build on is negligible. This technique does not help explain when that point is reached.

Also, the past growth trend approach is not sensitive to policy changes made by Council or land use issues contained in the City's General Plan. For these reasons, this technique is more useful in projecting short-term population levels and should not be used to forecast the built-out population of an area.

This Report relies on the methodology of *holding-capacity*, (described in the following section), to project future service levels and facility requirements.

Holding Capacity Analysis. The methodology used in this Report to forecast the built-out population of City of Huntington Beach is the current holding capacity approach. This method calculates the sum of existing development and potential development allowable under current land use regulations, using average densities found in the City.

The first step in projecting the City's population using the holding capacity approach is to inventory the remaining undeveloped acres within the City limits, which was previously accomplished in Tables 2-1 and 2-2 of this Chapter. The next step is to estimate the potential

dwelling units allowed per acre and then multiply the potential number of units by the average number of residents per unit.

Table 2-3, on the following page, projects the additional number of dwelling units and potential population for the City of City of Huntington Beach through build-out. The number of potential new dwelling units was calculated by multiplying the amount of vacant acreage for each land use zone by the average densities (i.e., number of units allowed per acre) indicated in the City's General Plan.

The number of persons per unit for new residential units is based on the 2000 U.S. Census and ranges from 2.913 and 1.822 persons for detached dwelling units and mobile home dwelling units respectively to 2.257 persons for attached dwelling units. Based on these assumptions, future residential development is expected to generate approximately 17,089 additional residents³ to City of Huntington Beach, joining the approximately 190,377 citizens already living in City. This results in a total estimated population at General Plan build-out of roughly 207,221 residents.⁴

The estimated General Plan build-out population of approximately 207,221 residents using this holding capacity approach is typically lower than the population forecasts based on the mathematical models described previously. This implies either that the City's period of residential build-out will actually be shorter than the 10 years indicated above or that the City's growth rate will decline from historical levels. This latter scenario is probably more likely to occur. As the residentially zoned land within the City's limits remaining to be developed continues to be developed during the next ten to twenty years, the City is likely to see fewer new dwelling units developed each year.

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Table 2-3
City of City of Huntington Beach
Average Dwelling Occupancy, by Type
(2000 United States Census Data)

Existing Residential	Number of Units	Less Vacant	Number Occupied	Total Number of Occupants	Average Occupancy	Percentage Occupied
Detached Residential						
Detached Total	37,007	630	36,377	105,981	2.913	98.30%
Mobile Home Total	3,024	125	2,899	5,281	1.822	95.87%
Other	122	31	91	154	1.692	0.00%
Attached Residential						
Duplex to Quadplex	9,681	265	9,416	26,190	2.781	97.26%
Five or more	16,488	605	15,883	31,356	1.974	96.33%
Attached	9,471	329	9,142	20,186	2.208	96.53%
Total - MFR	35,640	1,199	34,441	77,732	2.257	96.64%
Existing - State Department of Finance 01/01/11 Population						190,377
Potential G.P. Build-out Population At Historic Occupancy Rates						
Anticipated Units	Occupancy Rate	Probable Occupancy	Dwelling Density	Anticipated Population		
Undeveloped Detached Dwellings	1,749	98.30%	1,719	2.913	5,007	
Undeveloped Attached Dwellings	5,307	96.64%	5,129	2.257	11,576	
Undeveloped Mobile Home's	9	95.87%	9	1.822	16	
Population to be added development					16,599	16,599
Potential "Build-out" Population, at Historic Vacancy Rates.					206,976	206,976
Potential G.P. Build-out Population At 100% Occupancy Rate						
Anticipated Units	Occupancy Rate	Probable Occupancy	Dwelling Density	Anticipated Population		
Undeveloped Detached Dwellings	1,749	100.00%	1,749	2.913	5,095	
Undeveloped Attached dwellings	5,307	100.00%	5,307	2.257	11,978	
Undeveloped Mobile Home's	9	100.00%	9	1.822	16	
Population to be added development					17,089	17,089
Potential Maximum "Build-out" Population.					207,466	207,466
Population at General Plan Build-out @ Low per Dwelling Resident Densities						206,976
Population at General Plan Build-out @ High per Dwelling Resident Densities						207,466
Average Population at General Plan Build-out						207,221

(1) Summary File 3 (SF3), available at <http://factfinder.census.gov>

(2) Current population based upon State of California Department of Finance data.

SUMMARY OF FINDINGS

City staff identified just under \$403.4 million in needed and desired capital improvement projects required through the City's General Plan build-out, including both projects related to existing deficiencies and those needed solely to support future growth. The adoption of the recommended *maximum* impact fees supported by the calculations in this Report (Schedule 2.1) would finance about 42.6% of the needed capital facilities by raising some \$172.1 million. Existing fund balances of \$3.6 will finance roughly 0.9% of the capital needs. Other sources, primarily existing agreements or intergovernmental support will finance about \$23.0 million or 5.7%. Other capital revenue sources will need to be pursued for the remaining unfunded \$204.8 million through build-out (50.8%). Roughly 95% (or \$194.4 million) of the \$204.8 million represents unfunded storm drainage projects that may never come to fruition.

Based on these costs and the schedules found at the end of each of the remaining chapters of this Report, costs attributable to future development were derived on a per unit basis for residential land uses and on a per square foot of pad basis for commercial and industrial land uses. Schedule 2.1, found at the end of this Chapter, provides a summary detail of the maximum DIFs for each type of infrastructure and land use category. The fees are summarized in Table 2-4, following:

Table 2-4
Summary of Recommended Development Impact Fees
(Based Upon the Lower of General Plan Build-out Needs or Equity-based Impact Fees)

Land Use	Recommended Development Impact Fees
Detached Dwelling Units	\$25,890/Dwelling Unit
Attached Dwelling Units	\$17,994/Dwelling Unit
Mobile Home Dwelling Units	\$17,235/Dwelling Unit
Hotel/Motel Lodging Units	\$2,854/Lodging Unit
Resort Lodging Units	\$3,956/Lodging Unit
Commercial/Office Uses	\$5.002/Square Foot
Industrial/Manufacturing Uses	\$4.010/Square Foot

Specific impact fee rates for each land use can be found at the end of each chapter relating to each infrastructure. Schedule 2.1 at the end of this Chapter also identifies the probable impact fee revenue, the capital cost total and the difference, by individual infrastructure type (e.g., fire).

Given the magnitude of the City's project list, vis-a-vis the proposed list of projects, and the lack of previous findings regarding any excess capacity, there is no potential for recoupment of the costs of previous development-generated capital projects (excess capacity) as was described in Chapter One. Additionally, the detail of the existing value of the various systems, does not approach the level of accuracy required to adopt a recoupment style impact fee. The *recommended* Development Impact Fees are those indicated following in Schedule 2.1.

STRUCTURE OF THIS REPORT

The following chapters of this Report contain the detailed information relative to the calculation of DIFs recommended by RCS for the entire City. Appropriate textual explanations are contained in each chapter, with a chapter devoted to each of the nine sets of DIF cost schedules, listed below and three appendices.

- CHAPTER 3 - Law Enforcement Facilities, Vehicles, and Equipment
- CHAPTER 4 - Fire Suppression/Medic Facilities, Vehicles, and Equipment
- CHAPTER 5 - Circulation (Streets, Signals and Bridges) System
- CHAPTER 6 - Storm Drainage Collection System
- CHAPTER 7 - Public Library Facilities and Collection
- CHAPTER 8 - Park Land Acquisition and Park Facilities Development
- APPENDIX A - Expanded Land-use Database
- APPENDIX B - Summary of Recommendations
- APPENDIX C - *Master Facilities Plan*

NOTE REGARDING TEXTUAL MATHEMATICS: *It is important to note that the use of a computer provides for calculations to a large number of decimal points. Such data, when included in text and supporting textual tables, has been rounded to no more than two decimals for clarity and thus may be not replicated to the necessary degree of accuracy as the spreadsheet schedules at the end of each chapter. Should there be any difference between tables within a chapter and the schedules at the end of the same chapter, the schedules will prevail.*

CHAPTER ENDNOTES

1. The figures are consistent with the City of Huntington Beach General Plan Land Use Element.
2. *bid.*
3. Assuming that the vacancy factor retains its traditionally high occupancy factor as evidenced in 2000 Census (averaging just under 97%). The estimated 16,844 additional residents is the average of full occupancy (17,089) and the roughly 97% average occupancy (16,599).
4. *Ibid.*

Schedule 2.1

City of Huntington Beach
Summary of Development Impact Fees By Type of Fee
(Fees per Residential Dwelling Unit, or Business Square Foot)
at Fair Share or Equity-based Development Impact Fees

	Law Enforcement Facilities, et. al. Schedule 3.2	Fire Suppression Facilities, et. al. Schedule 4.2	Circulation System Local Streets Signals & Bridges Schedule 5.2	Storm Drainage Collection System Schedule 6.2	Public Library Facilities Schedule 7.1	Park Land/Open Space Acquisition & Improvements Schedule 8.1 & 8.4	Development Impact Fee Total Per Unit or Square Foot
Calculated Costs/DIFs							
Detached Dwelling Units (1)	\$396	\$922	\$2,482	\$3,061	\$1,172	\$17,857	\$25,890 per Unit
Attached Dwelling Units	\$815	\$382	\$1,657	\$397	\$908	\$13,835	\$17,984 per Unit
Mobile Home Dwelling Units (2)	\$369	\$1,583	\$1,299	\$2,082	\$733	\$11,169	\$17,235 per Unit
Hotel/Motel Lodging Units	\$455	\$356	\$1,105	\$479	No Fee	\$459	\$2,854 per Unit
Resort Lodging Units	\$532	\$794	\$1,915	\$356	No Fee	\$359	\$3,956 per Unit
Commercial/Office Uses	\$1,041	\$0,329	\$2,331	\$0,347	No Fee	\$0,954	\$5,002 per S.F.
Industrial/Manufacturing Uses	\$0,443	\$0,030	\$1,621	\$1,144	No Fee	\$0,772	\$4,010 per S.F.
Anticipated DIF Collection							
Detached Dwelling Units (1)	\$692,604	\$1,612,578	\$4,341,018	\$5,353,699	\$2,049,828	\$31,231,893	\$45,281,610
Attached Dwelling Units	\$4,325,205	\$2,027,274	\$8,793,693	\$2,106,879	\$4,818,756	\$73,422,345	\$95,494,158
Mobile Home Dwelling Units (2)	\$3,321	\$14,247	\$11,691	\$18,738	\$6,597	\$100,521	\$155,115
Hotel/Motel Lodging Units	\$372,190	\$291,208	\$903,890	\$391,822	\$0	\$375,462	\$2,334,572
Resort Lodging Units	\$284,620	\$424,790	\$1,024,525	\$190,460	\$0	\$192,065	\$2,116,460
Commercial/Office Uses	\$2,516,097	\$795,193	\$5,634,027	\$838,699	\$0	\$2,305,618	\$12,089,834
Industrial/Manufacturing Uses	\$1,811,634	\$109,140	\$5,897,198	\$4,161,872	\$0	\$2,808,536	\$14,588,380
Total	\$9,805,671	\$5,274,430	\$26,606,048	\$13,062,159	\$6,875,181	\$110,436,640	\$172,060,129
City-wide Impact Fee	\$9,805,671	\$5,274,430	\$26,606,048	\$13,062,159	\$6,875,181	\$110,436,640	\$172,060,129
Existing Fund Balance	\$0	\$0	\$200,000	\$0	\$0	\$3,379,000	\$3,579,000
Other Sources	\$0	\$700,000	\$260,020	\$0	\$0	\$22,000,000	\$22,960,020
Capital Total	\$10,100,895	\$11,941,972	\$28,637,800	\$207,494,050	\$7,841,369	\$137,483,000	\$403,399,086
Overages/(Shortfall)	(\$295,224)	(\$5,967,542)	(\$1,471,732)	(\$194,431,891)	(\$968,188)	(\$1,657,360)	(\$204,799,937)

Chapter 3

Law Enforcement Facilities, Vehicles, and Equipment

The Existing System (or the infrastructure). The Police Department currently operates out of the 78,700 square foot facilities at the Civic Center on Main Street and the 7,050 square foot 5th Street Substation. These combined 85,780 square feet of the two facilities provide roughly 365 square feet per each of the 235 sworn (budget approved) officers. The facility meet's current needs but will not likely accommodate the space needs required for the additional officers necessary to accommodate the additional calls-for-service generated by new development at General Plan build-out. Certainly not at the same standards of service afforded to existing development. The Department will need to hire additional officers to maintain the existing levels of law enforcement services and the current static facility will ultimately prove insufficient to house the entire staff at General Plan build-out. An expansion of the City-owned facility will need to occur before General Plan build-out to allow the City to accommodate that new development. Due to size limitations of the current police station parcels, it may be difficult to enlarge the current buildings at either of the existing sites.

The existing facility space would cost approximately \$53,423,178 to acquire at current land acquisition and construction costs. Additionally, the Department has a response fleet consisting of 231 vehicles installed with significant, and costly, amounts of sophisticated equipment costing some \$12,640,310 to replace. The 235 General Fund-supported sworn officers are each assigned equipment such as various leathers, armaments, clothing, radios, protective vests, safety apparel costing an average of \$9,930 per sworn officer for a total of \$2,155,801 for the 235 current officers. The final key asset is the estimated \$3,027,410 in law enforcement specialty equipment. These assets, totaling some \$71,246,699, represent the cumulative commitment of the cumulative City Councils (and community) to the Police Department standards of service as supported by Law Enforcement Facilities, Vehicles and Equipment infrastructure.

Demand Upon Infrastructure Created by the Development of Under or Undeveloped Parcels. Residents/ businesses benefit from law enforcement services in three ways: directly, indirectly and through standby availability. Direct services are those involving an actual unit response, usually as a result of being the victim of a crime or other emergency situation. Direct service results in the form of a law enforcement officer *directly* contacting the victim. Indirect benefits, such as crime prevention programs, free patrol time and other more general services that serve all, are benefits that are more difficult to calculate. As an example, the burglar that is arrested today in some neighbors home, may have broken into your home tomorrow. Most residents and businesses may go for many years before ever requiring a direct call-for-service. These fortunate residents

and businesses *still* benefit for law enforcement services, if in no other way, than in the security that a law enforcement officer is available, through adequate planned stand-by, to respond if you require public safety assistance.

Everyone benefits from stand-by capabilities, which is just the fact that law enforcement services are simply there, staffed, trained, equipped and available to respond as they are needed. Sworn law enforcement officials are the first responders to emergency problems that can occur to anyone. They are trained to act and solve just about any law enforcement problem that might occur. The concept of stand-by service is similar to stand-by water service. Consider owning a vacant lot not requiring water service, regardless of the fact that others have built a functional water system near your vacant lot. At some point in time, that vacant lot is developed and needs a water meter and water service. Because of the forethought of others, the water service is available when the lot is developed. One may not feel they need law enforcement services, but some day they will, and because of the foresight of others, the service capability will be available.

The addition of new residential units and new businesses will increase the demand upon the law enforcement capacity to serve by creating more direct calls-for-service, more areas requiring preventive patrol, and in general, more opportunities for crimes to be committed.

The development of vacant parcels into residential or business units will also generate more calls. Residents and business-owners occupying those residences and businesses will create the increase in law enforcement calls-for-service. Simply stated, more homes and businesses will mean more responses to the additional burglaries, domestic disputes, noise complaints, shoplifting, and miscellaneous incidents that will occur in the new homes and businesses.

If the Law Enforcement capabilities (the base) are not expanded, then any increasing number of calls-for-service from development (the rate) will reduce the amount or free hours available for preventive patrol. This inability to expand the capabilities would ultimately drive the Department fully into a reactionary mode.

Table 3-1, following, summarizes an analysis of the calls-for-service received by the Police Department in recent twelve month period.¹ The table indicates the breakdown of calls into the land uses that generated them and divides them by the number of developed units (during the same period). This process generates a *calls-for-service* factor for the various land-uses.

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Table 3-1
Law Enforcement Calls-for-Service Generated by Land Use (2009)

Land Use	Developed Dwellings or Acres	Calls For Service	Total Calls Per Dwelling or Acre
Detached Dwelling Units	38,616	13,185	0.341/Unit
Attached Dwelling Units	36,108	25,350	0.702/Unit
Mobile Home Dwelling Units	2,865	910	0.318/Unit
Hotel/Motel Units	1,070	420	0.393/Unit
Resort Lodging Units	809	371	0.459/Unit
Commercial Uses (in KSF)	12,836,000	11,514	0.897/KSF
Industrial Uses (in KSF)	20,261,000	7,729	0.381/KSF
Beach Area		1,806	

The table above representing the 59,479 annual police calls-for-service to privately-held developed parcels within the City's limits (for a recent twelve months reporting periods), identifies the differing demand caused by the differing land uses. As an example, there were approximately 13,185 calls-for-service requiring a response to one of the 38,616 existing detached dwellings in the City (during the twelve month sample). The result indicates that each residential detached dwelling unit will statistically generate just slightly more than one third of a call-for-service per year,² on average. The same analysis was undertaken for the other seven land uses. Obviously there are calls to incidents on publicly owned roads and right-of-way, in parks and other publicly held parcels, these calls represent approximately 3% of the annual calls-for-service. Calls-for-service to resort lodging facilities, typically larger than hotel/motel facilities (defined as three stories or more) have been separated in order to generate a more relevant calls-for-service rate for each of the two differing types of temporary lodging. Resort facilities have been shown to generate more calls-for-service, most likely due to their convention and banquet facilities. However, any such resorts constructed in the future would also have such amenities.

The annual calls-for-service was responded to by one of the City's existing 235 sworn officers establishing an average of about 260.79 calls-for-service per sworn officer annually.³

Average Demand as Determined by Calls-for-Service. The calls-for-service ratios are *on-average*, that is to say that not every detached dwelling unit will generate 0.341 annual calls-for-service. Since they are statistically representative of *averages* of how *calls-for-service* are generated in City of Huntington Beach, they can be used to project the number of additional law enforcement calls-for-service that can be expected at General Plan build-out. This process is accomplished by multiplying the average calls-for-service rate, per Table 3-1, by the number of anticipated additional residential dwellings or business square feet per Table 2-1. The result is approximately 8,697 *additional* annual calls-for-service at General Plan build-out. The number of additional officers necessary to meet the anticipated (net) additional 8,697 annual calls-for-service from future development (8,448 from development and 249 from public rights-of-way) is then divided by the average number of calls-for-service capacity that an officer currently responds to (or 260.79 per year per officer). This process indicates that an additional thirty-three sworn police officers will be necessary to accommodate the anticipated new development at the current standards of service provided to the existing community. Or in the contrary, without the doubling of the Police staff, the City would experience a roughly 14.2% reduction in the standards-of-service at General Plan build-out, as defined by the ability to respond to calls-for-service.

Information from Table 3-1 and Table 2-1 (Land-use Database) has been used to determine how many additional officers will be required at build-out. By multiplying the demand rate for detached dwelling units (0.341 calls-for-service per unit) times the 1,749 anticipated detached dwelling units to be constructed through General Plan build-out, the City could expect an additional 597.2 annual calls-for-service. The total 8,697 additional calls-for-service, (8,448 from development and 249 from the public beach area from all land-uses (and rights-of-way) divided by roughly 260.79 calls per officer per year indicates the need for thirty-three additional officers to be able to accommodate the additional calls generated by the new development at General Plan build-out without diminishing the existing standards of coverage to the existing community to do so. Table 3-2 identifies the calls-for-service anticipated for each of the seven major land uses.

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Table 3-2
Additional Law Enforcement Calls (rounded)
Generated by New Development, by Land Use

Land Use	Anticipated Dwellings or S.F.	Total Calls Per Dwelling or Acre	Additional Calls-for-service
Detached Dwelling Units	1,749	0.341/Unit	597.18 Calls
Attached Dwelling Units	5,307	0.702/Unit	3,725.83Calls
Mobile Home Units (1)	9	0.318/Unit	2.86 Calls
Hotel/Motel Units	818	0.393/Unit	321.08 Calls
Resort Lodging Units	535	0.459/Unit	245.35 Calls
Commercial Uses (net in KSF)	2,417,000	0.897/KSF	1,268.07 Calls
Industrial Uses (KSF)	3,638,000	0.381/KSF	1,387.80 Calls
Proportional Beach Increase			248.96 Calls

NOTES: (1) Development of these types of units is not anticipated. One acre of units is included for calculation purposes..

Cumulatively, an additional (rounded) calls-for-service would be expected at General Plan build-out. It is important to note that the additional of the thirty-three officers (8,695 annual calls-for-service ÷ 260.79 calls/sworn officer) by General Plan build-out would merely *maintain the existing levels of service*, and would not increase the existing levels of service because of the additional 8,697 annual calls-for-service, or the 8,448 calls-for-service to the privately-held land-uses.

No judgement is made, regarded or offered about the existing standards-of-service (LOS) or the current ratio of officers to calls-for-service, or that it is the City's desired level-of-service or that it is optimum, it merely is the existing, or *defacto*, level-of-service (LOS).

The Purpose of the Fee. The purpose of the fee is to collect proportional contributions from new development to pay for additionally required law enforcement facilities, vehicles and equipment. Specifically, additional law enforcement calls-for-service can be expected, and the cost of adding sworn officers necessary to respond to these anticipated calls, and thus maintain the existing

levels-of-service afforded the existing residential and business community, can also be determined. The additional costs can be proportionally determined and translated to a fee, or an amount, necessary to offset the added costs of the required additional law enforcement staffing. Those impact costs include housing and equipping the additional required officers. Providing that the impact cost is adopted and imposed as a fee, new development will finance the capital costs of expansion of the City's Police Department. The annual operations cost of the annual salary and benefits for those additional officers, will need to come from the increases in the base amounts of property, sales and transient occupancy general tax increases generated by the new residences and businesses and their occupants.

The Use of the Fee. The fees collected will be used to fund the law enforcement facilities and equipment (identified in the *Master Facilities Plan*) that are necessary to accommodate the anticipated (and planned for) development identified in Table 2-1. The revenues raised for a properly calculated and legally-supported Law Enforcement Development Impact Fee would be limited to capital(ized) costs related to that growth. The fees would be used to expand or increase capacity within the law enforcement facilities, increase the number of response and investigator's vehicles, and specialty equipment. Conversely, the General Plan Build-out Needs-based Law Enforcement Development Impact Fee receipts cannot be used repair the existing building, replace existing vehicles, or re-outfit a new officer (due to normal vacancies of the existing 235 officers).

The Relationship Between the Use of the Fee and the Type of Development Paying the Fee. The fees collected from new development will be used to pay the proportional facility expansion costs generated by new development. As the development occurs, the impact (in the form of new or additional demands for service) is generated in differing amounts by differing land-uses and the development impact fees would be collected as the various types of development occurs (at a time in the development review and approval process determined by the City). The collected fee would be put to use to acquire law enforcement space, vehicles and equipment for the new (and additional) officers necessary to respond to those additional calls generated by that same new development, *without reducing the capability of responding to calls for the existing community.*

The Relationship Between the Need for the Public Facility and the Type of Development Project. As noted in this report, residents and businesses will generate calls-for-service at different rates. Thus, there is a need to establish a specific schedule of development impact fees to fund the law enforcement facilities needed to support the development anticipated in Table 2-1. To meet that need, Police Department calls-for-service records were used to verify that differing land uses generate differing amounts of calls-for-service. Anecdotally we can all recognize that a retail store would be more likely to suffer shoplifting incidents, whereas a residence is more likely to experience a domestic disturbance or break-in and thus would have differing demands. The data in this Chapter demonstrates those expected differences using data specific to the City of Huntington Beach. The collected impact fees would be used to acquire additional building space,

response vehicles and specialty and issued equipment for additional officers necessary to respond to the additional calls-for-service generated by private residential dwelling and business space.

It would take the construction of roughly 368 attached dwellings to generate the need for a one full police officer. Cumulatively over time, the calls generated by various new developments within the City will create the need for additional officers and ultimately an additional patrol beat. It is interesting to note that on an acreage basis, an acre of detached dwellings, yielding about six detached units, will generate about 2.0 annual calls-for-service, only 15% of that generated by an acre of attached dwellings, yielding about 47 units.

The Relationship Between the Amount of the Fee and the Cost of the Portion of the Facility Attributed to the Development Project. Each new development would finance a proportional amount of the expansion of the Police Station, vehicle response fleet and specialty law enforcement equipment and thus a proportional share of the costs. The existing Police Station, while quite large and is generally capable of meeting the needs of the existing staff required to serve the existing community, was not necessarily designed to meet the City's law enforcement needs at General Plan build-out. The two buildings combined 85,750 square feet provides about an average of about 364.89 square feet per existing officer, a reasonable target to maintain for future police officers⁴. Based upon the future addition of thirty-three officers to maintain the existing levels of staffing, a 12,041 square foot expansion of the existing facility, or some other City-owned facility would be needed, $(33 \times 364.89 = 12,041)$ to maintain the same ratio of space per officer that is currently afforded by the existing facility.

As a result of potential addition of thirty-three sworn officers, the City will also need to add thirty-three response vehicles at a total cost of \$1,751,040 (or 33 vehicles X \$54,720/vehicle) to maintain as close to the existing ratio of 0.98 vehicles per sworn officer as possible (231 vehicles divided by 235 officers = 0.98 vehicles per officer). The thirty-three new officers would each require a full set of personal equipment and armament at \$9,930 each for a total of \$327,690. Additional communications, telemetry and specialty operations equipment at an estimated total \$425,000 has been included to maintain a similar ratio of specialty equipment to sworn officer.

General Plan Build-out Needs-based Development Impact Fee Schedule. Table, 3-3, following, summarizes the resulting General Plan Build-out Needs-based Development Impact Fees (see Schedule 3.2 for detailed calculation) for development to contribute financially to the expansion of the City's Law Enforcement capacity in order to allow the City to extend the same level-of-service to the City's newest citizens and businesses without diminishing the existing level-of-services offered to the existing residents and businesses.

Table 3-3
General Plan Build-out Needs-based Law Enforcement Impact Fees

Land Use	Allocation of Expansion Costs	Expansion Cost Per Unit or S.F.
Detached Dwelling Units	\$692,944	\$396/Unit
Attached Dwelling Units	\$4,323,304	\$815/Unit
Mobile Home Dwelling Units	\$3,319	\$369/Unit
Hotel/Motel Lodging Units	\$372,568	\$455/Unit
Resort Lodging Units	\$284,694	\$532/Unit
Commercial/Office Uses	\$2,515,742	\$1.041/S.F.
Industrial/Manufacturing Uses	\$1,610,348	\$0.443/S.F.

DIF Proportionality Test by Comparison with Existing Financial Commitment. The current equity in the City's law enforcement assets includes the 85,750 square feet of law enforcement facilities with a replacement cost of \$53,423,178, the 231 law enforcement vehicles costing the City some \$12,640,310, the inventory of assigned equipment for 235 officers at a total of \$2,155,801, the specialty and communications equipment at \$3,027,410. There is no existing Law Enforcement Development Impact Fee thus no existing fund balance. When this combined equity figure of \$71,246,699 is distributed to the current community (via Table 3-4, following and detailed in Schedule 3.3), the existing community commitment, on a per unit basis, is just slightly less than the calculated Law Enforcement *General Plan Build-out Needs-based* Development Impact Fees (or cost) per unit, as indicated by the existing \$71,246,699 invested in capital for the provision of law enforcement.

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Table 3-4
Existing Financial Commitment or "Equity-based"
Law Enforcement Impact Fees

Land Use	Allocation of Equity	Total Equity Per Unit or SF
Detached Dwelling Units	\$15,793,603	\$409/Unit
Attached Dwelling Units	\$30,365,403	\$841/Unit
Mobile Home Units	\$1,090,040	\$380/Unit
Hotel/Motel Units	\$503,096	\$470/Unit
Resort Lodging Units	\$444,401	\$549/Unit
Commercial/Office Uses	\$13,792,002	\$1.074/S.F.
Industrial Uses	\$9,258,164	\$0.475/S.F.

RESULTING DEVELOPMENT IMPACT FEES

The General Plan Build-out Needs-based impact fees, identified in Table 3-3, are slightly less than the Financial Commitment or Investment-based fees identified in Table 3-4 indicating that the existing commitment has kept relative pace with law enforcement asset expansion. In order to ensure that proportionality, and its underlying fairness, be maintained the development impact fee schedule identified in Table 3-3, (General Plan Build-out Need-based Development Impact Fees) are the most reasonable for both additional new development and the existing community. The adoption of Table 3-3, and detailed in Schedule 3.2 at the end of the Chapter, would also generate sufficient capital, about 97% of the full amount identified in the *Master Facilities Plan*, to construct most of the law enforcement facilities and capital equipment needed to absorb the new demands generated by the City's continued new development while maintaining proportionality with the commitment demonstrated by the existing community. The remaining 3% would need to come from other sources.

RECAP OF RECOMMENDED LAW ENFORCEMENT FACILITIES, VEHICLES AND EQUIPMENT DEVELOPMENT IMPACT FEES

- Adopt Schedule 3.2, General Plan Build-out Needs-based development Impact Fees for the seven basic new land-uses.
-
-

CHAPTER ENDNOTES

1. The twelve month period spanning 2009.
2. Stated slightly differently, we could expect that any randomly selected thirty homes would generate about ten calls in a given year.
3. Again, this is not intended to imply that each officers annul work effort is limited to only 260.79 calls-for-service. Patrol officers respond to a far greater number of calls-for-service. Investigators may spend an entire year on only a few cases, while officers involved in management of the Department do not necessarily respond to any. The 260.79 calls-for-service is only an average and represent the composite calls-for-service workload distributed between the entire 235 sworn officers.
4. This is almost the same as the average of 365.0 square foot per officer of six cities (with greater than 85 officers) where RCS has conducted similar analyses. Those six municipalities include Huntington Beach, Anaheim, Ontario, Riverside, Chino and Corona. The average for twenty cities (of all sizes) is 353.6 square feet per sworn officer.

Schedule 3.1

City of Huntington Beach
 2011-12 Development Impact Fee Calculation and Nexus Report
 Identification of Projects and Cost Allocation
 Law Enforcement Facilities, Vehicles and Equipment

Line #	Description	Estimated Cost	Amount Allocated to Eliminate Existing Deficiencies		Amount Allocated to General Plan New Development	
			Percent Need	Apportioned Dollar Cost	Percent Need	Apportioned Dollar Cost
LE-001	Additional Law Enforcement Facility Space	\$7,597,165	2.95%	\$224,116	97.05%	\$7,373,049
LE-002	Acquire Additional Response Vehicles	\$1,751,040	2.95%	\$51,656	97.05%	\$1,699,384
LE-003	Acquire Additional Sworn Office Issued Equipment	\$327,690	2.95%	\$9,667	97.05%	\$318,023
LE-004	Acquire Law Enforcement Specialty Equipment	\$425,000	2.95%	\$12,538	97.05%	\$412,463
	SUB-TOTAL ESTIMATED NEW PROJECT COSTS	\$10,100,895	2.95%	\$297,976	97.05%	\$9,802,919
	LESS: Existing Law Enforcement Impact Fee Fund Balance	\$0	0.00%	\$0	0.00%	\$0
	SUB-TOTAL ADJUSTMENTS	\$0	0.00%	\$0	0.00%	\$0
	Total - Law Enforcement Capital Project Needs	\$10,100,895	2.95%	\$297,976	97.05%	\$9,802,919
					Forward to Schedule 3.2	

NOTES:

1. Costs distribution based upon a 10% sampling of Police Department "Calls-for-Service" statistics.

Schedule 3.2

**City of Huntington Beach
2010-11 Development Impact Fee Calculation and Nexus Report
General Plan Build-out Needs-based Development Impact Costs (Fees)
Law Enforcement Facilities, Vehicles and Equipment**

Proposed Land Use	Net Increased Units		Calls Generation Rate	Expected New Calls for Service	Percentage of Additional Service Calls	Allocation of Expansion Costs	Cost Distribution Per Acre	Average Units or Square Feet/Acre	Development Impact Fee per Unit or Square Foot
	Acres	Units							
Detached Dwelling Units (1)	295.0	1,749	0.341	597.18	7.07%	\$692,944	\$2,349	5.93	\$396 per Unit
Attached Dwelling Units	111.2	5,307	0.702	3,725.83	44.10%	\$4,323,304	\$38,879	47.72	\$815 per Unit
Mobile Home Dwelling Units	1.0	9	0.318	2.86	0.03%	\$3,319	\$3,319	9.00	\$369 per Unit
Hotel/Motel Lodging Units	18.6	818	0.393	321.08	3.80%	\$372,568	\$20,031	43.98	\$455 per Unit
Resort Lodging Units	9.3	535	0.459	245.35	2.90%	\$284,694	\$30,612	57.53	\$532 per Unit
Commercial/Office Uses	39.8	2,417,000	0.897	2,168.07	25.66%	\$2,515,742	\$63,210	60,729	\$1,041 per S.F.
Industrial/Manufacturing Use	187.0	3,638,000	0.381	1,387.80	16.43%	\$1,610,348	\$8,611	19,455	\$0.443 per S.F.
TOTAL	661.9	--	--	8,448.17	100.00%	\$9,802,919	in Total Law Enforcement Capital Needs to Complete System		

Schedule 3.3

City of Huntington Beach
 2010-11 Development Impact Fee Calculation and Nexus Report
 Community Financial Commitment or Equity-based Proportionality Test Fees
 Law Enforcement Facilities, Vehicles and Equipment

Proposed Land Use	Developed		Call Generation Rate	Existing Calls for Service	Percentage of Existing Service Calls	Allocation of Infrastructure "Equity"	Distribution of "Equity" per Acre	Average Units or Square Feet/Acre	Current Financial Commitment per Unit or Square Foot
	Acres	Units							
Detached Dwelling Units (1)	6,436.0	38,616	0.341	13,185.0	22.17%	\$15,793,603	\$2,454	6.00	\$409 per Unit
Attached Dwelling Units	1,805.4	36,108	0.702	25,350.0	42.62%	\$30,365,403	\$16,819	20.00	\$841 per Unit
Mobile Home Dwelling Units	204.6	2,865	0.318	910.0	1.53%	\$1,090,040	\$5,328	14.00	\$380 per Unit
Hotel/Motel Lodging Units	33.4	1,070	0.393	420.0	0.71%	\$503,096	\$15,063	32.04	\$470 per Unit
Resort Lodging Units	20.2	809	0.459	371.0	0.62%	\$444,401	\$22,000	40.05	\$549 per Unit
Commercial/Office Uses	841.9	12,836,000	0.897	11,514.0	19.36%	\$13,792,002	\$16,382	15,246	\$1,074 per S.F.
Industrial/Manufacturing Use	930.3	20,261,000	0.381	7,729.0	12.99%	\$9,258,154	\$9,952	21,779	\$0.457 per S.F.

TOTAL	10,271.8	--	--	59,479.0	100.00%	\$71,246,699	in Total Equity in Current Law Enforcement Assets		
						\$53,423,178	in Equity in Current Law Enforcement Facilities		
						\$12,640,310	in Equity in Current Law Enforcement Vehicles		
						\$3,027,410	in Equity in Existing Specialty/Electronic Equipment		
						\$2,155,801	in Equity in Current Law Enforcement Officer Equipment		
						\$0	in Existing Law Enforcement Impact Fee Fund Balance		

Land Use	Units or Acres	Calls for Service	Annual Calls Per Unit
Detached Dwelling Units	38,616	13,185	0.341
Attached Dwelling Units	36,108	25,350	0.702
Mobile Home Units	2,865	910	0.318
Hotel/Motel Units	1,070	420	0.393
Resort Units	809	371	0.459
Commercial/Office KSF	12,836	11,514	0.897
Industrial KSF	20,261	7,729	0.381

Chapter 4

Fire Suppression/Medic Facilities, Vehicles, and Equipment

The Existing Fire Suppression/Medic Infrastructure. The Fire Department responds to calls for service from eight existing stations and trains at a facility consisting of a training (and drying) tower, classrooms, offices and support areas with specialty situation training mock-up implements. There is also a storage facility for reserve vehicles. The fire facilities are detailed as follows:

Fire Station #1 (Gothard) is a 10,200 square foot facility on parcel that is just under an acre (42,166 square feet) and is located at 18311 Gothard Street.

Fire Station #2 (Murdy) is a 11,500 square foot three-bays wide by two-vehicles deep facility also on a 42,166 square foot parcel at 16221 Gothard Street.

Fire Station #3 (Bushard) is a one-bay wide by one-vehicle deep, 5,700 square foot facility located on a 12,980 square foot parcel located at 19711 Bushard Street.

Fire Station #4 (Magnolia) is a 5,702 square foot, one-bay wide by one-vehicle deep facility located on a 21,780 square foot parcel located at 21441 Magnolia Street.

Fire Station #5 (Lake) is a 11,508 square foot, three-bays wide by two-vehicles deep facility on a 14,200 square foot parcel located at 530 Lake Street.

Fire Station #6 (Edwards) is a 13,000 square foot, three-bays wide by two-vehicles deep facility located on a 208,478 square foot parcel located at 18591 Edwards Street.

Fire Station #7 (Warner) is an 8,750 square foot, two-bays wide by one-vehicle deep facility located on a 53,273 square foot parcel at 3831 Warner Avenue.

Fire Station #8 (Heil) is a 5,712 square foot, two-bays wide by one-vehicle deep station on a 10,280 square foot parcel located at 5891 Heil Avenue.

The **Training Facility** is also located at 18301 Gothard next to Station #1 on a 77,580 square foot portion of a City parcel and consists of 7,081 square feet of classrooms and offices. The site also has numerous training exercise implements and a drafting pool.

Reserve Vehicle Storage Building - The facility is 2,525 square foot storage building and is located behind Fire Station #1 (Gothard).

The land and replacement construction cost of the existing stations and training facilities is approximately \$52,999,718. Not surprisingly, the City also has a sizable fleet of City-owned response and prevention units (and equipment) consisting of:

- Four front line and three reserve ambulances;
- Two front line ladder trucks, one aerial platform and a large tiller ladder truck and one reserve tiller ladder truck;
- Eight front-line and four reserve engines;
- Two Battalion Chief incident command vehicles;
- Seven utility pick-up trucks of varying sizes (utility and specialty support);
- Three specialty vehicles, a decontamination vehicle, a HazMat vehicle and Light/Air support vehicle; and,
- Twenty-two administrative, inspection and investigation sedans.

The total investment in the Department's vehicle compliment is about \$9,237,000. The City's investment in assigned fire fighter equipment is approximately \$1,010,202 at \$7,595.50 for each of the 133 sworn fire fighters. The City has also acquired approximately \$537,780 in computers/Electronic equipment. There is no existing Fire Suppression/Medic Facilities, Vehicle and Equipment Impact Fee Fund thus no current year-end fund balance.

The current equity of the stations, parcels, specialty equipment and the response fleet is estimated to be \$63,784,700. The sale of Station #8 (Heil), to allow it to be relocated, decreases this figure by a net \$2,550,473 to \$61,234,227. This figure represents what it would cost to establish the existing eight station (along with the reserve vehicle and training facilities) response capability at current vehicle, equipment, land acquisition and facility construction costs. The relevance of this figure will be established later in this Chapter.

Demand Upon Infrastructure Created by the Development of Under or Undeveloped Parcels.

While it can be said that numerous factors are considered when determining the number of and location of fire stations in any city, it can be stated without any logical argument that all new (net) private development in the City will have an effect on the City's current ability to respond to fire, medic, and emergency calls-for-service. The effect, simplified but not trivialized, is twofold. Initially, each new residential and business development will create, on average, more calls-for-service increasing the likelihood of simultaneous (and thus competing) calls-for-service. Additionally, as development spreads further from any existing station or stations, as large-scale development is often likely to do, the distances (and thus response times) will increase, taking the existing engine companies out-of-service for greater lengths of time.

The capacity of any fire station to respond to calls-for-service is finite and will ultimately reach practical limits (through a combination of call-frequency and total time on that call). When that station's capacity is exceeded, the level-of-service afforded to existing development will be greatly diminished. Or stated in another way, if development continues without the addition of fire stations (additional capacity), the existing station will be overwhelmed (new demand), making a timely response for emergency service less likely. That is to say, the existing engine companies may not be available to respond to your needs as they may be out-of-service on a call in a different part of the community.

The Purpose of the Fee. The purpose of the fee is to collect proportional financial contributions from new development to pay for additional fire suppression/medic facilities, vehicles and specialty equipment. In order to be able to continue to be able to respond to an ever-increasing number of expected calls, the Fire Department staff has determined the need for the relocation of one new station (as opposed to adding a ninth) and an expansion of one existing station. Having the right type and inventory of fire stations in the right locations enables the City's policy makers to house fire fighters, apparatus, and equipment in a rational way for maximum use of resources.

Conversely, the penalties are high and extremely visible, for inadequate fire response capacity. Adverse effects are felt by the City's fire staff, the council, and indeed by the existing taxpayers. With poor response capacity response times, (via distance or out-of-service due to a previous call), can become excessive and if a tragedy occurs, the incident will be well publicized.

Often, *response time* is mistakenly referred to for only the first-in unit. This can be a grave error. More correctly, response time must consider the time necessary to assemble *all* of the fire resources necessary to place the incident under control. If the first unit arrives within five minutes but cannot provide the necessary water flow, undertake entry, or perform the needed functions due to a lack of staffing, the five minute response becomes insignificant and irrelevant. Thus an increase in the number and type of response vehicles is also necessary to match and equip the needed additional staff. The following sections identify the manner in which the City plans to meet the demands of additional calls-for-service and can thus accommodate new development.

The Use of the Fee. The development impact fee would be collected as the development occurs at some point of the development review process determined by the City. As the development occurs, the impact is generated. The collected fees would be put to use to acquire the additional fire-fighters' facilities necessary to respond to additional calls-for-service, *necessary to avoid reducing the capability of responding to calls from the existing community*. These fees will be used to finance the construction or acquisition of fire suppression/medic facilities, vehicles and specialty equipment (identified in the companion *Master Facilities Plan*) that have been identified as necessary to accommodate the anticipated (and planned for) development identified in Table 2-1.

The proposed fire suppression/medic facilities and equipment that are necessary to accommodate the anticipated (and planned for) in Table 2-1 are identified in the companion document the *Master Facilities Plan*. It is important to note that the fees would be used to acquire additional stations or expand existing stations (to increase the response capacity of that station) and increase the number of emergency response vehicles. Conversely, the Fire Suppression/Medic Facilities, Vehicles, and Equipment Impact Fee receipts could not be used to simply repair any existing fire station or replace any existing emergency response vehicles. Additional facility capacity is planned to come on-line, as needed, as development creates additional demands beyond the existing capability (frequency and distance) of the existing stations. The six capital projects expansions proposed by the City's fire staff will cost a net \$11,241,972. They are described briefly:

FS-001 - Relocate Station #8 (Heil) - The proposed project involves the relocation of the existing station from its current location on Heil Street just west of Springdale to a more northerly area near Graham Street, north of Edinger Street. The relocation is largely needed to meet the shifting and increasing demands resulting from the redevelopment/up-sizing of both the Downtown Specific Plan and the Beach/Edinger Specific Plan corridor. The proposed building would be a three-bay wide by two-vehicle deep facility. The project would need approximately an acre and a quarter.

FS-002 - Construct Station #8 (Heil) Apparatus Storage Facility - The reserve vehicle storage facility behind the existing Station #1 would need to be supplemented with a storage facility behind Station #8 as part of the above project but is not fully needed as result of the redevelopment of the two large specific plans. It is partly needed to accommodate existing reserve vehicles.

FS-003 - Construct a Single Bay/Quarters At Station #4 (Magnolia) - The project will add 2,400 square feet to the station. The additional space would consist of an additional 1,600 two vehicle deep bay to house and additional engine company and an ambulance.

FS-004 - Acquire an Additional Engine and Ambulance for Station #4 (Magnolia) - This project consists of the response vehicles in support of the Station #4 expansion.

FS-005 - Acquire an Additional Engine for Station #1 - This additional engine would be needed to assist in handling the additional call volume resulting from the development in both the Downtown Specific Plan and the southerly portion of the Beach/Edinger Specific Plan corridor.

FS-006 - Acquire an Additional Engine for Station #2 - This additional engine would be needed to assist in accommodating additional call-for-service volume resulting from the development in the Beach/Edinger Specific Plan corridor.

The proposed projects and costs are identified on Schedule 4.1 and are detailed in the Master Facilities Plan. The total cost of completing the fire infrastructure system is \$11,941,972, which is mitigated by the \$700,000 offset anticipated by the sale of the Station #8, Heil for a net total of \$11,241,972. There is no existing Fire Suppression/Medic Development Impact Fee fund thus no fund balance.

The Relationship Between the Need for the Public Facility and the Type of Development Project. As noted in this report, residents and businesses will generate calls-for-service at different rates. Thus, there is a need to establish a specific schedule of development impact fees to finance the required expansion to the fire suppression/paramedic facilities et. al. needed to support the development anticipated and identified in Table 2-1. Fire suppression/medic response standards extended to new development should be consistent with the fire response currently enjoyed by the City's existing citizens and business community by constructing new facilities, or the result will be a deterioration in the level-of-service provided both to the existing residents and future citizens and businesses within the City. It follows that it is appropriate to assess future development to contribute additional fire suppression/medic facilities, vehicles and equipment.

To project the impact of future development on fire services, it was first necessary to quantify the current impact on services from each of the City's land uses. Then, a determination of the costs of future capital facilities necessary to meet this increased demand was made. The following section illustrates the relative impact from each land use on fire services and facilities.

The Relationship Between the Need for the Public Facility and the Type of Development Project. As noted in this report, residents and businesses will generate calls-for-service at different rates. Thus, there is a need to establish a specific schedule of development impact fees to fund the fire suppression/paramedic facilities needed to support the development anticipated in Table 2-1. To meet that need, actual Fire Department calls-for-service records¹ were used to verify that differing land uses generate differing numbers of calls. The data in this Chapter demonstrates those expected differences using data specific to City of Huntington Beach. The collected impact fees would be used to acquire equipment for additional fire fighters, vehicles and additional building space necessary to respond to the calls-for-service generated by private residential dwelling and business space.

The Relationship Between the Amount of the Fee and the Cost of the Portion of the Facility Attributed to the Development Project. Each new development would finance a proportional amount of the expansion of the fire station/company response capacity, vehicle response fleet and specialty response/paramedic equipment and thus a proportional share of the costs. It is unlikely that any specific development will generate the need to construct the additional fire station, but each one will pay for their proportional demands on that expansion.

While the majority of these requests for service were made by residents of Huntington Beach from their homes, a large percentage of requests were generated from existing commercial/office and industrial uses within the City. A survey of each land use and its existing effect on requests for calls-for-service was conducted to determine existing service ratios and thus be able to project the impact of future development on fire services. This survey was undertaken similarly to the process used to determine law enforcement demand as described in Chapter 3, Law Enforcement.

Only requests for fire and medic services to privately held property were counted. *Calls-for-service* to public property such as City parks and public right-of-way or intersections were not included which, in effect, distributes these calls pro-rata through the *calls-for-service* from privately held property. This is based upon the argument that all public land serves privately held land in some manner.

Table 4-1, following, identifies the number of requests for service received by the Fire Department during the period of July 1, 2008 and June 30, 2009, by land use (detached dwelling, attached dwelling, mobile home, resort hotel/motel, commercial/office, and industrial). The number of *calls-for-service* received by the Fire Department for each of the major land-uses during the year was then divided by either the existing number of dwelling units (for residential uses) or the developed acres (for commercial, office and industrial uses) to determine the number of requests generated per dwelling unit or commercial or an industrial acre.

Table 4-1
Average Annual Existing Responses Per Unit Or Acre

Land Use	Dwellings, Rooms or KSF	Annual Calls-for- service	Annual Calls per Unit or KSF
Detached Dwelling Units	38,616	4,762	0.123/Unit
Attached Dwelling Units	36,108	1,846	0.051/Unit
Mobile Home Units	2,865	607	0.212/Unit
Hotel/Motel Units	1,070	51	0.048/Unit
Resort Lodging Units	809	86	0.106/Unit
Commercial & Office KSF	12,836,000	565	0.044/KSF
Industrial KSF	20,261,000	82	0.004/KSF

The beach/City right-of-way areas generated 195 calls for service. Of residential land uses, the occupants of an attached dwelling unit are less likely, by less than half as much, to require an emergency fire service response at 0.051 annual responses *per unit*, than the occupants of a detached dwelling unit at 0.123 annual responses *per unit*. Commercial/Office development is shown to generate 0.044 responses *per 1,000 square feet* of building pad, while industrial development generates a minimal response demand of 0.004 calls *per 1,000 square feet* of building pad. The lower demand by industrial uses over commercial/office uses should be expected given the greater density of employees and patrons in a commercial or office establishment when compared to an industrial business of similar building size. However, it should be noted that while there are fewer calls for industrial properties, significant specialty training is required to be prepared for industrial responses, (i.e., confined space and hazardous materials training).

Table 4-2 indicates that, given the high density of rooms and accompanying facilities, an acre of resort development, creates the highest demand for fire services, thus the development impact fee for that land use is the highest, on an average acreage basis.

Table 4-2
Calls-for-service by Land-use
an Acre Basis

Land Use	Calls per Unit or KSF	Units or KSF per Acre	Annuals Calls per Acre
Detached Dwelling Units	0.123	6	0.74
Attached Dwelling Units	0.051	20	1.02
Mobile Home Dwelling Units	0.212	14	2.97
Hotel/Motel Lodging Units	0.048	32	1.53
Resort Lodging Units	0.106	40	4.25
Commercial/Office Uses (per KSF)	0.044	15,246	0.67
Industrial/Manufacturing Uses (KSF)	0.004	21,779	0.09

Based on the existing rate of responses by land use, the increased number of fire suppression/medic service responses generated by future residential, commercial/office and office

development was extrapolated. This was accomplished by multiplying the average responses per unit or 1,000 square feet (KSF), established in Table 4-1, by the number of anticipated dwelling units, commercial rooms or business KSF. Table 4-3, following, indicates the number of additional calls-for-service that could be anticipated from the development of currently vacant land within the City's planning area.

Table 4-3
Additional Annual Fire Suppression/Medic Responses
Generated by Future Anticipated Development

Land Use	Fire/Medic Responses Per Unit/KSF	Potential Units or KSF	Additional Annual Fire Responses
Detached Dwelling Units	0.123/unit	1,749 units	215.68 calls
Attached Dwelling Units	0.051/unit	5,307 units	271.32 calls
Mobile Home (in parks)	0.212/unit	9 units	1.91 calls
Hotel/Motel Units	0.048/unit	818 units	38.99 calls
Resort Lodging Units	0.106/unit	535 units	56.87 calls
Commercial/Office Uses	0.044/KSF	2,417 KSF	106.39 calls
Industrial Uses	0.040/KSF	3,638 KSF	14.72 calls
Total			705.88 calls

Proposed Capital Expenses. The total cost of the required improvements to the City's investment of fire suppression/medic facilities, vehicles and specialty equipment was previously estimated to be \$11,941,972 with an offset of \$700,000 from the proceeds of sale of the to-be vacated Heil Station #8. Roughly 46.4% has been identified as required to serve the net new calls-for-service resulting from development or up-sizing due to redevelopment. Projects FS-001 through FS-006 are capacity-increasing and have been determined by City staff to be necessary to accommodate the anticipated additional calls-for-service from new development or for a more appropriate aerial unit. When this cost is distributed the various land-uses and the demands created by each, a proportional cost is determined, by development unit. Table 4-4, summarized from Schedule 4.2, indicates the proportional cost by land-use unit.

Table 4-4
General Plan Build-out Needs Fire Facilities, Vehicles
and Equipment Development Impact Fees

Land Use	Allocation of Costs	Total Cost Per Unit or SF
Detached Dwelling Units	\$1,693,338	\$968/Unit
Attached Dwelling Units	\$2,130,176	\$401/Unit
Mobile Home Units (in parks)	\$14,996	\$1,666/Unit
Hotel/Motel Units	\$306,117	\$374/Unit
Resort Lodging Units	\$446,495	\$835/Unit
Commercial/Office Uses	\$835,285	\$0.346/S.F.
Industrial Uses	\$115,569	\$0.032/S.F.

Existing City Financial Commitment. The replacement value of the existing fire infrastructure (parcel and station, response fleet and related safety/specialty equipment) at a net \$61,234,227 (includes the potential sale of the Heil Station) was referenced earlier in this Chapter. This represents the current investment or *financial commitment* by the existing community toward fire suppression/medic capability/capacity. When this figure is distributed over the existing development in the same manner as were the future costs, by the land use demands, an average investment, or *financial commitment* (or *equity* for that matter) per unit is determined. The results are summarized in Table 4-5 (from Schedule 4.3). As an example, each detached dwelling unit has "invested" over the lifetime of the City, about \$922 (as identified in Table 4-5 following) into fire suppression/medic capital, an amount that is about 95% of the General Plan Build-out Needs-based Development Impact Fee schedule identified in the previous Table 4-4 and detailed in Schedule 4.3.

The current community's commitment has established the eight response station capacities and was paid for through years of General Fund receipts. To allow future residents to benefit by use of all of the capital needs without contributing additional assets, could endanger the existing residents and businesses. Table 4-5, following, summarizes the distribution of the \$ in replacement costs to the existing community, (Schedule 4.3 indicates this in greater detail).

Table 4-5
Existing Fire Suppression/Medic Existing
Community Financial Commitment

Land Use	Allocation of Equity	Total Equity Per Unit or SF
Detached Dwelling Units	\$35,586,696	\$922/Unit
Attached Dwelling Units	\$13,795,263	\$382/Unit
Mobile Home Units (in parks)	\$4,536,145	\$1,583/Unit
Hotel/Motel Units	\$381,126	\$356/Unit
Resort Lodging Units	\$642,683	\$792/Unit
Commercial/Office Uses	\$4,222,277	\$0.329/S.F.
Industrial Uses	\$612,791	\$0.030/S.F.
Other (beach area)	\$1,457,246	NA

Of importance is the fact that the Community Financial Commitment or Equity-based costs on Table 4-5 are just slightly higher, at roughly 105%, than the proposed General Plan Build-out-based impact fees as demonstrated in Table 4-4. This indicates that the City is just slightly behind in its cumulative and proportional investment in needed fire suppression/medic facilities, vehicles and equipment.

RESULTING DEVELOPMENT IMPACT FEES

Since the equity position of the existing community is slightly less than the General Plan Build-out Needs-based development impact fees necessary for expansion, the current Community Financial Commitment or Equity-based Proportionality Test-based Development Impact Fees, as identified in Table 4-5 and Schedule 4.3, would be the most equitable fee schedule to adopt.

Resulting Development Impact Cost Distribution. The collection of the proposed development impact fee, through build-out would allow the City to provide a great deal (44.7%) of the proposed expansions and most of the equipment, but not all of it. It would fall about \$6.0 million short of financing all of the required improvements attributed to new development.

OTHER NOTES AND ISSUES

1. The City will need to monitor the approval of conditional uses within industrial zoned development where newly constructed industrial developments. These land uses are initially have the lower industrial use development impact fees imposed when constructed as "spec" buildings but end up being used, with a CUP, for commercial/office uses. These commercial/office uses generate far greater demand than the industrial uses. If left unchecked, the Fire Department, as well as other City services, will be faced with the greater demand from the actual commercial/office uses but will be left only with the collection of the far lower industrial use development impact fee rates. To avoid this under collection, the City should impose an impact fee representing the difference between the commercial/office development impact fee and the previously paid industrial land-use impact fee when a CUP is approved and tenant improvement plans are submitted indicating a commercial or office use.

RECAP OF RECOMMENDED FIRE SUPPRESSION/MEDIC FACILITIES, VEHICLES AND EQUIPMENT DEVELOPMENT IMPACT FEES.

- Adopt Schedule 4.3 General Plan Build-out Needs-based for the seven basic land-uses.
-
-

CHAPTER ENDNOTES

1. The response data is generated from Department response incident data used to complete the annual National Fire Incident Report (NFIR's).

Schedule 4.1

City of Huntington Beach
 2011-12 Development Impact Fee Calculation and Nexus Report
 Identification of Projects and Cost Allocation
 Fire Suppression/Medic Facilities and Vehicles

Line #	Description	Estimated Cost	Percent Need	Apportioned Dollar Cost	Percent Need	Apportioned Dollar Cost
FS-001	Relocate Station #8 (Heil)	\$7,169,470	50.00%	\$3,584,735	50.00%	\$3,584,735
FS-002	Construct Station #8 (Heil) Apparatus Storage Facility	\$1,716,044	75.00%	\$1,287,033	25.00%	\$429,011
FS-003	Construct a Single Bay/Quarters at Station #4 (Magnolia)	\$1,266,458	50.00%	\$633,229	50.00%	\$633,229
FS-004	Acquire an Engine Company and Ambulance for Station #4 (Magnolia)	\$740,000	50.00%	\$370,000	50.00%	\$370,000
FS-005	Acquire an Engine Company for Station #1 (Gothard)	\$525,000	50.00%	\$262,500	50.00%	\$262,500
FS-006	Acquire an Engine Company for Station #2 (Murdy)	\$525,000	50.00%	\$262,500	50.00%	\$262,500
	SUB-TOTAL ESTIMATED NEW PROJECT COSTS	\$11,941,972	53.59%	\$6,399,997	46.41%	\$5,541,975
	LESS: Existing Fire Suppression Impact Fee Fund Balance	\$0	100.00%	\$0	0.00%	\$0
	Sale of Property (Heil Station)	(\$700,000)	100.00%	(\$700,000)	0.00%	\$0
	SUB-TOTAL ADJUSTMENTS	(\$700,000)	0.00%	(\$700,000)	0.00%	\$0
	Total - Fire Suppression/Medic Capital Project Needs	\$11,241,972	50.70%	\$5,699,997	49.30%	\$5,541,975
						Forward to Schedule 4.2

NOTES:

1. The cost distribution is based upon annual Fire Department "Calls-for-Service" statistics (NFIRS).

Schedule 4.2

City of Huntington Beach
2011-12 Development Impact Fee Calculation and Nexus Report
General Plan Build-out Needs-based Development Impact Costs (Fees)
Fire Suppression/Medic Facilities and Vehicles

Proposed Land Use	Undeveloped		Call Generation Rate	Expected New Calls for Service	Percentage of Additional Service Calls	Allocation of Expansion Costs	Cost Distribution Per Acre	Average Units or Square Feet/Acre	Development Impact Fee per Unit or Square Foot
	Acres	Units							
Detached Dwelling Units (1)	295.00	1,749	0.123	215.68	30.55%	\$1,693,338	\$5,740	5.93	\$968 per Unit
Attached Dwelling Units	111.20	5,307	0.051	271.32	38.44%	\$2,130,176	\$19,156	47.72	\$401 per Unit
Mobile Home Dwelling Units	1.00	9	0.212	1.91	0.27%	\$14,996	\$14,996	9.00	\$1,666 per Unit
Hotel/Motel Lodging Units	18.60	818	0.048	38.99	5.52%	\$306,117	\$16,458	43.98	\$374 per Unit
Resort Lodging Units	9.30	535	0.106	56.87	8.06%	\$446,495	\$48,010	57.53	\$835 per Unit
Commercial/Office Uses	39.80	2,417,000	0.044	106.39	15.07%	\$835,285	\$20,987	60,729	\$0.346 per S.F.
Industrial/Manufacturing Use	187.00	3,638,000	0.004	14.72	2.09%	\$115,569	\$618	19,455	\$0.032 per S.F.
TOTAL	661.90	--	--	705.88	100.00%	\$5,541,975	in Total Fire Suppression Capital Needs to Finish System		

Schedule 4.3

City of Huntington Beach
2011-12 Development Impact Fee Calculation and Nexus Report
Community Financial Commitment or Equity-based Proportionality Test Fees
Fire Suppression/Medic Facilities and Vehicles

Proposed Land Use	Developed		Call Generation Rate	Existing Calls for Service	Percentage of Existing Service Calls	Allocation of Infrastructure "Equity"	Distribution of "Equity" per Acre	Average Units or Square Feet/Acre	Current Financial Commitment per Unit or Square Foot
	Acres	Units							
Detached Dwelling Units (1)	6,436.00	38,616	0.123	4,762.0	58.12%	\$35,586,696	\$5,529	6.00	\$922 per Unit
Attached Dwelling Units	1,805.40	36,108	0.051	1,846.0	22.53%	\$13,795,263	\$7,641	20.00	\$382 per Unit
Mobile Home Dwelling Units	204.60	2,865	0.212	607.0	7.41%	\$4,536,145	\$22,171	14.00	\$1,583 per Unit
Hotel/Motel Lodging Units	33.40	1,070	0.048	51.0	0.62%	\$381,126	\$11,411	32.04	\$356 per Unit
Resort Lodging Units	20.20	809	0.106	86.0	1.05%	\$642,683	\$31,816	40.05	\$794 per Unit
Commercial/Office Uses	841.90	12,836,000	0.044	565.0	6.90%	\$4,222,277	\$5,015	15,246	\$0.329 per S.F.
Industrial/Manufacturing Use	930.30	20,261,000	0.004	82.0	1.00%	\$612,791	\$659	21,779	\$0.030 per S.F.
Beach Area				195.0	2.38%	\$1,457,246			
TOTAL	10,271.80	—	—	8,194.0	100.00%	\$61,234,227	In Total Equity in Current Fire Suppression Assets		
							In Existing Fire Suppression Facilities.		
							(\$3,250,473) Less Hell Station #8 (to be relocated).		
							\$700,000 Proceeds of Sale of Hell Station #8		
							\$9,237,000 In Existing Fire Suppression Vehicles.		
							\$537,780 In Existing Computer/Electronic Fire Equipment		
							\$1,010,202 In Existing Fire-fighter Assigned Equipment		
							\$0 In Existing Fire Suppression Impact Fee Fund Balance.		

Chapter 5

Circulation (Streets, Signals and Bridges) System

The following Chapter will identify the street, traffic signal and bridge improvements (henceforth referred to as the Circulation System) planned for the City through General Plan Build-out of the existing City limits as identified in the Land-use Database Table in Chapter 2.

RCS recommends the continuation of the City's comprehensive *Circulation System Development Impact Fee*, i.e., a fee that combines the required street, signal and bridge expansions, all of which are related to the movement of primarily vehicles. The reasons are practical in that combining these three components will provide greater flexibility in establishing priorities in what is essentially a singular circulation issue with a common nexus, traffic or as stated in trip-mile generation. It is fairly common that a single circulation system capital improvement project will involve both a street improvement (or intersection) and signal improvement.

The Existing Circulation System. The City currently has and maintains an extensive system of roadways available for transportation of goods and services, as well as for educational, recreational, and social purposes. Streets that fall under the jurisdiction of City of Huntington Beach are classified as one of four types of roadways for the purposes of this Report. Roadways are defined in part (in the City's General Plan Circulation Element)² as:

- **Freeway** - Very high mobility with limited access to arterial streets and no access to adjacent land use. *[The City is not responsible for the construction of freeways but will likely have to financially assist CALTRANS with any alteration to an existing access/egress ramps].*
- **Arterial** - High mobility with access to collectors, some access to local streets and major traffic generators.
- **Collector** - Limited mobility connecting local streets with arterials; also provides good access to adjacent land uses.
- **Local** - Limited mobility but provides very good access to adjacent land uses and collector streets.

Typically, *locals* would be constructed upon the developer's private property and generally only benefits those new residential or business buildings. Assuming that the design criterion has been met and that the right-of-way improvements meet inspection requirements, the City then accepts

the local street improvements along with the responsibility to maintain the improvement *in perpetuity*. In short, local streets are of little benefit to the City-wide circulation system, and these costs are not shared by other developers, as the collector and arterial system improvements are. For these reasons, the cost of all *local* streets is excluded from the Circulation System Development Impact Fee calculation.

Demand Upon Infrastructure Created by the Development of Undeveloped Parcels. Undeveloped parcels create few trip-ends beyond an occasional visit to the site for weed abatement purposes or to consider a sale or development of the vacant parcel. None of these trip-ends are on a routine basis. However, a developed parcel will generate a statistically predictable number of trip-ends, depending upon the specific land use of the development. Thus it can be stated that a vacant parcel, when developed into a specific use, i.e., residential or business, will generate more traffic than it did when it was vacant. Similarly, a change in the use of the parcel may also increase the number of daily trip-ends. A good example would be the demolition of a low trip-generating insurance office which is reconstructed as a new high trip-generating fast-food restaurant.

All new development contributes to cumulative traffic impacts, which are difficult to measure and mitigate on a project-by-project, basis but which have significant and widespread cumulative impacts on the City's existing road system. Factors that will increase the competition for existing lane miles (and freeway crossings) include, (as measured by trip-miles defined later in Chapter text) the following:

- An increase in the City's full-time population through the construction of about 7,065 additional dwelling units contributing approximately 183,270 new trip-miles *daily* or just more than 49.4 % of the newly expected daily trip-miles.
- The construction of 1,353 commercial lodging units (resort and hotel/motel) will generate 26,882 daily trip-miles, not quite 7.3 % of the total new trip-miles annually.
- The construction of private commercial and office uses on the (net) 40 acres currently identified as undeveloped commercial or office uses will generate 78,553 new daily trip-miles, or about 21.2% of the total new trip-miles expected at General Plan build-out. This figure could vary significantly depending upon the type of commercial uses constructed and possible zoning changes or conditional use permits issued.
- The addition of 187 acres of industrial development (and Institutional Uses) generating the potential for an additional 82,219 daily trip-miles, just under a quarter of the total new trip-miles at 22.1 %. Again, it is possible that some parcels zoned for industrial uses will end up being commercial uses after obtaining a Conditional Use Permit. There

are likely many existing industrial buildings contiguous to the City's many arterials and collectors that have become commercial uses.

When all (or most) of the available vacant land is developed, the City can expect an additional 370,924 daily trip-miles. For perspective, the City currently experiences approximately 3,135,213 daily trip-miles from the existing residences and businesses. The 370,924 anticipated trip-miles represents an approximate 11.8% increase over the existing 3,135,213 daily trip-miles.

The Purpose of the Fee. The purpose of the fee is to collect proportional contributions from new development to pay for additional circulation system capacity and by creating more lane miles or *more efficient* lane miles with which to accommodate the additional trip-miles created by and anticipated from new development. Additionally there are circulation projects required to alter existing arterials, collectors or intersections that currently exist, but due to additional trip-miles are becoming ineffective at moving vehicles. An example would be the intersection of Beach Boulevard and Edinger Avenue (ST-001). This project is required because additional citizens and business-owners will use the existing intersections along with the current users rendering it, again, ineffective at moving traffic at a reasonable pace, primarily during the a.m. and p.m. peak hour of traffic. Acceptable traffic paces can be maintained with a combination of road widening, freeway access/egress, proper signalization and turn lane channelization. The simple answer to increasing demand for lane miles is to construct additional lane miles. Unfortunately there are little if any opportunities to construct additional lane miles of arterials or collectors within the City's limits without the impractical and acquisition of very expensive right-of-way.

Thus, given the size of City of Huntington Beach and the magnitude of growth projected in this Report, numerous intersection improvements and construction of technologically improved traffic signals will be the primary methodology employed by the City to avoid congestion and gridlock in the future. Traffic planners have long known that the critical constraint in a typical roadway network is usually not the roadway itself but the many intersections of arterial and collector roadways. While the street capacity may be theoretically adequate to carry traffic volumes at build-out, motorists may experience congestion and even gridlock at the intersections of the arterial/collector. While the City will likely undertake, some street widening projects where possible, the installation of traffic signals and lane reconfiguration at critical intersections in the City is perhaps a more important component of traffic circulation.

The importance of traffic signals is twofold. First, the City can build only so many major collector streets and there are limits as to how wide they can be, indeed there are no more practical opportunities for additional lane-miles. Second, a north-south arterial/collector, by definition, will intersect with an east-west arterial/collector assuring that *someone* will have to stop, either at a stop sign or a traffic signal, adding time to their tasks. The traffic carrying capacity of each

collector can only be maximized by assuring orderly flow of traffic by efficient signalization of those intersecting arterial/collector roadways.

None of this is intended to eliminate the time-honored practice of the developer constructing the full width roadway and being reimbursed for the portion greater than would otherwise be required of the developer. This impact fee calculation and resulting fee collection would simply improve the reimbursement capability.

The City's *Master Facilities Plan* Circulation System section identifies fifteen circulation projects costing a net \$28,539,780. The individual projects and costs are identified on Schedule 5.1 at the end of the Chapter and detailed in the *Master Facilities Plan*. A total of \$26,608,410 has been identified by staff as capacity increasing, leaving \$1,929,390 to be supported by other financial resources such as assessment districts, State (CALTRANS) assistance, General Funds, etc. There is an existing Circulation System Development Impact Fee Fund balance of \$200,000 leaving some \$1,469,370 with unidentified revenue sources.

The Use of the Fee. The continued collection of the Circulation System Development Impact Fee would be used to construct the projects (or portions of projects) identified in Schedule 5.1 at the conclusion of this Chapter's text. The collected fees will be used to create additional lane miles with which to accommodate the additional 370,924 additional daily trip-miles that will be generated by the scope of development identified in Table 2-1. Nineteen specific signal modification/intersection modification improvement projects have been included in the list of proposed projects. They include:

Beach Boulevard - Seven signal modification/intersection improvement projects would be constructed along Beach Boulevard at the intersections with Edinger, Heil, Warner, Slater, Talbert, Garfield, and Yorktown Avenues.

Pacific Coast Highway - Three signal modification/intersection improvement projects would improve traffic flow along Pacific Coast Highway at Warner Avenue, Goldenwest and Brookhurst Streets.

Newland Street - Three signal modification/intersection improvement projects along Newland Street include the intersections with Talbert, Warner and Yorktown Avenues.

Goldenwest Street - There are two such projects planned at the intersections of Goldwest Street with Bolsa and Slater Avenues.

Gothard Street - There are also two signal/intersection improvement projects planned at the intersection of Gothard Street with Slater and Talbert.

There are two more signal improvement projects, one at the intersection of Ward Street and Garfield Avenue and one at Brookhurst Street and Adams Avenue as well as a few minor intersection improvements that will be identified as development projects arise. There is a minor amount for a facility addition at the City yard to store replacement signal equipment.

The Relationship Between the Use of the Fee and the Type of Development Paying the Fee. There is a reasonable relationship between the fees' use and the types of projects on which the fees are imposed. The fees will be used to provide for a fair share contribution for transportation system improvements, including various street, signal and bridge project improvements needed to accommodate additional development of residential units and business square feet. The development impact fee to be imposed and collected will be based on the ratio of projected number of trip-miles the proposed development will generate in relationship to the total 370,924 additional projected trip-miles at General Plan build-out. Any amount imposed as a *Circulation System Development Impact Fee* will continue to be placed in a separate fund as the current City practice (collecting interest) and is to be used only on the projects identified on Schedule 5.1 as development-related.

From time to time the City may require an applicant of a private project to construct a street or signal improvement (or portion thereof) that is on the list of required improvements at the end of this Chapter. This method is often undertaken to expedite the project at the request of the applicant/developer. The developer should receive a credit representing the cost of those required improvements, against their mathematically calculated impact fee, for any money expended on this required improvement against any circulation projects. Should one not exist, a portion of the ordinance addressing the issue of credits should be prepared and added to the City of Huntington Beach Municipal Code.

The following table identifies some of the key system attributes of the Circulation System. The attributes identify that approximately 89.4% of the total trip-miles at "build-out" are represented by the existing community who have contributed a similar, but larger amount (96.2%) of the cost of the entire system. The traffic system yet to be built represents about 3.9% of the total trip-mile supporting system when the City is fully developed. Since there is a finite amount of room for additional major roads, traffic signals must be constructed at the intersection of major arterials. All of this generally indicates that the City is "on target" in terms of the construction of a circulation infrastructure. Or another way to state it is that the current drivers will generate 89.4% of the ultimate "build-out" trip-miles, have constructed about 96.2%, (in terms of cost) of the required infrastructure. It would be appropriate to assume that the remaining 10.6% of the traffic trip-mile generators contribute the remaining 3.9% of the infrastructure.

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Table 5-1
Comparison of Circulation System Attributes

Infrastructure Factor	Existing Community	Future Community	Total at Build-out
Number of Trip-miles	3,135,213	370,924	3,506,137
Percentage of Total	89.4%	10.6%	100.0%
Cost of Total System	\$533,539,375	\$26,608,410	\$560,147,785
Percentage of Total	95.2%	4.8%	100.0%

The Relationship Between the Need for the Facility and the Type of Development Project. There is a reasonable relationship between the need for the proposed circulation projects and the types of developments on which the fees would be imposed. New residents and new business owners will utilize the community's existing circulation system which will then require a number of street, signal and bridge improvements to maintain the existing level-of-service (LOS) enjoyed by the existing community. Schedule 5.1 identifies the additional traffic to be generated by new development, by type of development. The technical volume, Trip Generation (Manual) 7th Edition, produced by the Institute of Traffic Engineers, has been used to identify part of the *nexus*, or the relationship between the type of development and the projected number of trips that development will generate. The nexus will be based upon the combined factors of trip *frequency* and trip *distance*.

New Trip Adjustment for Pass-by or Diverted Trips (trip frequency factors). Schedule 5.2 contains a sub-schedule that identifies adjustments to new total *trip-ends*. As an example, an acre of general commercial use would be expected, on average, to generate about 381 daily trip-ends. However, approximately 15% of those trip-ends, or about 57 trip-ends per day, are *pass-by trip-ends*, in that, the trip-end is not truly an *end* but is actually a one in a series of stops, i.e. at various commercial establishments, with a different location such as a residence as the final trip-end or destination of the series of trip-ends. In order to be considered a pass-by trip, the location of the stop must be contiguous to the *generator*³ route, i.e. the route that would have been used even if the temporary stop had not been made⁴. The Institute of Transportation Engineers (ITE) indicates that:

Thus when forecasted trips based upon the trip generation rates are distributed to the adjacent streets, some reduction is made to account for those trips already there that will be attracted to the proposed development.⁵

Pass-by trip-ends are fully adjusted (reduced at 100%) from the average trip-ends (per day) generated by the eleven land uses identified in Schedules 5.2 and 5.3.

A *diverted* trip is similar to a *pass-by* trip-end in that it is an extra stop between, as an example, a motorist's work site and his or her residence. A *diverted* trip differs slightly in that it requires a minor deviation from the normal *generator* route and the temporary stop. In short, a *diverted* trip-end creates a separate side trip using additional (and different) lane miles from that of the normal route from the motorist's place of employment and his or her home⁶. These trip-ends increase the traffic volume from the generator route only for brief distances. The ITE adds that diverted trips:

are produced from traffic volume on roadways within the vicinity of the generator (route) and require a diversion from that roadway to another roadway with access to the site. These roadways could include streets or freeways adjacent to the generator but without access to the generator.⁷

These *diverted* trip-ends will be adjusted (reduced at an assumed 50%) from the full trip-end count for each of the land uses identified in the Chapter 2.

Again, the trip-end adjustment schedule at the bottom of Schedule 5.2 indicates the total daily trip-ends reduced by the number of pass-by trips (at 100%) and diverted trips (at 50%). The trip pass-by and diversion percentages were generated by a study conducted by the San Diego Association of Governments (SANDAG) in conjunction with various U.S. and California agencies⁸.

Average Trip Distances by Land Use (trip distance factors). Additionally, the same SANDAG data schedule referenced above provides information for a trip distance factor component to the nexus. Based upon that data, a trip to an industrial work-site has the greatest distance at 9.0 miles. A trip to an office average 8.8 miles, a residential trip averages 7.9 miles, a trip from a hotel or motel (once in residence) averages 7.6 miles, and an average trip to a commercial site is the shortest at 4.3 miles. This indicates that drivers are generally willing travel further distances to work and for treatment at medical offices than they are to shop. Both frequency (trip-ends) and distances (average miles per trip) have been combined into the nexus by combining frequency and distance, the two major factors of circulation master planing.

When the trip frequency and trip distance factors are combined, a 200-unit attached dwelling residential specific plan would generate about 4,620 daily trip-miles (200 unit's X 23.1 daily trip-

miles per unit) and a ten-acre commercial-retail development would generate 4,955 daily trip-miles (10 acres X 32.6 trip-miles/K.S.F. X 15,246/1,000 S.F.). Each would pay their proportionate share of the total 370,924 newly created trip-miles expected at General Plan build-out. In the case of the detached dwelling development, the 4,620 daily trip-miles generated by the new 200 attached dwellings represents about 1.25 % of the 370,924 total new trip-miles anticipated at build-out, thus they would be required to contribute financially to the DIF fund or construct projects on the DIF list to an amount equal to 1.49 % of the total development-related project costs. The 4,955 daily trip-miles generated by the ten acres of commercial development represent 1.34 % of the total 370,924 new trip-miles anticipated at build-out. As a result they would be required to contribute financially to the DIF fund or construct projects on the DIF list to an amount equal to 1.34 % of the total development-related project costs.

The Relationship Between the Amount of the Fee and the Cost of the portion of the Facility Attributed to the Development Project. Again, the calculation of the Circulation System Development Impact Fee is based upon the recognition that differing types of developments generate differing numbers of trip-ends. The fee is based upon the projected number of trip-miles generated by the proposed private development project. Circulation System Development Impact fee receipts will be accumulated until they reach the amount necessary to construct a meaningful project to alleviate or mitigate the demands of those new developments. Table 5-2 (summarized from Schedule 5.2) following, identifies the General Plan Build-out based Circulation System Impact Fee Schedule based upon the net \$26,608,410 in identified capacity-increasing projects.

Table 5-2
General Plan Build-out Based Circulation System Impact Fees

Land Use	Allocation of Costs	Total Cost Per Unit or SF
Detached Dwelling Units	\$4,341,072	\$2,482/Unit
Attached Dwelling Units	\$8,794,196	\$1,657/Unit
Mobile Home Units (in parks)	\$11,693	\$1,299/Unit
Hotel/Motel Units	\$903,562	\$1,105/Unit
Resort Lodging Units	\$1,024,741	\$1,915/Unit
Commercial/Office Uses	\$5,635,037	\$2.331/S.F.
Industrial/Manufacturing Uses	\$5,898,019	\$1.621/S.F.

Again, adoption of this set of proposed fees would generate the total revenue necessary to construct a significant portion (about 93%) of the needed street, traffic signal and bridge construction projects. The shortfall is largely due to removing new "passthrough" trips from new development outside of the City limits from the calculation. These figures, however, need to be compared to the existing community financial commitment demonstrated by the existing circulation assets to identify the level of fairness in adopting this schedule of development impact fees.

Proportionality Test. Table 5-3, following (and summarized from Schedule 5.3) identifies the assets of the existing system (at current construction and acquisition costs). The \$533,539,375 consists of the existing \$431.6 million in circulation plan arterial/collector streets, \$96.8 million in traffic signals and intersection improvements and \$5.0 million in major bridges inventory. There is also a \$200,000 balance in the Circulation System Development Impact Fee fund balance. When the combined \$533.6 million is distributed over the existing community, using the identical nexus factor used for distribution future costs, the existing community has contributed the following, on average, by land use:

Table 5-3
Existing Circulation System Community
Commitment Comparison Development Impact Fees

Land Use	Allocation of Costs	Total Cost Per Unit or SF
Detached Dwelling Units	\$227,375,119	\$5,888/Unit
Attached Dwelling Units	\$141,943,317	\$3,931/Unit
Mobile Home Dwelling Units	\$8,824,837	\$3,080/Unit
Hotel/Motel Lodging Units	\$2,804,166	\$2,621/Unit
Resort Lodging Units	\$3,675,809	\$4,544/Unit
Commercial/Office Uses	\$70,992,504	\$5.531/S.F.
Industrial/Manufacturing Uses	\$77,923,618	\$3.846/S.F.

Of importance is that the existing community has contributed, on average, far more, (at nearly 237%) than would be required of future development to meet the General Plan build-out needs for all users. This indicates that there is no proportionality issue as the future community is being asked to contribute at a far lesser amount (at about 42 %) than has been contributed by the existing community.

Alternative Cost Methodology. A more precise calculation of costs for specific types of land uses (i.e., banks, hospitals, convalescent homes, etc.) can be determined by multiplying the average cost per trip of \$71.74 by the applicable daily trip-mile rate. An example of this calculation can be found in Schedule 5.3 at the end of the Chapter and applied to Table 5-4, on the following page. These tables list trip-mile rates and costs for various residential, resort, industrial and commercial developments. A fee system based on a lengthy schedule of trip-mile rates theoretically provides greater accuracy and therefore greater equity in determining specific uses demand on the City's circulation system, but at the same time may increase the City's administrative costs to administer the fee. A more extensive listing of traffic generators by land use is available in Trip Generation as published by the Institute of Transportation Engineers, New York, NY and SANDAG.

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Table 5-4
Detail of Circulation System Financial Commitment-based
Impact Fees for Specific Business Uses

LAND USE	Adjusted Trip-ends	Average Distance	Trip-end to Trip	Additional Trip-miles	Cost per Trip-mile	Cost per 1,000 Square Feet or Dwelling Unit
RESIDENTIAL LAND USES (per Unit):						
Detached Dwelling	8.76	7.9	0.5	34.60	\$71.74	\$2,482.20 /Unit
Apartment	6.15	7.9	0.5	24.3	\$71.74	\$1,743.28 /Unit
Condominium/Townhome	5.36	7.9	0.5	21.2	\$71.74	\$1,520.89 /Unit
Mobile Home Dwelling	4.57	7.9	0.5	18.1	\$71.74	\$1,298.49 /Unit
RESORT/TOURIST (per Unit or Entry Door):						
Hotel	6.29	7.6	0.5	23.9	\$71.74	\$1,714.59 /Room
All Suites Hotel	3.77	7.6	0.5	14.3	\$71.74	\$1,025.88 /Room
Motel	4.34	7.6	0.5	16.5	\$71.74	\$1,183.71 /Room
INDUSTRIAL (per 1,000 SF):						
General Light Industrial	6.17	9.0	0.5	27.8	\$71.74	\$1,994.37 /KSF
Heavy Industrial	5.97	9.0	0.5	26.9	\$71.74	\$1,929.81 /KSF
Manufacturing	2.73	9.0	0.5	12.3	\$71.74	\$882.40 /KSF
Warehousing	4.39	9.0	0.5	19.8	\$71.74	\$1,420.45 /KSF
COMMERCIAL (per 1,000 SF):						
Office Park	7.42	8.8	0.5	32.6	\$71.74	\$2,338.72 /KSF
Research Park	5.01	8.8	0.5	22.0	\$71.74	\$1,578.28 /KSF
Business Park	9.34	8.8	0.5	41.1	\$71.74	\$2,948.51 /KSF
Bldg. Materials/Lumber Store	29.35	4.3	0.5	63.1	\$71.74	\$4,526.79 /KSF
Garden Center	23.45	4.3	0.5	50.4	\$71.74	\$3,615.70 /KSF
Movie Theater	2.47	4.3	0.5	5.3	\$71.74	\$380.22 /KSF
Church	5.92	4.3	0.5	12.7	\$71.74	\$911.10 /KSF
Medical-Dental Office	22.21	8.8	0.5	97.7	\$71.74	\$7,009.00 /KSF
General Office Building	7.16	8.8	0.5	31.5	\$71.74	\$2,259.81 /KSF
Shopping Center	30.20	4.3	0.5	64.9	\$71.74	\$4,655.93 /KSF
Hospital	11.42	4.3	0.5	24.6	\$71.74	\$1,764.80 /KSF
Discount Center	62.93	4.3	0.5	135.3	\$71.74	\$9,706.42 /KSF
High-Turnover Restaurant	8.90	4.3	0.5	19.1	\$71.74	\$1,370.23 /KSF
Convenience Market	43.57	4.3	0.5	93.7	\$71.74	\$6,722.04 /KSF
Walk-in Bank	13.97	4.3	0.5	30.0	\$71.74	\$2,152.20 /KSF
Other: (not available "per KSF")						
Cemetery (per acre)	3.07	4.3	0.5	6.6	\$71.74	\$473.48 /Acre
Service Station/Market (avg)	107.69	4.3	0.5	231.5	\$71.74	\$16,607.81 /FP/Day (4)
Service Station and Car Wash	99.35	4.3	0.5	213.6	\$71.74	\$15,323.66 /FP/Day (4)

NOTES:

1. ADT = Average Daily Trips

2. KSF = Thousand Square Feet of Gross Floor Area

3. Adjusted for Pass-by and Diverted Trips.

4. FP/Day = per "Fueling Position" per day.

RESULTING DEVELOPMENT IMPACT FEES

The contribution of the existing community as evidenced in Table 5-3, Community Financial Commitment-based Proportionality Test Fees is far greater than what is to asked of future development (Table 5-2) the General Plan Build-out Needs-based Development Impact Fee schedule is adequate and reasonable for adoption. It would be more than adequate for the usual and normal application to the seven broad land-uses. as the fairest schedule of impact fees. However, it is further recommended that there should also be the option for the engineering staff to apply the *per trip-mile fee* from Schedule 5.2 multiplied by the specific use Table 5-4 or the more extensive listing of traffic generators by land use (available in Trip Generation as published by the Institute of Transportation Engineers, New York, N.Y.) multiplied by the SANDAG land-use trip distances.

RECAP OF RECOMMENDED (LOCAL) CIRCULATION SYSTEM, VEHICLES AND EQUIPMENT DEVELOPMENT IMPACT FEES.

- Adopt Schedule 5.2. for the seven basic new land-uses including the *per Daily Trip-mile* rate with standard ITE trip-end rates for the application to unusual or highly specific development proposals.
 - Adopt Table 5-4 for application on specific business uses as necessary by engineering staff, as well as the table at the bottom of Schedule 5.2 to allow City staff to calculate specific Circulation System DIFs, based upon ITE data not necessarily highlighted on Table 5-4.
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[This space left vacant to place the Chapter Endnotes on a single page].

CHAPTER ENDNOTES

2. For complete definitions and standards, see the City of Huntington Beach General Plan Circulation Element as part of the Infrastructure and Community Services Chapter page III-CE-1. Further description of the components of the Element are on page III-CE-2 and III-CE-3.

3. The normal route between a daily work-site and the residence of the motorist.

4. As an example, a motorist travels the same route from work to home daily. On some number of occasions, the motorist stops at a market along the route to pick up some groceries. These stops at the market would be considered pass-by trips in that they do not generate an additional trip along that route.

5. *Trip Generation*, Institute of Traffic Engineers, 525 School Street, SW., Ste. 410, Washington D.C. 20024-2729, Chapter III, Definition of Terms, Pass-by Trips, page I-7.

6. An example of a diverted trip would be a single trip where, along the way from work, a motorist's evening drive home deviates from the normal route taken home to stop at perhaps a preferred grocery store, drop mail off at a post office and pick up a child from piano lesson before continuing home. Each of these three stops would be considered diverted trips.

7. *Trip Generation*, Institute of Traffic Engineers, 525 School Street, SW., Ste. 410, Washington D.C. 20024-2729, Chapter III, Definitions of Terms, Diverted Linked Trips, I-5.

8. *Traffic Generators*, San Diego Association of Governments, 401 B Street, Suite 800, San Diego, CA 92101, Brief Guide to Traffic Generation Rates compiled in conjunction with the U.S. Department of Housing and Urban Development, U.S. Department of Transportation, the California Department of Transportation and the U.S. Environmental Protection Agency. July 1995.

Schedule 5.1

City of Huntington Beach
2011-12 Development Impact Fee Calculation and Nexus Report
Identification of Projects and Cost Allocation
Circulation (Streets, Signals and Bridges) System

Line #	Description	Estimated Cost	Construction Needs Supported by Other Resources		Construction Needs That Increase Infrastructure Capacity	
			Percent Need	Appportioned Dollar Cost	Percent Need	Appportioned Dollar Cost
ST-001	Beach Boulevard and Edinger Avenue	\$600,000	25.00%	\$150,000	75.00%	\$450,000
ST-002	Beach Boulevard and Heil Avenue	\$1,000,000	5.00%	\$50,000	95.00%	\$950,000
ST-003	Beach Boulevard and Warner Avenue	\$400,000	5.00%	\$20,000	95.00%	\$380,000
ST-004	Beach Boulevard and Slater Avenue	\$500,000	5.00%	\$25,000	95.00%	\$475,000
ST-005	Beach Boulevard and Talbert Avenue	\$1,000,000	38.00%	\$380,000	62.00%	\$620,000
ST-006	Beach Boulevard and Garfield Avenue	\$1,000,000	5.00%	\$50,000	95.00%	\$950,000
ST-007	Beach Boulevard and Yorktown Avenue	\$500,000	5.00%	\$25,000	95.00%	\$475,000
ST-008	Pacific Coast Highway and Warner Avenue	\$2,000,000	5.00%	\$100,000	95.00%	\$1,900,000
ST-009	Pacific Coast Highway and Goldenwest Street	\$750,000	12.00%	\$90,000	88.00%	\$660,000
ST-010	Pacific Coast Highway and Brookhurst Street	\$750,000	5.00%	\$37,500	95.00%	\$712,500
ST-011	Goldenwest Street and Bolsa Avenue	\$500,000	5.00%	\$25,000	95.00%	\$475,000
ST-012	Goldenwest Street and Slater Avenue	\$500,000	5.00%	\$25,000	95.00%	\$475,000
ST-013	Newland Street and Talbert Avenue	\$300,000	5.00%	\$15,000	95.00%	\$285,000
ST-014	Newland Street and Warner Avenue	\$300,000	5.00%	\$15,000	95.00%	\$285,000
ST-015	Newland Street and Yorktown Avenue	\$500,000	5.00%	\$25,000	95.00%	\$475,000
ST-016	Gothard Street and Slater Avenue	\$264,000	5.00%	\$13,200	95.00%	\$250,800
ST-017	Gothard Street and Talbert Avenue	\$8,800	5.00%	\$440	95.00%	\$8,360
ST-018	Brookhurst Street and Adams Avenue	\$10,000,000	5.00%	\$500,000	95.00%	\$9,500,000
ST-020	Miscellaneous Traffic Signals/Intersection Improvements	\$5,000,000	5.00%	\$250,000	95.00%	\$4,750,000
ST-021	Public Works Maintenance Building	\$2,820,000	5.00%	\$141,000	95.00%	\$2,679,000
ST-022	Public Works Maintenance Vehicles	\$65,000	5.00%	\$3,250	95.00%	\$61,750
SUB-TOTAL ESTIMATED NEW PROJECT COSTS		\$28,537,800	6.76%	\$1,929,390	93.24%	\$26,608,410
LESS:						
Local Circulation Impact Fee Fund Balance		(\$200,000)	100.00%	(\$200,000)	0.00%	\$0
Support from Other Agencies		(\$260,020)	100.00%	(\$260,020)	0.00%	\$0
SUB-TOTAL ADJUSTMENTS		(\$460,020)	100.00%	(\$460,020)	0.00%	\$0
Total - Local Circulation-related Capital Project Needs		\$28,077,780	5.23%	\$1,469,370	94.77%	\$26,608,410
					Forward to Schedule 5.2	

NOTES:

1. There are no notes.

Schedule 5.2

City of Huntington Beach
2011-12 Development Impact Fee Calculation and Nexus Report
General Plan Build-out Needs-based Development Impact Costs (Fees)
Circulation (Streets, Signals and Bridges) System

Proposed Land Use	Undeveloped		Daily Trip-end Generation Rate	Additional Daily Trip-miles	Percentage of Additional Trip-miles	Allocation of Expansion Costs	Cost Distribution Per Acre	Average Units or Square Feet/Acre	Development Impact Fee per Unit or Square Foot
	Acres	Units							
Detached Dwelling Units	295	1,749	34.60	60,515	16.31%	\$4,341,072	\$14,715	5.93	\$2,482 per Unit
Attached Dwelling Units	111	5,307	23.10	122,592	33.05%	\$8,794,196	\$79,084	47.72	\$1,657 per Unit
Mobile Home Dwelling U	1	9	18.10	163	0.04%	\$11,693	\$11,693	9.00	\$1,299 per Unit
Hotel/Motel Lodging Unit	19	818	15.40	12,597	3.40%	\$903,652	\$48,583	43.98	\$1,105 per Unit
Hotel/Motel Lodging Unit	9	535	26.70	14,285	3.85%	\$1,024,741	\$110,187	57.53	\$1,915 per Unit
Commercial/Office Uses	40	2,417,000	32.50	78,553	21.18%	\$5,635,037	\$141,584	60,729	\$2,331 per S.F.
Industrial/Manufacturing	187	3,638,000	22.60	82,219	22.17%	\$5,898,019	\$31,540	19,455	\$1,621 per S.F.
TOTAL	662			370,924	100.0%	\$26,608,410	in Capital project Needs to Finish Circulation System		

ALTERNATIVE FEE METHODOLOGY				\$71.74 per Daily Trip-mile	
				\$26,608,410	

Trip-ends Adjustment Calculation Land Use	Daily Total Trips	Percent of Diverted Trips	Diverted Trip % Adjustment	Diverted Trip Percent	Percent of Pass-by Trips (1)	Combined Diverted and Pass-by	Remaining Trip % as Adjustment %	Adjusted Trip Rate, Adjustment % X Total Trips	Average Trip Length	Trip-ends X 0.5 X Length
Detached Dwellings	9.57	11.0	0.50	5.5	3.0	8.5	91.50%	8.76	7.9	34.6
Attached Dwellings	6.39	11.0	0.50	5.5	3.0	8.5	91.50%	5.85	7.9	23.1
Mobile Home Units	4.99	11.0	0.50	5.5	3.0	8.5	91.50%	4.57	7.9	18.1
Hotel/Motel Lodging	5.27	38.0	0.50	19.0	4.0	23.0	77.00%	4.06	7.6	15.4
Resort Lodging	9.13	38.0	0.50	19.0	4.0	23.0	77.00%	7.03	7.6	26.7
Commercial Uses (KSF)	23.25	40.0	0.50	20.0	15.0	35.0	65.00%	15.11	4.3	32.5
Industrial Uses (KSF)	5.68	19.0	0.50	9.5	2.0	11.5	88.50%	5.03	9.0	22.6

(1) Pass-by trips adjusted at 100%.

Schedule 5.3

**City of Huntington Beach
2011-12 Development Impact Fee Calculation and Nexus Report
Community Financial Commitment or Equity-based Proportionality Test Fees
Circulation (Streets, Signals and Bridges) System**

Proposed Land Use	Developed		Daily Trip-end Generation Rate	Existing Daily Trip-miles	Percentage of Existing Trip-miles	Allocation of Infrastructure "Equity"	Distribution of "Equity" per Acre	Average Units or Square Feet/Acre	Current Financial Commitment per Unit or Square Foot
	Acres	Units							
Detached Dwelling Units	6,436	38,616	34.60	1,336,114	42.62%	\$227,375,119	\$35,329	6.00	\$5,888 per Unit
Attached Dwelling Units	1,805	36,108	23.10	834,095	26.60%	\$141,943,317	\$78,622	20.00	\$3,931 per Unit
Mobile Home Dwelling U	205	2,865	18.10	51,857	1.65%	\$8,824,837	\$43,132	14.00	\$3,080 per Unit
Hotel/Motel Lodging Unit	33	1,070	15.40	16,478	0.53%	\$2,804,166	\$83,957	32.04	\$2,621 per Unit
Resort Lodging Units	20	809	26.70	21,600	0.69%	\$3,675,809	\$181,971	40.05	\$4,544 per Unit
Commercial/Office Uses	842	12,836,000	32.50	417,170	13.31%	\$70,992,504	\$84,324	15,246	\$5,531 per S.F.
Industrial/Manufacturing	930	20,261,000	22.60	457,899	14.61%	\$77,923,618	\$83,762	21,779	\$3,846 per S.F.
TOTAL	10,272	--	--	3,135,213	100.00%	\$533,539,375	In Total Equity in Current Circulation System Assets		
							\$431,589,375	In General Plan Circulation Major Streets	
							\$0	In General Plan Major Streets R.O.W.	
							\$5,000,000	In General Plan Circulation Bridges	
							\$62,500,000	In General Plan Circulation Intersections	
							\$34,250,000	In General Plan Circulation Signals	
							\$200,000	In Circulation Impact Fee Fund Balance	

ALTERNATIVE FEE METHODOLOGY	3,135,213	\$533,539,375	\$170.18 per Daily Trip-mile
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Chapter 6

Storm Drainage Collection System

The Existing System. The City's existing storm drainage network is composed of street gutter facilities, inlets and a pipeline network of storm drain lines, ranging from 24" to 96" pipe¹. This combination of improvements conveys storm water runoff to various larger lines and Flood Control District storm channels located throughout the City leading directly into the Santa Ana River to the north. There are also numerous small outlets which lead directly into the Pacific Ocean. The system, with minor exceptions, functions well to remove storm water runoff and protect developed parcels and other City infrastructure. However, as the City continues to develop currently vacant or underutilized parcels, the existing City-owned storm drainage lines will approach maximum capacity reducing the ability of the existing drainage lines to sufficiently and adequately collect and remove additional runoff.

The City currently has more than 532,000 linear feet of storm drain pipe sized from 24" to 96" creating some 5.3 million cubic feet of storm drainage capacity. The system consists of roughly 1,000 inlet boxes and 2,000 junction/combination boxes². The system also has 9,000 linear feet of reinforced concrete box providing additional large flow capacity. The estimated replacement value of the existing (non-local) storm drainage collection line's system assets are approximately \$158,631,313. There are also fifteen storm drainage pump stations with a replacement value of \$45,000,000. The City has in place an existing Storm Drainage Collection System Development Impact Fee but that fund currently has a zero fund balance.

Property-based Benefit Reasoning. Initially, separate zones was considered for each drainage basin within the City because each area has specific capital needs for storm-water collection. Storm-water runoff from along the northerly area of Beach Boulevard may not directly impact the homeowner near Huntington Harbour; similarly, a 24" collection line near Adams Avenue and the Santa Ana River required to handle runoff from the homes in that area may provide little direct benefit to a business in the downtown area of the City. In each case, there can be some distinct property-related areas of benefit for each drainage basin.

User-based Benefit Reasoning, the Human Element. The owners and users of all developed and undeveloped parcels benefit, directly and indirectly, from all Citywide existing and future storm drainage improvements. As the various systems within the greater community of the City of Huntington Beach develop, the benefits are generally recognized as:

1. Proposed development projects can only be approved by the City when precautions, generally in the form of infrastructure improvements, have been made that assure that developed and undeveloped downstream parcels will not be adversely affected (i.e., inundated, flooded, cut off from access in and out), by storm water from the project being proposed. The avoidance of downstream or down-zone damage from the development of an upstream parcel may not be a major concern to a developer, but the City must concern itself with such issues when approving private development proposals.
2. The private development being assessed a development impact fee will receive the same storm-water protection from other development projects upstream or up-zone from their own developments.
3. Storm water must be adequately controlled and removed to large scale flood control channels or creeks to assure access by public safety vehicles to all parts of the City, regardless of which zone a call for service is in. Fire suppression and other paramedic calls, as well as law enforcement and public works responses cannot wait during heavy rainstorms. To the contrary, the number of emergency calls-for-service probably increases during such storm events and the City's public safety and maintenance units must be able to respond, *to all zones*.
4. The City of Huntington Beach's citizens and business owners/employees must also be able to travel safely in heavy rain through one storm drainage zone to another. An adequate and sufficient storm drainage system will provide such protection.

For the above stated four reasons, RCS recommends the adoption of a single storm drainage development impact fee to be applied Citywide. Storm runoff does recognize a boundary between downtown and the other areas. It will leave one part of the City and pass through another to reach its southwest ultimate location, the Pacific Ocean.

Demand Upon Infrastructure Created by the Development of Underdeveloped or Undeveloped Parcels. The construction of flood control and storm drainage facilities is essential to the preservation of private property, public streets, curbs and other facilities. The county or a regional level of government is generally responsible for *flood control*³, and cities are generally responsible for *storm drainage*. The building of new homes and businesses on presently undeveloped land will increase the amount of *runoff* and thus accelerate the need for additional storm drainage facilities to handle increased *runoff* from these developing areas. As vacant and underdeveloped parcels are developed and pervious surfaces are replaced with impervious rooftop, parking lots, driveways, pools, and sidewalks, greater amounts of the rainfall *runs off* of the developed parcel. The amount of the runoff varies with differing types of development (i.e., land-

use) and the varying amounts are referred to as the *runoff coefficients*. Approximately 0.775 (or 77.5%) of rainfall that falls on a parcel developed with detached dwelling residences, exits that developed parcel. The rate for attached dwelling residences runoff is little much higher at 0.810 (81.0%). Most business uses such as a hotel/motel, resort, retail/office and industrial have a runoff coefficient of between 0.875 and 87.5% with industrial acres to 0.950 or 95%. Clearly, water runoff increases when a vacant property is developed with impervious roof-top, sidewalks and driveways/parking lots. The cumulative effects of additional runoff must be managed with the appropriate capital facilities to move the water and, in some cases such as during heavy downpours, detain the storm water prior to releasing it slowly into the downstream storm drain. The costs of the new storm drainage will be distributed by the coefficients of drainage, i.e., the percentage of property that will end up with impervious coverage such as asphalt or cement-based concrete drives or parking lots, rooftop, pools and any other hard surface that do not allow any absorption into the soil.

The Purpose of the Fee. The purpose of the development impact fee is to collect fair share contributions from the various land-uses to finance the proportional acquisition of additional storm drainage system improvements needed to collect that additional storm water runoff from the that same proposed development. The cost of extending the same level of storm drainage protection to the newly developing homes and businesses as is provided to the existing community, (that has largely paid for the existing system), can be calculated, an impact fee imposed and collected. The impact fee revenues can then be used to expand the storm drainage facilities necessary to extend the existing level-of-services. The City's Storm Drainage Plan identifies a total of \$207,494,225 in storm drainage collection system capacity-increasing projects required to fully complete the City's General Plan build-out network of pipes, small channels and detention ponds. This cost cannot be mitigated by Storm Drainage System Development Impact Fee fund balance.

The Use of the Fee. The construction of storm drainage collection facilities in the City of Huntington Beach is essential to the preservation of private property, and the millions of dollars invested in public streets, curbs, parks and other public facilities. The building of new residences and businesses on presently undeveloped (or underdeveloped) land will require the installation of additional storm drainage collection lines and inlets to handle the ever increasing runoff from this same new development. This Chapter reviews the costs of expanding the storm drainage collection system facilities needed to accommodate the drainage generated by future development.

The revenues raised from a properly calculated and supported Storm Drainage Collection System Development Impact Fee would be limited to capital(ized) costs related to that growth. The fees would be used to construct additional or parallel storm drainage lines (to increase the drainage capacity of the system). Conversely, the Storm Drainage Impact Fee receipts would not be used to repair, replace or rehabilitate any existing storm drainage lines with adequate capacity.

The Relationship Between the Need for The Public Facilities and the Type of Development Project. There is a reasonable relationship between the need for the public facilities and the types of developments on which the fees are imposed. New residents and businesses utilize and impact the community's existing storm drainage system which requires various storm drainage improvements. Upon the identification of the costs of storm drainage facilities, generated by future development, costs must be further distributed for each of the land uses (i.e., commercial and residential uses) based on their estimated storm runoff. Detached and attached residential dwelling development provides the most landscape percentage per parcel and thus the greatest percolation and conversely the least runoff of storm-water. As such, these land uses should not bear the same cost as Commercial/Office or Industrial use developments, both of which generally will have lesser landscape area (or stated another way, have a higher percentage of impervious area) and therefore generate a higher amount of storm water runoff.

Schedule 6.1 contains the list of storm water projects identified ⁴ as necessary to control the storm water runoff resulting from the creation of an impervious surface by future development and also continue to protect the existing developed community. The list consists of hundreds of small projects in six storm drainage zones estimated to cost \$207,494,050. For this Report, costs were distributed between land uses on established runoff coefficients. Table 6-1 is the listing of these runoff coefficients employed in this Report.⁵

Table 6-1
Storm Drainage Runoff Coefficients
(@ a 2"/hour rainfall)

Proposed Land Use	Coefficient of Runoff
Detached Dwelling Units	0.775
Attached Dwelling Units	0.810
Mobile Home Dwelling Units	0.800
Hotel/Motel Lodging Units	0.900
Resort Lodging Units	0.875
Commercial/Office Uses	0.900
Industrial/Manufacturing Uses	0.950

Since this development impact fee category is an acre-based calculation, (as opposed to the number of units built on an acre), it is determined by applying a drainage factor to the type of land use zone. Differences result between what the City's development rules allows (for the General Plan Build-out Need-based Impact Fee) and what has actually been approved in the past (for the Community Financial Commitment or Proportionality Test) can significantly skew the resulting figures. As, an example, the City anticipates future approval of 5,307 attached dwelling units at roughly 48 units per acre density. However, the 36,108 existing attached dwelling units generate an average density of closer to 20 to 25 units per acre. Assuming a storm drainage impact fee of \$5,000 per acre, each existing unit would have an equity share of about \$200, ($\$5,000 \text{ per acre} \div 25 \text{ units per acre} = \$200/\text{unit}$) while the future units would be assessed about \$100, ($\$5,000 \text{ per acre} \div 48 \text{ units per acre} = \$104/\text{unit}$).

Schedule 6.1 identifies the six storm drainage zones and the projects necessary to provide flood protection and insure the ability to traverse the City during a heavy storm. The project costs total \$207,494,050 without any mitigation by Development Impact Fee fund balance.

Table 6-2, following, indicates that the 8,303.18 acres of acre-runoff factor created by the currently developed community represents about 92.7% of the total acre-runoff factor that can be expected at General Plan build-out.

Table 6-2
Comparison of Storm Drainage System Attributes

Infrastructure Factor	Existing Community	Future Community	Total at Build out
Total Runoff Acre Factor	8,303.18	557.85	8,861.03
Percentage of Total	92.7%	6.3%	100.0%
System Cost Contribution	\$203,631,313	\$207,494,050	\$411,175,363
Percentage of Total	49.5%	50.5%	100.0%

At the same time the currently developed community's investment in the existing storm drainage system, at \$203,631,313 is a lesser proportion at about 49.5% of the cost of the total system at projected General Plan build-out. Conversely that means that the current vacant and underdeveloped parcels will generate the remaining 6.3% of the demand expected at General Plan build-out but would, if allocated all of the remaining storm drainage projects would need to

finance the remaining 50.5% of the total General Plan cost of the system at a guaranteed preventive (and assuredly illegal) development impact fee of about \$370,000 per acre. This clearly indicates that the City's storm drainage collection system has not been constructed proportionally and ratably with the amount of storm runoff generated by the development in the City to date. Stated slightly differently, with 92.7% of the City's acreage developed, the storm drainage system should also be close to 92.7% developed. However, such is not the case. Such a statement can be said of virtually all of Southern California's cities. The most likely reason is that the storm drainage system, without an exclusive revenue source, must compete with other far more needed (or desired) capital projects within the City's limited General Fund. As an example, a \$1.0 million dollar signal modification that eliminates significant traffic delays daily, would more likely be funded as compared to a \$1.0 million storm drainage project that benefits the community during a few hours of the few rainiest days of the year.

A fair cost allocation would be to recognize that future additional drainage represents approximately 6.3% of the total at General Plan build-out thus should be allocated roughly 6.3% of the total cost of the remaining projects. Table 6-3, following, indicates the impact fee amounts that would need to be imposed to pay for the cost of completing the portion of the system's collection pipes and channels identified by staff to be financed with impact fees. It would be reasonable to expect future development to finance its proportional share of the identified storm drainage needs without violating the proportionality rule as has been done with other development impact fees in this report.

Table 6-3
General Plan Build-out Needs Storm Drainage Facilities Impact Fees

Land Use	Allocation of Project Costs	Cost Distribution per Acre	Total Cost Per Unit or SF
Detached Dwelling Units	\$5,354,096	\$18,149	\$3,061/Unit
Attached Dwelling Units	\$2,109,274	\$18,968	\$397/Unit
Mobile Home Dwelling Units	\$18,735	\$18,735	\$2,082/Unit
Hotel/Motel Lodging Units	\$392,020	\$18,149	\$479/Unit
Resort Lodging Units	\$190,624	\$20,497	\$356/Unit
Commercial/Office Uses	\$838,839	\$21,076	\$0.347/S.F.
Industrial/Manufacturing Uses	\$4,160,238	\$22,247	\$1.144/S.F.

The Relationship Between the Use of the Fee and the Type of Development Paying the Fee. There is a reasonable relationship between the fees' use and the types of projects on which the fees are imposed. The Storm Drainage Collection System Development Impact Fees that are imposed and collected will be used to mitigate the storm water runoff generated by the various types of development. If the development is a commercial/office or industrial/manufacturing property generating a significant amount of runoff, the fee collected will be proportionally higher and will be enough to construct the required additions to the storm drainage system downstream from this development.

From time to time the City may require an applicant of a private project to construct an improvement (or portion thereof) that is on the list of required improvements at the end of this Chapter. This is often done to expedite the project for the applicant/developer. The developer should receive a credit for any money expended on this required improvement against their calculated storm drainage collection system impact fee. An ordinance clearly addressing the issue of credits should be prepared and added to the City of Huntington Beach Municipal Code should one not fully exist at this time.

The Relationship Between the Amount of the Fee and the Cost of the Portion of the Facility Attributed to the Development Project. Each new development, or demand increasing redevelopment, would finance a proportional amount of the expansion of the City's storm drainage collection system. Similar to the previous findings, the relationship is based upon the projected amount of storm water to be collected, contained and safely transported to flood control channels or rivers as a proportion of the entire amount of storm water to be so conveyed. The downstream collection lines (lines further down from the proposed project but prior the outfall into a river or flood control channel) need to be sized to handle all of the storm-water collected upstream. Storm-water that is collected in one location accumulates with feeder lines along the way and thus the downstream system must be built increasingly larger (at increasing higher material and construction costs) the further it gets away from its source.

Table 6-4 distributes the total existing community financial commitment (or equity value) of the existing system, at \$203,631,313, consisting of the actual storm drainage pipe, channels and detention basins. Please note that the resulting development impact cost, by land use, is in terms of *units* such as residential dwellings or commercial/office and industrial/manufacturing square feet of building pad (including multiple floors).

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Table 6-4
Distribution of Current Equity-based Commitment in
Storm Drainage System Collection (or Proportionality Verification)

Land Use	Allocation of Equity Costs	System Equity per Acre	Total Cost Per Unit or SF
Detached Dwelling Units	\$122,325,402	\$19,006	\$3,168/Unit
Attached Dwelling Units	\$35,863,547	\$19,865	\$993/Unit
Mobile Home Dwelling Units	\$4,013,573	\$19,617	\$1,401/Unit
Hotel/Motel Lodging Units	\$737,145	\$22,070	\$689/Unit
Resort Lodging Units	\$433,735	\$21,472	\$536/Unit
Commercial/Office Uses	\$18,583,394	\$22,073	\$1.448/S.F.
Industrial/Manufacturing Uses	\$21,674,517	\$23,298	\$1.070/S.F.

Of note is the fact that Table 6-4 summarizing Schedule 6.3, the investment "investment" (albeit General Plan proportionally deficient) of the current community is slightly greater, (at about 8%) of the previously exhibited General Plan Build-out Needs-based fees identified in Table 6-3 summarizing Schedule 6.2. Based upon these proportional facts, the adoption of the General Plan Build-out Needs-based fees identified in Schedule 6.2 and summarized in Table 6-3, would be reasonable and equitable.

RESULTING DEVELOPMENT IMPACT FEES

The adoption of Schedule 6.2 at the end of this chapter, as summarized in Table 6-3 and based upon as the Storm Drainage Collection System Development Impact Fees would generate approximately \$13.0 million in capital revenues with which to construct a portion of the remaining \$207.4 million in the storm drainage infrastructure required to complete the system. The City should adopt both the *per unit* fees, i.e., the dwelling unit fees and the square foot business construction square foot fees and the *per acre* figures under the column heading titled *Cost Distribution per Acre* on Schedule 6.2. The former is for application to projects that include a building creating new demand for all infrastructure and the latter for projects merely creating additional runoff (e.g. a parking structure).

RECAP OF RECOMMENDED STORM DRAINAGE COLLECTION SYSTEM DEVELOPMENT IMPACT FEES.

- Adopt Schedule 6.2. for the seven basic new land-uses, and;
 - Adopt the Schedule 6.2, "Cost per Acre" column for construction of parking lots and other private construction causing additional runoff but few other impacts.
-
-

CHAPTER ENDNOTES

1. Storm drainage pipe below the size of 21" is almost exclusively used for "local" or tract storm water collection and is thus not included in the equity calculation. In Huntington Beach this amounts to an additional 80,100 linear foot of reinforced concrete pipe that is 18" to 21" and considered to be "local" in nature and thus not included in this calculation.
2. Roughly assumes inlet boxes constructed at 425 linear foot intervals, combination boxes at 750 foot intervals and junction boxes at 300 linear foot intervals.
3. Projects of major importance generally involving the control of large quantities of flood water (over 500 C.F.S.) through numerous cities and unincorporated areas.
4. The projects individual scope and cost estimates have been provided by the City's contractual engineering firm *Kennedy/Jenks Consultants*, Engineers and Scientists, Irvine, CA 92612-1311.
5. San Bernardino County Hydrology Manual, Williamson and Schmidt, Civil Engineers, Irvine, California, August, 1986, Runoff Index Number 56.

Schedule 6.1

City of Huntington Beach
2011-12 Development Impact Fee Calculation and Nexus Report
Identification of Projects and Cost Allocation
Storm Drainage Collection System

Line #	Description	Estimated Cost	Percent Need	Apportioned Dollar Cost	Percent Need	Apportioned Dollar Cost
SD-001	Santa Ana River & Talbert Channel Region (SD Region #1)	\$23,728,000	93.70%	\$22,234,085	6.30%	\$1,493,915
SD-002	Coastal and Bolsa Chica Wetlands Region (SD Region #2)	\$21,527,000	93.70%	\$20,171,660	6.30%	\$1,355,340
SD-003	Slater Channel Region (SD Region #3)	\$34,236,000	93.70%	\$32,080,501	6.30%	\$2,155,499
SD-004	Wintersburg Channel Region (SD Region #4)	\$28,749,000	93.70%	\$26,938,963	6.30%	\$1,810,037
SD-005	Bolsa Chica Channel & Harbour Region (SD Region #5)	\$98,549,000	93.70%	\$92,344,355	6.30%	\$6,204,645
SD-006	Public Works Maintenance Building	\$705,050	93.70%	\$660,660	6.30%	\$44,390
	SUB-TOTAL ESTIMATED NEW PROJECT COSTS	\$207,494,050	93.70%	\$194,430,225	6.30%	\$13,063,825
	LESS: Existing Storm Drainage Impact Fee Fund Balance	\$0	0.00%	\$0	0.00%	\$0
	Other Revenue Sources	\$0	0.00%	\$0	0.00%	\$0
	SUB-TOTAL ADJUSTMENTS	\$0	0.00%	\$0	0.00%	\$0
	Total - Storm Drainage Collection System Capital Project Needs	\$207,494,050	93.70%	\$194,430,225	6.30%	\$13,063,825
						Forward to Schedule 6.2

NOTES:

There are no notes.

Schedule 6.2

City of Huntington Beach
2011-12 Development Impact Fee Calculation and Nexus Report
General Plan Build-out Needs-based Development Impact Costs (Fees)
Storm Drainage Collection System

Proposed Land Use	Undeveloped		Coefficient of Drainage Factor	Storm Drainage Run-off	Percentage of Additional Service Calls	Allocation of Expansion Costs	Cost Distribution Per Acre	Average Units or Square Feet/Acre	Development Impact Fee per Unit or Square Foot
	Acres	Units							
Detached Dwelling Units (1)	295.00	1,749	0.775	228.63	40.98%	\$5,354,096	\$18,149	5.93	\$3,061 per Unit
Attached Dwelling Units	111.20	5,307	0.810	90.07	16.15%	\$2,109,274	\$18,968	47.72	\$397 per Unit
Mobile Home Dwelling Units	1.00	9	0.800	0.80	0.14%	\$18,735	\$18,735	9.00	\$2,082 per Unit
Hotel/Motel Lodging Units	18.60	818	0.900	16.74	3.00%	\$392,020	\$21,076	43.98	\$479 per Unit
Resort Lodging Units	9.30	535	0.875	8.14	1.46%	\$190,624	\$20,497	57.53	\$356 per Unit
Commercial/Office Uses	39.80	2,417,000	0.900	35.82	6.42%	\$838,839	\$21,076	60,729	\$0.347 per S.F.
Industrial/Manufacturing Use	187.00	3,638,000	0.950	177.65	31.85%	\$4,160,238	\$22,247	19,455	\$1.144 per S.F.
TOTAL	661.90	--	--	557.85	100.00%	\$13,063,825	in Total Storm Drainage Capital Needs to Finish System		

Schedule 6.3

City of Huntington Beach
 2011-12 Development Impact Fee Calculation and Nexus Report
 Community Financial Commitment or Equity-based Proportionality Test Fees
 Storm Drainage Collection System

Proposed Land Use	Developed		Coefficient of Drainage Factor	Storm Drainage Run-off	Percentage of Existing Service Calls	Allocation of Infrastructure "Equity"	Distribution of "Equity" per Acre	Average Units or Square Feet/Acre	Current Financial Commitment per Unit or Square Foot
	Acres	Units							
Detached Dwelling Units (1)	6,436.00	38,616	0.775	4,987.90	60.07%	\$122,325,402	\$19,006	6.00	\$3,168 per Unit
Attached Dwelling Units	1,805.40	36,108	0.810	1,462.37	17.61%	\$35,863,547	\$19,865	20.00	\$993 per Unit
Mobile Home Dwelling Units	204.60	2,865	0.800	163.68	1.97%	\$4,013,573	\$19,617	14.00	\$1,401 per Unit
Hotel/Motel Lodging Units	33.40	1,070	0.900	30.06	0.36%	\$737,145	\$22,070	32.04	\$689 per Unit
Resort Lodging Units	20.20	809	0.875	17.68	0.21%	\$433,735	\$21,472	40.05	\$536 per Unit
Commercial/Office Uses	841.90	12,836,000	0.900	757.71	9.13%	\$18,583,394	\$22,073	15,246	\$1,448 per S.F.
Industrial/Manufacturing Use	930.30	20,261,000	0.950	883.78	10.64%	\$21,674,517	\$23,298	21,779	\$1,070 per S.F.
TOTAL	10,271.80	--	--	8,303.18	100.00%	\$208,631,313	In Total Equity in Current Law Enforcement Assets		
							In Equity in Storm Drainage Collection System Facilities.		
							In Equity in Storm Drainage Basins.		
							\$0 In Existing Storm Drainage Impact Fee Fund Balance.		

Chapter 7

Public Library Facilities and Collection

The Existing System. The City's library system consists of five library facilities providing a total of 127,400 square feet. When the 127,400 square feet of the library building space is divided by the City's residential population of 190,377¹, a *space standard* of 0.669 square feet/resident is established, (127,400 square feet of library space ÷ 190,377 residents). The City's library operations also house an extensive inventory of 410,594 collection items contained within the five libraries. When the 410,594 collection items are divided by the City's residential service population of 190,377², a *collection item* standard of 2.157 library collection items/resident is established, (410,594 collection item's ÷ 190,377 residents).

Demand Upon Infrastructure Created by the Development of Underdeveloped or Undeveloped Parcels. Stated simply, the 127,400 square feet of library facilities utilized by the City will accommodate only a finite number of collection items and residents/patrons. Additional residential development will increase the demand on the existing square feet of library pad and the existing collection items.

The Purpose of the Fee. The purpose of the fee is to enable the City to collect a fee that would allow the City to construct additional square feet that would ensure that the City's existing and new residents would have adequate and sufficient access to and enjoyment of the library space and collection. The calculation in Table 7-1, following, establishes the City's existing de-facto library standards.

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Table 7-1
Calculation of Existing City
Library Facilities/Collection Items Standard

	Library Facility S.F.	Collection Items
Banning Library	2,400	27,637
Central Library	115,000	314,921
Graham Library	1,200	14,920
Main Street Library	4,500	30,429
Oak View Library	4,300	22,687
Total Library Resources	127,400	410,594
Current Residential Population	190,377	190,377
Existing Standard/Resident	0.669	2.157

Table 7-2, following, indicates that the remaining residential dwelling development and typical number of residents per type of residential dwelling will generate a need for 11,443 additional square feet in order to maintain the existing library facility standard of 0.669 square feet per person.

Table 7-2
Square Feet Required to Maintain Existing Facility Standard

Residential Land-Use	Number of Units	Persons per Dwelling	Resident Yield
Detached Dwellings Units	1,749	3.053	5,095
Attached Dwellings Units	5,307	2.257	11,978
Mobile Home Dwelling Units	9	1.660	16
Additional Residential Population to be Served			17,089
Square Foot per Person Existing Standard			0.669
Square Feet Required to Maintain Existing Standard			11,433

The library system also has a collection of 410,594 collection items³ generating a collection standard of 2.157 collection items per resident within the system (410,594 collection item's ÷ 190,377 persons). Table 6-3, following, indicates the additional number of residents to be served and the number of collection items required to maintain the existing standard. The City will need to acquire roughly 36,861 collection items to maintain the existing 2.028 collection items per person in light of the additional 17,089 additional Huntington Beach residents expected at General Plan build-out.

Table 7-3
Collection items Required to Maintain Existing Standard

Residential Land-Use	Number of Units	Persons per Dwelling	Resident Yield
Detached Dwellings	1,749	2.913	5,095
Attached Dwellings	7,207	2.257	11,978
Mobile Home Dwellings	9	1.822	16
Additional City Population to be Served			17,089
Collection Items per Person Existing Standard			2.157
Collection Items Required to Maintain Existing Standard			36,861

The Use of the Fee. The fee, if adopted, would be imposed, collected, and, as needed (and desired), expended on expansion of the amount of library facility space in the two libraries and the number of collection items in the system's collection. The library staff has indicated that the proceeds of any Library development impact fee would be used to expand the Banning Library from its 2,400 square feet to approximately 12,500 square feet and expansion of the existing 4,500 square feet Main Street Branch Libraries into the remaining 4,804 square feet (for a total of 9,304 square feet) in the same building after the current tenant chooses to move elsewhere. Collection items would be expanded in proportion with the population increase, most likely into the additional proposed library space.

The Relationship Between the Need for the Fee and the Type of Development Project. The development of any acreage zoned for residential uses, increases the demand on the finite amount of library space and collection items. Thus, those residential land uses that generate higher numbers of residents (i.e., detached dwelling) will be charged a proportionally higher amount.

There is no information available demonstrating a substantive link between library use and local businesses. Library use is primarily by residents as opposed to business persons.

The Relationship Between the Use of the Fee and the Type of Development Paying the Fee. Additional square feet will be constructed with the DIFs collected from residential development and additional collection items will be added to the existing collection. If not adopted and used to expand the City's existing Library standards' the level of service will decrease by about 8.3% to 0.620 square feet and 1.98 collection items per resident at General Plan build-out. The Library DIFs, if adopted, imposed and collected, cannot be used for any other purpose than their stated use of maintaining the existing library standards.

The Relationship Between the Amount of the Fee and the Cost of the Portion of the Facility Attributed to the Development Project. The cost of acquiring land for additional library space and construction is about \$520.63 per square foot⁴, (per Schedule 6.1). The 127,400 square feet of library space, when divided by the 190,377 existing potential patrons create a standard of 0.669 square feet of library space per City resident. The standard of 0.669 square foot standard multiplied by the \$520.63 per square foot of pad cost of library construction results in a charge of \$348.30 per additional City resident. Table 7-4 following, demonstrates this.

Table 7-4
Establishment of the Library Facilities Standard
and Cost per Person to Maintain the Standard

Library Facilities Owned Square Feet	127,400
Current City Service Population	190,377
Square Feet per Resident Standard	0.669
Cost of Library Building Construction per Square Foot	\$520.63
Square Feet per Resident Standard	0.669
Cost per Additional Resident	\$348.30

The cost of acquiring additional collection items, called the accession process⁵, (per Schedule 6.1) is estimated by the Library staff to cost roughly \$25.00 per collection item. The 410,594 collection items, when divided by the City's 190,377 population create a standard of 2.028 collection items per City resident. The standard of 2.157 collection item standard multiplied by the \$25.00 per collection item results in a cost of \$53.93 per additional City resident, in order to maintain the existing standard. Table 7-5 following, demonstrates this.

Table 7-5
Establishment of the Library Collection Standard
and Cost per Person to Maintain the Standard

Library Collection Items	410,594
Current City Service Population	190,377
Collection Items per Resident Standard	2.157
Cost of Library Collection per Collection item	\$25.00
Collection Items per Resident Standard	2.157
Cost per Additional Resident	\$53.93

Resulting Impact Costs. The combined cost per new resident is \$402.23, consisting of \$348.30 for 0.669 square feet of library space and \$53.93 for 2.157 additional collection items. Table 7-6, following, indicates the amount required for pro-rata expansion of the library space per Schedule 7.1. If adopted and imposed on the remaining development, it would collect enough to acquire land for and construct an additional 11,432 square feet of public library space and an additional 36,861 collection items.

Table 7-6
Summary of Library Space and Collection Impact Costs

Land Use	Residents per Dwelling	Cost per Resident	Impact Cost Per Unit
Detached Dwelling Units	2.913	\$402.23	\$1,172/Dwelling
Attached Dwelling Units	2.257	\$402.23	\$908/Dwelling
Mobile Home Dwelling Units	1.822	\$402.23	\$733/Dwelling

RECOMMENDED DEVELOPMENT IMPACT FEES

- Adopt Schedule 7.1 which contains the recommended City Library Facilities and Collection (item) Development Impact Fees and is summarized in Table 7-6.
 - Establish a General Plan square foot standard for *Library Facilities square feet per resident* and a standard for *Collection Items per resident*.
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Chapter Endnotes

1. Based upon the 2011 State of California Department of Finance City population estimate of 190,377.
2. The current population of 190,377 establishes the existing standard.
3. A collection item is generally a book but can also be a CD, magazine subscription, video tape or some other like item with a similar cost and accession cost.
4. Based upon the construction cost of a 30,000 square foot library constructed in Highland, CA at a cost of \$11,500,000 and increased by the *Engineering News Record* construction cost index increase of 14.95% over the 01/06 construction date (or \$441.63 per square foot) and land acquisition at a cost of \$20 per square foot of land with a FAR (floor area ratio) of 0.20 requiring five square feet of land per square foot of building pad. 06/2010 ENR- CCI = 8805 divided by the 01/06 ENR - CCI of 7660 = 14.95 percent increase.
5. The accession process includes: needs research, ordering, receipt, preparation, entering it into the computer and actual placement on the shelves.

Schedule 7.1

City of Huntington Beach

2011-12 Development Impact Fee Calculation and Nexus Report

Public Library Facilities and Collection

	Library Space	Library Collection		
Banning Library	2,400	27,637		
Central Library	115,000	314,921		
Graham Library	1,200	14,920		
Main Street Library	4,500	30,429		
Oak View Library	4,300	22,687		
Existing Square Feet of Library Space	127,400			
Existing Library Collection Items		410,594		
Calculation of Existing Standards:				
Current Population (Residents)	190,377	190,377		
S.F. of Library Space/Resident	0.669			
Collection Items/Resident		2.157		
Library Construction/Square Foot 06/2010	\$440.63			
Land Acquisition at \$20.00/S.F. and 0.25 FAR.	\$80.00			
Land Acquisition and Construction per Square Foot	\$520.63			
Cost per Collection Item		\$25.00		
Cost per Square Foot or Collection Item	\$520.63	\$25.00		
Existing City Library Standard(s)	0.669	2.157		
Cost of Space per Resident	\$348.30			
Cost of Collection Item per Resident		\$53.93		
Type of Residential Dwelling Unit	Density per Dwelling Unit	Library Space Component	Library Collection Component	Total Library Impact Fee
Detached Dwelling Unit	2.913	\$1,015	\$157	\$1,172
Attached Dwelling Unit	2.257	\$786	\$122	\$908
Mobile Home Dwelling Unit	1.822	\$635	\$98	\$733

Chapter 8

Park Land Acquisition and Park Facilities Development (including Open Space)

This Chapter summarizes the City's existing inventory of parks and identifies the ratio of park land (and park facilities improvements) per resident allowable under the Quimby Act (§66477 of the Government Code¹) for residential developments involving the subdivision of land and AB1600 (§66000) for the construction of residential developments not involving the subdivision of land. The existing per capita standard is then utilized to calculate the park dedication requirement for future residential development.

EXISTING PARKS AND PARK IMPROVEMENTS SYSTEM

Open space notwithstanding, intensive parks and recreational facilities constitute one of the City of City of Huntington Beach's greatest needs both with respect to facilities for current residents and future citizens. The provision of a well-planned park system, with a variation in the size and nature of facilities offered, is an important amenity to residents of any city, the City of City of Huntington Beach included. A mixture of passive and active uses and facilities and programs which appeal to a broad spectrum of potential park and trail users are considered optimal in most urban cities. The City currently has at its disposal (and within general control) some 999.09 acres of park, beach and specialty uses for use by the City's many residents. However, not all of these acres are owned by the City, many are leased or owned by other agencies made available to the City via a joint use agreements with the various school districts or are S.C.E. right-of-way.

The current acres dedicated to park use (and owned or under long-term control by the City) can reasonably well serve the City's current needs. However if the number of owned park acres remains static at 778.41 acres, the City may not be able to continue to meet recreational demands in light the probable 9.0% increase in the City's population. At an attempt to achieve a high level of fairness, the City's owned park acreage will be used as the standard for calculating the park standard and the development impact fee schedule. The figure is a Government Code statute-based calculation and thus does not include other park opportunities in the area such as Harriet Weider Regional Park, which while clearly serving the City residents, are not City-facilities and thus cannot be programmed by the City. The City has a General Plan standard target of 5.0 acres per 1,000 acres per residents and the calculation of target does include the park acres of other agencies (i.e. the regional park and state-owned beach land) within the calculation of that General Plan

target. That is completely acceptable for General Plan issues, and the City does meet that General Plan standard.

Future residential development, by increasing the City's population, will impact the City's park system by requiring additional athletic fields, adequate space for various athletic activities and community center space. Given the magnitude of growth projected in this and other reports, the challenge facing the City will be to provide new facilities and park land to serve the recreational needs of these new residents. Without additional park land acquisition and development of currently owned but underutilized park land during the remaining period of private residential development, the City's parks will become overcrowded and overused, with the ultimate result becoming a negative experience for park users.

Existing Park Land and Open Space Land. Currently, the City owns (or has long-term control of) approximately 778.41 acres of traditional park land, about 87.9%(683.9 acres) of it, developed. The entire list of parks and their acreage is identified on Schedule 8.1 at the conclusion of this Chapter with a summary by type in Table 8-1. Central Park is the largest developed park, representing just under a half of the park system acreage and provides the greatest variety of sports and passive uses.

Table 8-1
Current Park Total Inventory

	Total Park Acres	City Owned Acres
Neighborhood Parks	183.79	129.74
Community/Sports Parks	546.82	470.81
Other (beaches, etc)	268.48	177.86
Total Acres (Owned)	999.09	778.41

City Park Standard. Table 8-2, following, is a comparison of the acreage of parks to the City of Huntington Beach's current population and indicates that the City presently possesses a total standard of 5.248 acres of park land per 1,000 residents, (999.09 park acres ÷ [190,377 resident's ÷ 1,000], rounded). However as stated previously, the owned acreage will be used to calculate the standard and resulting impact fee. The City presently owns 778.41 acres and thus possesses an owned standard of 4.089 acres of owned park land per 1,000 residents, (778.41 owned park acre's ÷ [190,377 resident's ÷ 1,000], rounded). This is above the benchmark of 3.0 acres per

1,000 persons contained in Section 66477 of the California Government Code relating to dedication of parks.

Table 8-2
Calculation of Actual City-owned and Developed Park Acres Standard

	All Park Acres	Owned Park Acres
Current Park Acres	999.09	778.41
Current City Population	190,377	190,377
Population Stated in Thousands	190.377	190.377
Park Acres per 1,000 Population	5.248	4.089

The Quimby Act, to be discussed later, allows a minimum standard of 3.0 acres per thousand resident's *even if the City has not attained that standard*. However, the *park acres owned* standard for the City of Huntington Beach, at 4.089 acres per 1,000 resident's, exceeds that minimum standard and thus the Quimby allowable minimum standard of 3.0 acres per 1,000 new residents is irrelevant and the 4.089 acres/1,000 resident's standard will be used for *Park Land Acquisition and Park Facilities Development*. Though not particularly relevant² to the City of Huntington Beach, the Quimby Act has a cap on land dedications required as a part of the subdivision of land of 5.0 acres per thousand (Government Code §66447 (a)(2)).

Planned Improvements. In addition to the ongoing improvement of the remaining 115.85 acres³ available for increased residential development, the City will need to acquire 70.5 additional park acres, per Table 8-3, and develop these new parks to serve the additional 17,089 residents anticipated to live in City of Huntington Beach at General Plan build-out.

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Table 8-3
Calculation of Required
Park Acres per Allowable Standard

Future Added Population	17,089
Population Stated in Thousands	17.089
Allowable City of Huntington Beach Park Standard	4.128
Parks Acres Required to Maintain Standard	70.5

The 70.5 acres could be constructed in any of the following configurations:

Mini or "Pocket" Parks - This type is the smallest of the park type designations, usually an acre or less. Mini parks are generally not planned due to higher maintenance costs. They are usually the result of the acquisition of an unusual parcel oftentimes with historical or community significance. Tarbox, Booster, Trinidad or Baily Parks are good examples of this category.

Local or Neighborhood Parks - These parks are generally 3.0 to six acres and serve local (walk-in distance) users. Not surprisingly, the City has a number of these parks, roughly forty-nine at an average of about 3.5 acres in size. Neighborhood Parks, per the category title, are intended to serve walk-in populations nearby the park and typically are not highly programmed with City-run activities.

Community - These parks, to be functional, are usually closer to ten acres or larger and are designed to meet the needs of the entire community. These needs include youth and adult sports organizations, clubs or associations and large scale community events such as 4th of July celebrations or festivals. Langenbeck, Baca, Bartlett, Carr and Gisler Parks are good examples of a broad-based use community park.

Sport Parks - These park, again as titled, are highly infrastructure-developed to meet the active sports needs of both youth and adults. Edison and Greer Parks are good examples of the City's sports parks.

The proposed park improvements that could be contained within the roughly 65 needed acres and the existing standard (Table 8-2) are consistent with the City's Park and Recreation Element of the General Plan. The City's 3.785 acres per 1,000 population standard speaks reasonably well for the City as a three-acre per 1,000 population standard is the common minimum, but frequently

unmet, target of municipalities and recreation and park special districts throughout California. City staff has plans and has identified parcels that would assist help reach the 5.0 acres per 1,000 standard at General Plan build-out.

CALCULATION OF PARK DEDICATION STANDARD

Unlike the other facilities discussed in this Report, the California Government Code contains specific enabling legislation for the acquisition and development of community and neighborhood parks by a City. This legislation, codified as Section 66477 of the Government Code and known commonly as the "Quimby Act," establishes criteria for charging new development for park facilities based on specific park standards. This Report will recommend the adoption of Quimby-style park fees over an AB 1600-style development impact fee for developments requiring the subdivision of land and an AB 1600 fee for non subdivided land.

Allowable Park Standard As stated earlier, under Section 66477 of the Government Code, the City may charge new residential development based on a standard of 3.0 acres per 1,000 population if the City does not presently possess a ratio of 3.0 acres per 1,000 for the existing population. The Government Code also enables a city to charge development based on a standard higher than 3.0 acres (to a maximum of 5.0 acres) if the City currently exceeds the minimum benchmark ratio of 3.0 acres per 1,000 persons. Schedule 8.1 indicates that the City exceeds that minimum standard (with 3.785 acres/1,000 residents) and may then impose a fee in order to maintain that standard.

The law states that "if the amount of existing neighborhood and community park area ... exceeds the [3 acres of park area per 1,000 person] limit ... the legislative body may adopt the calculated amount as a higher standard not to exceed 5 acres per 1,000 persons."⁴ Park fees may be required by the City provided that the City meets certain conditions including:

- The amount and location of land to be dedicated or the fees to be paid shall bear a reasonable relationship to the use of the park by the future inhabitants of the subdivision.
- The legislative body has adopted a general plan containing a recreational element, and the park and recreational facilities are in accordance with definite principles and standards contained therein.
- The city ... shall develop a schedule specifying how, when, and where it will use the land or fees, or both, to develop park or recreational facilities ... Any fees collected under the ordinance shall be committed within five years after the payment of such fees.

Once a per capita standard for parks is determined, the cost of residential development's impact on the City's park system can then be computed as follows:

Park-land Acquisition Costs. Land costs will vary significantly from one park to another. The park land to be acquired must be suitable for park construction and is somewhat conservatively estimated at approximately \$871,200 per acre (or \$20.00/square foot) which has been used in the park development impact fee calculation, *as a default park development impact fee* for ordinary residential dwelling development. This is consistent with the cost of recent development for detached dwelling development in the more northerly areas of the City of Huntington Beach area. However, the use of this \$20.00 per square foot figure could be criticized if a developer can show that the cost of the residential land they are developing is currently valued at less than the \$871,200/acre figure. Conversely the City should retain the ability to increase this impact fee in areas where the cost of land exceeds the \$20.00 per square foot figure. The fee recommendation at the end of the Chapter will recognize this need for flexibility.

Park Development Costs. Park development costs are based upon the very recent construction of Schedule 8.3, a current schedule of common park costs and typical improvements by type of park. Schedule 8.2 identifies the three types parks⁵ that the City will likely construct over General Plan build-out⁶ and the costs of the types and numbers of improvements generally included in each of the following and are summarized from Schedule 8.2, identifies the factors in the average costs to develop an acre of park land for the three types, based on figures which are consistent with the probable improvements and costs to build similar parks incurred by other communities. For cost estimate purposes, roughly forty-five acres of Central Park has been identified as higher cost sports park acres with the remainder as Community Park. Sixty acres of beach land has been categorized as neighborhood park due to the nature of the more limited improvement costs. The table also indicates the three major types of parks. The existing 834.06 developed park acres⁷ cost the City an estimated \$258,698,242 construct as parks for an average construction cost of \$310.168 per acre.

Table 8-4
Average Park Construction Cost per Acre

Type of Park	Park Acres	Cost/Acre	Average Construction Cost
Neighborhood/Mini Park	271.01	\$223,441	\$60,559,816
Community Park	229.15	\$289,296	\$66,292,242
Sports/Regional Park	333.90	\$394,884	\$131,851,622
Total Cost			\$258,698,242
Total Acres	834.06		834.06
Cost/Acre (rounded)			\$310,168

The \$310,168/acre is then increased by 15% to \$356,693 to account for the park architectural costs and 24% to \$442,299/acre to account for project administration, plan check, engineering, inspection and materials testing costs. Lastly, the \$422,299 per acre figure is increased by 15% to \$508,644 for a typical park project contingency. Schedule 8.2 shows this in numeric detail. Schedule 8.3 details the average park construction cost by type of park.

The Existing Park Community Center Inventory. The City has a number of facilities dedicated for use as public uses facilities (as opposed to staff facilities). The existing 118,020 square feet of Community Use Facilities are identified in Table 8-5, following.

Table 8-5
Inventory of Existing Park Community Use Facilities

Community Use Facility	Square Feet
Beach Public Service Center	2,561
City Gymnasium and Pool Facility	23,600
Edison Community Center	11,065
Harbor View Clubhouse	2,203
Huntington Beach Municipal Art Center	11,092
Huntington Beach Youth Shelter	5,600
Junior Lifeguard Headquarters	5,922
Lake Park Clubhouse	3,000
Lake View Clubhouse	2,000
LeBard Clubhouse	1,000
Murdy Community Center	11,000
Newland Barn	6,000
Newland House Museum	2,750
Oak View Community Center	10,000
Rodgers Senior Center	14,000
Seniors Outreach Center	2,700
Shipley Nature Center Interpretive Building	1,863
Terry Park Community Center	1,664
Total Community Use Facilities Square Feet	118,020

The City has 118,020 public use community center square feet as identified in Table 8-5 previous. When divided by the City's 849.58 acres of developed park land the result indicates an average of 138.92 square feet of community center per acre of developed park. At the development cost of \$480.00 per square foot of community center, there is a cost of \$66,680 for the 138.92 average square feet of public uses facilities per acre of existing developed park (138.92 square feet multiplied by the \$480 per square foot of community center construction). The \$66,680 represents the future cost of maintaining the existing square feet of community center per acre of park, and as a result, per capita.

Average Park Acquisition and Development Cost per Capita. The combined park acquisition and development cost is \$1,446,524 per acre (\$871,200/acre for acquisition, \$508,644 per acre for development and \$77,780 for community center space acquisition). If the City were to charge development for the maximum allowable amount of park acreage as allowed in the Quimby Act and as recommended here, then the City would need to acquire 4.128 acres of new park land for every potential 1,000 new residents to the City. The 4,128 acres of land acquisition and park and community center improvements per 1,000 persons would be \$6,130,008 or about 6,130.01 per new resident. Table 8-6 and Schedule 8.1 calculates the cost, per type of residential dwelling, to develop 4.089 acres, which represents the required park land cost for 1,000 persons.

Table 8-6
Summary of Quimby Park/AB1600 Development Impact Fees for
Residential Dwelling Construction

Residential Land Use	Persons per Dwelling	Fee per Resident	Impact Fee Per Unit
Detached Dwelling Units	2.913	\$6,130.01	\$17,857
Attached Dwelling Units	2.257	\$6,130.01	\$13,385
Mobile Home Dwelling Units	1.822	\$6,130.01	\$11,169

The development impact fees for residential detached dwelling development involving the subdivision of land, as identified in Table 8-6, should be adopted under the auspices of the Quimby Act. The development impact fees for residential dwelling units not requiring the subdivision of a parcel, will need to be adopted as an AB 1600-supported development impact fee.

Open Space Fees for Business Uses. Imagine a community without any (or very little) park or open space. There a small number of such communities in the greater Los Angeles area. All private development benefits from the acquisition of land that is never developed, and exists, at a minimum, as a buffer from all other businesses. Schedule 8.4 identifies the cost for park land (as open space) for the business type land-uses. Again, the City owns 778.4 acres of park space which at a minimum acts as open space for all land uses. There are 10,271.8 acres of privately held developed land within the City's limits. As a result there is 0.0758 acres of park/open space for each developed privately held acre. The 0.0758 acres of open space per privately held acre is the recommended standard to be applied to the development of vacant parcels zoned for the business uses of commercial and resort lodging, commercial/office and industrial/manufacturing uses. The open space land acquisition cost will be limited to 25 % of the \$20.00 per square foot (or \$871,200 per acre) acquisition cost based upon the premise that business use benefits largely from the open space component and but does not require the benefits of developed parks and that open space land acquisition costs are less than land appropriate for parks. The cost to acquire that 0.0578 acre of park land would be \$16,605. Again the cost is limited to only open space land acquisition, but does not include the development component of that land as a park. That will fall to the developers of residentially zoned land that will generate park users (residents). Business acres benefit from the parks as open areas that make the City a desirable location for that business.

The \$300,000 per acre of development will be divided by the varying units from the three differing types of business uses in Table 8-7. Schedule 8.5 is summarized in Table 8-7 following.

Table 8-7
Cost Calculation for Business Uses

Residential Land Use	Units or S.F per Acre	Cost/Acre of Open Space	Cost per Keyed Room or Square Foot
Commercial Lodging Unit	36	\$16,505	\$458
Resort Lodging Unit	46	\$16,505	\$359
Commercial/Office Square Feet	17,300	\$16,505	\$0.954
Industrial Square Feet	21,390	\$16,505	\$0.772

Note: A lodging unit is defined as *keyed room*.

Land Acquisition Cost Adjustment Challenge. As mentioned previously, the use of \$871,200/acre as the default park land acquisition cost is based upon the assumption that parks acreage would likely be close in proximity and thus similar in cost to residential land value of the private project the park is intended to serve. However, if the developer or contractor of a home can provide

evidence (acceptable to the City), in the form of a recent purchase agreement or appraisal of the property they will be developing that the current land value is worth less than the \$871,200/acre (or a \$20.00/square foot), the development impact fee could be adjusted accordingly by placing the actual cost of land acquisition into the Schedule 8.1 calculation. Again, if the City wishes to adopt such an adjustment, the terms under which the challenge may be made and proved should be included in the Development Impact Fee Ordinance. Similarly, if a development is closer to the beach area and land costs are higher, the City should be able to impose a park development impact fee consistent with the local land acquisition costs. Schedule 8.1 shows this calculation.

RECAP OF RECOMMENDED PARK LAND ACQUISITION AND PARK FACILITIES DEVELOPMENT IMPACT FEES.

- Schedule 8.1 contains the maximum Park Land Acquisition and Park Facilities Development Impact Fees to be imposed upon residential development based upon the facts presented in this Chapter for default or standard residential developments.
 - Schedule 8.4 contains the maximum Park/Open Space Land Acquisition Impact Fees to be imposed upon business development based upon the facts presented in this Chapter.
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CHAPTER ENDNOTES

1. Adoption of a Quimby Act fee requires a Park "plan".
2. The figure has relevance for municipalities that have large tracts of land available for subdivisions in the thousands or more.
3. The Quimby Act does allow use of revenues raised by the adoption of a Quimby Act Park Impact Fee to be used for rehabilitation of existing parks.
4. California Government Code, Title 7, Division 2, Section 66477 (b).
5. Totaling the roughly 64.7 acres of park land acquisition and development that could be expected to be financed by imposing the proposed development impact fees over General Plan build-out.
6. Mini parks are not included in the mix as they are very costly to construct on a per acre cost and generally are expensive maintenance factors. Mini parks are rarely planned for but generally occur as a result of a land donation or as the recognition of a historical site.
7. Based upon the 1,006.58 acres of parkland available, less the 45.01 acre Weider County Regional Park and the 127.51 un-improved park acres of City Parks.

Schedule 8.1

City of Huntington Beach

2011-12 Development Impact Fee Calculation and Nexus Report

Park Quimby Fee for Dwellings on a Sub-divided Parcel, and;

AB1600 Fee for Dwelling on Non-subdivided Parcels

	Park Size	City Owned Parkland	Developed Parkland
Lake Park	4.75	0.00	4.75
Lake View Park	2.16	2.16	2.16
Lamb Park	2.60	2.60	0.00
Lambert Park	3.50	3.50	3.50
Langenbeck Park	17.02	9.24	17.02
Lark View Park	3.65	0.00	3.65
LeBard Park	4.99	3.01	4.99
Manning Park	2.46	2.46	2.46
Marina Park	9.34	9.34	9.34
Marine View Park	2.96	0.00	2.96
McCallen Park	5.84	5.84	5.84
Meadowlark Golf Course	98.00	98.00	98.00
Moffett Park	2.38	2.38	2.38
Murdy Park	16.04	16.04	16.04
Newland Park	2.94	2.94	2.94
Oak View Center Park	1.31	0.00	1.31
Weider Regional (County-owned)	45.01	0.00	23.01
Pattinson Park	3.51	3.51	3.51
Perry Park	1.88	1.88	1.88
Pleasant View Park	2.17	0.00	2.17
Prince Park	0.22	0.22	0.22
Robinwood Park	1.41	0.00	1.41
Rodgers Senior Center Site	2.01	2.01	2.01
Schroeder Park	2.37	0.00	2.37
Seabridge Park	3.91	3.91	3.91
Seeley Park	3.37	3.37	3.37
Sowers Park	2.65	2.65	2.65
Sun View Park	2.45	0.00	2.45
Talbert Park	5.44	5.44	5.44
Tarbox Park	0.44	0.44	0.44
Terry Park	4.81	4.81	4.81
Triangle Park	1.11	1.11	1.11
Trinidad Park	0.75	0.75	0.75
Wardlow Park	8.36	8.36	8.36
Wieder Park	4.80	4.80	4.80
Worthy Community Park	7.00	7.00	7.00
Total Acres (Owned/Developed)	999.09	778.41	849.58
Current Population	190,377	190,377	190,377
Population/1,000	190.38	190.38	190.38
Current Standard	5.248	4.089	4.463

Schedule 8.1

City of Huntington Beach

2011-12 Development Impact Fee Calculation and Nexus Report

Park Quimby Fee for Dwellings on a Sub-divided Parcel, and;

AB1600 Fee for Dwelling on Non-subdivided Parcels

		Park Size	City Owned Parkland	Developed Parkland		
Acres/1,000 Population Standard		5.248	4.089	4.463		
Quimby Maximum Allowable		5.000	4.089	4.463		
Acquisition Cost per Acre (1)			\$871,200			
Construction Cost per Acre (2)				\$508,644		
Community Center Construction				\$66,680		
Total Component Cost			\$871,200	\$575,324		
Cost X Standard			\$3,562,337	\$2,567,671	Total Fee	
Population Served by Standard			1,000.0	1,000.0	Per Person	
Cost per Resident			\$3,562.34	\$2,567.67	\$6,130.01	
	Occupants/ Dwelling		Land Acquisition	Park Development	Land and Development	
Detached Dwelling Units	2.913		\$10,377	\$7,480	\$17,857	
Attached Dwelling Units	2.257		\$8,040	\$5,795	\$13,835	
Mobile Home Dwelling Units	1.822		\$6,491	\$4,678	\$11,169	

1. Current estimate of \$20.00 per acre acquisition cost for land consistent with park use.
2. See Schedule 9.3 for typical park amenity construction cost details.

Schedule 8.2

City of Huntington Beach

Park Site Inventory Improvement Cost

Residential Park Development Impact Fee

Calculation of Average Park Acre Construction Cost

	Park Size	Average Cost per Acre	Total Cost for Park
Prince Park	0.22	\$223,441	\$49,157
French Park	0.33	\$223,441	\$73,736
Tarbox Park	0.44	\$223,441	\$98,314
Davenport Beach	0.46	\$223,441	\$102,783
Humbolt Beach Park	0.48	\$223,441	\$107,252
City Gym/Pool Site	0.50	\$223,441	\$111,721
Finley Park	0.56	\$223,441	\$125,127
Bailey Park	0.59	\$223,441	\$131,830
Trinidad Park	0.75	\$223,441	\$167,581
Booster Park	0.85	\$223,441	\$189,925
Triangle Park	1.11	\$223,441	\$248,020
Banning/Magnolia Park	0.00	\$223,441	\$0
Oak View Center Park	1.31	\$223,441	\$292,708
Robinwood Park	1.41	\$223,441	\$315,052
Franklin Park	1.52	\$223,441	\$339,631
Perry Park	1.88	\$223,441	\$420,070
Rodgers Senior Center Site	2.01	\$223,441	\$449,117
Helme Park	2.02	\$223,441	\$451,351
Bauer Park	2.04	\$223,441	\$455,820
Lake View Park	2.16	\$223,441	\$482,633
Pleasant View Park	2.17	\$223,441	\$484,868
Drew Park	2.28	\$223,441	\$509,446
Circle View Park	2.31	\$223,441	\$516,149
Schroeder Park	2.37	\$223,441	\$529,556
Bushard Park	2.38	\$223,441	\$531,790
Moffett Park	2.38	\$223,441	\$531,790
Sun View Park	2.45	\$223,441	\$547,431
Manning Park	2.46	\$223,441	\$549,665
Burke Park	2.50	\$223,441	\$558,603
Arevelos Park	2.58	\$223,441	\$576,478
Lamb Park	0.00	\$223,441	\$0
Sowers Park	2.65	\$223,441	\$592,119
Eader Park	2.68	\$223,441	\$598,823
Hawes Park	2.68	\$223,441	\$598,823
Bolsa View Park	2.70	\$223,441	\$603,291
College View Park	2.70	\$223,441	\$603,291
Conrad Park	2.71	\$223,441	\$605,526
Clegg-Stacey Park	2.80	\$223,441	\$625,636
Golden View Park	2.81	\$223,441	\$627,870
Newland Park	2.94	\$223,441	\$656,917
Haven View Park	2.95	\$223,441	\$659,152
Marine View Park	2.96	\$223,441	\$661,386
Glen View Park	3.02	\$223,441	\$674,793
Seeley Park	3.37	\$223,441	\$752,997
Lambert Park	3.50	\$223,441	\$782,044

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Schedule 8.2

City of Huntington Beach

Park Site Inventory Improvement Cost

Residential Park Development Impact Fee

Calculation of Average Park Acre Construction Cost

	Park Size	Average Cost per Acre	Total Cost for Park
Pattinson Park	3.51	\$223,441	\$784,279
Farquhar Park	3.52	\$223,441	\$786,513
Hope View Park	3.61	\$223,441	\$806,623
Lark View Park	3.65	\$223,441	\$815,561
Seabridge Park	3.91	\$223,441	\$873,655
Harbour View Park	4.02	\$223,441	\$898,234
Green Park	4.04	\$223,441	\$902,703
Lake Park	4.75	\$223,441	\$1,061,346
Wieder Park	4.80	\$223,441	\$1,072,518
Terry Park	4.81	\$223,441	\$1,074,752
LeBard Park	4.99	\$223,441	\$1,114,972
Talbert Park	5.44	\$223,441	\$1,215,520
McCallen Park	5.84	\$223,441	\$1,304,897
Discovery Well Park	6.60	\$223,441	\$1,474,712
Gibbs Park	6.83	\$223,441	\$1,526,104
Wardlow Park	8.36	\$223,441	\$1,867,969
Marina Park	9.34	\$223,441	\$2,086,941
Meadowlark Golf Course	98.00	\$223,441	\$21,897,243
Carr Park	10.72	\$289,296	\$3,101,256
Irby Park	2.91	\$289,296	\$841,852
Gisler Park	11.67	\$289,296	\$3,376,088
Baca Park	14.35	\$289,296	\$4,151,402
Langenbeck Park	17.02	\$289,296	\$4,923,823
Bluff Top Park	19.66	\$289,296	\$5,687,565
Bartlett Park	2.00	\$289,296	\$578,593
Beach, City-leased	90.62	\$289,296	\$26,216,029
Beach, City-owned	60.20	\$289,296	\$17,415,636
Worthy Park	7.00	\$394,884	\$2,764,185
Greer park	10.44	\$394,884	\$4,122,584
Murdy Park	16.04	\$394,884	\$6,333,932
Edison Park	47.18	\$394,884	\$18,630,607
Huntington Central Park	253.24	\$394,884	\$100,000,314
Total	834.06		\$258,698,680
Total Park Acres			834.06
Average Construction Cost/Acre			\$310,168
Community Input, Design, Engineering			115.00%
Sub-total Park Construction Cost			\$356,693
Project Administration, Soils<Materials Testing, etc.			124.00%
Sub-total Park Construction Cost			\$442,299
Contingency			115.00%
Total Park Construction Cost			\$508,644

Park Improvement Cost Estimates, by Type of Park

	Unit Cost, Installed		5 Acre Neighborhood		20 Acre Community Park	
Pub Imps, Road/curb, gutter, etc.	\$200	Linear Foot	1,040	\$208,000	2,704	\$540,800
Lg Pk Grading/Irrigation/Turf	\$37,500	Acre	0	\$0	15	\$562,500
Sm Pk Grading/Irrigation/Turf	\$42,750	Acre	5	\$213,750	0	\$0
Plant Material:						
Trees-5, 24 gallon box/acre	\$149	Each	60	\$8,940	225	\$33,525
Trees-15, 15 gallon/acre	\$290	Each	30	\$8,700	75	\$21,750
Shrubs-10, five gallon	\$30	Each	40	\$1,200	150	\$4,500
Shrubs-30, one gallon	\$8	Each	120	\$960	450	\$3,600
Play apparatus						
Curbing, 450' per large	\$41.30	Linear Foot	0	\$0	450	\$18,585
Curbing, 225' per small	\$41.30	Linear Foot	225	\$9,293	225	\$9,293
Play equipment - large	\$123,750	Lot	0	\$0	1	\$123,750
Play equipment - medium	\$99,000	Lot	1	\$99,000	0	\$0
Play equipment - small	\$67,500	Lot	0	\$0	2	\$135,000
Sand/Other Surfacing	\$5,775	Lot	1	\$5,775	3	\$17,325
Buildings:						
Restroom - Small	\$132,000	Each	1	\$132,000	1	\$132,000
Restroom - Large	\$181,500	Each	0	\$0	1	\$181,500
Equipment storage facility	\$99,000	Each	0	\$0	0	\$0
Combined Restroom/Concession	\$297,000	Each	0	\$0	1	\$297,000
Parking Lot						
4" A.C. W/6" Rock base	\$8.30	Square foot	12,000	\$99,600	40,000	\$332,000
V-gutter	\$13.20	Linear Foot	300	\$3,960	800	\$10,560
Drain Inlet	\$990	Each	1	\$990	2	\$1,980
Drain Inlet connector	\$330	Each	1	\$330	2	\$660
Storm drain line	\$19.80	Linear Foot	300	\$5,940	200	\$3,960
Drive approach	\$2,970	Each	1	\$2,970	4	\$11,880
Perimeter curbing	\$16.50	Linear Foot	490	\$8,085	800	\$13,200
Striping	\$0.50	Linear Foot	400	\$200	1,300	\$650
Lighting	\$2,970	Each	2	\$5,940	18	\$53,460
Lot signage	\$330	Lot	1	\$330	3	\$990
Entrance	\$4,950	Lot	1	\$4,950	3	\$14,850
Curb and Gutter	\$15.27	Linear Foot	3,780	\$57,721	3,232	\$49,353
Storm Drainage Facilities						
Inlets	\$1,320	Each	2	\$2,640	4	\$5,280
Connections	\$2,145	Each	2	\$4,290	4	\$8,580
Lateral (to arterial)	\$82.50	Linear Foot	45	\$3,713	80	\$6,600
Sewer Facilities						
Connection to arterial	\$4,125	Lot	1	\$4,125	1	\$4,125
Line in street	\$107.30	Linear Foot	29	\$3,112	80	\$8,584
Line in park	\$24.80	Linear Foot	125	\$3,100	1,500	\$37,200

Schedule 8.3

City of Huntington Beach

Development Impact Fee Calculation Report

Park Improvement Cost Estimates, by Type of Park

	Unit Cost, Installed	5 Acre Neighborhood		20 Acre Community Park	
Fire Hydrant	\$4,950 Each	1	\$4,950	6	\$29,700
Street Lights					
Standards	\$2,475 Each	3	\$7,425	20	\$49,500
Duct work/wiring	\$1,568 Each	3	\$4,704	12	\$18,816
Water Facilities					
3" metered service	\$4,125 Each	1	\$4,125	1	\$4,125
Backflow device	\$4,125 Each	1	\$4,125	1	\$4,125
Line in street	\$19.80 Linear Foot	1,320	\$26,136	120	\$2,376
Water fountains	\$1,155 Each	1	\$1,155	8	\$9,240
Fountain lines in park	\$19.80 Linear Foot	200	\$3,960	1,000	\$19,800
Benches/Tables					
Tables, cement pads	\$2,475 Each	4	\$9,900	60	\$148,500
Individual grills	\$825 Each	2	\$1,650	30	\$24,750
Benches, cement pads	\$908 Each	4	\$3,632	30	\$27,240
Bleachers	\$5,775 Each	0	\$0	0	\$0
Large Covered Picnic Area (lot)	\$123,750 Each	0	\$0	2	\$247,500
Individual Covered Picnic Pad	\$24,750 Each	1	\$24,750	10	\$247,500
User Electrical Service park	\$16,500 Each	0	\$0	1	\$16,500
Electrical Service per Area	\$2,063 Each	1	\$2,063	6	\$12,378
Game Courts			\$0		\$0
Basketball Courts	\$66,000 Each	1.0	\$66,000	1	\$66,000
Basketball Court Lighting	\$57,750 Each	0	\$0	0	\$0
Fenced Tennis Courts	\$99,000 Each	0	\$0	2	\$198,000
Tennis Court Lighting	\$57,750 Each	0	\$0	0	\$0
Baseball Field - Competitive	\$82,500 Each	0	\$0	0	\$0
Ballfield Lighting	\$412,500 Per two fields	0	\$0	0	\$0
Baseball Field - Recreational	\$24,750 Each	1	\$24,750	6	\$148,500
Pedestrian Walkway					
5' Wide	\$22.28 Linear Foot	500	\$11,140	2,000	\$44,560
6' Wide	\$28.88 Linear Foot	100	\$2,888	500	\$14,440
9' Wide	\$37.13 Linear Foot	100	\$3,713	500	\$18,565
Miscellaneous Flatwork	\$6.20 Linear Foot	500	\$3,100	8,500	\$52,700
Small Park Signage	\$4,538 Lot	1	\$4,538	0	\$0
Large Park Signage	\$24,750 Lot	0	\$0	1	\$24,750
Bike Rack/Pad	\$2,890 Each	1	\$2,890	6	\$17,340
Natural Element Improvement (Lake, e	\$825,000 Each	0	\$0	0	\$0
Small Concrete Stage	\$41,250 Each	0	\$0	0	\$0
Small Ampitheater stage only, graded	\$82,500 Each	0	\$0	0	\$0
Large Ampitheater with bowl	\$247,500 Each	0	\$0	1	\$247,500
Total Cost			1,117,206		\$4,339,444
Total Acres			5		15
Average Cost per Acre			\$223,441		\$289,296

Schedule 8.3

City of Huntington Beach

Development Impact Fee Calculation Report

Park Improvement Cost Estimates, by Type of Park

	Unit Cost, Installed	20 Acre Sports Park	
Pub Imps, Road/curb, gutter, etc.	\$200 Linear Foot	2,704	\$540,800
Lg Pk Grading/Irrigation/Turf	\$37,500 Acre	20	\$750,000
Sm Pk Grading/Irrigation/Turf	\$42,750 Acre	0	\$0
Plant Material:			
Trees-5, 24 gallon box/acre	\$149 Each	150	\$22,350
Trees-15, 15 gallon/acre	\$290 Each	50	\$14,500
Shrubs-10, five gallon	\$30 Each	100	\$3,000
Shrubs-30, one gallon	\$8 Each	300	\$2,400
Play apparatus			
Curbing, 450' per large	\$41.30 Linear Foot	450	\$18,585
Curbing, 225' per small	\$41.30 Linear Foot	225	\$9,293
Play equipment - large	\$123,750 Lot	0	\$0
Play equipment - medium	\$99,000 Lot	1	\$99,000
Play equipment - small	\$67,500 Lot	2	\$135,000
Sand/Other Surfacing	\$5,775 Lot	3	\$17,325
Buildings:			
Restroom - Small	\$132,000 Each	1	\$132,000
Restroom - Large	\$181,500 Each	1	\$181,500
Equipment storage facility	\$99,000 Each	1	\$99,000
Combined Restroom/Concession	\$297,000 Each	2	\$594,000
Parking Lot			
4" A.C. W/6" Rock base	\$8.30 Square foot	40,000	\$332,000
V-gutter	\$13.20 Linear Foot	800	\$10,560
Drain Inlet	\$990 Each	2	\$1,980
Drain Inlet connector	\$330 Each	2	\$660
Storm drain line	\$19.80 Linear Foot	200	\$3,960
Drive approach	\$2,970 Each	4	\$11,880
Perimeter curbing	\$16.50 Linear Foot	800	\$13,200
Striping	\$0.50 Linear Foot	1,300	\$650
Lighting	\$2,970 Each	18	\$53,460
Lot signage	\$330 Lot	3	\$990
Entrance	\$4,950 Lot	3	\$14,850
Curb and Gutter	\$15.27 Linear Foot	1,664	\$25,409
Storm Drainage Facilities			
Inlets	\$1,320 Each	4	\$5,280
Connections	\$2,145 Each	4	\$8,580
Lateral (to arterial)	\$82.50 Linear Foot	80	\$6,600
Sewer Facilities			
Connection to arterial	\$4,125 Lot	1	\$4,125
Line in street	\$107.30 Linear Foot	80	\$8,584
Line in park	\$24.80 Linear Foot	1,500	\$37,200

Schedule 8.3

City of Huntington Beach

Development Impact Fee Calculation Report

Park Improvement Cost Estimates, by Type of Park

	Unit Cost, Installed	20 Acre Sports Park	
Fire Hydrant	\$4,950 Each	1	\$4,950
Street Lights			
Standards	\$2,475 Each	20	\$49,500
Duct work/wiring	\$1,568 Each	5	\$7,840
Water Facilities			
3" metered service	\$4,125 Each	1	\$4,125
Backflow device	\$4,125 Each	1	\$4,125
Line in street	\$19.80 Linear Foot	120	\$2,376
Water fountains	\$1,155 Each	8	\$9,240
Fountain lines in park	\$19.80 Linear Foot	1,000	\$19,800
Benches/Tables			
Tables, cement pads	\$2,475 Each	30	\$74,250
Individual grills	\$825 Each	10	\$8,250
Benches, cement pads	\$908 Each	15	\$13,620
Bleachers	\$5,775 Each	8	\$46,200
Large Covered Picnic Area (lot)	\$123,750 Each	0	\$0
Individual Covered Picnic Pad	\$24,750 Each	4	\$99,000
User Electrical Service park	\$16,500 Each	1	\$16,500
Electrical Service per Area	\$2,063 Each	4	\$8,252
Game Courts			\$0
Basketball Courts	\$66,000 Each	3	\$198,000
Basketball Court Lighting	\$57,750 Each	8	\$462,000
Fenced Tennis Courts	\$99,000 Each	8	\$792,000
Tennis Court Lighting	\$57,750 Each	8	\$462,000
Baseball Field - Competitive	\$82,500 Each	8	\$660,000
Ballfield Lighting	\$412,500 Per two fields	4	\$1,650,000
Baseball Field - Recreational	\$24,750 Each	0	\$0
Pedestrian Walkway			
5' Wide	\$22.28 Linear Foot	1,000	\$22,280
6' Wide	\$28.88 Linear Foot	250	\$7,220
9' Wide	\$37.13 Linear Foot	250	\$9,283
Miscellaneous Flatwork	\$6.20 Linear Foot	4,000	\$24,800
Small Park Signage	\$4,538 Lot	0	\$0
Large Park Signage	\$24,750 Lot	1	\$24,750
Bike Rack/Pad	\$2,890 Each	6	\$17,340
Natural Element Improvement (Lake, e	\$825,000 Each	0	\$0
Small Concrete Stage	\$41,250 Each	1	\$41,250
Small Ampitheater stage only, graded	\$82,500 Each	0	\$0
Large Ampitheater with bowl	\$247,500 Each	0	\$0
Total Cost			\$7,897,671
Total Acres			20.00
Average Cost per Acre			\$394,884

Schedule 8.4

City of Huntington Beach

2011-12 Development Impact Fee Calculation and Nexus Report

Open Space Land Acquisition for Business Uses

Land Acquisition Development Impact Fee Calculation

Total City-owned Park/Open Space Acres	778.4
Current City-wide Privately Developed Acres	10,271.8
Current Open Space Standard per Developed Acre	0.0758
Acres/Developed Acre Standard	0.0758
Acquisition Cost per Acre	\$871,200
Cost X Open Space Standard	\$66,037
Open Space Land Value	25.00%
Adjusted Land Cost	\$16,509.24

	Units/SF per Acre	Open Space Acquisition
Commercial Lodging Keyed Units	36	\$459 per Keyed Unit
Resort Lodging Keyed Units	46	\$359 per Keyed Unit
Commercial Acres (in Square Feet)	17,300	\$0.954 per Square Foot
Industrial Uses (in Square Feet)	21,390	\$0.772 per Square Foot

APPENDIX A

Expanded Land-use Database

City of Huntington Beach Total – Land Use Database	Developed		Net Increase		Total	
	Acres	# of Units	Acres	# of Units	Acres	# of Units
Detached Dwelling Units (1)	6,436.0	38,616	295.00	1,749	6,731.00	40,365
Attached Dwelling Units	1,805.4	36,108	111.20	5,307	1,916.60	41,415
Mobile Home Dwelling Units (2)	204.6	2,865	1.00	9	205.60	2,8
Hotel/Motel Lodging Units	33.4	1,070	18.60	818	52.00	1,888
Resort Lodging Units	20.2	809	9.30	535	29.50	1,344
Commercial/Office Uses	841.9	12,836,000	39.80	2,417,000	881.70	15,253,000
Industrial/Manufacturing Uses	930.3	20,261,000	187.00	3,638,000	1,117.30	23,899,000
Total – City Limits	10,271.8	-----	661.90	-----	10,933.70	-----
Private Residences	8,446.0	77,589	407.2	7,065	8,853.2	84,654
Commercial Lodging Rooms	53.6	1,879	27.9	1,353	81.5	3,232
Business Square Feet	1,772.2	33,097,000	226.8	6,055,000	1,999.0	39,152,000
Existing Community as Currently Developed	Developed		To Be Developed		Total	
	Acres	# of Units	Acres	# of Units	Acres	# of Units
Detached Dwelling Units (1)	6,436.0	38,616	34.0	183	6,470.00	38,799
Attached Dwelling Units	1,805.4	36,108	15.0	159	1,820.40	36,267
Mobile Home Dwelling Units (2)	204.6	2,865	1.0	9	205.60	2,874
Hotel/Motel Lodging Units	33.4	1,070	0.0	0	33.40	1,070
Resort Lodging Units	20.2	809	3.4	300	23.60	1,109
Commercial/Office Uses	841.9	12,836,000	4.5	69,200	846.40	12,905,200
Industrial/Manufacturing Uses	930.3	20,261,000	44.0	958,320	974.30	21,219,320
Existing Community	10,271.8	-----	101.90	-----	10,373.70	-----
Additional Units from Intensification of Existing Uses	Developed		Intensified/Redeveloped		Total	
	Acres	# of Units	Acres	# of Units	Acres	# of Units
Detached Dwelling Units (1)	0.0	0	261.0	1,566	261.00	1,566
Attached Dwelling Units	0.0	0	0.0	0	0.00	0
Mobile Home Dwelling Units (2)	0.0	0	0.0	0	0.00	0
Hotel/Motel Lodging Units	0.0	0	14.6	468	14.60	468
Resort Lodging Units	0.0	0	0.0	0	0.00	0
Commercial/Office Uses	0.0	0	106.2	2,313,817	106.20	2,313,817
Industrial/Manufacturing Uses	0.0	0	143.0	2,679,680	143.00	2,679,680
Redeveloped	0.0	-----	524.80	-----	524.80	-----
Specific Plan A Beach and Edinger	Developed		Intensified/Redeveloped		Total	
	Acres	# of Units	Acres	# of Units	Acres	# of Units
Detached Dwelling Units (1)	0.0	0	0.0	0	0.00	0
Attached Dwelling Units	0.0	0	80.0	4,500	80.00	4,500
Mobile Home Dwelling Units (2)	0.0	0	0.0	0	0.00	0
Hotel/Motel Lodging Units	0.0	0	4.0	350	4.00	350
Resort Lodging Units	0.0	0	0.0	0	0.00	0
Commercial/Office Uses	0.0	0	37.0	850,400	37.00	109850,
Industrial/Manufacturing Uses	0.0	0	0.0	0	0.00	0
Sub-total Specific Plan A	0.0	-----	121.00	-----	121.00	-----

Specific Plan B Downtown	Developed		Intensified/Redeveloped		Total	
	Acres	# of Units	Acres (3)	# of Units	Acres	# of Units
Detached Dwelling Units (1)	0.0	0	0.0	0	0.00	0
Attached Dwelling Units	0.0	0	16.2	648	16.20	648
Mobile Home Dwelling Units (2)	0.0	0	0.0	0	0.00	0
Hotel/Motel Lodging Units	0.0	0	0.0	0	0.00	0
Resort Lodging Units	0.0	0	5.9	235	5.90	235
Commercial/Office Uses	0.0	0	13.1	398,583	13.10	398,583
Industrial/Manufacturing Uses	0.0	0	0.0	0	0.00	0
Sub-total Specific Plan B	0.0	-----	35.20	-----	35.20	-----

Specific Plan A Removal	Developed		Intensified/Redeveloped		Total	
	Acres	# of Units	Acres	# of Units	Acres	# of Units
Detached Dwelling Units (1)	0.0	0	0.0	0	0.00	0
Attached Dwelling Units	0.0	0	0.0	0	0.00	0
Mobile Home Dwelling Units (2)	0.0	0	0.0	0	0.00	0
Hotel/Motel Lodging Units	0.0	0	0.0	0	0.00	0
Resort Lodging Units	0.0	0	0.0	0	0.00	0
Commercial/Office Uses	0.0	0	(121.0)	(1,215,000)	(121.00)	(1,215,000)
Industrial/Manufacturing Uses	0.0	0	0.0	0	0.00	0
Sub-total Specific Plan A	0.0	-----	(121.00)	-----	(121.00)	-----

TES:

- (1). Only 34 of the 295 acres are vacant lots. The remaining 261 acres represents acres for the addition of 1,566 detached dwelling units in areas already developed such as a lot split of a larger parcel with an existing detached dwelling units.
- (2). The inclusion of one acre of Mobile (or modular) Home Dwelling Units (in parks) is to establish such a fee and does not imply that that the City anticipates such a private proposal.
- (3). The 35.2 acres is not intended to suggest there is 35.2 acres of vacant acres in the downtown area. The 35.2 acres is the result of anticipating 648 additional units at roughly 40 units per acre.

APPENDIX B

Summary of Recommended Impact Fees

SUMMARY OF DEVELOPMENT IMPACT FEE SCHEDULE RECOMMENDATIONS

Chapter 3 - Law Enforcement Facilities and Equipment

- Adopt Schedule 3.2, page 38, General Plan Build-out Need-based Development Impact Fees.

Chapter 4 - Fire Facilities, Vehicles and Equipment

- Adopt Schedule 4.3, page 53, Community Financial Commitment-based Development Impact Fees.

Chapter 5 - Circulation (Streets, Signals and Bridges) System

- Adopt Schedule 5.2, page 68, General Plan Build-out Need-based Development Impact Fees along with the per Trip-mile rate for application to Table 5-4 (page 64) or for staff calculation per the Table on the bottom of Schedule 5.2.

Chapter 6 - Storm Drainage Collection System

- Adopt Schedule 6.2, page 80, General Plan Build-out Need-based Development Impact Fees for the seven specific land uses and the “per acre” cost for unusual uses not involving a structure.

Chapter 7 - Public Library and Collection

- Adopt Schedule 7.1, page 88.
- Formalize a General Plan square foot and collection item per resident standard.

Chapter 8 - Park (and Open Space) Land Acquisition and Park Land Development

- Create Quimby Act Park Land Acquisition and Development Impact Fee Fund, Note (1).
- Adopt Schedule 8.1, pages 99-100 , for residential uses requiring the subdivision of land for Quimby Act application.
- Create AB1600 Mitigation Fee Act Park Land Acquisition and Development Impact Fee Fund, Note (1)
- Adopt Schedule 8.1 pages 99-100, for residential uses not requiring the subdivision of land for AB1600 application.
- Adopt Schedule 8.4 Mitigation Fee Act Open Space Development Impact Fees, page 107, for application to the development of business uses.
- Adopt alternative process for residential developments with significantly varying land values from the *standard* or *default* calculation embodied in Schedule 8.1 and 8.4.

(1). Separate Park Land Acquisition and Development Funds are necessary because the Quimby Act allows use of receipts for rehabilitation of existing facilities whereas the AB1600 requirements prevent such expenditures.

APPENDIX C

Master Facilities Plan

(See Separate Document)

End of Document



March 16, 2012
Mayor Don Hansen & Members of City Council
City of Huntington Beach
2000 Main St.
Huntington Beach, CA 92648

Dear Mr. Mayor & Council Members:

On behalf of our members and in the interest of promoting greater economic growth in the City of Huntington Beach, the Chamber of Commerce wishes to weigh in on the proposed park, fire, and police impact fee increases that staff is scheduled to present to Council on April 2, 2012.

It is our position that the budding economic growth the city is experiencing is fragile and must be encouraged if it is to flourish. We supported the Beach and Edinger Corridors Specific Plan adoption and are excited to see it taking shape. To that end, a large and unexpected fee increase is something that may slow and potentially even stall the redevelopment that staff and council envisioned and desired in the first place. This is something we want to avoid.

First, it is our understanding that the proposed impact fee increases are quite large. We recommend that the nexus study be thoroughly reviewed to make sure that whatever fee amounts are ultimately presented to council be as accurate and as low as possible so our city remains an attractive place for development. A large fee increase could prove to be an onerous burden for projects in the planning stages and can negatively affect land valuations on all potential apartment sites throughout the city. As a Chamber we want the investment of hundreds of millions of dollars to be made here in Huntington Beach, bringing high quality development to our community.

Second, we recommend that the city be fair in providing a reasonable period and perhaps a phasing in of any fee increases. We feel that landowners and developers alike should be given ample notice to allow them time to adjust and prepare for the "impact" of the increased fees. We ask that grandfathering provisions be broad so that projects that have financial commitments may continue unaffected. We would likewise recommend that allowances be made for projects that have had financing delays, environmental delays, or other delays which are beyond the developer's control. Any tax or fee increase should be broadcast loud and clear months ahead of time so stakeholders aren't taken by surprise. A stakeholder meeting 3 weeks prior to council hearing is an extremely compressed time frame given the magnitude of the proposed increase.

Finally, we want to stress that these developments are going to bring diverse and energetic growth to the city. These residential units will be filled with students, young professionals, empty nesters, and families. They will serve as workforce housing and provide for the sensible and smart growth our local economy needs in order to thrive and stay competitive. These are consumers who will support our existing businesses and patronize the new commercial and retail being proposed, developed, and constructed today. Please do not hastily implement a massive new fee increase without fully considering the necessity, appropriateness, timeliness, and economic consequences.

We would highly recommend that a presentation to Council be delayed until such time as the developer community has time to work with staff to resolve the above concerns.

Sincerely,

Jerry L. Wheeler, Sr. IOM
President/CEO

EMAIL - 4/18/12
PUBLISH - 4/26/12

NOTICE OF PUBLIC HEARING
BEFORE THE CITY COUNCIL OF THE
CITY OF HUNTINGTON BEACH

NOTICE IS HEREBY GIVEN that on Monday, May 7, 2012, at 6:00 p.m. in the City Council Chambers, 2000 Main Street, Huntington Beach, the City Council will hold a public hearing on the following :

ADOPTION OF DEVELOPMENT IMPACT FEES RESOLUTION AND ADOPTION OF ORDINANCES ESTABLISHING CHAPTERS OF THE HUNTINGTON BEACH MUNICIPAL CODE (HBMC) REGARDING DEVELOPMENT IMPACT FEES (Traffic, Drainage, Library, Law Enforcement, Fire Suppression, Meeting Facilities, Parkland and General Provisions):

The City Council will consider the adoption of a fee resolution modifying the Fair Share Traffic Impact fee (HBMC 17.65), the Drainage fee (HBMC 17.78), the Library Development fee (HBMC 17.67) and the adoption of the nexus report and a comprehensive Master Facilities Plan. In addition, the City Council will consider the adoption of ordinances establishing HBMC chapters; Library Development Fee (HBMC 17.67), General Provisions for Development Impact Fees (HBMC 17.73), Fire Suppression Facilities Fee (HBMC 17.74), Law Enforcement Facilities Fee (HBMC 17.75), Park Land/Open Space Acquisition Impact Fee (HBMC 17.76), Public Meeting Facilities Fee (HBMC 17.77), and Drainage (HBMC 17.78). The proposed ordinances will repeal existing HBMC Chapters 14.48 (Drainage) and 17.66 (Library Development Fee). The proposed revisions to the existing fees and establishment of new fees are supported by the Development Impact Fee Calculation and Nexus Report prepared by Revenue & Cost Specialist, L.L.C. dated October 2011. The nexus report includes a comprehensive Master Facilities Plan of capital needs and acquisitions based upon the growth anticipated under the City's adopted General Plan.

ON FILE: A copy of the proposed request and supporting materials is on file in the Planning and Building Department, 2000 Main Street, Huntington Beach, California 92648, for inspection by the public. A copy of the staff report will be available to interested parties at the City Clerk's Office on Thursday, May 3, 2012.

ALL INTERESTED PERSONS are invited to attend said hearing and express opinions or submit evidence for or against the application as outlined above. If you challenge the City Council's action in court, you may be limited to raising only those issues you or someone else raised at the public hearing described in this notice, or in written correspondence delivered to the City at, or prior to, the public hearing. If there are any further questions please call the Planning and Building Department at (714) 536-5271 and refer to the above items. Direct your written communications to the City Clerk

Joan L. Flynn, City Clerk
City of Huntington Beach
2000 Main Street, 2nd Floor
Huntington Beach, California 92648
714-536-5227

<http://huntingtonbeachca.gov/HBPublicComments/>



Los Angeles Times

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Phone:

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Los Angeles Times

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Address: PO Box 784
Huntington Beach, CA 92648
Acct #: CU00070479
Client: City Of Huntington Beach-Clerk's O
Placed by: Patty Esparza
Fax #: (714) 374-1557

Ad Information

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Stop date: 05-03-12
Insertions: 2
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Billed size: 14.00 TCN Inch
Keyword: Liner
Ad type: Liner
Class: 13000 - Legal Notices
Pubs: TCN HBI
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Net price: \$ 213.50
Amt Due: \$ 213.50

Note: Amount Due is subject to change due to discounts, miscellaneous fees, or other charges.

Ad Copy:

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Los Angeles Times

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(HBMC 17.77), and Drainage (HBMC 17.78). The proposed ordinances will repeal existing HBMC Chapters 14.48 (Drainage) and 17.66 (Library Development Fee). The proposed revisions to the existing fees and establishment of new fees are supported by the Development Impact Fee Calculation and Nexus Report prepared by Revenue & Cost Specialist, L.L.C. dated October 2011. The nexus report includes a comprehensive Master Facilities Plan of capital needs and acquisitions based upon the growth anticipated under the City's adopted General Plan.

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Joan L. Flynn, City Clerk
City of Huntington Beach
2000 Main Street, 2nd
Floor

Huntington Beach, California 92648
714-536-5227

<http://huntingtonbeach.ca.gov/HBPublicComments/>
Published H.B. Independent April 26, 2012



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Urban Infill Properties, Inc.
345 University Drive, Suite E-3
Costa Mesa, CA 92627

John Vander Velde
Shea Homes
1250 Corona Pointe Ct., Suite 600
Corona, CA 92879

Holly Fredensburg
16072 Gothard St
Huntington Beach, CA 92647

Dave Oddo
815 Main Street
Huntington Beach, CA 92648

Robert Corona
2204 Pacific Coast Highway
Huntington Beach, CA 92648

Van Herk
3194 Haiti Circle
Costa Mesa, CA 92626

Bruce Roeland
1720 Pacific Coast Highway #201
Huntington Beach, CA 92648

Scott Goodman
Goodman Development
17032 Palmdale Lane
Huntington Beach, CA 92647

Myles Const
9569 Albacore Ave
Huntington Beach, CA 92648

Maddox Const
Maddox Const
14736 Beach Blvd
Westminster, CA 92683

D'Ambra
D'Ambra Inc.
7752 Warner Ave
Huntington Beach, CA 92647

Kevin Kelter
1616 Pacific Coast Highway
Huntington Beach, CA 92648

Bob Reed
RW Reed
419 Main Street #289
Huntington Beach, CA 92648

Marty Sunday
16402 Gothard St #B
Huntington Beach, CA 92647

Johnson Bros
730 14th Street
Huntington Beach, CA 92648

Bill Teffon
2233 Calle Leon
West Covina, CA 91792

RJ Murphy
6781 Defiance Drive
Huntington Beach, CA 92647

Dick Harlow
1742 Main Street
Huntington Beach, CA 92648

5/7/12
DIF





Development Impact Fee Study and Nexus Report

City Council Meeting
Monday, May 7, 2012



Background

- This process began in 2009 as a result of various presentations to City Council regarding the increasing need for Capital Improvements to respond to development in Huntington Beach.
- Staff was given direction to identify funding sources to move Heil Fire Station, address other public safety needs and make park improvements to accommodate projected development.
- There were numerous complaints by developers regarding perceived excessive park fees for Condos and Single Family Homes.
- This report prepared by Revenue & Cost Specialists addresses those issues.

**SUPPLEMENTAL
COMMUNICATION**

Meeting Date: 5/7/12

Agenda Item No. 9



Background

- Development Impact fees are one-time charges applied to offset additional public-service costs of new development
- The amount of the proposed fee must be clearly linked to the added service cost (required by the Mitigation Fee Act):
 - Need demonstrated by *Master Facilities Plan* (October 2011, amended April 2012)
 - Nexus established by *Development Impact Fee Calculation and Nexus Report* (October 2011, amended April 2012)



Chronology

- Received October 2011 report - November 2011
- Distributed reports to Council – December 2011
- Initial meeting with BIA and Chamber of Commerce – December 2011
- Study Session – January 17, 2012
- Notice on City counters, posted reports to website, mailed notices to stakeholders – February 2012
- Stakeholder meeting with Developers – March 13, 2012
- Chamber of Commerce Legislative Committee – March 28, 2012
- Follow up meetings, letters to stakeholders – March and April 2012
- Public hearing notice distributed – April 19, 2012
- Received April 2012 revised report – April 27, 2012
- Agendized for Council Meeting May 7, 2012



Report Content

- The Development Impact Fee Report contemplates 2 new fees:
 - Police
 - Fire
- Update of existing fees:
 - Traffic
 - Library
 - Park Land/Open Space
- Fees collected under the Subdivision Map Act will be addressed separately at a later date:
 - Quimby (Park Land/Open Space with Tract Map)
 - Storm Drainage



Amended Report

- April 27, 2012: Nexus report (October 2011) amended to consolidate Park Land Open Space Fee (Chapter 8) and Public Meeting Facilities Fee (Chapter 9)
 - Due to additional costs associated with the accounting, collection and state mandated tracking
- Additionally, a calculation error in the Master Facilities Plan was corrected on pages 1-3, 57, 58, 71, and 78



Recommendation

- The maximum Development Impact Fees are identified in the *Development Impact Fee Calculation and Nexus Report* on page 26, table 2.1
- Staff does not recommend full implementation of the maximum new fees for residential units, but rather a phase-in over 3 years up to 90% of the maximum new fees collected
- Note: Modification of fees for Storm Drainage and Quimby (Park Land/Open Space & Facilities with Tract Map), fall under the Subdivision Map Act and will be addressed at a later date



Proposed Fees

Development Impact Fees (Effective 7/20/2012)



Land Use	Law Enforcement Facilities*	Fire Suppression Facilities*	Circulation System (Streets, Signals, Bridges)*	Public Library Facilities	Park Land/ Open Space & Facilities (No Tract Map)*
Detached Dwelling Units (per Unit)	\$277	\$645	\$1,737	\$1,172	\$12,500
Attached Dwelling Units (per Unit)	\$571	\$267	\$1,220	\$908	\$9,685
Mobile Home Dwelling Units (per Unit)	\$258	\$1,108	\$909	\$733	\$7,818
Hotel/Motel Lodging Units (per Unit)	\$455	\$356	\$1,062	No Fee	\$459
Resort Lodging Units (per Unit)	\$532	\$794	\$1,538	No Fee	\$359
Commercial/Office Uses (per sq. ft.)	\$1.041	\$0.329	\$4.175	No Fee	\$0.954
Industrial/Manufacturing Uses (per sq. ft.)	\$0.443	\$0.030	\$1.789	No Fee	\$0.772

*Represents 70% of recommended residential land use fee set forth in the Development Impact Fee Calculation and Nexus Report, October 2011 (Amended April 27, 2012)

Land Use	Adjusted Trip Ends (per Unit)	Average Distance (mi)	Trip-end to Trip	Additional Trip Miles	Cost per Trip Mile	Cost per 1000 sq. ft. dwelling unit or other unit
RESIDENTIAL LAND USES (per Unit)						
Detached Dwelling Unit	8.76	7.9	0.5	34.6	\$ 50.22	\$ 1,737.61 /Unit
Apartment	6.15	7.9	0.5	24.3	\$ 50.22	\$ 1,220.35 /Unit
Condominium/Townhome	5.36	7.9	0.5	21.2	\$ 50.22	\$ 1,064.66 /Unit
Mobile Home Dwelling	4.57	7.9	0.5	18.1	\$ 50.22	\$ 908.98 /Unit
RESORT/TOURIST (per Unit or Entry Door)						
Hotel	6.29	7.6	0.5	23.9	\$ 64.34	\$ 1,537.73 /Room
All Suites Hotel	3.77	7.6	0.5	14.3	\$ 64.34	\$ 920.06 /Room
Motel	4.34	7.6	0.5	16.9	\$ 64.34	\$ 1,061.61 /Room
INDUSTRIAL (per 1,000 SF)						
General Light Industrial	6.17	9.0	0.5	27.8	\$ 64.34	\$ 1,788.65 /1,000 sf
Heavy Industrial	5.97	9.0	0.5	26.9	\$ 64.34	\$ 1,730.75 /1,000 sf
Manufacturing	2.73	9.0	0.5	12.3	\$ 64.34	\$ 791.38 /1,000 sf
Warehousing	4.39	9.0	0.5	19.8	\$ 64.34	\$ 1,273.93 /1,000 sf
COMMERCIAL (per 1,000 SF)						
Office Park	7.42	8.8	0.5	32.6	\$ 64.34	\$ 2,097.48 /1,000 sf
Research Park	5.01	8.8	0.5	22.0	\$ 64.34	\$ 1,415.48 /1,000 sf
Business Park	9.34	8.8	0.5	41.1	\$ 64.34	\$ 2,644.37 /1,000 sf
Bigg, Materials/Lumber Store	29.35	4.3	0.5	63.1	\$ 64.34	\$ 4,059.85 /1,000 sf
Garden Center	23.46	4.3	0.5	50.4	\$ 64.34	\$ 3,242.74 /1,000 sf
Movie Theater	2.47	4.3	0.5	5.3	\$ 64.34	\$ 341.00 /1,000 sf
Church	5.62	4.3	0.5	12.7	\$ 64.34	\$ 817.12 /1,000 sf
Medical-Dental Office	22.21	8.8	0.5	97.7	\$ 64.34	\$ 6,286.02 /1,000 sf
General Office Building	7.16	8.8	0.5	31.5	\$ 64.34	\$ 2,026.71 /1,000 sf
Shopping Center	30.2	4.3	0.5	64.9	\$ 64.34	\$ 4,175.67 /1,000 sf
Hospital	11.42	4.3	0.5	24.6	\$ 64.34	\$ 1,582.76 /1,000 sf
Discount Center	62.93	4.3	0.5	135.3	\$ 64.34	\$ 8,705.20 /1,000 sf
High-Turnover Restaurant	8.9	4.3	0.5	19.1	\$ 64.34	\$ 1,228.89 /1,000 sf
Convenience Market	43.57	4.3	0.5	93.7	\$ 64.34	\$ 6,026.66 /1,000 sf
Office Park	13.97	4.3	0.5	30.0	\$ 64.34	\$ 1,930.20 /1,000 sf
OTHER (as noted)						
Cemetery	3.07	4.3	0.5	6.6	\$ 64.34	\$ 424.64 /Acre
Service Station/Market (w/Car Wash)	107.69	4.3	0.5	231.5	\$ 64.34	\$ 14,894.71 /Fuel Position
Service Station w/Car Wash	99.35	4.3	0.5	213.6	\$ 64.34	\$ 13,743.02 /Fuel Position



Development Impact Fees (Effective 7/20/2013)



Land Use	Law Enforcement Facilities*	Fire Suppression Facilities*	Circulation System (Streets, Signals, Bridges)*	Public Library Facilities	Park Land/ Open Space & Facilities (No Tract Map)*
Detached Dwelling Units (per Unit)	\$317	\$738	\$1,986	\$1,172	\$14,286
Attached Dwelling Units (per Unit)	\$652	\$306	\$1,395	\$908	\$11,068
Mobile Home Dwelling Units (per Unit)	\$295	\$1,266	\$1,039	\$733	\$8,935
Hotel/Motel Lodging Units (per Unit)	\$455	\$356	\$1,062	No Fee	\$459
Resort Lodging Units (per Unit)	\$532	\$794	\$1,538	No Fee	\$359
Commercial/Office Uses (per sq. ft.)	\$1.041	\$0.329	\$4.175	No Fee	\$0.954
Industrial/Manufacturing Uses (per sq. ft.)	\$0.443	\$0.030	\$1.789	No Fee	\$0.772

*Represents 80% of recommended residential land use fee set forth in the Development Impact Fee Calculation and Nexus Report, October 2011 (Amended April 27, 2012)

Land Use	Adjusted Trip Ends	Average Distance	Trip-end to Trip	Additional Trip Miles	Cost per Trip Mile	Cost per 1000 sq. ft. dwelling unit or other unit
RESIDENTIAL LAND USES (per Unit)						
Detached Dwelling Unit	8.78	7.9	0.5	34.6	\$ 57.39	\$ 1,985.69 /Unit
Apartment	6.15	7.9	0.5	24.3	\$ 57.39	\$ 1,394.58 /Unit
Condominium/ Townhouse	5.36	7.9	0.5	21.2	\$ 57.39	\$ 1,216.67 /Unit
Mobile Home Dwelling	4.57	7.9	0.5	18.1	\$ 57.39	\$ 1,038.76 /Unit
RESORT/TOURIST (per Unit or Entry Door)						
Hotel	6.29	7.6	0.5	23.9	\$ 64.34	\$ 1,537.73 /Room
All Suites Hotel	3.77	7.6	0.5	14.3	\$ 64.34	\$ 920.08 /Room
Motel	4.34	7.6	0.5	16.5	\$ 64.34	\$ 1,061.61 /Room
INDUSTRIAL (per 1,000 SF)						
General Light Industrial	6.17	9.0	0.5	27.8	\$ 64.34	\$ 1,788.85 /1,000 sf
Heavy Industrial	5.97	9.0	0.5	26.9	\$ 64.34	\$ 1,730.75 /1,000 sf
Manufacturing	2.73	9.0	0.5	12.3	\$ 64.34	\$ 791.38 /1,000 sf
Warehousing	4.39	9.0	0.5	19.8	\$ 64.34	\$ 1,273.93 /1,000 sf
COMMERCIAL (per 1,000 SF)						
Office Park	7.42	8.8	0.5	32.6	\$ 64.34	\$ 2,097.48 /1,000 sf
Research Park	5.01	8.8	0.5	22.0	\$ 64.34	\$ 1,415.48 /1,000 sf
Business Park	9.34	8.8	0.5	41.1	\$ 64.34	\$ 2,644.37 /1,000 sf
Bldg. Materials/Lumber Store	29.35	4.3	0.5	63.1	\$ 64.34	\$ 4,059.85 /1,000 sf
Garden Center	23.45	4.3	0.5	50.4	\$ 64.34	\$ 3,242.74 /1,000 sf
Movie Theater	2.47	4.3	0.5	5.3	\$ 64.34	\$ 341.00 /1,000 sf
Church	5.92	4.3	0.5	12.7	\$ 64.34	\$ 817.12 /1,000 sf
Medical-Dental Office	22.21	8.8	0.5	97.7	\$ 64.34	\$ 6,286.02 /1,000 sf
General Office Building	7.16	8.8	0.5	31.5	\$ 64.34	\$ 2,026.71 /1,000 sf
Shopping Center	30.2	4.3	0.5	64.9	\$ 64.34	\$ 4,175.67 /1,000 sf
Hospital	11.42	4.3	0.5	24.6	\$ 64.34	\$ 1,582.76 /1,000 sf
Discount Center	62.93	4.3	0.5	135.3	\$ 64.34	\$ 8,705.20 /1,000 sf
High-Turnover Restaurant	8.9	4.3	0.5	19.1	\$ 64.34	\$ 1,228.89 /1,000 sf
Convenience Market	43.57	4.3	0.5	93.7	\$ 64.34	\$ 6,028.66 /1,000 sf
Office Park	13.97	4.3	0.5	30.0	\$ 64.34	\$ 1,930.20 /1,000 sf
OTHER (as noted)						
Cemetery	3.07	4.3	0.5	6.6	\$ 64.34	\$ 424.64 /Acre
Service Station/Market (avg)	107.69	4.3	0.5	231.5	\$ 64.34	\$ 14,894.71 /Fuel Position
Service Station w/Car Wash	99.35	4.3	0.5	213.6	\$ 64.34	\$ 13,743.02 /Fuel Position



Development Impact Fees (Effective 7/20/2014)



Land Use	Law Enforcement Facilities*	Fire Suppression Facilities*	Circulation System (Streets, Signals, Bridges)*	Public Library Facilities	Park Land/ Open Space & Facilities (No Tract Map)*
Detached Dwelling Units (per Unit)	\$356	\$830	\$2,226	\$1,172	\$16,071
Attached Dwelling Units (per Unit)	\$734	\$344	\$1,563	\$908	\$12,452
Mobile Home Dwelling Units (per Unit)	\$332	\$1,425	\$1,165	\$733	\$10,052
Hotel/Motel Lodging Units (per Unit)	\$455	\$356	\$1,062	No Fee	\$459
Resort Lodging Units (per Unit)	\$532	\$794	\$1,538	No Fee	\$359
Commercial/Office Uses (per sq. ft.)	\$1.041	\$0.329	\$4.175	No Fee	\$0.954
Industrial/Manufacturing Uses (per sq. ft.)	\$0.443	\$0.030	\$1.789	No Fee	\$0.772

*Represents 90% of recommended residential land use fee set forth in the Development Impact Fee Calculation and Nexus Report, October 2011 (Amended April 27, 2012)

Land Use	Adjusted Trip Ends	Average Distance	Trip-end to Trip	Additional Trip Miles	Cost per Trip Mile	Cost per 1000 sq. ft. dwelling unit or other unit
RESIDENTIAL LAND USES (per Unit)						
Detached Dwelling Unit	8.76	7.9	0.5	34.6	\$ 64.34	\$ 2,226.16 /Unit
Apartment	6.15	7.9	0.5	24.3	\$ 64.34	\$ 1,563.46 /Unit
Condominium/ Townhouse	5.36	7.9	0.5	21.2	\$ 64.34	\$ 1,364.01 /Unit
Mobile Home Dwelling	4.57	7.9	0.5	18.1	\$ 64.34	\$ 1,164.55 /Unit
RESORT/TOURIST (per Unit or Entry Door)						
Hotel	6.29	7.6	0.5	23.9	\$ 64.34	\$ 1,537.73 /Room
All Suites Hotel	3.77	7.6	0.5	14.3	\$ 64.34	\$ 920.06 /Room
Motel	4.34	7.6	0.5	16.5	\$ 64.34	\$ 1,061.61 /Room
INDUSTRIAL (per 1,000 SF)						
General Light Industrial	6.17	9.0	0.5	27.8	\$ 64.34	\$ 1,788.65 /1,000 sf
Heavy Industrial	5.97	9.0	0.5	26.9	\$ 64.34	\$ 1,730.75 /1,000 sf
Manufacturing	2.73	9.0	0.5	12.3	\$ 64.34	\$ 791.36 /1,000 sf
Warehousing	4.39	9.0	0.5	19.8	\$ 64.34	\$ 1,273.93 /1,000 sf
COMMERCIAL (per 1,000 SF)						
Office Park	7.42	8.8	0.5	32.6	\$ 64.34	\$ 2,097.48 /1,000 sf
Research Park	5.01	8.8	0.5	22.0	\$ 64.34	\$ 1,415.48 /1,000 sf
Business Park	9.34	8.8	0.5	41.1	\$ 64.34	\$ 2,644.37 /1,000 sf
Bldg. Materials/Lumber Store	29.35	4.3	0.5	63.1	\$ 64.34	\$ 4,059.85 /1,000 sf
Garden Center	23.45	4.3	0.5	50.4	\$ 64.34	\$ 3,242.74 /1,000 sf
Movie Theater	2.47	4.3	0.5	5.3	\$ 64.34	\$ 341.00 /1,000 sf
Church	5.92	4.3	0.5	12.7	\$ 64.34	\$ 817.12 /1,000 sf
Medical-Dental Office	22.21	8.8	0.5	97.7	\$ 64.34	\$ 6,286.02 /1,000 sf
General Office Building	7.16	8.8	0.5	31.5	\$ 64.34	\$ 2,026.71 /1,000 sf
Shopping Center	30.2	4.3	0.5	64.9	\$ 64.34	\$ 4,175.67 /1,000 sf
Hospital	11.42	4.3	0.5	24.6	\$ 64.34	\$ 1,582.76 /1,000 sf
Discount Center	62.93	4.3	0.5	135.3	\$ 64.34	\$ 8,705.20 /1,000 sf
High-Turnover Restaurant	8.9	4.3	0.5	19.1	\$ 64.34	\$ 1,228.89 /1,000 sf
Convenience Market	43.57	4.3	0.5	93.7	\$ 64.34	\$ 6,026.66 /1,000 sf
Office Park	13.97	4.3	0.5	30.0	\$ 64.34	\$ 1,930.20 /1,000 sf
OTHER (as noted)						
Cemetery	3.07	4.3	0.5	6.6	\$ 64.34	\$ 424.64 /Acre
Service Station/Market (avg)	107.65	4.3	0.5	231.5	\$ 64.34	\$ 14,894.71 /Fuel Position
Service Station w/Car Wash	99.35	4.3	0.5	213.6	\$ 64.34	\$ 13,743.02 /Fuel Position





Current vs. Proposed Agency Comparables

Agency Comparables

Law Enforcement Facilities

	Current Fee	Effective 7/20/12	Effective 7/20/13	Effective 7/20/14	Anaheim (Platinum Triangle)	Orange	Newport Beach	Irvine (Irvine Business Complex)
Detached Dwelling Units (per Unit)	No Fee	\$277	\$317	\$356	No Fee \$ 747	\$355	No Fee	No Fee
Attached Dwelling Units (per Unit)	No Fee	\$571	\$652	\$734	No Fee \$ 623	\$355	No Fee	No Fee
Mobile Home Dwelling Units (per Unit)	No Fee	\$258	\$295	\$332	No Fee \$ 385	No Fee	No Fee	No Fee
Hotel/Motel Lodging Units (per Unit)	No Fee	\$455	\$455	\$455	No Fee \$ 726	\$0.21 (sf)	No Fee	No Fee
Resort Lodging Units (per Unit)	No Fee	\$532	\$532	\$532	No Fee -	-	No Fee	No Fee
Commercial/Office Uses (per sq. ft.)	No Fee	\$1.041	\$1.041	\$1.041	No Fee \$ 0.8390	\$0.21	No Fee	No Fee
Industrial/Manufacturing Uses (per sq. ft.)	No Fee	\$0.443	\$0.443	\$0.443	No Fee \$ 0.106	\$0.21	No Fee	No Fee

Fire Suppression Facilities

	Current Fee	Effective 7/20/12	Effective 7/20/13	Effective 7/20/14	Anaheim (Platinum Triangle)	Orange	Newport Beach	Irvine (Irvine Business Complex)
Detached Dwelling Units (per Unit)	No Fee	\$645	\$738	\$830	No Fee \$2,493	\$1,200	No Fee	\$600
Attached Dwelling Units (per Unit)	No Fee	\$267	\$306	\$344	No Fee \$1,321	\$601	No Fee	\$600
Mobile Home Dwelling Units (per Unit)	No Fee	\$1,108	\$1,266	\$1,425	No Fee \$2,493	No Fee	No Fee	\$600
Hotel/Motel Lodging Units (per Unit)	No Fee	\$356	\$356	\$356	No Fee \$891	\$955	No Fee	\$600
Resort Lodging Units (per Unit)	No Fee	\$794	\$794	\$794	No Fee -	-	No Fee	\$600
Commercial/Office Uses (per sq. ft.)	No Fee	\$0.329	\$0.329	\$0.329	No Fee \$1.440	\$0.60	No Fee	600[(SF/1000) *0.9]
Industrial/Manufacturing Uses (per sq. ft.)	No Fee	\$0.030	\$0.030	\$0.030	No Fee \$0.199	\$0.57	No Fee	600[(SF/1000) *0.9]

Agency Comparables



Circulation System Fee

	Current Fee	Effective 7/20/12	Effective 7/20/13	Effective 7/20/14	Anaheim (Platinum Triangle)	Orange	Newport Beach	Irvine (Irvine Business Complex)
Detached Dwelling Units (per Unit)	\$1,507	\$1,737	\$1,986	\$2,226	\$1,743	\$3,174	\$843	\$2,088
Attached Dwelling Units (per Unit)	\$1,058	\$1,220	\$1,395	\$1,563	\$1,114	\$4,307	\$764	\$1,234
Mobile Home Dwelling Units (per Unit)	\$786	\$909	\$1,039	\$1,165	-	-	-	\$1,139
Motel Lodging Units (per Unit)	\$746	\$1,062	\$1,062	\$1,062	\$1,266	-	\$912	\$1,993
Resort Lodging Units (per Unit)	\$1,081	\$1,538	\$1,538	\$1,538	\$1,266	-	-	\$1,139
Commercial/Office Uses (per sq. ft.)	\$5.194	\$4.175	\$4.175	\$4.175	\$4.720	\$43.25	\$4.64	\$7593/unit
Industrial/Manufacturing Uses (per sq. ft.)	\$1.061	\$1.789	\$1.789	\$1.789	\$1.220	\$2.930	\$0.79	\$949/unit

Public Library Facilities

	Current Fee	Effective 7/20/12	Effective 7/20/13	Effective 7/20/14	Anaheim (Platinum Triangle)	Orange	Newport Beach	Irvine (Irvine Business Complex)
Detached Dwelling Units (per Unit)	\$0.44/SF	\$1,172	\$1,172	\$1,172	No Fee	\$487	\$743	No Fee
Attached Dwelling Units (per Unit)	\$0.44/SF	\$908	\$908	\$908	No Fee	\$487	\$743	No Fee
Mobile Home Dwelling Units (per Unit)	\$0.44/SF	\$733	\$733	\$733	No Fee	\$487	No Fee	No Fee
Hotel/Motel Lodging Units (per Unit)	\$0.04/SF	No Fee	No Fee	No Fee	No Fee	No Fee	No Fee	No Fee
Resort Lodging Units (per Unit)	\$0.04/SF	No Fee	No Fee	No Fee	No Fee	No Fee	No Fee	No Fee
Commercial/Office Uses (per sq. ft.)	\$0.04/SF	No Fee	No Fee	No Fee	No Fee	No Fee	No Fee	No Fee
Industrial/Manufacturing Uses (per sq. ft.)	\$0.04/SF	No Fee	No Fee	No Fee	No Fee	No Fee	No Fee	No Fee

Agency Comparables



Park Land/Open Space (No Tract Map)

	Current Fee	Effective 7/20/12	Effective 7/20/13	Effective 7/20/14	Anaheim (Platinum Triangle)	Orange	Newport Beach	Irvine (Irvine Business Complex)
Detached Dwelling Units (per Unit)	\$0.86/SF	\$12,500	\$14,286	\$16,071	\$6,936	\$8,114	\$8,894	\$26,125
Attached Dwelling Units (per Unit)	\$0.86/SF	\$9,685	\$11,068	\$12,452	\$5,388	\$8,114	\$8,894	\$26,125
Mobile Home Dwelling Units (per Unit)	No Fee	\$7,818	\$8,935	\$10,052	\$4,149	No Fee	No Fee	No Fee
Hotel/Motel Lodging Units (per Unit)	\$0.23/SF	\$459	\$459	\$459	No Fee	No Fee	No Fee	No Fee
Resort Lodging Units (per Unit)	\$0.23/SF	\$359	\$359	\$359	No Fee	No Fee	No Fee	No Fee
Commercial/Office Uses (per sq. ft.)	\$0.23/SF	\$0.954	\$0.954	\$0.954	No Fee	No Fee	No Fee	No Fee
Industrial/Manufacturing Uses (per sq. ft.)	\$0.23/SF	\$0.772	\$0.772	\$0.772	No Fee	No Fee	No Fee	No Fee

*Fair
market
value
appraisal &
acreage
requireme
nts



Implementation & Applicability

Current

- Fees collected at Building Permit Issuance, except Quimby Fees

Recommendation

- Fees due at Building Final or Certificate of Occupancy



Projects in the Works

Projects are “grandfathered” under current fee structure if:

- Entitled by June 4, 2012 (zoning entitlement approval – CUP, SPR, Variances, etc.)
- Submit approved application for building permits within 180 days of fees going into effect (no later than 1/20/2013)
- Continued progress toward satisfying plan check comments
- Building permits issued within 360 days of fees going into effect (no later than 7/20/2013)
- Exception: Outside 3rd party regulatory agency involvement may allow for an extension of this provision



All New Projects

- Subject to new fees 60 days from date of the 2nd reading (7/20/12)
- Phased Implementation of Law Enforcement, Fire Suppression, Circulation and Park Facilities Fee (for Detached, Attached, & Mobile Home Residential Units)
 - 70% Implementation beginning 7/20/12
 - 80% Implementation beginning 7/20/13
 - 90% Implementation beginning 7/20/14
- 100% implementation of all other fees beginning 7/20/12 (for all Non-Residential Developments, and full implementation of Public Library fee for all)



Example Project Scenarios

Project # 1 200 Unit Apartment Complex



	Current: City of Huntington Beach	RCS Nexus Report: (100%)	70% (effective 7/20/2012)	80% (effective 7/20/2013)	90% (effective 7/20/2014)
Law Enforcement Facilities	No Fee	\$ 163,000	\$ 114,200	\$ 130,400	\$ 146,800
Fire Suppression Facilities	No Fee	\$ 76,400	\$ 53,400	\$ 61,200	\$ 68,800
Circulation System (Streets, Signals, Bridges)	\$ 211,600	\$ 331,400	\$ 244,070	\$ 278,916	\$ 312,692
Public Library Facilities	\$ 81,840	\$ 181,600	\$ 181,600	\$ 181,600	\$ 181,600
Park Land/ Open Space Acquisition & Improvements	\$ 159,960	\$ 2,767,000	\$ 1,937,000	\$ 2,213,600	\$ 2,490,400
Development Impact Fee Total-Project*	\$ 453,400	\$ 3,519,400	\$ 2,530,270	\$ 2,865,716	\$ 3,200,292

*Total does not include Storm Drainage Impact fee which developer may be subject to

Project # 2 50 Single Family Detached



	Current: City of Huntington Beach	RCS Nexus Report (100%)	70% (effective 7/20/2012)	80% (effective 7/20/2013)	90% (effective 7/20/2014)
Law Enforcement Facilities	No Fee	\$ 19,800	\$ 13,860	\$ 15,850	\$ 17,800
Fire Suppression Facilities	No Fee	\$ 46,100	\$ 32,270	\$ 36,900	\$ 41,500
Circulation System (Streets, Signals, Bridges)	\$ 75,350	\$ 124,100	\$ 86,850	\$ 99,300	\$ 111,300
Public Library Facilities	\$ 70,800	\$ 58,600	\$ 58,600	\$ 58,600	\$ 58,600
Park Land/ Open Space Acquisition & Improvements	\$ 1,340,000	\$ 892,850	\$ 625,000	\$ 714,300	\$ 803,550
Development Impact Fee Total-Project	\$ 1,486,150	\$ 1,141,450	\$ 816,580	\$ 924,950	\$ 1,032,750

*Total does not include Storm Drainage Impact fee which developer may be subject to

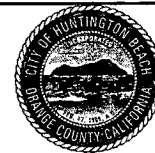
Project # 3 150 Room Hotel (200,000 SF)



	<i>Current: City of Huntington Beach</i>	<i>Proposed: City of Huntington Beach (100%)</i>
Law Enforcement Facilities	No Fee	\$ 68,250
Fire Suppression Facilities	No Fee	\$ 53,400
Circulation System (Streets, Signals, Bridges)	\$ 111,900	\$ 159,300
Public Library Facilities	\$ 8,000	No Fee
Park Land/ Open Space Acquisition & Improvements	\$ 46,000	\$ 68,850
Development Impact Fee Total-Project	\$ 165,900	\$ 349,800

*Total does not include Storm Drainage Impact fee which developer may be subject to

Project # 4 40,000 SF Commercial (Shopping Center)



	<i>Current: City of Huntington Beach</i>	<i>Proposed: City of Huntington Beach (100%)</i>
Law Enforcement Facilities	No Fee	\$ 41,640
Fire Suppression Facilities	No Fee	\$ 13,160
Circulation System (Streets, Signals, Bridges)	\$ 207,760	\$ 167,000
Public Library Facilities	\$ 1,600	No Fee
Park Land/ Open Space Acquisition & Improvements	\$ 9,200	\$ 38,160
Development Impact Fee Total-Project	\$ 218,560	\$ 259,960

*Total does not include Storm Drainage Impact fee which developer may be subject to



Summary

Staff is recommending approval of the proposed resolution and ordinances based upon the following reasons:

- The phased-in residential per unit fee established herein allows developers to easily calculate development impact fees
- The fees established herein meet the City's changing requirement for public safety, streets and signals, and other quality of life facilities
- Allows for payment of Development Impact Fees at the time the impact is imposed on the system, therefore later in the development process.



Questions

STATE OF CALIFORNIA)) ss.
COUNTY OF ORANGE)

I am a citizen of the United States and a resident of the County of Los Angeles; I am over the age of eighteen years, and not a party to or interested in the notice published. I am a principal clerk of the HUNTINGTON BEACH INDEPENDENT, which was adjudged a newspaper of general circulation on September 29, 1961, case A6214, and June 11, 1963, case A24831, for the City of Huntington Beach, County of Orange, and the State of California. Attached to this Affidavit is a true and complete copy as was printed and published on the following date(s):

Thursday, April 26, 2012
Thursday, May 3, 2012

I certify (or declare) under penalty of perjury that the foregoing is true and correct.

Executed on May 11, 2012
at Los Angeles, California

Michael Conner

Signature

**NOTICE OF PUBLIC HEARING
BEFORE THE CITY COUNCIL
OF THE
CITY OF HUNTINGTON
BEACH**

NOTICE IS HEREBY GIVEN that on Monday, May 7, 2012, at 6:00 p.m. in the City Council Chambers, 2000 Main Street, Huntington Beach, the City Council will hold a public hearing on the following:

ADOPTION OF DEVELOPMENT IMPACT FEES RESOLUTION AND ADOPTION OF ORDINANCES ESTABLISHING CHAPTERS OF THE HUNTINGTON BEACH MUNICIPAL CODE (HBMC) REGARDING DEVELOPMENT IMPACT FEES (Traffic, Drainage, Library, Law Enforcement, Fire Suppression, Meeting Facilities, Parkland and General Provisions):

General Provisions: The City Council will consider the adoption of a fee resolution modifying the Fair Share Traffic Impact Fee (HBMC 17.65), the Drainage fee (HBMC 17.78), the Library Development fee (HBMC 17.67) and the adoption of the nexus report and a comprehensive Master Facilities Plan. In addition, the City Council will consider the adoption of ordinances establishing HBMC chapters; Library Development Fee (HBMC 17.67), General Provisions for Development Impact Fees (HBMC 17.73), Fire Suppression Facilities Fee (HBMC 17.74), Law Enforcement Facilities Fee (HBMC 17.75), Park Land/Open Space Acquisition Impact Fee (HBMC 17.76), Public Meeting Facilities Fee (HBMC 17.77), and Drainage (HBMC 17.78). The proposed ordinances will repeal existing HBMC Chapters 14.48 (Drainage) and 17.66 (Library Development Fee). The proposed revisions to the existing fees and establishment of new fees are supported by the Development Impact Fee Calculation and Nexus Report prepared by Revenue & Cost Specialist, L.L.C. dated October 2011. The nexus report includes a comprehensive Master Facilities Plan of capital needs and acquisitions based upon the growth anticipated under the City's adopted General Plan.

ON FILE: A copy of the proposed request and supporting materials is on file in the Planning and Building Department, 2000 Main Street, Huntington Beach, California 92648, for inspection by the public. A copy of the staff report will be available to interested parties at the City Clerk's Office on Thursday, May 3, 2012.

ALL INTERESTED PERSONS are invited to attend said hearing and express opinions, or submit evidence for or against the application as outlined above. If you challenge the City Council's action in court, you may be limited to raising only those issues you or someone else raised at the public hearing described in this notice, or in written correspondence delivered to the City at, or prior to, the public hearing. If there are any further questions please call the Planning and Building Department at (714) 536-5271 and refer to the above items. Direct your written communications to the City Clerk

Joan L. Flynn, City Clerk
City of Huntington
Beach
2000 Main Street, 2nd
Floor
Huntington Beach,
California 92648
714-536-5227
[http://huntingtonbeach
ca.gov/](http://huntingtonbeach.ca.gov/)
HBPublicComments/
Published H.B. Independ-
ent April 26, 2012

PROOF OF PUBLICATION

STATE OF CALIFORNIA)
) SS.
COUNTY OF ORANGE)

I am a citizen of the United States and a resident of the County of Los Angeles; I am over the age of eighteen years, and not a party to or interested in the notice published. I am a principal clerk of the HUNTINGTON BEACH INDEPENDENT, which was adjudged a newspaper of general circulation on September 29, 1961, case A6214, and June 11, 1963, case A24831, for the City of Huntington Beach, County of Orange, and the State of California. Attached to this Affidavit is a true and complete copy as was printed and published on the following date(s):

Thursday, April 26, 2012
Thursday, May 3, 2012

I certify (or declare) under penalty of perjury that the foregoing is true and correct.

Executed on May 11, 2012
at Los Angeles, California

Michael Hamuro

Signature

410

NOTICE OF PUBLIC HEARING BEFORE THE CITY COUNCIL OF THE CITY OF HUNTINGTON BEACH

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The City Council will consider the adoption of a fee resolution modifying the Fair Share Traffic Impact fee (HBMC 17.65), the Drainage fee (HBMC 17.78), the Library Development fee (HBMC 17.67) and the adoption of the nexus report and a comprehensive Master Facilities Plan. In addition, the City Council will consider the adoption of ordinances establishing HBMC chapters: Library Development Fee (HBMC 17.67), General Provisions for Development Impact Fees (HBMC 17.73), Fire Suppression Facilities Fee (HBMC 17.74), Law Enforcement Facilities Fee (HBMC 17.75), Park Land/Open Space Acquisition Impact Fee (HBMC 17.76), Public Meeting Facilities Fee (HBMC 17.77), and Drainage (HBMC 17.78). The proposed ordinances will repeal existing HBMC Chapters 14.48 (Drainage) and 17.66 (Library Development Fee). The proposed revisions to the existing fees and establishment of new fees, are supported by the Development Impact Fee Calculation and Nexus Report prepared by Revenue & Cost Specialist, L.L.C. dated October 2011. The nexus report includes a comprehensive Master Facilities Plan of capital needs and acquisitions based upon the growth anticipated under the City's adopted General Plan.

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Joan L. Flynn, City Clerk
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Published H.B. Independent April 26, 2012



CITY OF HUNTINGTON BEACH

CITY MANAGER'S OFFICE

2000 Main Street, Huntington Beach, CA 92648

BOB HALL, DEPUTY CITY MANAGER

TO: Honorable Mayor and City Council

FROM: Bob Hall, Deputy City Manager 

CC: Fred Wilson, City Manager
Joan Flynn, City Clerk

DATE: May 7, 2012

SUBJECT: Supplemental Communication: #9 Public Hearing regarding Development Impact Fees

Staff is recommending the following amendment to Resolution 2012-23:

This change would allow for a project having received discretionary approvals to be grandfathered under the current fee structure. The staff report calls for that date to be May 7, 2012. Staff is recommending this date be changed to June 4, 2012.

Attached is a copy of the revised page (pg. 3) of the Fee Resolution located under Attachment #1 of the Development Fee Impact Agenda Item. This can also be found on page HB-147 of your agenda packet.

Current language: "Fee Imposed. The new Development Impact Fees set by this resolution shall not apply to projects that have received discretionary project entitlement approval on or before *May 7, 2012*, and the following milestones are met..."

Proposed language: "Fee Imposed. The new Development Impact Fees set by this resolution shall not apply to projects that have received discretionary project entitlement approval on or before *June 4, 2012*, and the following milestones are met..."

SUPPLEMENTAL COMMUNICATION

Meeting Date: 5/7/12

Agenda Item No. 9

4. Consistency with General Plan. The City Council finds that the public facilities equipment and park land acquisition and fee methodology identified in the respective ordinances and Nexus Report are consistent with the City's General Plan and, in particular, those policies that require new development to mitigate its share of the impacts to City infrastructure and to be fiscally neutral.

5. Differentiation among Public Facilities. The City Council finds that the public facilities identified in the Nexus Report and funded through the collection of development impact fees recommended in the Nexus Report are separate and distinct from those public facilities funded through other fees presently imposed and collected by the City. To the extent that other fees imposed and collected by the City, including Specific Plan fees, are used to fund the construction of the same public facilities identified in the respective ordinances and Nexus Report, then such other fees shall be a credit against the applicable development impact fees. Notwithstanding the above provision, this resolution shall not be deemed to affect the imposition or collection of the water and sewer connection fees authorized by the Huntington Beach Municipal Code.

6. CEQA Finding. The adoption of the Nexus Report and the increase in development impact fees are not subject to the California Environmental Quality Act in that pursuant to CEQA Guidelines, section 15378(b) (4), the creation of government funding mechanisms which do not involve any commitment to any specific project which may cause a significant effect on the environment, is not defined as a "project" under CEQA.

7. Adoption of Report. The Nexus Report as amended April 27, 2012, including Appendices, is hereby adopted.

8. Fee Imposed. The new Development Impact Fees set by this resolution shall not apply to projects that have received discretionary project entitlement approval on or before May 7, 2012 and the following milestones are met:

1. Project has submitted an approved application for building permits within 180 days after the fee going into effect or no later than January 20, 2013.
2. From the time of initial building permit application, the project makes continued progress toward satisfying plan check comments.
3. Building Permits are issued within 360 days after the fees go into effect, no later than July 20, 2013.

An exception to the above milestones is the involvement of an outside third party regulatory agency. In such cases the 180 days to make building permit application will begin when the developer receives clearance from that agency. The City Manager shall have the authority to extend milestone dates for qualifying "grandfathered" projects in his sole discretion. All other projects are subject to the new fees, which go into effect July 20, 2012. All existing Development Impact Fees remain in effect until final action is taken on this resolution and respective ordinances. In the event any portion of this resolution is held invalid, the previously approved development impact fee shall automatically apply.

NO ACTION
TAKEN



HUNTINGTON BEACH
Chamber of Commerce

May 4, 2012

Mayor Don Hansen & Members of City Council

RE: Proposed New Development Impact Fees

Dear Mayor Hanson and members of the City Council:

The Huntington Beach Chamber of Commerce appreciates the amount of time and effort the City has invested in proposing a new development impact fee structure. We understand the economic challenges currently facing the City and the need for additional revenues. However, as an organization representing the business community, we have concerns that raising development fees under the current proposal without examining thoroughly all the components may actually be counterproductive.

The City has spent a considerable amount of time attempting to encourage new development with the adoption of the Beach/Edinger Corridor Plan and has amended the Downtown Specific Plans as well. Any changes at this time will certainly create the need to reevaluate any pending proposals, and may jeopardize the various projects viability. The Chamber believes it is important to balance and anticipate the consequences of the proposed increase of development impact fees along with a reevaluation of the process of reviewing project applications. Without this, we are asked to pay an increase in fees without improvements to the current way of doing business.

The Chamber appreciates the opportunity to participate in this important proposal. We believe that the modifications proposed by staff to allow some grandfathering and a phasing in of the proposed new fees as a great first step.

But we are also concerned about the potential impact these fees will have on future lodging development and our tourism industry. Anything that could impact the revenue stream we receive from our hospitality industry goes well beyond the impact fee and should be examined closely before any implementation.

Beyond the issue of development fees, the existing City project review process remains time consuming and expensive and can be overwhelming for many developers. To propose a continuation of the existing review process without any streamlining provisions and at a greater expense seems inconsistent with previous Council efforts.

The Huntington Beach Chamber of Commerce requests Council to continue discussion on this item for at least thirty days in order to provide all parties with additional opportunities to discuss our detailed concerns and collectively propose a better package for your approval.

Thank you,

Jerry L. Wheeler, Sr. IOM
President/CEO

SUPPLEMENTAL COMMUNICATION

Meeting Date: 5/7/12

Agenda Item No. 9

SUPPLEMENTAL COMMUNICATION



**Orange County
Chapter**

Building Industry Association
of Southern California

May 4, 2012

Meeting Date: 5/7/12

Agenda Item No. 9

Mayor Don Hansen and Members of the City Council
City of Huntington Beach
2000 Main Street
Huntington Beach, CA 92648

Re: Public Hearing Agenda Item 9 – Development Impact Fee Revisions

Mayor Don Hansen and Members of the City Council:

I am writing on behalf of the members of the Building Industry Association of Southern California, Orange County Chapter (BIA/OC) to address the proposed revisions to the City's development impact fees. As a key stakeholder on issues related to housing and community development, BIA/OC has been closely engaged on this issue. Our members appreciate the opportunity to offer our perspectives to the proposals being considered by your city council.

We begin by acknowledging the hard work of the City's fine professional staff. BIA/OC is grateful for transparent and thoughtful manner in which staff has approached this issue. Our members are especially appreciative of the time and consideration city staff has afforded our comments and concerns. The end result, while not a panacea, allows more flexibility in implementation of the new fee structure.

Certainly a fee increase of this magnitude is troubling to the building industry. The potential harm to our industry is exacerbated by the prolonged malaise of housing in this harsh economic climate. Certainly government is not immune to the economic challenges we all face. The health of the private sector, especially the building industry, has a direct correlation to the fiscal health of governments. For this reason, all levels of government are looking for ways to encourage growth. Dozens of local governments have slashed development fees and regulation in an attempt to spark recovery. The timing of this particular fee increase seems to illustrate a notable disconnect between how the public sector and private sector view our economic relationship.

Aside from the philosophical and economic issues associated with this fee increase, BIA/OC has identified a number of errors and inconsistencies in the associated nexus study. As a result, BIA/OC has engaged staff in an attempt to find a middle ground on the timing and implementation of the fees. Thankfully, staff has been open to many of our members'

17744 Sky Park Circle
Suite 170
Irvine, California 92614
949.553.9500
fax 949.553.9507
www.biaoc.com
www.newhomematch.com
Your industry's comprehensive online guide
to new homes

PRESIDENT
BILL WATT
BAYWOOD DEVELOPMENT

VICE PRESIDENT
MICHAEL McCANN
CALMAR DEVELOPMENT

2ND VICE PRESIDENT
CHRIS HAINES
PULTE GROUP

TREASURER / SECRETARY
DAVE BULLOCH
STANDARD PACIFIC HOMES

IMMEDIATE PAST PRESIDENT
DAVE BARTLETT
BROOKFIELD HOMES

TRADE CONTRACTOR COUNCIL V.P.
TOM RHODES
TWR ENTERPRISES

ASSOCIATE VICE PRESIDENT
MARK HIMMELSTEIN
NEWMAYER & DILLON, LLP

MEMBER-AT-LARGE
RICHARD DOUGLASS
RYLAND HOMES

MEMBER-AT-LARGE
MIKE WINTER
SARES-REGIS GROUP

BRYAN STARR
CHIEF EXECUTIVE OFFICER

ideas. While we acknowledge that the City's exposure caused by the nexus study may not be fully mitigated by our collaboration, BIA/OC feels that the current staff proposal reflects a good degree of compromise. **BIA/OC supports the staff proposal to "grandfather" projects in the development pipeline. We are also very supportive of the plan to phase in development impact fees over a number of years.**

While we remain concerned about the pressure that development fee increases place on our industry, we are also grateful for the collaboration efforts of city staff. We look forward to continued dialogue on this important issue and remain a resource to the city on matters related to housing and community development. Thank you for your thoughtful consideration.

Sincerely,

A handwritten signature in black ink, appearing to read 'Bryan Starr', with a stylized flourish at the end.

Bryan Starr

Chief Executive Officer

Cc: Fred Wilson, City Manager
Bob Hall, Assistant City Manager

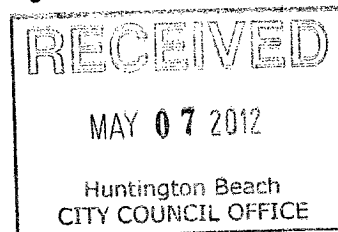


**ORANGE COUNTY
BUSINESS COUNCIL**

2 Park Plaza, Suite 100 | Irvine, California 92614-5904
phone: 949.794.2242 | fax: 949.476.0443 | www.ocbc.org

May 7, 2012

The Honorable Don Hansen, Mayor
Members of the City Council
City of Huntington Beach
2000 Main Street
Huntington Beach, CA 92648.



Re: Agenda Item 9: Revise the City's Existing Development Impact Fees - OPPOSE

Dear Mayor Hansen, Mayor Pro Tem Dwyer and Council Members:

Based in America's sixth largest county, Orange County Business Council represents the largest, most diverse businesses, with over 2,000,000 employees worldwide. We advance Orange County's economic prosperity while protecting a high quality of life.

Despite signs that Orange County is beginning to emerge from the lingering recession, ongoing fiscal challenges at the state and local level persist. Although most cities have focused their efforts on economic growth by finding innovative incentives to encourage business investment and development, we can understand the city's need to update its fee program. Regardless, the business community believes it is critical that the city use sound data and realistic assumptions in order to generate fees that accurately calculate the "fair share" for new development.

Most surprising about the proposed new and increased fees is the change in the City's vision from just one year ago. In March of 2011, the City released its Ten Point Plan for making it easier to do business in Huntington Beach. OCBC even honored the city with its inaugural "Red Tape into Red Carpet" awards for its efforts to proactively cut through the red tape and open the door for business. The Ten Point Plan was heralded as a means to help "produce more new jobs, expand the local tax base, and increase the satisfaction of the business community in receiving the important services they need to remain successful." Unfortunately, the process the city has followed in its Development Impact Fee update and its reliance on a fatally flawed Nexus Report pulls the "welcome" mat out from under business.

OCBC does commend the city for its recent modifications that allow for a phasing of the proposed new fees and some grandfathering of projects already in the development process to use the exiting fee structure. However, the fact that the City actually had to modify its position to not increase fees on projects already under development highlights the many problems with the current fee plan.

We would respectfully ask the City to review the proposed impact fee plan for consistency with its own Ten Point Plan. The lack of a streamlined development process along with increased costs seems contradictory to the City's stated commitment to "assist businesses in order for them to grow and prosper."

Please consider a modest delay of 30 to 60 days to examine the financial feasibility of a longer fee phase - in period and to allow further analysis on the Nexus Report to ensure its compliance with appropriate technical studies and an accurate fee calculation that reflects sound assumptions and calculations.

Sincerely,

Kate Klimow
Vice President, Government Affairs

CC: Fred Wilson, City Manager

SHAPING ORANGE COUNTY'S ECONOMIC FUTURE

**SUPPLEMENTAL
COMMUNICATION**

Meeting Date: 5/7/12

Agenda Item No. 9

RUTAN & TUCKER, LLP

Attorneys at Law

611 Anton Boulevard, 14th Floor

Costa Mesa California 92626-1931

Mailing Address: Post Office Box 1950, Costa Mesa, California 92628-1950

Telephone: 714.641.5100

Facsimile 714.546.9035

*Public
Hearing
Item #9***FACSIMILE TRANSMISSION**

DATE: May 7, 2012

To: Hard Copy to Follow via Mail: NO

NAME	FAX No.	PHONE No.
Honorable Mayor and Members of the City Council c/o City Clerk, City of Huntington Beach	(714) 374-1557	(714) 536-5227
Mr. Fred Wilson, City Manager City of Huntington Beach	(714) 536-5233	(714) 536-5575

FROM: John A. Ramirez - 1032

RE: Attached Letter of Even Date

CLIENT/MATTER NO.: 026565-0004	NUMBER OF PAGES, INCLUDING COVER: 3
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MESSAGE:

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THE INFORMATION CONTAINED IN THIS FACSIMILE MESSAGE IS INTENDED FOR THE USE OF THE INDIVIDUAL OR ENTITY TO WHICH IT IS ADDRESSED, AND MAY CONTAIN INFORMATION THAT IS PRIVILEGED AND CONFIDENTIAL. IF THE READER OF THIS MESSAGE IS NOT THE INTENDED RECIPIENT OR AGENT RESPONSIBLE TO DELIVER THE MESSAGE TO THE INTENDED RECIPIENT, YOU ARE HEREBY NOTIFIED THAT ANY DISSEMINATION, DISTRIBUTION OR COPYING OF THIS COMMUNICATION IS STRICTLY PROHIBITED. IF YOU HAVE RECEIVED THIS COMMUNICATION IN ERROR, PLEASE NOTIFY US IMMEDIATELY BY TELEPHONE AND RETURN THE ORIGINAL MESSAGE TO US AT THE ABOVE ADDRESS VIA THE U.S. POSTAL SERVICE. THANK YOU.

If there are problems receiving this Fax Transmittal please call 714.641.5100, Ext. 1235.



John A. Ramirez
Direct Dial: (714) 662-4610
E-mail: jramirez@rutan.com

May 7, 2012

VIA FACSIMILE AND ELECTRONIC MAIL

Honorable Mayor and Members of the City Council
c/o City Clerk, City of Huntington Beach
2000 Main Street
Huntington Beach, CA 92648

Fred Wilson
City Manager
City of Huntington Beach
2000 Main Street
Huntington Beach, CA 92648

Re: Adoption of Development Impact Fees Resolution (Resolution No. 2012-23) and Ordinances Amending and/or Adding Chapters of the Huntington Beach Municipal Code Regarding Police, Fire, Traffic Impact, Library, and Parkland Acquisition/Park Facilities Development Impact Fees, and General Provisions Relating Thereto (Ordinances Nos. 3942-3947, respectively)

Dear Honorable Mayor, City Council Members and Mr. Wilson:

This letter is written on behalf of DCO Beachwalk, LLC, a Delaware limited liability company ("Developer"). Developer is the owner of real property located at 19891 and 19895 Beach Boulevard, in the City of Huntington Beach ("City"). On March 22, 2012, the City issued a Notice of Action approving Site Plan Review No. 11-005 (Beachwalk Apartments) consisting of approximately 173 apartment units located at the above-referenced property.

The purpose of this letter is to confirm our understanding of the "grandfathering" provision in Section 8 of City Council Resolution No. 2012-23 ("Fee Resolution"). It is our understanding that, pursuant to the Fee Resolution, the following new and revised Development Impact Fees will be imposed on development projects in the City:

- **Police Facilities Fees**, a new development impact fee authorized by the adoption of Ordinance No. 3942, and which will be codified at Huntington Beach Municipal Code ("HBMC") Chapter 17.75;
- **Fire Facilities Fees**, a new development impact fee authorized by the adoption of Ordinance No. 3943, and which will be codified at HBMC Chapter 17.74;
- **Traffic Impact Fees**, a pre-existing development impact fee that has been updated and revised pursuant to the adoption of Ordinance No. 3944, which amends HBMC Chapter 17.65 to reflect such revisions;



Honorable Mayor and Members of the City
Council
Fred Wilson
May 7, 2012
Page 2

- **Library Development Fees**, a pre-existing development impact fee that has been updated and revised pursuant to the adoption of Ordinance No. 3945, and which will be codified at HBMC Chapter 17.67; and
- **Parkland Acquisition and Park Facilities Fees**, a pre-existing development impact fee that has been updated and revised pursuant to the adoption of Ordinance No. 3946, which amends HBMC Chapter 17.76 to reflect such revisions.

It is our further understanding that the above-referenced Development Impact Fees do not apply to projects that have received discretionary project entitlement approval on or before May 7, 2012, and that satisfy the following: (a) submit an approved application for a building permit within 180 days after the fee going into effect or no later than January 20, 2013 (subject to extension by City Manager in his/her sole discretion); (b) make continued progress toward satisfying Plan Check comments after initial building permit application; and (c) building permits are issued within 360 days after the fees go into effect, but not later than July 20, 2013 (subject to extension by the City Manager in his/her sole discretion).

If our understanding is correct, because the Beachwalk Apartments received a Site Development Permit on or about March 22, 2012, the new and revised Development Impact Fees set by the Fee Resolution shall not apply to the Beachwalk Apartments, so long as the Beachwalk Apartments comply with the requirements set forth in items (a) through (c), above.

We respectfully request that City staff confirm our understanding of the Fee Resolution and accompanying ordinances during the Public Hearing Item on the matter.

Please contact me should you have any questions or concerns regarding the foregoing.

Sincerely,

RUTAN & TUCKER, LLP

A handwritten signature in black ink, appearing to read "John A. Ramirez". The signature is stylized with a large, looping initial "J" and a long, sweeping horizontal stroke at the end.

John A. Ramirez

JAR:lr

ARCHSTONE

Memorandum

RECEIVED FROM Ken Keefe
AS PUBLIC RECORD FOR COUNCIL MEETING
OF 5/12/12
CITY CLERK OFFICE
JOAN L. FLYNN, CITY CLERK #9

Date: May 7, 2012

To: Huntington Beach City Council

From: Kenneth Keefe 
Group Vice President

Subject: Proposed Development Fee Impact Increase

Thank you for the opportunity to convey our concerns with respect to the proposed development impact fee increase.

Archstone and two land owners, Pedigo Products, Inc. and the George W. Psaros Trust, are involved in a development project at the southwest corner of Edinger & Gothard consisting of 510 luxury multi-family units (see attached site plan). Archstone first learned on February 1, 2012, more than 6 months after we began our process, that the city is proposing to increase the development impact fees. The project is at risk of not moving forward due to financial infeasibility if the proposed increase in fees passes and does not include a grandfathering provision that would enable the project to remain at the current fee level.

Please find below a summary of facts as well as the progress made to date:

- Archstone and the two land owners have standing in the city. Archstone is the owner of a 152 unit multi-family project at 8945 Riverbend Drive in the city and will break ground on a 384 unit luxury multi-family project later this year at the corner of Gothard and Center Avenue. Pedigo Products has owned their portion of the proposed site for over 40 years and ran their manufacturing business for more than 30 years of that time. The Psaros's have owned their portion of the site for more than 25 years.
- Due to the sites strategic location in the specific plan area, the city approached Rick Pedigo several years ago and asked for him to work together with the Psaros's to attract a developer who would redevelop the site consistent with the city's vision. The land owners have done precisely what the city requested.
- Archstone and the two land owners have invested significant time and effort since July 2011 working to assemble the two parcels at the SW corner of Edinger & Gothard streets to develop a luxury multi-family project consistent with the city's vision and the specific plan.
- The two land owners have structured their tenant leases to position the property for sale resulting in the loss of tenants and reduced revenue.
- Archstone and the two land owners have incurred approximately \$400,000 in out-of-pocket costs to develop the project.
- Archstone has met with the city many times (6 +/-) over the past six months working towards a site plan acceptable to city staff.
- Archstone submitted a site plan application to the city on April 4, 2012 and received first round comments from the city staff last week.
- Archstone and the two land owners are committed to creating a first-class development that is consistent with the specific plan.

Please find attached a summary of public benefits offered by the proposed project.

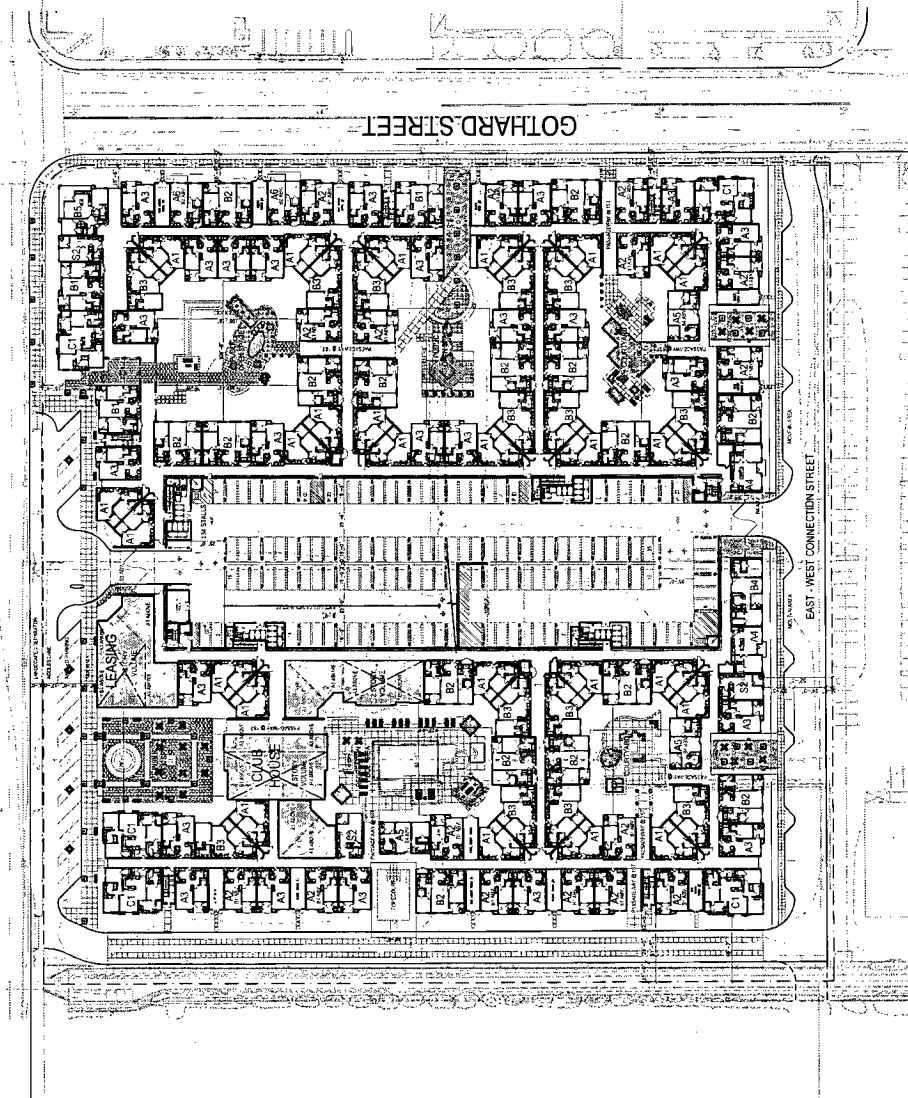
The phasing-in of the fees does not solve our problem since Archstone would likely pull a building permit sometime between December 2013 and May 2014, resulting in a fee increase of approximately \$6.1 million (based on the proposed fee schedule effective as of July 20, 2013) rendering the project infeasible.

Therefore, in order for us to keep the deal alive and for the city to realize the project benefits, Archstone requests that the grandfathering provision be adjusted. Please find attached a copy of the current draft proposal which I have redlined in a manner consistent with what would help allow this project to proceed. Archstone will work diligently with the city to clear staff's comments, obtain the entitlements, design the project, obtain the building permit, and construct and operate the project in an expeditious manner.

Archstone is committed to this luxury multi-family project and hope that the city will grant us the flexibility requested.

Thank you.

SITE PLAN



PARCELS 1 AND 2, AS SHOWN ON A MAP FILED IN BOOK 5, PAGE 36 OF PARCEL MAPS, IN THE OFFICE OF THE COUNTY RECORDER OF ORANGE COUNTY.

3 MacArthur Place, SUITE 600 SANTA ANA, CALIFORNIA, 92707 714-689-7057

Archstone Huntington Beach at Edinger Project Benefits

- **Description** - 510 unit multifamily apartment development on the southwest corner of Edinger Avenue and Gothard Street.
- **Status** – Project is consistent with the Beach and Edinger Corridor Specific Plan and Archstone has submitted a site plan review application to the city.
- **Job Creation** – Project is expected to create 1,000 jobs for construction workers and consultants throughout project planning and construction.
- **Permits and Fees** – Project is estimated to net the city \$8,729,753 before the proposed increase to permits and fees being voted on by city council May 7, 2012.
- **Increased Property Taxes** –

Property Tax Revenue

Existing Parcels	2011 Tax Bill	Increase in Annual Tax Revenue
142-321-01	\$10,500	
142-321-02	\$13,570	
142-321-10	\$18,901	
142-321-12	\$8,576	
142-321-13	\$32,205	
Total	\$83,752	

Projected Taxes During Construction and Lease-up	2013-2017	
Average Tax Per Year	\$809,008	\$725,257

Stabilized Annual Taxes	2017	
Total Tax	\$1,714,170	\$1,630,418

- **Increased Sales Tax Revenue** – 510 units will net between 750 and 1,100 new residents to Huntington Beach who will be shopping in the city and paying sales tax.
- **High Quality Residents** – Project aims to house residents who meet Archstone's background check, credit standards, and income levels necessary to pay rent in accordance with The Fair Housing Act.
- **Affordable Housing** - Project will contain 51 affordable housing units at moderate and low income levels.

Archstone Edinger & Gothard
Estimated Schedule through Construction Start

	Agressive	Conservative	
Staff Approval (in months)	4	6	Time Period per Staff
Planning Commission (in months)	2	3	Time Period per Staff (preliminary feedback from staff indicates that the project will require Planning Commission approval)
City Council (in months)	2	3	Time Period per Staff (my understanding is that most projects that require Planning Commission approval ultimately require City Council approval)
Total Entitlement Period (in months)	8	12	Sum of Pieces Above
Design Period 'til Construction Start (in Months)	12	12	Typically a 12 month process including design development, preparation of construction documents, and "plan check" by the city staff
Total Entitlement & Design Period (in Months)	20	24	Sum of Pieces Above
Today's Date	May-12	May-12	
Range of Construction Start Dates	Dec-13	Apr-14	

Resolution No. 2012-23 – Paragraph 8 – Archstone's Proposed edits

8. Fee Imposed. The new Development Impact Fees set by this resolution shall not apply to projects that have submitted a site plan review application* received discretionary project entitlement approval on or before May 7, 2012 and the following milestones are met:

1. The site plan application has been deemed complete and the Project has received discretionary project entitlement approval on or before 360 days after the new fees go into effect or no later than June 20, 2013.
- 1.2. Project has submitted an approved application for building permits within ~~270~~180 days after receipt of discretionary project entitlement approval the fee going into effect or no later than ~~March~~January 20, 20143.
- 2.3. From the time of initial building permit application, the project makes continued progress toward satisfying plan check comments.
- 3.4. Building Permits are issued within ~~twenty-five months~~360 days after the new fees go into effect, no later than July 20, 20143.

An exception to the above milestones is the involvement of an outside third party regulatory agency. In such cases the ~~270~~180 days to make building permit application will begin when the developer receives clearance from that agency. The City Manager shall have the authority to extend milestone dates for qualifying "grandfathered" projects in his sole discretion. All other projects are subject to the new fees, which go into effect July 20, 2012. All existing Development Impact Fees remain in effect until final action is taken on this resolution and respective ordinances. In the event any portion of this resolution is held invalid, the previously approved development impact fee shall automatically apply.

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Item # 9
Development Impact Fees

RECEIVED FROM Dwain Dwyer
AS PUBLIC RECORD FOR COUNCIL MEETING
OF 3/7/14
CITY CLERK OFFICE #9
JOAN L. FLYNN, CITY CLERK

Development Impact Fee Comparison Current vs. Proposed (Dwyer)

Law Enforcement Facilities

	Current Fee	Consultant		Effective		Effective		25%	50%	75%	100%
		Recom	7/20/12	7/20/13	7/20/14						
Detached Dwelling Units (per Unit)	No Fee	\$396	\$277	\$317	\$356	\$99	\$198	\$297	\$396		
Attached Dwelling Units (per Unit)	No Fee	\$815	\$571	\$652	\$734	\$204	\$408	\$611	\$815		
Mobile Home Dwelling Units (per Unit)	No Fee	\$369	\$258	\$295	\$332	\$92	\$185	\$277	\$369		
Hotel/Motel Lodging Units (per Unit)	No Fee	\$455	\$455	\$455	\$455	\$114	\$228	\$341	\$455		
Resort Lodging Units (per Unit)	No Fee	\$532	\$532	\$532	\$532	\$133	\$266	\$399	\$532		
Commercial/Office Uses (per sq. ft.)	No Fee	\$1.041	\$1.041	\$1.041	\$1.041	\$0.260	\$0.521	\$0.781	\$1.041		
Industrial/Manufacturing Uses (per sq. ft.)	No Fee	\$0.443	\$0.443	\$0.443	\$0.443	\$0.111	\$0.222	\$0.332	\$0.443		

Fire Suppression Facilities

	Current Fee	Consultant	Effective	Effective	Effective	25%	50%	75%	100%
		Recom	7/20/12	7/20/13	7/20/14				
Detached Dwelling Units (per Unit)	No Fee	\$922	\$645	\$738	\$830	\$231	\$461	\$692	\$922
Attached Dwelling Units (per Unit)	No Fee	\$382	\$267	\$306	\$344	\$96	\$191	\$287	\$382
Mobile Home Dwelling Units (per Unit)	No Fee	\$1,583	\$1,108	\$1,266	\$1,425	\$396	\$792	\$1,187	\$1,583
Hotel/Motel Lodging Units (per Unit)	No Fee	\$356	\$356	\$356	\$356	\$89	\$178	\$267	\$356
Resort Lodging Units (per Unit)	No Fee	\$794	\$794	\$794	\$794	\$199	\$397	\$596	\$794
Commercial/Office Uses (per sq. ft.)	No Fee	\$0.329	\$0.329	\$0.329	\$0.329	\$0.082	\$0.165	\$0.247	\$0.329
Industrial/Manufacturing Uses (per sq. ft.)	No Fee	\$0.030	\$0.030	\$0.030	\$0.030	\$0.008	\$0.015	\$0.023	\$0.030

Circulation System Fee

	Consultant		Effective		Effective	
	Current Fee	Recom	7/20/12	7/20/13	7/20/14	
Detached Dwelling Units (per Unit)	\$1,507	\$2,482	\$1,737	\$1,986	\$2,226	25% 100%
Attached Dwelling Units (per Unit)	\$1,058	\$1,657	\$1,220	\$1,395	\$1,563	\$1,751 \$2,238 \$2,482
Mobile Home Dwelling Units (per Unit)	\$786	\$1,299	\$909	\$1,039	\$1,165	\$1,208 \$1,507 \$1,657
	\$746	\$1,105	\$1,062	\$1,062	\$1,062	\$914 \$1,171 \$1,299
Motel Lodging Units (per Unit)	\$1,081	\$1,915	\$1,538	\$1,538	\$1,538	\$836 \$1,015 \$1,105
Resort Lodging Units (per Unit)	\$5.194	\$4.175	\$4.175	\$4.175	\$4.175	\$1,290 \$1,707 \$1,915
Commercial/Office Uses (per sq. ft.)	\$1.061	\$1.789	\$1.789	\$1.789	\$1.789	\$4.939 \$4.430 \$4.175
Industrial/Manufacturing Uses (per sq. ft.)						\$1.243 \$1.607 \$1.789

Development Impact Fee Comparison Current vs. Proposed

Public Library Facilities

	Consultant		Effective		Effective	
	Current Fee	Recom	7/20/12	7/20/13	7/20/14	
Detached Dwelling Units (per Unit)	\$0.44/SF	\$1,172	\$1,172	\$1,172	\$1,172	25% 100%
Attached Dwelling Units (per Unit)	\$0.44/SF	\$908	\$908	\$908	\$908	\$1,085 \$1,143 \$1,172
Mobile Home Dwelling Units (per Unit)	\$0.44/SF	\$733	\$733	\$733	\$733	\$491 \$769 \$908
	\$0.04/SF	No Fee	No Fee	No Fee	No Fee	\$460 \$642 \$733
Hotel/Motel Lodging Units (per Unit)	\$0.04/SF	No Fee	No Fee	No Fee	No Fee	No Fee No Fee No Fee
Resort Lodging Units (per Unit)	\$0.04/SF	No Fee	No Fee	No Fee	No Fee	No Fee No Fee No Fee
Commercial/Office Uses (per sq. ft.)	\$0.04/SF	No Fee	No Fee	No Fee	No Fee	No Fee No Fee No Fee
Industrial/Manufacturing Uses (per sq. ft.)	\$0.04/SF	No Fee	No Fee	No Fee	No Fee	No Fee No Fee No Fee

Park Land/Open Space & Facilities (No Tract Map)

	Current Fee	Consultant		Effective		Effective	Effective	16.67%	33.33%	50.00%	66.67%	83.33%	100.00%
		Recom	7/20/12	7/20/13	7/20/14								
Detached Dwelling Units (per Unit)	\$0.86/SF	\$17,857	\$12,500	\$14,286	\$16,071			\$ 4,697	\$ 7,328	\$ 9,961	\$ 12,593	\$ 15,224	\$ 17,857
Attached Dwelling Units (per Unit)	\$0.86/SF	\$13,835	\$9,685	\$11,068	\$12,452			\$ 2,880	\$ 5,070	\$ 7,262	\$ 9,453	\$ 11,643	\$ 13,835
Mobile Home Dwelling Units (per Unit)	No Fee	\$11,169	\$7,818	\$8,935	\$10,052			\$ 1,862	\$ 3,723	\$ 5,585	\$ 7,446	\$ 9,307	\$ 11,169
Hotel/Motel Lodging Units (per Unit)	\$0.23/SF	\$459	\$459	\$459	\$459			\$ 153	\$ 214	\$ 276	\$ 337	\$ 398	\$ 459
Resort Lodging Units (per Unit)	\$0.23/SF	\$359	\$359	\$359	\$359			\$ 144	\$ 187	\$ 230	\$ 273	\$ 316	\$ 359
Commercial/Office Uses (per sq. ft.)	\$0.23/SF	\$0.954	\$0.954	\$0.954	\$0.954			\$ 0.351	\$ 0.471	\$ 0.592	\$ 0.713	\$ 0.795	\$ 0.954
Industrial/Manufacturing Uses (per sq. ft.)	\$0.23/SF	\$0.772	\$0.772	\$0.772	\$0.772			\$ 0.320	\$ 0.411	\$ 0.501	\$ 0.591	\$ 0.643	\$ 0.772

NOTE: The fees below fall under the Subdivision Map Act and will be addressed at a later date